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LIBER

S. MARIE DE DRYBURGH.

EDINBURGH, BALLANTYNE AND HUGHES.

X

REGISTRUM CARTARUM
ABBACIE PREMONSTRATENSIS
DE DRYBURGH

EDINBURGI MDCCCXLVII



PRESENTED

TO

THE BANNATYNE CLUB

BY

JOHN SPOTTISWOODE.

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TO THE MEMBERS OF THE BANNATYNE CLUB.

WHEN I first undertook to print the Register of Dryburgh for presentation to the Club, I had never seen it, and was not at all aware of its very imperfect and defective state.

On examining the proof-sheets, I perceived that it not only wanted some of the earliest Charters, which it must have originally contained, and among these the Foundation Charter, but that it broke off abruptly, before the suppression of the Monastery; and that, in the greater number of the Charters and other deeds which the Register still contains, the dates, and the names of the witnesses are omitted, which considerably diminishes its usefulness.

It disappointed me to think that my contribution to the Club should be so incomplete; and I determined, though it might cost some trouble and expense, to endeavour, as far as possible, to supply the defects of the Register, by obtaining permission to inspect the repositories of the several persons who now possess lands formerly belonging to the Abbey, in order to recover and make copies of such original Charters and other writings relating to it as might still be in existence.

In doing this I had no difficulty. Being unable personally to make this inspection, I obtained the willing assistance of Mr William Fraser of Edinburgh, a gentleman well qualified for the task, from his intimate acquaintance with old writings, and from his zeal and intelligence in antiquarian research. Through him inspection has been made of the title-deeds, &c. of The Duke of Richmond, The Earls of Mar, Buchan, and Lauderdale, Lord Polwarth, Sir Wyndham Carmichael Anstruther of Anstruther and Carmichael, Baronet, David Erskine Esquire of Cardross, James Haig Esquire of Bemerside, Charles Riddell Esquire of Dryburgh, James Erskine Esquire of Shielfield, James Curle Esquire of Ivelaw, Adam Fairholme Esquire of (St John's) Chapel, George Turnbull Esquire of Abbey St Bathans, and of my brother Lieutenant-Colonel George Spottiswoode of Gladswood, to all of whom I return my thanks for their courtesy.

Every source that could be thought of to complete the Register has been explored, and the result of the search will be found in the Appendix, which contains original Charters, Gifts, Tacks of Teinds, &c., and several old Rentals of the Abbey, which are curious, and may be found useful in assisting to show the changes produced by time on the value both of land and of money.

JOHN SPOTTISWOODE.

THE PREFACE.

THE EDITOR'S PREFACE.

THE Register of the Premonstratensian Abbey of Dryburgh, called the "LIBER S. MARIE DE DRYBURGH,"¹ from which the present edition has been printed, is a small folio volume of paper, containing one hundred and twelve leaves, and written in a hand of the sixteenth century. On a blank leaf at the commencement, it is titled, in the well-known handwriting of Sir James Balfour, "*Liber S. Marice de Drybrughe, 1635*," and at the foot of the first remaining page, it is authenticated with the subscription—"Jacobus Balfourius Kynardice Miles Leo Armorum Rex." It has also been paged by him; and it is probably as complete now as when it was in his possession.

It is to be regretted, however, that the Register is an imperfect collection. It commences with charter No. 6, and concludes abruptly in the middle of a charter, No. 316. The first five charters which are wanting may have occupied two leaves of the volume, and amongst them, probably, was the foundation-charter of David I., as it was usual to commence the registers of religious houses with their foundation charters. There are no means of ascertaining how many charters are wanting at the end.

¹ Advocates' Library, 34. 4. 7 (A. 5. 51)

In addition to these defects at the commencement and conclusion of the Register, it is also to be regretted, that in the greater number of the charters and instruments which it contains, the names of the witnesses are entirely omitted; and that numerous errors occur in the names of persons and places.¹

¹ A few of the errors, sufficient to show the general character of the MS. volume, are here collected:—

P. 173. <i>decem for decet</i>	194. <i>apostolici for apostoli</i>
174. <i>nocte for molte</i>	195. <i>per Tevidalie for per Tividaliam</i>
176. <i>molendinarum for molendinorum</i>	<i>Porro for Pro</i>
<i>caruicatem for carucatam</i>	196. <i>giepro for Giezi</i>
<i>Ertidon for Ercildon</i>	<i>austicia for astucia</i>
<i>nostri synodi for nostre synodi</i>	197. <i>Bangelaw for Langelaw</i>
178. <i>Anglicis for Anglicis</i>	198. <i>religiosis for religionis</i>
179. <i>sacordos for sacerdos</i>	<i>liberti for libenti</i>
<i>laudem for laudam</i>	200. <i>causis for clausis</i>
181. <i>terra qui vicino est for terra que vicina est.</i>	<i>secundum for sanctum</i>
<i>Qui almost invariably for que.</i>	202. <i>per dioceseos for per dioceses</i>
183. <i>universitas for universas</i>	<i>sed for sedis</i>
185. <i>promittitur for promittant</i>	203. <i>Anagine for Anagnie</i>
<i>precepturus for percepturus</i>	209. <i>providatis for pronulgatis</i>
187. <i>prohiberetes for prohibentes</i>	216. <i>Novembris Junij for nonas Junii</i>
189. <i>liberit for liberum</i>	225. <i>finem for suo</i>
191. <i>per vitando for pro vitando</i>	233. <i>de for domino</i>
192. <i>non for nos</i>	239. <i>curam for curiam</i>
193. <i>pertibus for precibus</i>	

The most palpable of such errors have been corrected in the present edition. Others which are suspected have been suffered to remain. For instance, *Robertus* de Morville appearing as a benefactor at a time when *Ricardus* was the known person of the family, leads to a doubt that the Transcriber may have mistaken the initial letter of *R.* in the original charter, for *Robertus*, instead of *Ricardus*. Again, in No. 243, where the bishop is reserving dues from the church of Gullane, the words, “*quatuor marais nomine procurationis nostre et quatuor marais nomine canonicorum*,” plainly contain some mistake, and there is reason to believe that the scribe has written *canonicorum* for *cani nostri*: The Numbers of charters in the present edition do not correspond with the MS. volume after No. 89: the next number, instead of having been made No. 90 in the MS., had been by mistake marked 100, so that this makes an apparent difference of ten more in the MS. than in the print.

Much investigation and research have been made with the view of dis-
 covering a more ancient and complete Register of Dryburgh, and for the
 original charters and grants to, and other Instruments connected with, the
 Abbey. No trace, however, of an older Register has been found; but a
 number of early and interesting charters by De Morville the Constable, the
 Maxwells of Caerlaverock and Peneaitland, the Maitlands of Thirlstane,
 and others,—as well as charters, tacks of teinds, &c., by the Abbots and
 Commendators, Rentals of the Abbey, and Accounts of the Chamberlain,
 have been recovered from private repositories, and printed in the APPENDIX.

Means taken
to discover an
older Register.

Early Charters, &c. found,
and printed in
Appendix.

With all the imperfections of the Register, it is still a record of great
 value, not only for the information it contains relating to the immediate
 district in which the Abbey is situated, but also as to the early holdings
 of lands, churches, and patronages in the counties of Fife, Ayr, Lanark,
 and the Lothians.

Doubts have been entertained as to the real founder of Dryburgh Abbey. *The Founder.*
 David I. styled himself, and he has been generally considered, as the
 founder. In his great charter he gives, grants, and confirms—"Ecclesie
 Sanctæ Mariæ de Dryburgh, *quam fundavi*" "Ecclesiam de Dry-
 burgh," &c.¹ But the contemporary Chronicle of Melrose calls "*Hugo de*
Morville fundator Ecclesie de Drieburg."²

These conflicting statements have given rise to ingenious interpretations
 of the meaning of the expression "*quam fundavi*," in the foundation
 charter. Lord Hailes conjectures that the King thereby meant only that
 he had laid the foundation stone.³ On the other hand, the author of *Cale-*
donia thinks the charter better evidence than the Chronicle,⁴ and that David
 was the founder of the Abbey; yet Chalmers himself, in his account of the

¹ Foundation Charter, p. lxix., *postea*.

² Annals I. 97, note i.

³ Chron. Mailr. p. 78.

⁴ Chalmers' *Caledonia*, vol. ii. p. 336.

De Morvilles, states that Hugh "was the original founder of the monastery of Dryburgh."¹

Whether by the King or his High Constable, the abbey of Dryburgh was founded for monks of the Premonstratensian order in the year 1150. "Anno 1150, Ordo Præmonstracensis venit ad Drueburch, ad festinitatem Sancti Martini" (November 10.)² They were brought from the abbey of Alnwick, which was itself a daughter of the abbey of Neuhus, the first foundation of the order in England.³ The Chronicle of Melrose farther bears:—"Anno 1152, Conventus venit ad Driburgh die Sanete Lucie"⁴ (December 13th.)

¹ Caledonia, vol. i. pp. 503, 4. The munificence of David I. to the church is proverbial. As Hugh de Morville appears to have been the earliest benefactor, if not the actual founder, of the Abbey of Dryburgh, it may not be out of place to give a short account of him from the *Caledonia*: "Among the English settlers in Scotland, not one was more early in his attachment, or rose to greater eminence in the state, than Hugh Moreville, who came from Burg, in Cumberland. Under David, he acquired vast possessions in Lauderdale, in the Lothians, and, above all, in Cunningham, along the northern bank of the river Irvine. Under his munificent master, Hugh de Moreville became Constable of Scotland, which office descended, hereditarily, through a long succession of illustrious heirs, both male and female. He was the original founder of the monastery of Dryburgh, and he died in 1162. By Beatrice de Bello-Campo, his wife, he left Richard de Morville, who enjoyed his high office and great possessions, and became the principal Minister of William the Lion. Richard married Avicia de Lancaster, who is emphatically mentioned with him as a patroness

of the Monks of Melrose. Richard de Morville died in 1189, and his wife Avicia in 1191. They left their opulence and fendatories to their son William, and a daughter, Elena, who was destined to carry all those enviable objects into a different family. William acted a conspicuous part towards the end of the twelfth century. He married Christian, though of what family does not appear, but she brought him no issue; and he died in 1196. On the death of William without lawful children, his high office and vast estates were enjoyed by Elena and her husband the Lord of Galloway."

² Chron. Mailr. p. 74. ⁴ *Ibid*, p. 75.

³ Le Paige, *Biblioth. Præmonstrat. Ord.* In the Circaria Angliæ Borealis et Scotiæ. Le Paige gives six houses of the order in Scotland, but so disfigured in spelling, and misplaced, that it is difficult to recognise them.

1. *Ecclesia viridis stagni*, or Saulsete: a daughter of the chief house of Prémontré.
2. *Sacri nemoris*, Dereongal or Holywood, daughter of Saulsete.
3. *Candidæ case*, or Whithorn, a daughter of Saulsete.

Although the rules of the Order of *Præmonstratenses*, thus founded at Dryburgh, were the same as those observed in other similar institutions, and which are well known, it appears appropriate to the present work, and may be interesting, as this is the first of the Registers of that religious order which has been published in Scotland, to give a short account of their manners and employments.

In Britain they were usually styled White Canons, from the colour of their dress, which consisted of a white cassock, with a rochet and cape over it, a long white cloak, and a square hat or bonnet, of white felt. They likewise wore breeches and shoes, but no shirt. The abbot wore red shoes, and a short cloak, and had a pastoral staff, like a shepherd's crook. At first they were poor, and lived by their labour; but their piety soon gained them benefactors, and they became rich. Their possessions were exempted from paying tithes; they were not subject to the bishop's jurisdiction; and they could not be cited before a secular tribunal. Their time was divided between their religious exercises, the cultivation of their fields, their household offices, and reading and transcribing books.

Their devotions, which were performed seven times a-day, began at a very early hour with MATINS. They were awakened by the bell of the dormitory, which was rung as long as would be required to say the seven penitential psalms; during which time they dressed themselves, and said their private prayers, until, upon a sign from the prior, they went in procession to the church, each individual kneeling in the middle of the choir, and bowing reverently toward the altar, before taking his seat. The matutinal service being finished, they returned to bed, and reposed until the hour of PRIME, or six o'clock, when they were summoned to attend during the

4. *Tungland*, a daughter of Cockersand.

5. *Drieburg*, a daughter of Alnewie.

6. *Novæ Ferinæ*, or Ferne, in the diocese of Rosmarky, daughter of Whithorn.

In the *Circaria Hiberniæ*, two monasteries are noted, which, in the spelling of Le Paige,

stand Duix Lacroisse and Grafergosensis, and both of which he calls daughters of Dryburgh. Pennant gives these Irish abbeys the names of Drum la croix and Woodburn. *Bibl. Præmon.* pp. 333, 334, 343.

ORDER OF
PREMONSTRATENSES
continued.

celebration of the ordinary mass, and such private masses, as, on particular days, might happen to be said at any of the side altars at the same hour. After this, they were accustomed to remain some time in private prayer in the church; and some of them went to confession, in the chapter-house. Such exercises occupied the time, until the bell rang for holding the daily meeting of the chapter; when they all assembled in the cloister, before proceeding to the chapter-house; the transcribers of books, and those at work out of doors, hastening in to be present with the rest. Every one, as he entered, bowed towards the place of dignity; and the abbot, when they were all assembled, invoked a blessing upon them. Suitable prayers having been said, a lesson was then read from the rules of the order; and the names of those appointed to any particular services were read from the register; every one, on his name being pronounced, bowing reverently, in token of obedience. Next, the deaths, and other events to be commemorated, were given out from the calendar. Then the abbot, standing in his place, pronounced the absolution of the souls of the dead. Those who had been convicted of any fault, were accustomed, at this time, to prostrate themselves on the ground, and, making an humble confession, entreat forgiveness: Penance was enjoined, and, if it was judged fit, punishment was sometimes inflicted on the spot, by the prior, or his deputy. Accusations were likewise heard by the abbot, openly, in the chapter, against any one under his jurisdiction or authority. The business being concluded, they united in repeating the exxx. psalm, "De profundis," unless it happened to be a high festival. Then the abbot or president said, "Our help is in the name of the Lord," and the rest added, "Who made heaven and earth." In winter, the chapter was concluded at the hour of Tierce, or nine o'clock; and the "Salve Regina" having been given out by the precentor, they proceeded into church, two by two, singing this hymn. In summer, there was an interval before Tierce, during which they went about their usual employments. High mass was sung at Tierce in summer; but at Sexte, or twelve o'clock, in winter.

The community dined in the great hall, or refectory, at one o'clock; and the abbot, if present, asked a blessing. During this and their other meals, one of their number standing at a desk in the side of the hall, read to them out of the Holy Scriptures, or some other edifying book: and they took this office by weekly turns. They also waited upon each other at table, in the same rotation; having taken their meal previously, along with the reader. They all stood in their places till blessing was pronounced, after which the reader, having mounted his desk, began to read, and the rest to eat. Only two dishes were allowed, except on particular occasions, when another, called a pittance, usually consisting of some sweet, or more delicate food, was added. It was brought in after the second dish, and presented to the abbot, or to the person who presided in the abbot's place, who caused it to be distributed. Much civility and politeness were practised. They were attentive to each other's wants, and indicated them to the cellarer, or to the brother who served. They bowed to each other on presenting or receiving any thing. He to whom the abbot, or president, sent any thing, first bowed to the servant who brought it, and then, rising up a little, to the superior who sent it. Those who came into the hall too late, and without a good excuse for their delay, said a Paternoster and an Ave Maria, by way of penance, sat down at the bottom of the least frequented table, and were not entitled to any ale or wine, without the special permission of the abbot, or president. After dinner some went to repose, others conversed till the hour of Noxes, or three o'clock, when there was another service in the church, at the end of which they washed their hands, and sat down together in the cloister, till, a signal being given, they again entered the refectory, for a few minutes, to drink. At six o'clock they attended the VESPERS, or evening service. The COMPLETORIUM, or COMPLINE, was said or sung in church after seven; and then taking a light supper, called COLLATIO, they went to bed. Sheets were not allowed, nor any linen, except in sickness; and they all slept in the same room, called the dormitory, but in separate beds, in their usual clothes. Not content with the forty days' abstinence appointed by the

ORDER OF
PREMONSTRATENSES
continued.

ORDER OF
PRÆMONSTRAN-
TENSES
continued.

Church, they kept a fast from Holyrood (September 14) till Easter ; taking no food till after Nones, and abstaining entirely from flesh. They began, however, to relax somewhat of their strict observance of this rule before the year 1245 ; and in 1460, Pope Pius II. gave them power to dispense with it.

In time of hay-making and harvest, they went to work early in the morning, and sometimes did not return home till after Vespers ; but were bound to recite their prayers in the fields at the canonical hours. On festivals they did no work, but read during the time usually appropriated to that purpose. Instances, however, occur of special dispensations and permissions to perform work on such occasions. There were no schools in monasteries of this order ; but no one ignorant of Latin could be admitted into it. The lay brethren were taught to recite the Creed, the Paternoster, Ave Maria, and other prayers ; but were not allowed books.¹

The history of the Abbey shall now be shortly traced through its successive Abbots and Commendators, so far as these have been ascertained.

THE ABBOTS
I. *Roger.*

I. ROGER was made the first abbot,—“*Rogerus factus est abbas primus,*” 13th December 1152.² He was witness to a confirmation by the archdeacon and whole clergy of Lothian, of a composition between Melrose and the church of Dunbar, in presence of Richard bishop of St Andrews, regarding the tithes of the granges of Edmuniston and Herteshened.³ He had three bulls addressed to himself by Pope Alexander III., confirming grants to his abbey, and permitting service there in time of general interdict.⁴ “*Rogerus abbas primus de Driebrure curam ovium resignavit,*” in 1177.⁵

¹ *Bibl. Præmon.*, Fosbrooke's *British Monachism*, and Morton's *Monastic Annals of Teviotdale*, p. 291, *et seq.*

² Chron. Mailr. p. 75.

³ Liber de Melros, I. p. 42.

⁴ Nos. 253, 254, 255, pp. 203, 204.

⁵ Chron. Mailr. p. 88.

II. GIRARDUS the prior was the second abbot,—“Girardus Prior ei THE ABBOTS continued.
ad ministerium successit,” in 1177.¹ He had a general privilege of the 2. Girardus.
churches, lands, fishings, teinds, &c., from Pope Lucius III., in the third
year of his Pontificate, 1184.²

III. RICHARD was probably the third abbot. He was one of the witnesses 3. Richard.
at a very solemn convention between the High Steward's Knights of Inner-
wick, and the abbey of Kelso, made “at the feast of St Martin next after
Philip King of France and Richard King of England went to Jerusalem,
which was in the year 1190 from the Incarnation of the Lord.”³ He also
witnessed a charter of Alan Fitz Walter, along with Bishop Jocelyn of
Glasgow.⁴ He was probably succeeded by

IV. ALAN, who had a confirmation from Pope Celestinus III., in the 4. Alan.
fifth year of his Pontificate (1196,) of the churches of Lessedwyn, &c.⁵

V. GEOFFREY was abbot in 1203. At Whitsuntide of that year, he was 5. Geoffrey.
present, along with William bishop of St Andrews, and many other church-
men and lay lords, at the settlement of a dispute between the monks of
Kelso and William de Vipont, which was adjusted by De Vipont consenting
to discharge the monks of their obligation to carry the bones of his father
from England, and to bury them in the churchyard of Kelso, and the monks
agreeing to include his father amongst the list of benefactors to be prayed
for in the monastery.⁶ On the 10th September 1208, the new cemetery of
Dryburgh was consecrated by William bishop of St Andrews.⁷ As one of
the Papal delegates, Geoffrey settled a dispute between Melrose and Sir

¹ Chron. Mailr. p. 88.

² No. 249, p. 194.

³ Liber de Kelso, p. 206, 214.

⁴ Liber de Melros, p. 60.

⁵ No. 250, p. 197.

⁶ Liber de Kelso, p. 112.

⁷ Chron. Mailr. p. 107.

THE ABBOTS
continued.

William de Hunum regarding the lands of Rasawc, after the 2d of November 1208.¹ He was removed from Dryburgh, and became abbot of Ahlwick, in 1209.²

6. *William.*

VI. WILLIAM, the prior of the abbey, succeeded.³ He was a delegate in the settlement between St Andrews and the Culdees of Monymusk, 1211-13.⁴

7. *Hugh.*

VII. HUGH was abbot in 1221, in the Lent of which year he acted as a Papal delegate in the settlement, at Edinham, of a dispute about tithes between the Abbot of Kelso and Alan de Mundegumeric, knight; at which settlement were present "the whole chapter of the Merse."⁵ He was one of six delegates, in 1221, for settling a controversy between Dunfermline and Cupar.⁶ In December 1225, his abbey was engaged in a dispute with the Prior of May regarding the tithes of the Church of Kilrennie. Dryburgh claimed tithes of fish, because the fishing-boats used to lie in the middle of the river which separates the parish of Kilrennie, belonging to Dryburgh, from Anstruther, the property of May, dropping their anchors and fixing their moorings within the parish of Kilrennie. The monks of May compounded by paying a merk yearly.⁷ Hugh was witness to a composition between the Bishop of Glasgow and the abbey of Kilwinning, in 1226.⁸ Hugh is also mentioned as abbot of Dryburgh in 1228.⁹

8. *Henry.*

VIII. HENRY was probably the next abbot. He is mentioned as abbot

¹ Liber de Melros, p. 124. The date is fixed by the consecration of Walter bishop of Glasgow, who was present.

² Chron. Mailr. p. 107.

³ *Ibid.*

⁴ Regist. Aberdon. II., p. 264.

⁵ Liber de Kelso, p. 216.

⁶ Regist. Dunf., p. 133.

⁷ No. 192. It may be observed, that in the MS. Register the neighbouring parish has been erroneously written Kinstruther, instead of Einstuther. The same deed occurs in *Regist. Prior. S. Andr.*, p. 395.

⁸ Regist. Glasg., p. 118.

⁹ No. 251, p. 198.

in a charter by Helyas de Brothirstainside of lands to the abbey, without THE ABBOTS continued. date, but presumed to be about 1230.¹

IX. WALTER was abbot of Dryburgh in 1240,² when he resigned his 9. Walter. office, and was succeeded by

X. JOHN, a canon of the house.³ Soon after his election, Abbot John 10. John. assisted at a compromise between the monks of Kelso and some of their tenants in Clydesdale.⁴ He was present in a chapter of the clergy of East Lothian (*capitulum orientali Landonie*) at Lauder, on Saturday after the feast of St Peter ad vinula 1245, when a dispute was settled between the priory of St Andrews and the Nuns of Haddington regarding the tithes of Stephinstun.⁵

XI. OLIVER was the next abbot of whom we find any mention. On the 11. Oliver. 6th of December 1262, he was witness to a charter of William de Alwentun to the monks of Melrose;⁶ and seven days later, on the feast of St Lucia, he and the abbot of Kelso witnessed a grant to the monks of Melrose, of the fishings of Malcarnistun, for their support and recreation.⁷ Oliver was still abbot in 1268.⁸

XII. THOMAS was probably the next abbot. He granted a charter of 12. Thomas. lands in Giffen to Richard, chaplain to Alan, Lord of Galloway, without date, but presumed to be about 1270.⁹

XIII. WILLIAM is the next abbot of Dryburgh who appears. He and 13. William. the canons are found doing homage to Edward I., on 2d September 1296.

¹ No. 165, p. 116.

² Chron. Mailr. p. 159.

³ Liber de Kelso, p. 162.

⁴ Reg. Prior. S. Andr. p. 329.

⁵ *Ibid.*

⁶ Liber de Melros, I. 294.

⁷ Liber de Melros, p. 301.

⁸ Chron. Mailr. p. 215.

⁹ No. 229, p. 167.

THE ABBOTS
continue 1.

at Berwick, and obtaining thereby restitution of their property, which had been seized by the English.¹ About the year 1316, this abbot was a witness to a grant by William de Lamberton, bishop of St Andrews, to Kelso, of the church of Grenlaw with its chapels, *in proprios usus*.² He also witnessed a charter of confirmation by Patrick of Dunbar, Earl of March, to the abbey of Melrose, of the lands of Redpath, about the year 1319.³ In 1322, the monastery of Dryburgh was burned and reduced to ashes by Edward II., in his retreat from his unsuccessful expedition into Scotland.⁴ In 1324, William was still abbot. In that year he appears as a witness in a charter to Melrose, of the patronage of the church of Owchiltre, and several others.⁵

14. *Roger*.

XIV. ROGER abbot of Dryburgh occurs as witness to a charter, granted between 1324 and 1328, by which Sir John de Graham confirmed the whole of Eskdale to the monks of Melrose.⁶

15. *David*.

XV. DAVID abbot of Dryburgh is witness to a charter to Kelso in 1329;⁷ and he is called abbot in 1338.⁸

16. *Andrew*.

XVI. ANDREW was abbot of Dryburgh, and witnessed a charter of Roger de Auldton, which was confirmed by David II., April 1, 1354.⁹

The four abbots of Teviotdale were, from their position, more peculiarly subject to English influence; which accounts for their sanctioning by their presence, Edward Balliol's surrender of the kingdom of Scotland to Edward III., at Roxburgh, 20th January 1355. On the 14th May 1373,

¹ Ragman Rolls.—Rotul. Scot.

² Liber de Kelso, p. 250.

³ Liber de Melros, p. 389.

⁴ Fordun, XII. 4.—“Monasterium de Dryburgh igne penitus consumptum est, et in pulverem redactum.”

⁵ Liber de Melros, p. 367.

⁶ *Ibid.* p. 343.

⁷ *Ibid.* pp. 366, 369, 374, 381.

⁸ Regist. Glasg. p. 244.

⁹ Liber de Kelso, p. 387.

they had a warrant from the King of England for shipping eighty sacks of wool of Scotch growth at Berwick, paying only a half mark of duty on each sack.¹

In 1385 Dryburgh was again burned in the raid of the young Richard II.² Apparently to compensate for its sufferings, King Robert III., in the first year of his reign, granted to the Abbey all the lands and revenues of the Cistercian priory of South Berwick, who, he declared, had indulged in dissolute and incontinent lives, and the number of whom had been reduced to two.³

XVII. JOHN is the name of the next abbot. On the 29th of February 1398, he was witness to an obligation of Archibald M'Dowell of Malkarston, for the amount of his relief granted by the Crown "to the new werke of the kirke of Melros."⁴ On the 8th of March 1410, John abbot of Dryburgh was present when Henry bishop of St Andrews confirmed the union of the possessions of the Nuns of South Berwick to Dryburgh.⁵

XVIII. THOMAS abbot of Dryburgh, on 23d September 1434, acted as Papal delegate in determining upon a claim of Kelso to the chantry founded by Roger de Auldtoun.⁶

XIX. JAMES was abbot of Dryburgh on the 16th of November 1444,

¹ Rotuli Scotiæ.

² Scotiebron. XIV. 50.

³ Reg. Mag. Sig., 199, 15.

⁴ Liber de Melros, p. 490.

⁵ MS. notes by George Crawford, "of writes in the Lady Cardross' hands, Jan. 2, 1721," in the possession of Joseph Robertson, Esq. We owe to the same collection the preservation of the following note—"Grant by Alex. Spure burgensis de Berwik, pro salute Regum Willelmi et Alexandri et suo-

rum Beatæ Mariæ et Sancto Leonardo de Suthberwiek et monialibus ibidem Deo servientibus, unam bovatom terræ arabilis in territorio de Bondington, quam quidem terram emi a Willelmo filio Neysi. Testibus domino Hugone de Berkeley tunc justiciario Laudonia;"—which Crawford has noted to be "about 1284;" but it is considerably older.

⁶ Liber de Kelso, p. 417.

THE ABBOTS
continued.

when, on the occasion of a dispute between his abbey and Melrose concerning the great tithes of the parish of Lesseduen, in presenee of the four abbots of Teviotdale, in the ehapel of St Mary Magdalene, in the hospital of Rutherford, an ancient custum was cited, according to which, disputes occurring between any two were to be settled by the arbitration of the remaining abbots; and abbot James of Dryburgh “respondit quod super hoc voluit de novo avisare.”¹

20. Walter.

XX. WALTER, abbot of the abbey of Dryburgh, granted a tack, dated 16th November 1465, in favour of a “worschipful squear, William Haliburton of Mertoun and Jonet his spous, of a plew of land of the Bouchieoits with their pertinents lyand within the lordship of Smailhame, within the sherifdome of Tevidale.”² On the 4th of Mareh 1466, William Craynston of Corsby knight, as justiciar besouth Forth specially constitute, granted a comission to Walter abbot of Dryburgh, to which were witnesses, Sir Alexander Hume of that ilk, knight, James Haig of Bemersyde, Nicholas Forman of Hutton, and Mr Jasper Cranston, rector of Fetteresso.³ In 1472, Walter appears to have been still abbot of Dryburgh;⁴ and the exaet period of his death, or demission of office, has not been ascertained.

Walter was probably the abbot of Dryburgh, who on 31st July 1473, pursued an action before the Lords Auditors against the Lord Hamiltoun, “for ye wranguiss occupatioun of ye lands of Ingilberisgrange, and ye with-haldin of ye malis of ye samyn, pertening to the said abbot and his convent, as was allegit.” The Lords found that “the Lord Hamiltoun dois na wrang in the occupatioun of ye lands, nor takin and holdin of ye malis and proffits yairof.”⁵

Nor is it improbable that Walter was still Abbot of Dryburgh on 1st July 1476, when another action was “perseuit be a venerable faider

¹ Liber de Melros, p. 575.

⁴ *Ibid.*

² Appendix, No. xiii. p. 278.

⁵ Acta Auditorum.

³ Crawford's Cardross notes, *ut supra*.

in God, the abbot and convent of Driburgh on the ta pairt agains Adame Edgar of Wedderlye and Paule Cristy, the said Adame upon the wranguiss occupatione and manuring and with-haldin fra thaim of the landis of Knokfelde, and of taking and with-haldin of the malis of the samyn the space of xvi yeirs bigain, extending yerly to tene marks, and als the said Adame and Paule upon the wranguis takin and with-haldin fra thaim of certain charters and evidents and letteris of infeftment of the said lands, baith the parties beand personally present, the said Adame allegiand to be under respuitt be a letter under the priue sele of our Sovereine Lords given be the bischop of Abbirden, in the quhilk he is expremitt. The Lords Auditors differs the matter concerning the said Adame to the said respuitt, and becaus the said Paule Cristy grantit in presence of the lords that he haid twa letteris and evidents concerning the lands of Knockfelde, and with a sele and ane vthir with mony selis, quhilk he deliurit to the said Adame, as he said that thairfor he enteret his persone within the prisone of the burgh of Edinr. at the will of the said abbot and convent thair to remain on his awin expensis quhil he be fred be the kingis lienis," &c.¹ Walter seems to have been succeeded in his office by

THE ABBOTS
continued.

XXI. JOHN, who was abbot in 1479. "Dominus Johannes Crawford ^{21. John} Canonicus Regularis de Dryburgh," was incorporated a member of the ^{Crawfurde.} university of Glasgow on the morrow of S. Martin 1476.² On the 6th of November 1479 there was an action pursued by "A venerable fader in God, John of Crawford, abbot of Driburgh, on the ta part, against Johne of Dewar, on the tothir pairt, for the ranguiß occupationn of the Kirklandes of Saltoun, pertening to the said abbot and convent, and occupeit be the said John but tak or set, as was allegit, the said Johne Dewar beand lauchfully and peremptorily summoned, and oft tymes callit and not comperit, the Lords of Counsale decretis and deliurs that the said Johne of Dewar sall

¹ Acta Auditorum.

² Annales Univer. Glasg. p. 51.

THE ABBOTS incontinent devoid and red the said landis to be bronkit and joysit be the said abbot and convent.”¹

Dean David Dewar, a canon of Dryburgh, claims to be abbot in 1480.

Dean DAVID DEWAR, a canon of Dryburgh, and vicar of Mertoun, appears to have claimed to be abbot after the death of Walter, and to have exercised some of the privileges of the office of abbot, by granting tacks of certain lands, &c., belonging to the abbey. This occasioned litigation in the civil court between the respective lessees of Abbot John Crawford and Dean David Dewar, the competing claimant.

Reports appear on record of actions between these parties regarding lands in Pencaitland, St John's Chapel, and others belonging to the abbey, on 26th June 1480, 23d March 1481, and 26th March 1482.²

In another action, reported on 23d January 1488, at the instance of the abbot and convent of Dryburgh against Adam Bell, “ffor the wrangwis intrometting, uptakin, and withhalding fra thaim of the teyndis and froitis of the kirk of Saltoun, in the yere of God 1483 yeris, and the said Adame Bell agane Dene David Dewar, *abbot for the time of the said abbay, and now*³ vicar of Mertoun, for the werrandiss of him of the said teyndis and froitis. All the saidis partis beand present be thaimself and thair procuratoris, thair richtis, ressouns, and allegacionns at lenth sene, hard, and understandin, because the said abbacy was in contentioun betuix the said partiis the said tyme, and the said Dene David grantis that he aucht to werrand the said Adame, and is a spirituale and beneficiit man, that thairfore the said abbot gere call the said Dene David before the spirituale juge for the said mater.”⁴ And of the same date “Johne Hume of Qubitrig, as procurator for the abbot and convent of Driburgh, comperit and protestit that the geuing of the decrett before written suld turne the said abbot and convent to na prejudice.”⁵

¹ Acta Dominorum Concilii.

² *Ibid.*

³ These words in Italics are scored through

in the Record, thus leaving it doubtful if David Dewar had ever actually been abbot.

⁴ Acta Dominorum Auditorum. ⁵ *Ibid.*

Abbot John Crawford was probably succeeded by

THE ABBOTS
continued.

XXII. ANDREW, who was abbot of Dryburgh in 1489. He and David Finlayson, a canon regular of Dryburgh, witnessed a resignation by James Haig of Bemersyde to his son William Haig, of the lands of Bemersyde, dated 12th February 1489.¹ Abbot Andrew continued in office till the year 1506 at least, as there was a “Resignation of lands about Lanark, by John Johnston of Petinyn, to Andrew Lidedale, abbot of Dryburgh, testibus Alexandro Hume filio et apparente herede nobilis et potentis Domini Alexandri Hume de eodem, Johanne Carmichael de Midowflat, Willelmo Carmichael de eodem, Roberto Maxwell de Calderwood, 1506;” also, “a Sasin in 1506, Andreas Lidedale, Abbas de Dryburgh; the first I have found of the name.”²

22. Andrew
Lidedale.

XXIII. JAMES STEWART was probably the next abbot of Dryburgh, as on 8th July 1507 a legitimation was passed at Glasgow in favour of James Stewart, rector of Ancrum, son natural of the deceased Mr John Stewart, “to qualifie him for being abbot of Dryburgh.”³ No evidence, however, has been found showing that he actually became abbot in consequence of this preparative step.

23. James
Stewart, the
first.

XXIV. DAVID FINLAYSON is the name next mentioned in connexion with the office of abbot in the year 1509. It has been seen that he was a canon regular of Dryburgh in 1489;⁴ and there was presented to King James an “address by the convent of Dryburgh, that he may prefer being duly elected abbot of Dryburgh, and before was rector of Gullayn 1509, Dominum David Fynlaston vicarium de Gullyn.”⁵ It has not been ascer-

24. David
Finlayson.

¹ Original in the possession of James Haig, Esq., of Bemersyde.

² *Ibid.*

⁴ *Ut supra.*

⁵ *Sic in orig.*:—George Crawford’s Card-

² George Crawford’s Cardross notes.

ross notes.

THE ABBOTS
continued.

tained that this address was agreed to on the part of the King by the appointment of the nominee of the convent. At that time their election may have had but little weight in inducing the king to give effect to it.

COMMEN-
DATORS OF DRY-
BURGH.

There is indeed no sufficient evidence, that after the death or demission of abbot Andrew Liderdale, about the year 1506, Dryburgh ever had another abbot properly so called. During the subsequent century that the abbey continued to exist as a religious house, it was held *in commendam*. A list of the Commendators will now be given. The first was,—

25. Andrew
Foreman.

XXV. ANDREW FOREMAN, a well-known churchman of the 16th century. He was of the family of Foreman, of Hutton, in Berwickshire. He enjoyed a remarkable plurality of benefices. In 1498, he was the Pope's pronotary, and was afterwards his legate *a luteo*. He was prior of May in 1498, bishop of Moray in 1501, and held at the same time the priories of Coldingham and Pittenweem, to which was added, before 1512, the commendatorship of Dryburgh, which he appears to have retained till the year 1515. He was appointed archbishop of St Andrews, in 1514.¹ He was also per-

¹ Keith's *Catalogue*, p. 22. Pitcottie attributes the Archbishop's favour at the courts of Rome and France to his having had the address to bring about a peace between Pope Julius II. and Louis XII., when they were in the field, at the head of their respective armies, ready to give each other battle. But this is not supported by history. The same author gives the following curious, but absurd, account of a banquet, by Forman to the pope and cardinals:—"Then this bischope maid ane banquet to the Pope and all his cardinallis, in one of the Pope's awin palaces, and when they war all sett according to thair custome, that he who ought the hous for the tyme should say the grace; and he was not ane guid scholler, nor had not guid Latine, bot begane rudlie in the Scottise faschioun, saying

'Benedicite,' belevand that they schould have said 'Dominus.' bot they answeired, 'Deus,' in the Italiane faschioun, quhilk pat the bischope by his intendment, that he wist not weill how to proceed forward, bot happened in guid Scottis in this manner, sayand quhilk they vnderstuid not, 'The divill I give you all false cardinallis to, in nomine Patris, Filij, et Spiritus Sancti, Amen.' Then all the bischope's men leugh, and all the cardinallis thaimselfis; and the Pope inqyred quhairat they leugh, and the bischope schew that he was not ane guid clark, and that his cardinallis had put him by his text and intendment, thairfor he gave thame all to the devill in guid Scottis, quhairat the Pope himself leugh verrie earnestlie."—Pitcottie's *Chron. Scot.* Edin. 1814, I. p 254.

petual commendator of Dunfermline in 1517. He died and was buried at Dunfermline in 1522.¹ Spottiswoode says of him, that he was “a plain, open man, but said to be profuse;” and, “that besides the benefices he possessed in Scotland, he was archbishop of Bourges in France, by the gift of King Louis XII., which did greatly increase his means.”²

THE COMMEN-
DATORS
continued.

XXVI. JAMES OGILVIE, rector of Kynkell and canon of Aberdeen, a son of Ogilvie of Boyne, and a person much employed in public business, had a grant of the abbacy of Dryburgh *in commendam*, in recompense, as Spottiswoode says, of the bishopric of Aberdeen, to which he was presented by the Regent Albany, but which he was afterwards obliged to resign. In the treasurer's accounts, under date 12th September 1515, he is styled “Mr James Ogilvy, *now my Lord Dryburgh.*” Under the designation of commendator of Dryburgh, he is stated as one of the witnesses to a remarkable Deed of Foundation of a house of Observantine friars at Montrose, by Patrick Painter, principal Secretary of State, dated 14th November 1516, which was ratified in Parliament the same day.³ In an Instrument dated 2d August 1517, he is designated as Mr James Ogilvie, commendator of Dryburgh, and tutor to John Ogilvie, son and heir of Sir William Ogilvie of Strathern (in Moray).⁴ He died at Paris on the 30th of May 1518, and was buried there in the Church of St Landrus. His anniversary was founded and celebrated with much solemnity in the cathedral of Aberdeen.⁵

26. James
Ogilvie.

XXVII. DAVID HAMILTON, bishop of Argyle, a natural son of James Lord Hamilton, father of the Earl of Arran, next held the abbacy of Dryburgh *in commendam*. He was commendator on December 4, 1522,⁶ and must have died or demitted his office in less than a year from that date.

27. David
Hamilton.

¹ Keith's *Catalogue*, p. 22.

² History, p. 62.

³ Regist. Aberdon. Act. Parl. I. p. 389.

⁴ Original in the Charter-room at Gordon Castle.

⁵ Regist. Aberdon. II. p. 207.

⁶ Crawford's Cardross notes.

THE COMMEN-
DATORS
continued.

At that time the Borders were the scene of savage devastation, which Surrey deliberately proposed to perpetuate, by condemning a breadth of twelve miles of the Scotch border to remain for ever desert and uninhabited. The property of the church, and even the sacred buildings, were no more respected than those of laymen. In the midst of that destructive pillaging, Albany bestowed the benefice of Dryburgh upon Lennox, who appointed as its commendator,—

28. *James
Stewart the
second.*

XXVIII. JAMES STEWART,¹ who was a canon of Glasgow Cathedral. On the 13th of December 1523, Cardinal Accolti, the promoter of Scotch affairs at Rome, was instructed to obtain his nomination to the vacant abbacy, setting forth his fitness to rule the monastery in the troubles and disasters to which it was exposed.² Stewart was soon involved in a feud with the Haliburtons, neighbours and tenants of the abbey, which was ended for a time by the marriage of Agnes Stewart, daughter of the abbot, with Walter Haliburton. On the 27th June 1537, the abbot, along with his convent, executed a declaration in favour of Walter Haliburton and Agnes Stewart, his spouse, regarding the lands of Nether Shielfield;³ and on the 3d of September 1538, Walter Haliburton of Mertoun had a charter of the lands of Butchercoit, granted by Abbot James, with consent of his convent, and subscribed by the abbot himself, the sub-prior, and fifteen canons of the convent of Dryburgh.⁴ “The offspring of this marriage was an only daughter,

¹ Pinkerton, II. 234, *et ibi citat.*

² Cotton MSS. Calig. B. I, fol. 137, quoted in Morton's *Tweeddale*, p. 300.

³ Appendix, No. xiv. p. 279. A charter was granted by James Abbot of Dryburgh, with consent of the Convent, to Hew Lord Sommervale, and Janet Maitland his spouse, of the L⁸ land of old extent of Inglisberry-grange, with the pertinents, in the parish of Pettynane—dated at Dryburgh 13th May

1538—*Witnesses:* George Ker of Lyntoun, James Lewingstoun Junior of Gerviswood, John Stewart, Sir John Wilson, Matthew Kyrkpatryk, James Douglas, Walter Haliburton, David Somerville, James Somerville in Greinfeld, Sirs George Weir, John Bull and John Rolland Notaries.—(*Original in the Carmichael Charter-chest.*)

⁴ Appendix, No. xvii. p. 285.

named Elizabeth Haliburton. As this young lady was her father's heir, the Haliburtons resolved that she should marry one of her cousins, to keep her property in the clan. But as this did not suit the views of the abbot, he carried off by force the intended bride, and married her to Alexander Erskine, a brother of the laird of Balgouny, a relation and follower of his own. From this marriage sprang the Erskines of Shielfield.¹ This exploit of the abbot revived the feud betwixt him and the Haliburtons, which ended only with the dissolution of the abbey."²

THE COMMENTATORS,
continued.

James Stewart continued commendator till 1541,³ and was succeeded by

XXIX. THOMAS ERSKINE.⁴ He was commendator in 1541,⁵ and from this time the Abbey appears to have been held, almost without interruption, by different members of the House of Erskine, until the head of that family obtained an absolute grant of it, as part of the Temporal Lordship of Cardross, in 1604. This commendator did not possess his benefice in peace. In 1544—"Upon Friday the seventh of November, at four of the cloke at afternoon, Sir George Bowes and his company, Sir Brian Layton and his company, Herry Ewry, Liell Gray, porter, and the garrison of Barwiek, John Carre, captain of Wark, and his company, Thomas Beamond, George Sowlby, Launcelot Carleton, and their companies, to the number of 700 men, rode into Seotland, upon the water of Tweide, to a town called Dryburgh, with an abbay in the same, which was a pretty town and well buylded; and they burnte the same town and abbay, saving the churche, with a great substance of corne, and gote very moche spoylage and insicht

29. *Thomas Erskine.*

¹ Also Ebenezer and Ralph Erskine, the founders of the first secession from the Church of Scotland. Andree Redditum.—(In the Advocates' Library.)

² Hist. of the Scot. Border, vol. i. xcii., note. Ed. 1821.

³ Compotum Magistri Alani Lawmonth olim Granitarij Archi-Episcopatus Sancti

⁴ Appendix, No. xviii., p. 287.

⁵ Thomas Innes's MS. note-books, in the possession of David Laing, Esq., who has obligingly communicated other useful information for this work.

THE COMMEN-
DATORS,
continued.

geir, and brought away an hundreth nolte, sixty naggs, a hundreth sheipe . . . and they tarried so longe at the said burnynge and spolaige that it was Saterdag at eight of the cloke at nycht or they com home.”¹ The Abbey does not appear to have been fully rebuilt after this destruction.

In the following year, 1545, the commendator of Dryburgh took his revenge in an inroad across the English border.²

On the 18th February 1546, Thomas perpetual commendator of the monastery of Dryburgh, and convent of the same, granted the teinds of Lander to Mr Andrew Hume.³

30. *John
Erskine,
or
Stewart.*

XXX. JOHN was commendator of Dryburgh in 1548, on the 12th July of which year he granted a charter, of which only an imperfect note has been preserved.⁴ On the 20th March 1554, John commendator of Dryburgh, with consent of the convent, granted and subscribed at Dryburgh, a tack of two merks of land in Mertoun to Thomas Myll and Walter Myll.⁵

This Commendator has been called an Erskine, and a Stewart, without any sufficient authority being cited for either of the conflicting statements. Thus, the late Earl of Buchan, in a letter describing Dryburgh, dated in 1791, states: —“Of this Abbey my noble and truly excellent ancestor John Erskine, afterwards” (Earl of Mar and) “Regent of the Scots, was Commendator during the lifetime of his elder brothers, Robert and Thomas, Lords Erskine.”⁶ Robert the elder brother was killed at the battle of Pinkie in 1547,

¹ Cotton MSS. Calig. B. v. quoted by Morton, p. 301.

² *Ibid.* p. 302.

³ Appendix, No. xviii. p. 287.

⁴ Inventory of part of the old title-deeds of Dryburgh, found in the repositories of the late

Sir David Erskine of Dryburgh, and transmitted, in 1838, to Messrs Monypenny and Dalgleish, W.S., agents for his representatives.

⁵ Appendix, No. xx., p. 291.

⁶ “The Bee,” vol. iv. p. 160.

and Thomas the younger died in 1551; and, according to the above statement, their younger brother John had been Commendator at these dates. THE COMMEN-
DATORS,
continued.

On the other hand, it has been stated that this Abbot was John Stewart, "the cousin of Lord Darnley, the husband of Mary Queen of Scots,"—and that "his armorial bearings are still on the walls of the Abbey, above the private entrance into the cloisters for the monks who had overstayed their time."¹ The same author gives a drawing of the arms, under which he calls Abbot John Stewart, not cousin, as in the passage just quoted, but *uncle* to Lord Darnley; and Mr Morton has followed this latter statement.²

None of the Charters granted by this Abbot, which have been recovered, contain his surname, and no authority has been found to show whether he was of the Erskine or the Stewart family. The presumptions are, that he was of the former. John Erskine, the son of John Lord Erskine, was Commendator of Inchmahomo 16th August 1552, and he was succeeded in that office, in 1556, by his nephew, David Erskine.³ This David Erskine, it will be immediately seen, also became Commendator of Dryburgh about the same time; and the probability is, that after John Erskine succeeded to the title of Lord Erskine, on the death of his father in 1552, and betook himself to new pursuits and employments, he had resigned the offices of Commendator of Dryburgh and Inchmahomo in favour of his nephew, David Erskine. Another nephew, Adam Erskine, son of Thomas Master of Erskine, was made Commendator of Cambuskenneth; and these three religious houses continued in the Erskine family, and were ultimately erected into the Temporal Lordship of Cardross, in favour of John Earl of Mar, as will be afterwards stated.

¹ Annals and Antiquities of Dryburgh, by the late Sir David Erskine of Dryburgh, 1828, p. 27. The arms referred to may have been those of Abbot *James* Stewart, No. xxviii.

² Morton, p. 302.

³ Mar Papers, quoted in letter from David Erskine, W.S., dated 14th October 1789, printed in "*Fragmenta Scoto-Monastica*," 1842, Appendix thereof, p. viii.

THE COMMEN-
DATORS,
continued.

31. *David
Erskine.*

XXXI. DAVID ERSKINE, natural son of Robert Master of Erskine by Mrs Jean Home, was the next Commendator of Dryburgh. It has been seen that he became Commendator of Inchmahomo in 1556, but the exact date of his appointment to Dryburgh has not been ascertained. On 27th September 1559, he, as Commendator of Dryburgh, with consent of the Convent, granted a Charter in favour of Alexander Erskine and Elizabeth Haliburton, of the six merk land in Mertoun.¹ And on 16th January 1562, David, as Commendator of Inchmahomo, with consent of the Convent, granted a Tack of the Teinds of Newtoun of Down and Wester Row, in favour of Allan Oliphant his servitor.²

Great events befell the Abbey during David's connexion with it. Shortly after his appointment to the Commendatorship, the full tide of the Reformation had flowed upon this and the other similar religious houses in Scotland. Dryburgh, with the others, was annexed to the Crown after the Reformation; but there was a liferent reservation in favour of the Commendator, and other possessors of the principal mansions and their precincts, as well as the tithes, and they continued their residence at the abbey. This Commendator acted a prominent part in the stirring affairs of the times; and it will be necessary to give an account of the discharge of the office which he held for a period so long and important.³

¹ Appendix, No. xxi., p. 292.

² Besides the Commendator, the members of the convent subscribe this document as follows:—

“Den Thomas Macellen, Sub Prior ad Idem

“Den James Bradfut

“Den Robert Schortus ad Idem

“Den Alane Baxter ad Idem

“Den Vellum Stirleng ad Idem

“Den Johin Baxter ad Idem.”

—*Original Tack in possession of David Erskine Esq. of Cardross.*

³ The account of the Chamberlain of Dryburgh, under this Commendator, for the year

1567, forms Part III. of Appendix (No. xlvii.)

It contains several curious entries. These four follow each other (see p. 402–3):—

“Item gevin to the Priores and Madynnys that samyn tyme in Driburgh at my Lordis command xx s.

“Item gevin to ane Nakit Lawd to help him to ane Coitt v s.

“Item the ferd day of Maij gevin at my Lordis command to ane full in Thirlstane Manyss

“Item that same tyme gevin to Dwn having ane sair leg to maik his expensis being behind my Lord”

David Erskine is described by father Hay as “an exceeding modest, honest, and shame-faced man.” He was of the Reform party, and a follower of the Regent Murray. He was made a privy counsellor in 1579;¹ and by the Act of Parliament in 1572, appointing the young Earl of Mar governor to James VI., during his minority, “the friendis of the house of Erskine, Robert Erll of Buehan, David commendator of Dryburgh, Alexander Erskine of Gogar, William Douglas of Loehlevin,” were named assistants to the Earl in the office. Erskine of Gogar, who was uncle of the Earl, took the chief charge of the young King. On the suggestion of the Regent Morton, Mar turned out his uncle, and became master of the King’s person, and the Castle of Stirling, in 1578; and afterwards, in 1582, he joined the Earl of Gowrie in seizing the King at the Raid of Ruthven.

In these proceedings of his chief, the “modest and honest” commendator David was a participator, with many others of the Erskines. They were obliged to take refuge in England; and in the parliament of 21st August 1584, they were found guilty of treason and lese majesty, and their estates confiscated to the crown.

Forfeiture of David Erskine, commendator, for treason.

During the residence of the commendator in England, David Home of Argatie, a dependant of the Earl of Mar, was indicted and tried on 8th December 1584, for “the tressonabill haifing intelligence fra Johnne sumtym Erle of Mar, David sumtyme commendator of Dryburgh, our soveraine lord’s traitors, declarit in parliament, in the ressait of lettres fra thaim, at the leist the ane or other of thame, and specialie fra Patrick Hume, his broder sone, servitor to Johnne, sumtyme Erle of Mar, quhilkis lettres he ressauit fra Robert McWillie, quham he ressauit in his hous in passing and repassing to thame in Ingland, committit in the monethis of July, August, and September last by past.” The assize, “be the mouth of George Dundas of that Ilk, Chancellor, fand the said David Home to be culpabill fyllit and

¹ Folio Acts of Parliament, vol. iii., p. 96, *et passim*.

THE COMMEN-
DATORS
continued.

connet in contrauncing of our souerane Lordis Acts of Parliament in ressaie of ane boy callit Rob. M^cWillie, and conceiling of the lettre send be him," "fra Patrick Home out of England, and ressauing commendations fra the Abbot of Dryburgh from England." The "Doum of foirfautler was pronunceit that the said David Home suld be tane to ane gippet at the croce of Edinburgh, and thair hangit, quarterit and draun as ane traitor, and all his lands, &c., to be eschete to the King's vse."¹

In a ratification dated 4th June 1585, by James VI. of a grant by David Commendator of Inchmahomo, in favor of Patrick Bathok of an yeirlie pension of nine merks out of the lands of Gartavertyne in the Stewartry of Monteith, David is designed "*sumtyme* commendator of Dryburgh and Inchmahomo."²

The office of commendator of Dryburgh, during the forfeiture and absence in England of David, was bestowed on another, as

32. *William.*

XXXII. WILLIAM appears in the Records of Parliament as commendator of Dryburgh on 31st July 1585.³ He seems to have held the office only for a short period—from the forfeiture till the restoration of David.

*Restoration of
David
Erskine.*

In November 1585 the Earl of Mar and his banished friends returned from England with a large force, succeeded in depriving the Earl of Arran of his power over the King, and obtained an act, in December following, reversing the sentence of forfeiture, and restoring Mar and his friends to their honours, offices, and estates.

Thus reponed, David Erskine again became commendator of Dryburgh. On 4th March 1586 he granted, as Commendator of Inchmahomo, a tack of the teinds of Wester Lanark, to Mr Duncan Neven, schoolmaster at Dunblane, for teaching of the youth.⁴

¹ Records of Justiciary Court, and Pitcairn's Criminal Trials, Vol. I. Pt. ii. iii. p. 136.

³ Folio Acts of Parliament, vol. iii. p. 381.

² Original Tack in the possession of David Erskine, Esq. of Cardross.

⁴ Authenticated copy by the lessee in 1617, in the possession of the Earl of Mar.

On 10th June 1600, a Lease of teinds of the Mains of Mertoun was granted by David, commendator of Dryburgh; and instead of its bearing the usual consent of the convent, it states, as a reason for being granted by the commendator alone, that "*all the convent thair of now being decessit.*"¹ THE COMMENDATORS, continued. Decease of all the convent, stated in 1600.

There is something plaintive in this declaration of the death of all his compeers by the sole surviving representative of this religious house, which was itself destined, in a short time thereafter, to undergo a further change.

It will be shown that in 1604 James VI. included the Abbaey of Dryburgh in the Temporal Lordship and Barony of Cardross, erected in favour of John Earl of Mar, but there was reserved to the Commendator the Rents, Profits, and Emoluments of the Lands and others.

In virtue of this reservation, David continued to grant Leases of certain of the teinds belonging to the abbey. One of the Leases bears date 30th May 1608, being about fifty years after the first Lease by him above mentioned, which shows that he had enjoyed his benefice for half a century. This last Lease bears, in the old form, to be with consent of the convent, although they had all "decessit" at least eight years previously. It is subscribed by David alone.²

The granting of this Lease must have been among the last official acts of David Erskine, commendator of Dryburgh; as it is stated in a Deed of Provision by James VI., dated on 31st May 1608, being only the day after the last-mentioned Lease, and to be immediately noticed, that the abbaey was then vacant, and in his Majesty's hands as patron, through the demission of David commendator of the abbaey of Dryburgh.

After having been so long connected with Dryburgh, David demitted his

¹ Appendix, No. xxxiii., p. 316.

² Appendix, No. xxxv., p. 319.

THE COMMEN- office, that it might be provided to his kinsman, Henry Erskine, a son of the
DATORS, continued. Earl of Mar.¹

*Dedication of
office by David
Erskine.*

*33. Henry
Erskine, and
afterwards
700 of Car-
dross.*

XXXIII. HENRY ERSKINE, second lawful son of John Earl of Mar and Lady Mary Stewart, second daughter of Esme first Duke of Lennox, was next made abbot and commendator of Dryburgh. On 31st May 1608, James VI. granted a *Provision* in his favour, making and constituting him "Indubitatum et irrevocabilem abbatem et commendatarium abbacie nostre de Dryburgh, ac priorem prioratus de Inchmahomo totius ac spiritualitatis dictorum dominorum beneficiorum tantum nunc in manibus nostris vacan per dimissionem Davidis commendatarij dieti Abbacie de Dryburgh, ac Prioris dieti Prioratus de Inchmahomo ultimum commendatarium ac possessorem dictorum beneficiorum."² This Provision was to subsist during all the days of Henry's life, with seat and vote in Parliament.

¹ The Commendator survived his demission of office for a few years, and the following particulars relate to his marriage, issue, and death:—

David Erskine, as Commendator of the Priory of Inchmahomo, granted a Tack in favour of "*James Erskyne our son and apperand air,*" of the Teinds of various Lands. Dated 1st March 1580. (*Original in the possession of David Erskine, Esq. of Cardross.*)

"David Commendator of Dryburgh" died on 28th May 1611, as appears from the Record of the Confirmation of his Testament by "*Margaret Haldan his relict and only executrix*" nominated by him. It further appears from this record that David was ARCHDEAN OF BRECHIN, as there is confirmed as due to him in that character at Whitsunday 1611, by the Laird of Auldbar, as representing his father, the sum of L.1053 Scots for feu-duties of the lands of the Drums. By his testament the Commendator beseeched the

Earl of Mar to be a protector to his said spouse, "in the short time apperandlie she hes to leiff, and to assist mantyn fortifie and defend hir in hir rycht and agains ony that will pretend to do her wrang. And swa assuring myself heirof I commend his Lordschip with his noble and godlie lady and thair haill bairnis, friendis and familie to the blessing and protection of the eternal God. "DRYBRUCHE."

"*Margaret Haldan, Lady Dryburgh,*" the relict of the Commendator, died on 13th January 1618, as appears from the confirmation of her testament by "*Harie Lord of Cardross,*" executor nominated by her. It is presumed that James Erskine, their son and apparent heir in 1560, had predeceased them, as he is not mentioned in either of their wills. (*Records of Commissariat of Dunblane, vol. iii., 30th July 1611; and vol. v., 28th November 1619.*)

² Reg. Mag. Sig. Lib. 45. No. 196.

It will be afterwards shown that Henry Erskine was assigned by his father to the Fee of the Lordship and Peerage of Cardross, and that he predeceased his father in 1628.

A brief account of Dryburgh, after it was converted to lay and temporal purposes, will now complete its history.

Shortly before the Reformation, the Abbots and Convent granted several feu-rights of part of the Abbey Lands. In reference to two of these original Feus, and the present partition of Dryburgh into two distinct Estates, with separate Mansion-Houses to each, both situated near to the Abbey, a little explanation seems necessary.

HISTORY OF
DRYBURGH
after the
Reformation.

One portion of the Estate of Dryburgh, with the Mansion-House now called Dryburgh Abbey,¹ and which is adjacent to, and on the south side of the Ruins of the Abbey, belongs to the Earl of Buchan. As this portion comprehends the ruins, and a great part of the Church Lands, its history will be afterwards more particularly stated.

The other portion of the Estate of Dryburgh, with the Mansion-House also adjacent to, and on the north side of the Ruins of the Abbey, now belongs to Charles Riddell, Esq. The original House, which was called the Mantle House, was built by Alexander Erskine, the founder of the Shielfield family, in 1559, on ground feued from the Commendator. This house was occupied by the Erskines of Shielfield, as their family residence, they being also portioners in Dryburgh, for a period of 234 years, till the year 1793, when they sold it along with their Lands at Dryburgh to Mr Riddell, who pulled it down, and replaced it with the present Mansion.²

¹ This Mansion-House, it is said, was originally built by George Haliburton, in the year 1572, on a piece of ground feued from the Commendator about 1560. The House was afterwards, in 1682, repaired and modernized by Thomas Haliburton of Newmains; and the late Earl of Buchan, after he acquired Dry-

burgh in 1786, made considerable additions to the House, preparatory to adopting it as his residence. (Memorials of the Haliburtons in Dryburgh, 1820, p. 25; and Annals and Antiquities of Dryburgh, *passim*.)

² Annals and Antiquities of Dryburgh, *passim*.

HISTORY OF
DRYBURGH,
continued.

Erection of the
Abbey as part
of the lordship
of Cardross,
1604.

A. 1606.

As already stated, James VI. granted a charter, dated 27th of March 1604, in favour of John Earl of Mar, of all the lands, baronies, castles towers, patronages, &c., which belonged to the Abbeyes of Dryburgh and Cambuskenneth, and the Priory of Inchmahomo, and erected the same into the Lordship and Barony of Cardross.¹ It is stated that this grant was made to the Earl, "that he might the better provide for his younger sons whom he had by the Lady Mary Stewart, of whom the King took great care."²

An Act of Parliament was afterwards, on 11th July 1606, obtained for the erection of the said Abbeyes and Priory into a Temporal Lordship, called the Lordship of Cardross, which narrates that "the samyn monasteries and superstitionns thair of being now abolisheit and the kirk landis of the samin now annexit to his hienes' crowne." It also narrates the previous charter, dated 27th March 1604, and ratifies the same; and dissolves from the Act of Annexation to the Crown, the lands, &c., of the said abbaecies, and of new gives and grants to the Earl, "his heirs maill and assignayis heretable," the mansion of Dryburgh, &c., and patronage of all the churches, and erects the whole into the lordship and barony of Cardross,—and gives to the said noble "lord his airis and successouris that sal happin to be provydit be him to the "said lordship and baronie of Cardroiss the honor, estait, dignitie, and pre-heminence of ane frie Lord of Parliament, to be callit Lord of Cardroiss "in all tyme cuming"—"Reservand to David commendator of the Abbacy "of Dryburgh, the rentes, proventis, and emolumentis quhatsumevir of the "said lands and others."³

¹ Recited in Act of Parliament. Acts, vol. iv. p. 343. Cardross is situated in the parish of Port of Monteith, and county of Perth, and is now the property of David Erskine, Esq., descended from this John Earl of Mar. Mr Erskine, it will be observed, has kindly communicated several documents to form part of the present work.

² Crawford's *High Treasurers*. Alexander Erskine, third son of the same Earl and Countess of Mar, was also *Provided* to the

Abbacy of Cambuskenneth at the same time that his Brother Henry got Dryburgh. (*Reg. Mag. Sig.* No. 45, 195.) This Abbot of Cambuskenneth was also a Colonel in the army. He was killed on 30th August 1640, at "that unhappie and lamentable exigence of the blowing up of the house of Dunglass by powder," along with his brother-in-law Thomas Earl of Haddington, and others. (*Records of Tynningham Parish*.)

³ Folio Acts, vol. iv. p. 343.

In terms of this act, a crown charter was passed under the great seal on 10th June 1610,¹ granting to the said Earl and his heirs and assignees whatsoever the whole lands, &c., to be called the Lordship and Barony of Cardross, and making and constituting him and his heirs male assignees and successors therein, free Lords and Barons of the same, with the honour, title, and dignity, and right to a seat and vote in parliament. Other charters passed the great seal to the same effect on 10th April 1615, and 14th July 1634.²

HISTORY OF
DRYBURGH.
continued.

*Charter of
Cardross in
1610.*

The Earl of Mar assigned the lordship and peerage of Cardross on 30th January 1617, to his said second son Henry Erskine, and to the heirs male of his body, reserving his own life-rent. This assignation was ratified by charter under the great seal on 13th March following.

*Assignment of
lordship of
Cardross to
Henry Erskine
in 1617.*

Henry Erskine having predeceased his father in the year 1628, never enjoyed the peerage of Cardross. He was styled *Fiar of Cardross*, in a crown charter, dated 29th March 1628, shortly before his death.³

David Erskine, only son of Henry, succeeded to the peerage of Cardross on the death of his grandfather in 1634, and was served heir to his father on 17th March 1637.⁴ He had a new charter of Cardross dated 10th February 1664.⁵ He died in 1671.

*David, second
Lord Car-
dross, 1634.*

Henry, third Lord Cardross, son of David, sold that part and portion of the Lordship of Cardross, formerly called the "abbacie of Dryburgh," to Sir Patrick Scott, younger, of Ancrum, conform to disposition and rental, dated 24th June 1682.⁶

*Henry, third
Lord Car-
dross, 1671.*

Sir Patrick Scott, who was called Lord of Erection of Cardross, sold that part of the Lordship, comprehending the ruins of the Abbey of Dryburgh, to Thomas Haliburton of Newmains, advocate, by disposition dated 22d January 1700. This appears from a crown charter of resignation, dated 12th February 1733, in favour of the said Thomas Haliburton, and

*Thomas Hal-
iburton of
Newmains ac-
quires Dry-
burgh Abbey
in 1700.*

¹ Reg. Mag. Sig. Lib. 46. No. 262.

⁴ Retours, vol. i. Berwick, 221.

² Reg. Mag. Sig. Lib. 47, No. 490; Lib. 48, No. 411; et Lib. 55, No. 3.

⁵ Reg. Mag. Sig. Lib. 62. No. 9.

³ *Ibid.* Lib. 52. No. 102.

⁶ Originals in the possession of David Erskine, Esq. of Cardross.

HISTORY OF
DRYBURGH,
continued.

John Haliburton, merchant in Edinburgh, his eldest son by Janet Campbell, daughter of Robert Campbell, of Northwoodside, whom failing to Robert Haliburton his second son, of all and whole that part and portion of the lordship of Cardross, formerly the abbacy of Dryburgh.¹ This Charter also contained the parts of Dryburgh which Thomas Haliburton previously held in feu, and on which his ancestor erected a Mansion-House, as already explained; but there were excepted in this Charter the parts of Dryburgh which then belonged to the Erskines of Shielfield, and which had never pertained to Sir Patrick Scott.

Robert Haliburton having succeeded to the estate of Dryburgh, in terms of the destination in the said charter, sold the same to Lieut.-Colonel Charles Tod, in the service of the Honourable East India Company, for the price of L.5500, by disposition dated 15th and 28th September 1767.²

*Sir Walter
Scott's account
of the con-
nexion of the
Haliburtons
with Dry-
burgh.*

The Haliburtons of Newmains were the maternal ancestors of Sir Walter Scott, and he has himself stated their connexion with Dryburgh. He says, "Robert Scott of Sandy-knowe married, in 1728, Barbara Haliburton, daughter of Thomas Haliburton of Newmains, an ancient and respectable family in Berwickshire. Among other patrimonial possessions, they enjoyed the part of Dryburgh, now the property of the Earl of Buchan, comprehending the ruins of the abbey. My granduncle, Robert Haliburton, having no male heirs, this estate, as well as the representation of the family, would have devolved upon my father, and indeed Old Newmains had settled it upon him; but this was prevented by the misfortunes of my granduncle, a weak silly man, who engaged in trade, for which he had neither stock nor talents, and became bankrupt. The ancient patrimony was sold for a trifle (about L.3000);³ and my father, who might have purchased it with ease, was dissuaded by my grandfather, who at that time believed a more advantageous purchase might have been made of some lands which Raeburn thought of selling. And thus we have nothing left of Dryburgh, although my father's maternal inheritance, but the right of stretching our

¹ Reg. Mag. Sig. Lib. 94. No. 56.

³ The exact price was L.5500, as stated in

² Register of Deeds in Court of Session, the disposition above mentioned.
Mackenzie's Office, vol. 202. 12th Nov. 1767.

bones, where mine may perhaps be laid ere any eye but my own glances over these pages."¹

HISTORY OF
DRYBURGH.
continued.

¹ Autobiography of 1808, Lockhart's *Life*, vol. i. p. 66. The following sketch will make the connexion of the Haliburtons and Scotts with Dryburgh more intelligible:—

THOMAS HALIBURTON, portioner of Dryburgh,
son and heir of James Haliburton and Margaret Haig his wife. Was born in 1597.
Married in 1625, Mary Haliburton eldest daughter of John Haliburton of Mertoun.
He acquired the Over and Nether Mains of Bemerside from David Haig in 1637, and
had a Crown Charter thereof dated 16th January 1638, and was afterwards styled
of Newmains. Died 30th January 1673.

JOHN HALIBURTON, Eldest Son,
succeeded his father in Newmains and Lands in Dryburgh in 1673. Died 31 March
1688. Buried at Dryburgh.

THOMAS HALIBURTON, Eldest Son,
Born 17th May 1679, and succeeded his father in 1688. In 1709 he acquired that
part of the erected Lordship of Cardross which included the lands and Abbey of
Dryburgh, and obtained a Crown Charter thereof on 12th February 1733.
Died 25th June 1753. Buried at Dryburgh.

JOHN HALIBURTON, Eldest Son,
Born 22d March 1707. Succeeded his father
in Newmains and Dryburgh in 1753. Died
26th April 1754, unmarried.

ROBERT HALIBURTON, Second Son,
Born 5th September 1718. Succeeded to
Newmains and Dryburgh on the death of
his brother in 1754. In 1767, he sold Dry-
burgh and other lands to Colonel Todd whose
Trustees, in 1780, conveyed the same to
David Stuart late Earl of Buchan.

BARBARA HALIBURTON, Third Daughter,
Born 4th March 1706. Married in 1728 to
ROBERT SCOTT of Sandyknowe, a Grandson
of the first Laird of Raeburn
Their eldest son was,

WALTER SCOTT,
Born at Sandyknowe,
11th May 1729. Became
a Writer to the Signet.
Died in April 1799.

SIR WALTER SCOTT, BARONET,
First of Abbotsford,
Born 15th August 1771.
Died 21st, and buried at
Dryburgh Abbey 26th
September 1832.

JANE JOHNSON, only child,
and heiress of Wm. Job-
son of Lochore, in the
county of Fife, who sur-
vives her husband.

SIR WALTER SCOTT,
of Abbotsford, BART.
Lieutenant-Col. of the
15th Regiment of Light
Dragoons. Died at Sea,
off the Cape of Good
Hope, on the 8th Feb-
ruary, and was buried
beside his father at Dry-
burgh Abbey on the
4th May 1847. S.P.

CHARLES SCOTT,
Died at Teheran
in Persia,
28th Oct. 1839.
S.P.

SOPHIA SCOTT,
Married 29th April,
1820, to JOHN GIB-
SON LOCKHART, Esq.
She Died 17th May
1837.

ANNE SCOTT,
Died 25th June
1833, unmarried.

JOHN HUGH LOCKHART,
Died 15th December
1831.

WALTER SCOTT LOCKHART = SCOTT,
Born 16th April 1826, Lieut. in the
16th Regiment of Lancers, suc-
ceeded his uncle and added the
Name and Arms of Scott, as Heir
of Entail of Abbotsford, 1-17.

CHARLOTTE LOCKHART,
married to J. R. HOPE,
Esq., 19th August 1847.

HISTORY OF
DRYBURGH,
continued.

*The late Earl
of Buchan ac-
quires Dry-
burgh.*

The estate of Dryburgh was again sold, in 1786, by Colonel Tod's trustees, to David, late Earl of Buchan, who thus re-acquired the part of the property which had belonged to his ancestors, the Earl of Mar and the Lords Cardross. In 1810, his Lordship executed an entail, in virtue of which, on his death in 1829, his son, the late Sir David Erskine, succeeded to Dryburgh, and on whose death, without issue, in 1837, the present Earl of Buchan, the nephew of Earl David, became the proprietor.¹

Having thus traced the History of this once famous Religious House through its various vicissitudes, from its Foundation to the present time, we shall close these Prefatory Remarks with a parting glance at the situation and ruins of the Abbey.

*Situation of
the Abbey, its
ruins, appear-
ance, &c.*

Dryburgh is situated in the parish of Mertoun, on the south-western confines of the county of Berwick. It stands three miles below Melrose, and ten miles above Kelso, on a flat sequestered lawn, on the north side of the Tweed, nearly surrounded by one of its finest turns, with high woody banks on every side, and in sight of the celebrated and picturesque Eildon Hills, the Trimontium of the Romans. Such a situation seems to have been peculiarly suited for retirement from the world and the enjoyment of the recluse monastic life.

The abbey and its church have been so often ruined and repaired, altered and added to, that it becomes difficult to trace the plan of the building, or to ascertain the age of its different parts. There is nothing, however, in Dryburgh which the student of early architecture can place before the twelfth century, and but little of that period is preserved. The now roofless ruins, covered here and there with ivy, and intermingled with lofty trees, contrasting with the beauty of the surrounding scenery, render the whole remarkably imposing and picturesque.

¹ Title-deeds of Dryburgh in the possession of the Earl of Buchan.

Dryburgh, since it became the grave of Scott, has been invested with an additional interest. It was preferred by him, that his own remains might mingle with those of his maternal ancestors, the Haliburtons. But it was, in any view, a fitting place of sepulture for the Great Minstrel of the Scottish Border. There, amidst the dust of the powerful De Morvilles, and many a holy Abbot and Monk of old, and surrounded by the ashes of his own "rough clan," under walls scorched in many a Border foray, in the heart of the valley he loved so well, and of the scenes he sung, lie the mortal remains of that mighty Master who has thrown a charm over the country, its history, and its traditions, that will live as long as themselves.

EDINBURGH, *October 1847.*

TABULA.*

[CARTA FUNDATIONIS DAVIDIS I. REGIS, 1150-52. P. lxix.]

[This Charter is printed from Sir James Balfour's volume of Transcripts, in the Advocates' Library : F 33. 2. 5. W. 2. 29. The history of this volume is given in the Preface of the *Register of Dunfermline*, p. xx. Note 1.]

6. Confirmatio Maleolmi Regis de donationibus Hugonis et Roberti de Moravilla ecclesiarum de Childenchirch et Saltone, 1153-65,	3
7. Carta Ricardi de Moravilla super ecclesia de Saultoun et omnibus rebus ecclesie pertinentibus, 1165-89,	4
8. Confirmatio Ricardi de Moravilla super piscationibus de Berwik et decimis molendinorum de Laudre et Saweltone, 1165-89,	<i>ib.</i>
9. Resignatio Johannis de Balliolo juris patronatus ecclesie de Lauder, 1268,	5
10. Confirmatio Gamelini episcopi Sancti Andree super ecclesia de Laweder in usus proprios, 1268,	<i>ib.</i>
11. Confirmatio capituli Sancti Andree super ecclesia de Laweder, circa 1268,	6

* This Tabula is an abstract of the Charters and other Instruments contained in the Register and Appendix. It shows the dates of those Charters, &c., in which dates are stated ; and it also contains the supposed dates which are not supplied by the originals. There are a few instances in which it has been impossible to assign any date.

12. Resignatio Johannis de Balliolo super ecclesia de Lawedre et super sex capellanis pro ecclesia de Lauder inveniendis, c. 1269,	8
13. Confirmatio Dornogille domine de Balliolo super ecclesia de Laweder, c. 1270,	9
14. Confirmatio Roberti episcopi Sancti Andree super donationibus Hugonis de Morivilla et Beatricis sue sponse, 1150-58,	<i>ib.</i>
15. Confirmatio generalis Henrici comitis Northumbrie super donationibus Hugonis de Morevilla et sue sponse, 1150-52,	10
16. Confirmatio Ade comitisse super ecclesia de Kylrethni et dimidio caruate terre in Petcorthi et uno tofto in Carele, c. 1170,	<i>ib.</i>
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2. SEAL OF JOHN ABBOT OF DRYBURGH, 1404.

“**Sigil s De Dribourgh.**”

3. SEAL OF AN ABBOT OF DRYBURGH OF THE 14TH CENTURY.

“**. . . . Abbatís bourgh.**”

4. SEAL OF THE ABBOT AND CHAPTER OF DRYBURGH, 1500.

“**S. Commune Abbatis et Conuentus De Driburgh.**”

*The originals of the Seals, Nos. 2, 3, and 4 are in the General
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PLATES II. AND III.

CONTAIN FAC-SIMILES OF SIGNATURES
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1538 TO 1628.

CARTA FUNDATIONIS DAVIDIS I. REGIS.

A.D. 1150—1152.

DAVID Rex Scottorum Episcopis Abbatibus Comitibus Justiciariis Baronibus Vicecomitibus Ministris et omnibus hominibus totius terræ suæ Francis Anglis et Scottis et Gallowidensibus salutem . Sciant tam posteri quam presentes me concessisse et dedisse et hac mea carta confirmasse ecclesiæ Sanctæ Mariæ de Drybrughe quam fundavi et fratribus canonicis ibidem Deo servientibus pro salute animæ meæ et pro salute animarum predecessorum et successorum meorum ad tenendum de me et heredibus meis in liberam et perpetuam elemosinam Ecclesiam de Drybrughe cum capellis decimis oblationibus et omnimodis pertinentiis suis Ecclesiam de LANARKE cum terris et decimis et omnibus rebus ad illam juste pertinentibus Et Ecclesiam de PEDYNANE cum omnibus suis pertinentiis Et in eadem villa illam carueatam terræ quam Nicholaus Clericus meus de me habuit et tenuit ita quiete et libere ab omni seculari exactione et consuetudine eisdem fratribus perpetuo possidendas sicut aliqua alia Ecclesia vel Ecclesiæ terræ meæ Elemosinas suas melius et quietius tenent et possident ita tamen quod in Ecclesiis illis officium divinum honeste fiat . Dedi iis insuper landam illam que vocatur CADDYSLEYA cum pastura infra forestam meam pro salute animæ Henrici filii mei in liberam et perpetuam elemosinam et unum manerium in burgo meo de CARAILE iis dedi cum tribus rudis terræ ad illam pertinentibus . Dedi dietis

fratribus et eis confirmavi illam terram et omnia ad eam pertinentia quam Beatrix de Bello Campo de Rogero Janitore emit et iis in liberam et perpetuam elemosinam dedit Et illud etiam toftum extra portam occidentalem de Rogesbrughe quod Johannis Capellani fuit ita liberum et quietum iis concedo sicut carta Henrici Comitis filii mei iis donat et confirmat . Concedo etiam et confirmo iis illam terram que est inter murum ejusdem portæ, quam Ada Capellanus meus iis concessit, et in liberam et perpetuam elemosinam dedit eum eadem libertate quam eidem Adæ concesseram scilicet ut nullus super plenarium forisfactum meum de illa terra censum aut aliquam omnino consuetudinem que in burgo advenerit presumat exigere . Preterea prefatis fratribus concedo ut liceat iis in nemoribus meis accipere ea que necessaria habuerint in usibus suis et edificiis ita ut nullus eos injuste disturbet et ut sint liberi et quieti in omni regno meo de Telonco et omnibus secularibus exactionibus et consuetudinibus sicut aliqui viri religiosi in tota terra mea liberiores inveniuntur videlicet quantum ad se et propria catalla sua . Volo itaque et precipio ut predicta domus prenomintas elemosinas donationes et libertates ita libere quiete et honorifice teneat et possideat sicut aliqua ecclesia in omni regno meo liberior et quietius tenet et possidet . Testibus Henrico Comite filio meo Ada Comitissa sua Valtero Cancellario Duncano Comite Hugone de Morvilla Valtero de Lindesei Roberto Avenell Waltero Ridel Herberto Camerario Nicholao Clerico Aluino filio Arkill Ewen Marischallo Gillecolme Mackthumpethin Macbeth Macktorphin Meuin filio Colbani

- + Ego Robertus S Andreæ Episcopus confirmo
- + Ego Gregorius Dunkeldensis Episcopus confirmo
- + Ego Andreas Katenensis Episcopus confirmo

Concordat in omnibus cum autographo.

S^a JA. BALFOUR, Lxox.

LIBER

S. MARIE DE DRYBURGH.

LIBER

S. MARIE DE DRYBURGH.

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Confirmacio super predictis donacionibus Hugonis et Roberti de Moravilla super ecclesijs de Childinchirch et Saltone .

6 **M**alcolmus rex Scocie episcopis abbatibus comitibus baronibus iustitiarijs vicecomitibus prepositis ministris et omnibus hominibus probis totius terre sue clericis et laicis Francis et Anglis salutem . Sciant presentes et posteri me concessisse et hac mea carta confirmasse Deo et ecclesie Sancte Marie de Dryburgh et canonicis ibidem Deo fervientibus donationes Hugonis de Morevilla et Roberti de Morevilla quas ipsi ecclesie eidem in liberam et perpetuam elemosinam dederunt et cartis suis confirmaverunt scilicet ecclesiam de Childenchirch cum terra ei adjacente et omnibus ad eam iuste pertinentibus et ecclesiam de Saweltone cum plenaria carucata terre et omnibus alijs pertinentibus suis post decessum Roberti clerici . et decimam molendinorum de Lawedere et de Saltone et piscationes de Berwyk quas idem Hugo possederat . Volo itaque et precipio ut predicti fratres

canonici prenominate ecclesias et beneficia ita libere et quiete que plenarie perpetualiter teneant et possideant sicut aliquæ ecclesie aut beneficia liberius et quicquid ab aliqua abbacia tenentur in regno meo . Testibus etc .

Super ecclesia de Saultoun et omnibus rebus ecclesie pertinentibus .

- 7 Ricardus de Moravilla constabularius regis Scotorum omnibus Dei fidelibus tam posteris quam presentibus salutem . Sciatis omnes me concessisse et dedisse et hac presenti carta mea confirmasse ecclesie sancte Marie de Dryburgh et canonicis ibidem Deo fervientibus ecclesiam de Saultoun cum una plenaria carucata terre et omnibus rebus ad eandem ecclesiam iuste pertinentibus in liberam puram et perpetuam elemosinam pro salute anime mee et pro salute omnium antecessorum et successorum meorum ita libere quiete et plenarie perpetuo possidendam sicut aliqua abbacia aliquam ecclesiam vel aliquod beneficium ecclesiasticum liberius quietius aut plenius in regno Scocie tenet et possidet . Testibus .

Confirmacio super piscationibus de Berwik et decimis molendinorum de Laudre et Saweltone .

- 8 Ricardus de Morevilla constabularius regis Scotorum omnibus amicis et probis hominibus suis salutem . Sciant tam posteri quam presentes me dedisse et hac mea carta confirmasse Deo et ecclesie beate Marie de Dryburgh et fratribus ibidem Deo fervientibus ecclesiam de Saweltone cum plenaria carucata terre et omnibus ad eandem ecclesiam pertinentibus post decessum Roberti Clerici in perpetuam elemosinam . Preterea concedo confirmo eidem ecclesie donationes patris mei quas secum eisdem fratribus dedit scilicet ecclesiam de Childenclirch cum omnibus illis pertinentibus cum

quibus Godefridus prebiter eam tenuit die qua pater meus canonicalem habitum sumpfit . et piscationes patris mei de Berwyk quas illis dedit . et decimam molendinorum meorum de Lawedre et de Saweltone in perpetuum elemosinam pro salute anime mee et anima patris mei et matris mee et antecessorum et successorum meorum ita libere et quiete sicut aliqua elemosina potest liberior et quicquid concedi et teneri . Testibus .

Resignacio Johannis de Balliolo juris patronatus ecclesie de Lauder .

9 **V**enerabili patri in Christo Domino & . episcopo Sancti Andree Johannes de Balliolo salutem et amorem . Noverit paternitas vestra quod nos attendentes jus abbatis et conventus de Dryburgh super ecclesiam de Lawdre vestre diocesis resignavimus eisdem pro nobis et Deruergilla sponsa nostra et heredibus nostris totum jus et clavinum quod habuimus vel habere poterimus super jure patronatus ejusdem ecclesie quantum ad nos pertinet . Quare vestram rogamus paternitatem quatinus dictos abbatem et conventum quos sub nostra protectione benigne suscepimus super dicta ecclesia nullatenus si placet molestetis vel molestari permittatis sed pacificam seysinam eisdem de dicta ecclesia concedatis . In cujus rei testimonium has literas nostras vobis mittimus patentes . Datum apud Luwelle [*Bywell*] octavo die post festum sancti Barnabe apostoli anno gracie millesimo cc^o lx^o octavo .

Confirmacio Episcopi super ecclesia de Laweder in usus proprios .

10 **G** . miseratione divina episcopus Sancti Andree universis et singulis sancte matris ecclesie filiis salutem in Domino sempiternam . Noveritis nos literas nobilis viri domini Johannis de Balliolo suscepisse in hec verba . Venerabili in Christo patri domino & . Dei gracia episcopo sancti Andree Johannes

de Balliolo salutem et amorem . Noverit paternitas vestra quod nos attendentes jus abbatis et conventus de Dryburgh super ecclesia de Laweder vestre diocesis resignavimus eidem pro nobis et Deruorgilla sponsa nostra et heredibus nostris totum jus et clamium quod habuimus vel habere poterimus super jure patronatus ejusdem ecclesie quantum ad nos pertinet . Quare vestram rogamus paternitatem quatenus dictos abbatem et conventum quos sub nostra protectione suscepimus super dicta ecclesia nullatenus si placet molestetis vel molestari permittatis sed pacificam seysinam eidem de dicta ecclesia concedatis . In cujus rei testimonium has literas nostras vobis mittimus patentes . Datum apud Luwelle [*Bywell*] octavo die post festum sancti Barnabe apostoli anno gracie millesimo cc° lx° octavo . Nos igitur prefati precibus nobilis inclinati necnon et sententia domini Pape super dicta ecclesia pro dictis abbate et conventu promulgata de verbo ad verbum confirmata quam frequenter et diligenter inspeximus provocati prefatam ecclesiam de Lawedere tamquam capellam matricis ecclesie de Childenchurch prout in dicta sententia domini Pape plenius continetur prefatis abbati et conventui in proprios usus auctoritate episcopali confirmamus salvis nobis et successoribus nostris omnibus episcopalibus archidiaconalibus synodalibus et omnibus que nos et predecessores nostri percipere solebamus in eadem . Datum apud Sanctum Andream xij° Kal. Julij anno supradicto . etc .

Confirmacio Capituli super ecclesia de Laweder .

- 11 Omnibus sancte matris ecclesie filijs prefens scriptum visuris vel auditoris Johannes Dei gracia prior ecclesie Sancti Andree apostoli in Scotia et ejusdem loci conventus humiliter in Domino sempiternam salutem . Noverit universitas vestra nos inspexisse confirmationem venerabilis patris nostri & . Dei gracia episcopi nostri super ecclesia nostra de Lawedre abbati et conventui de Dryburgh factam et concessam in hec verba . Gamelinus misera.

tionē divina episcopus Sancti Andree universis sancte matris ecclesie filijs salutem in Domino sempiternam . Noveritis nos literas nobilis viri Domini Johannis de Balliolo suscepisse in hec verba . Venerabili in Christo patri domino Gamelino Dei gracia episcopo Sancti Andree Johannes de Balliolo salutem et amorem . Noverit paternitas vestra quod nos attendentes jus abbatis et conventus de Dryburgh super ecclesia de Lawedre vestre diocesis resignavimus eisdem pro nobis et Deruogilla sponsa nostra et heredibus nostris totum jus et clamium quod habuimus vel habere poterimus super jure patronatus dicte ecclesie quantum ad nos pertinet . Quare vestram rogamus paternitatem quatenus dictos abbatem et conventum quos sub nostra protectione benigne suscepimus super dicta ecclesia nullatenus si placet molestetis vel molestari permittatis sed pacificam salsinam eisdem de dicta ecclesia concedatis . In cujus rei testimonium has literas nostras vobis mittimus patentes . Datum apud Bywell octavo die post festum sancti Barnabe apostoli anno gracie M^o cc^o lx^o octavo . Nos igitur precibus prefati nobilis inclinati necnon et sententia domini Pape super dicta ecclesia pro dictis abbate et conventu promulgata et de verbo ad verbum confirmata quam diligenter et frequenter inspeximus provocati prefatam ecclesiam de Lawedre tanquam capellam matricis ecclesie de Chyldenheirch prout in dicta sententia domini Pape plenius continetur prefatis abbati et conventui in proprios usus auctoritate episcopali confirmamus salvis nobis et successoribus nostris omnibus episcopalibus archidiaconalibus synodalibus et omnibus que nos et predecessores nostri percipere solebamus in eadem . Datum apud Sanctum Andream xij^o Kal. Julij anno supradicto . Hijs testibus domino Laurencio Dei gracia episcopo Argadyensi . domino Laurencio priore de Insula . magistro Symone Wallens' . magistro R . de Logan . domino Adam Deluand canonicis Dunkeldenfis . domino Willelmo de Blagernok et multis alijs . Nos igitur predictorum abbatis et conventus precibus inclinati predictam confirmationem eisdem abbati et conventui de Dryburgh factam unanimi consensu et assensu ratam et gratam habentes

dictam ecclesiam de Laweder tamquam capellam matricis ecclesie de Childenelirche predictis abbati et conventui in usus proprios presentis scripti munimine et sigilli nostri impressione confirmamus . Teste capitulo nostro .

Resignatio Johannis de Balliolo super ecclesia de Lawedre et super sex capellanis pro ecclesia de Lauder inveniendis .

- 12 **O**mnibus Christi fidelibus hoc scriptum visuris vel auditoris Johannes de Balliolo salutem . Noverit universitas vestra nos resignasse et quietum clamasse pro nobis et Derwogilla sponsa nostra et pro heredibus nostris in perpetuum abbati et conventui de Dryburgh Premonstratensis ordinis totum jus et clamium quod habuimus vel habere poterimus super jure patronatus ecclesie de Laweder Sancti Andree diocesis quantum ad nos pertinet . Quare volumus et concedimus pro nobis et dicta sponsa nostra et pro heredibus nostris ut dicti abbas et conventus dictam ecclesiam in perpetuum libere et pacifice habeant et possideant pro sex capellanis specialiter divina celebrantibus pro animabus nostris et pro animabus omnium antecessorum et successorum nostrorum secundum tenorem scriptorum que dicti abbas et conventus inde nobis fecerunt . et sciendum si aliqua instrumenta inveniuntur penes nos vel dictam sponsam nostram seu aliquem heredum nostrorum que dictis abbati et conventui poterunt nocere super dicta ecclesia volumus et concedimus pro nobis et dicta sponsa nostra et pro heredibus nostris ut ipsa instrumenta nullius sint momenti vel valoris . In cujus rei testimonium et robur perpetuum presenti scripto sigillum nostrum apposuimus .

Confirmacio domine de Balliolo super ecclesia de Laweder .

- 13 **O**mnibus hoc scriptum visuris vel audituris Dornogilla de Galwithya domina de Balliolo filia et heres domini Alani de Galwithya quondam Scotorum constabularij salutem in Domino . Noveritis nos in nostra viduitate et legitima potestate dedisse concessisse omnino quietum clamasse et hac carta mea confirmasse pro nobis et heredibus nostris Deo et beate Marie et sancto Johanni evangeliste de Dryburgh et canonicis ibidem Deo fervientibus inperpetuumque servituris totum jus patronatus ecclesie de Laweder pro salute nostra et domini Johannis de Balliolo mariti nostri et domini Alani de Galwythya patris nostri et omnium antecessorum et successorum nostrorum in puram et perpetuam elemosinam ita quiete et plenarie sicut aliquod jus patronatus ecclesie in regno Scoeie liberius quietus et plenius datur et possidetur . Nos vero et heredes nostri dictum jus patronatus dictis religiosiis contra omnes homines warantizabimus inperpetuum et defendemus . In cujus rei testimonium presenti scripto sigillum nostrum apposuimus . Testibus .

Confirmacio Episcopi super donacionibus Hugonis de Morivilla et Beatricis sue sponse .

- 14 **R**obertus Dei gracia sancti Andree episcopus omnibus Dei fidelibus salutem . Sciatis me canonice religionis intuitu ecclesiam sancte Marie de Dryburgh quam Hugo de Moravilla fundavit et canonicos ibidem Deo fervientes in plena et sancti Andree et mea benedictione recepisse et quantum ad episcopum pertinet concessisse et per hanc meam cartam ad ejusdem Hugonis petitionem confirmasse omnes elemosinas et donaciones quas ipse et Beatrix de Bello-campo sponsa ejus ad eorum sustentationem

assignauerunt et dederunt in liberam et perpetuam elemosinam pro salute animarum suarum scilicet ipsum locum et terram et aquas et piscationes adjacentes et ecclesias terrarum suarum in episcopatu meo quando persone decefferint que modo eos tenent et omnia alia beneficia que eisdem fratribus contulerunt sicut in eorum cartis continetur . Quare vobis et eisdem concedo et confirmo ut has elemosinas perpetuo libere et quiete et plenarie teneant et possideant sicut aliqua domus religionis aliquam elemosinam liberius et quietius in episcopatu sancti Andree tenet et possidet salvo jure episcopali . Testibus .

Confirmacio generalis Henrici comitis super donacionibus Hugonis de Morevilla et sue sponse .

- 15 **H**enricus comes Northumbrie episcopis abbatibus baronibus vicecomitibus ministris et omnibus probis suis hominibus Francie et Anglie tam futuris quam presentibus salutem . Sciatis me concessisse et per hanc cartam meam confirmasse donaciones elemosine de Dryburgh quas Hugo de Morevilla et Beatrix de bello campo dederunt Deo et sancte Marie et fratribus ibidem Deo fervientibus sicut carta eorum testatur et concedit . Testibus etc .

Confirmacio Ade comitis super ecclesia de Kylrethni et dimidio carucate terre in Petcorthi et uno tosto in Carele .

- 16 **A**da comitissa mater regis Scotorum omnibus amicis et hominibus suis et universis sancte matris ecclesie filijs salutem . Sciant presentes et futuri me concessisse et dedisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et perpetuam elemosinam ecclesiam de Kylreny cum omnibus pertinentijs et

reſtitudinibus fuiſ et dimidiam carucatam terre de Pechortyne cum rationabili communi paſtura et unum plenum toftum in burgo meo de Karele pro anima domini mei Henrici comitis et pro anima filij mei Malcolmni regis et pro ſalute anime mee et pro ſalute infantum meorum et pro animabus parentum meorum . Volo itaque et precipio firmiter ut predicti canonici habeant et teneant hanc prenominatam elemofinam de me et heredibus meis tam libere et quiete ſicut aliqua eccleſia aliquam elemofinam liberius et quiccius tenet . Teſtibus etc .

Confirmacio regis ſuper Kylrethny Petcorthy et Carele .

- 17 **V**illelmus rex Scotorum omnibus probis hominibus totius terre ſue clericis et laicis ſalutem . Sciant preſentes et futuri me conceſſiſſe et hac carta mea confirmaffe Deo et eccleſie ſancte Marie de Dryburgh et canonicis ibidem Deo ſervientibus donacionem quam Ada comitiſſa mater mea eis fecit de eccleſia de Kilreny et de dimidia carucata terre in Petchorthin cum communi paſtura et unum plenum toftum in burgo meo de Karele ita libere et quiete ſicut carta ipſius eis teſtatur et confirmat . Teſtibus .

Confirmacio Willelmi comitis de Buchan ſuper eccleſia de Kylreny .

- 18 **V**illelmus comes de Bughan omnibus Chriſti fidelibus has literas viſuris vel audituris ſalutem . Sciant preſentes et futuri me conceſſiſſe et hac carta mea confirmaffe Deo et eccleſie ſancte Marie de Dryburgh et canonicis ibidem Deo ſervientibus et divine caritatis intuitu conſenſu et aſſenſu uxoris mee Margarete comitiſſe de Buchan donacionem illam quam pie memorie Ada comitiſſa eiſdem canonicis fecit ſuper eccleſia de Kilrethny cum omnibus

pertinentijs suis . Tenendam et habendam inperpetuum pro anima domini mei Willelmi regis Scotorum et pro anima prefate Ade comitisse matris ejusdem regis et salute anime mee et uxoris mee et liberorum meorum et pro animabus omnium antecessorum et successorum meorum in liberam puram et perpetuam elemosinam ita libere et quiete plenarie et honorifice per omnia fient in carta memorate comitisse plenius continetur et sicut carta regis Willelmi ipsis canonicis testatur et confirmat . Quare volo ut jam dicti canonici teneant et possideant prenominatam ecclesiam cum omnibus pertinentijs et libertatibus suis inperpetuum bene et in pace pro me et heredibus meis et omnibus hominibus ita libere quiete et plenarie et honorifice sicut aliqua elemosina vel aliquod ecclesiasticum beneficium in regno Scocie liberius quietius plenius et honorificentius tenetur et possidetur . Testibus etc .

- . Super placia juxta ecclesiam de Kylrethny et super tribus solidis pro dicta placia episcopo sancti Andree solvendis annuatim .

- 19 **O**mnibus Christi fidelibus auditoris has literas vel visuris Gamelinus miseratione divina episcopus sancti Andree salutem in Domino . Sciant presentes et futuri nos dedisse ad firmam dilectis in Christo filijs abbati et conventui de Dryburgh illam placiam juxta ecclesiam de Kylrethny ex parte australi quam bone memorie episcopus David eis concessit quando ipse eandem ecclesiam dedicavit et quam ipsi tunc claudi et immurari fecerunt . Tenendam eis et habendam de nobis et successoribus nostris inperpetuum cum domibus quas in eadem construi fecerunt libere pacifice et quiete . Reddendo inde nobis et successoribus nostris tres solidos annuatim medietatem ad purificationem beate Virginis et aliam medietatem ad assumptionem ejusdem Virginis pro omni alia exactione consuetudine et demanda . In ejus rei testimonium sigillum nostrum apponi fecimus huic scripto .

Datum apud Inchemurthauch iij nonas Aprilis anno gracie millesimo
cc° lx° vi° .

Super terra de Invergelly .

- 20 Venerabili patri in Cristo domino Willelmo Dei gracia episcopo sancti
Andree Margareta de Ardrossie filia domini Merleswan quondam domini
de Innergelly salutem . Noverit reverenda vestra paternitas me constituisse
dominum Hugonem de Perisby maritum meum procuratorem meum ad
resignandum vobis totam terram de Innergellie que me contingit et con-
tingere poterit ad infeudandum monasterium de Driburgh et abbatem
et conventum dicti loci in eadem terra in puram et perpetuam elemosinam
pro salute anime dicti domini Hugonis mariti mei et mee et pro animabus
omnium antecessorum et successorum nostrorum salvo vobis et successoribus
vestris annuo redditu quem de dicta terra predecessores vestri percipere
confueverunt . Ratum et gratum habituri quicquid dictus dominus Hugo
super dicta resignatione duxerit nomine meo faciendum . In cujus rei testi-
monium has literas meas vobis mitto patentes . Datum apud Newton die
sabbati proxima ante festum Michaelis archangeli anno gracie millesimo
cc° octogesimo primo .

Confirmatio episcopi super Innergelly .

- 21 Willelmus miseratione divina episcopus sancti Andree universis sancte
matris ecclesie filiis hoc scriptum visuris vel audituris salutem in Domino .
Noveritis quod cum Margareta de Ardrossie filia domini Merleswan quon-
dam domini de Innergelly de voluntate et consensu domini Hugonis de
Perisby mariti sui resignaret in manus nostras totam terram que in

tenemento de Innergelly ipsam jure hereditario contigit et totum jus hereditarium quod per deceffum heredum eandem in dicto tenemento contingere posset in futurum ad infeodandum monasterium de Driburgh et abbatem et conventum ejusdem loci in dicta terra et in omni jure dictam Margaretam ratione dictæ terre contingente . Nos dictorum Hugonis et Margarete precibus inclinati dictam terram et totum jus hereditarium quod per deceffum heredum eandem contingere poterit in futurum dictis abbati et conventui de Driburgh in liberam puram et perpetuam elemosinam damus concedimus et episcopali auctoritate confirmamus pro salute anime nostre et pro animabus dictorum Hugonis et Margarete et pro animabus omnium antecessorum et successorum nostrorum . Reddendo inde annuatim nobis et successoribus nostris pro omni servicio et demanda annum redditum quem predecessores nostri de dicta terra percipere consueverunt . Testibus etc .

Super tribus bothis in villa de Aynefrathyr .

- 22 **O**mnibus Cristi fidelibus hoc scriptum visuris vel auditoris Henricus de Anyfthrother salutem in Domino . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et pro salute anime Margarete sponse mee et pro salute animarum omnium antecessorum et successorum meorum dedisse et concessisse et hac carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ordinis Premonstratensis ibidem Deo fervientibus illas tres bothas in villa mea de Aynefthrother quas bone memorie Henricus pater meus ipsis canonicis in vita sua dedit et concessit Tenendas et habendas dictis canonicis imperpetuum adeo libere et quiete sicut aliqua elemosina in regno Scocie ab aliquibus viris religiosis liberius et quietius tenetur et possidetur . Ego autem et heredes mei dictas tres bothas dictis canonicis contra omnes homines et dotes mulierum warantizabimus

acquietabimus et defendemus . In ejus rei testimonium presens scriptum sigilli mei appositione roboravi . Testibus etc .

Super jure patronatus ecclesie de Golyne .

- 23 Omnibus sancte matris ecclesie filiis presentibus et futuris Willelmus de Wallibus salutem in Domino . Noverit universitas vestra me divine pietatis intuitu in presencia fratris Jacobi domini Pape penitenciarij tunc temporis apostolice sedis legati in Scotia dedisse et concessisse et hac mea carta confirmasse Deo et sancte Marie et ecclesie sancti Nicholaij et canonicis de Dryburgh ordinis Premonstratensis eidem ecclesie sancti Nicholaij in insula de Elbotile servientibus vel servituris in liberam puram et perpetuam elemosinam jus patronatus ecclesie de Golyne et quicquid juris habui vel habere potui in eadem ecclesia salvo eo quod moniales de Suthberwik in parochia ejusdem ecclesie habere debent prout in scriptis inter me et illas factis continetur . Tenendum sibi inperpetuum pro salute anime domini mei Willelmi regis Scotorum et successorum ejus et pro salute anime mee et omnium antecessorum et successorum meorum ita libere quiete plenarie sicut aliquis patronus in regno Scotie aliquod jus patronatus vel aliud jus in ecclesia alieni ecclesie vel viris religiosis liberius quicquid et plenius conferre potest . Hanc autem donacionem meam in integrum ut supra continetur promitto pro me heredibusque meis sub obligacione omnium bonorum meorum prefate ecclesie sancti Nicholaij et canonicis ibidem Deo servientibus presentibus et futuris defendere et varantizare ab omni homine qui prefate ecclesie super dicta donacione de facto vel de jure molestiam fecerit vel questionem moverit . Promitto eciam pro me heredibusque meis nunquam contra prefatam ecclesiam vel donacionem aliquo tempore venire sed eam inperpetuum ratam et firmam habere nullam violenciam faciendo per me et heredes meos vel

questionem movendo . Ut autem hec mea donacio rata maneat inperpetuum presentem cartam scribi feci et eam sigilli mei appositione roboravi . Testibus etc .

Confirmacio super tribus bothis in villa de Aynefrothir .

- 24 Omnibus hoc scriptum visuris vel audituris Willelmus filius Henrici de Aynefrothir salutem in Domino . Noveritis me concessisse et hac carta mea confirmasse Deo et beate Marie ac viris religiosi abbati et conventui de Driburgh tres bothas in villa de Aynefrother illas videlicet quas habuerunt ex donacione et confirmatione Henrici patris mei quas quidem ipsi religiosi sumptibus suis construxerunt et in quarum possessione ipsos inveni . Tenendas et habendas in liberam puram et perpetuam elemosinam absque omni seculari servicio exactione et demanda . Quas quidem tres bothas ego et heredes mei dictis religiosi contra omnes homines et feminas et dotes mulierum warrantizabimus inperpetuum . In cujus rei testimonium huic scripto sigillum apposui . Testibus etc .

Confirmacio super jure patronatus ecclesie de Golyn .

- 25 Omnibus sancte matris ecclesie filijs hoc scriptum visuris vel audituris Johannes de Vallibus eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et ecclesie sancti Nicholai in insula de Elbotle et abbati et conventui de Driburgh et canonicis ejusdem domus in eadem insula fervientibus vel fervituris donacionem illam quam pater meus prefate domui et canonicis predictis in perpetuam elemo-

finam fecit super ecclesia de Golyn et omnibus ejus pertinentijs sicuti in carta ipsius patris mei ipsis collata super hoc plenius continetur . Tenendam sibi in perpetuum in liberam puram et perpetuam elemosinam pro salute domini mei Alexandri regis Scotorum et pro salute anime dicti patris mei et matris mee et pro salute anime mee et animarum omnium antecessorum et successorum meorum salva possessione Willelmi de Vallibus fratris mei in vita sua . Quare volo concedo et confirmo ut prefati abbas et canonici dictam ecclesiam de Golyn cum omnibus suis justis pertinentijs cedente vel decedente predicto Willelmo de Vallibus fratre meo sine contradictione aliqua in perpetuum habeant et possideant ita libere quiete et plenarie et honorifice sicut aliquis patronus in regno Scocie aliquod jus in ecclesia et beneficium ecclesiasticum alicui ecclesie vel viris religiosis liberius quicquid plenius et honorificentius concedere potest et confirmare . Ut autem hec mea concessio voluntas et confirmacio robor optineat perpetue firmitatis presentem cartam scribi feci et cum sigilli mei appositione roboravi . Testibus .

Confirmacio super jure patronatus dicte ecclesie de Golyn .

- 26 **F**rater Jacobus domini Pape penitenciaris et capellanus apostolice sedis Legatus suis dilectis in Christo abbati et canonicis de Dryburgh Premonstratensis ordinis salutem in Domino . Justis petentium desideriis dignum est facilem nos prebere assensum et vota que a rationis tramite non discordant effectu prosequente complere . Eapropter dilecti nobis in Christo vestris justis postulationibus annuentes jus patronatus ecclesie de Golyn quod nobilis vir Willelmus de Wallibus vobis et ecclesie vestre sancti Nicholai de insula de Elbotle in liberam puram et perpetuam elemosinam concessit sicut illud est vobis et ipsi ecclesie vestre juste collatum et in ejusdem Willelmi literis continetur vobis et per vos eidem ecclesie vestre

auctoritate legationis qua fungimur confirmamus et presentis scripti patrocinio communimus . Nulli ergo omnino hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . Si quis autem hoc attemptare presumpserit indignacionem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum apud Calkeo xvi kalendas Maij .

Confirmacio episcopi super ecclesia de Golyn in proprios usus concessa .

- 27 **W**illelmus . miseratione divina ecclesie sancti Andree minister humilis omnibus sancte matris ecclesie filiis has literas visuris vel audituris eternam in Domino salutem . Noverit universitas vestra nos divine pietatis intuitu dedisse concessisse et episcopali auctoritate confirmasse abbati et conventui de Driburgh ordinis Premonstratensis ecclesiam de Golyn cum omnibus pertinentiis in puram et perpetuam elemosinam in usus proprios perpetuo possidendam ad suam sustentationem et pauperum susceptionem salvis episcopalibus et salvo annuo cano quatuor marcarum nobis et successoribus nostris salva etiam compositione facta inter dictos abbatem et conventum de Dryburgh et Willelmum de Wallibus militem ex parte una et priorissam et moniales de Suthberwik ex altera auctoritate fratris Jacobi domini Pape penitentiarii et capellani tunc temporis in Scotia Legati sicut in scripto inter eosdem super hoc confectio continetur . salva quoque ordinatione quam fecimus de eadem ecclesia auctoritate Lateranensis concilij Willelmo de Golyn et Willelmo de Wallibus clericis nostris in vita eorum . Quare volumus ut prefati abbas et canonici dictam ecclesiam cum suis pertinentiis post decessum dictorum clericorum sine contradicitione aliqua in perpetuum habeant et possideant in usus proprios ita libere quiete plenarie et honorifice sicut aliqui viri religiosi in dioecese nostra aliquam ecclesiam vel ecclesiasticum beneficium liberius quicquid plenius et honorificentius

possident . falvis sicut supradictum est episcopalibus et annuo cano et compositione predicta . Ut autem hec nostra donatio concessio et confirmatio robur optineat perpetue firmitatis eam presentis pagine testimonio et sigilli nostri munimine duximus roborandam . Testibus .

Confirmacio capituli sancti Andree super ecclesia de Golyn .

- 28 **U**niversis sancte matris ecclesie filijs ad quos presens scriptum pervenerit Henricus Dei gracia prior sancti Andree et ejusdem loci conventus humilis eternam in Domino salutem . Ad universitatis vestre noticiam volumus pervenire nos divine pietatis intuitu concessisse et auctoritate capituli nostri confirmasse abbati et conventui de Driburgh ordinis Premonstratensis ecclesiam de Golyn cum omnibus suis pertinentijs in puram et perpetuam elemosinam in usus proprios perpetue possidendam sicut in carta domini Willelmi episcopi sancti Andree eis collata plenius continetur . Et ut nostra concessio et confirmatio robur obtineat perpetue firmitatis eam presentis pagine testimonio et sigilli nostri munimine duximus roborandam . Testibus etc .

Super una libra thuris pro capella sancti Andree de Dirlton solvenda annuatim ecclesie de Golyn ad terminum sancti Andree in hyeme .

- 29 **O**mnibus Cristi fidelibus has literas visuris vel audituris Willelmus de Wallibus salutem . Noverit universitas vestra me Dei intuitu pro me et heredibus meis concessisse Deo et ecclesie sancti Andree de Golyn quod ego et heredes mei capelle sancti Andree de Dyrhtoun sumptibus nostris in perpetuum deserviri faciemus et ad hoc me et heredes meos obligavi ita

quod capellanus qui in predicta capella ministrabit iurabit fidelitatem matri ci ecclesie de Golyn quod in oblacionibus et ceteris obventionibus ecclesiasticis eandem ecclesiam conservabit indempnem . Et si forte capellanus qui in dicta capella ministrabit contra predictum juramentum venerit licebit rectoribus ecclesie de Golyn eundem ab administratione predictae capelle omni appellatione et contradictione remota amovere . In recognitionem autem juris matri cis ecclesie de Golyn solvet predicta capella de Dyrilton eidem ecclesie unam libram thuris annuatim ad festum sancti Andree . Ut hec mea concessio rata et illibata permaneant eam presentis scripti testimonio et sigilli mei appositione roboravi . Testibus .

Confirmacio episcopi super prenotata carta .

30 Willelmus Dei gratia episcopus sancti Andree omnibus has literas visuris vel audituris eternam in Domino salutem . Noverit universitas vestra nos auctoritate episcopali confirmasse Deo et ecclesie beati Andree de Golyn concessionem illam quam bone memorie Willelmus de Wallibus [fecit] pro se et heredibus suis dicte ecclesie scilicet quod ipse et heredes sui capelle sancti Andree de Dirlton sumptibus suis in perpetuum deserviri facient et ad hoc ipsum et heredes suos obligavit ita quod capellanus qui in predicta capella ministrabit iurabit fidelitatem matri ci ecclesie de Golyn quod in oblacionibus et ceteris obventionibus ecclesiasticis eandem ecclesiam conservabit indempnem . Et si forte capellanus qui in predicta capella ministrabit contra predictum juramentum venerit licebit rectoribus ecclesie de Golyn auctoritate nostra eundem ab administratione predictae capelle omni appellatione et contradictione remota amovere . In recognitionem autem juris matri cis ecclesie de Golyn solvet predicta capella de Dyriltone eidem ecclesie unam libram thuris ad festum sancti Andree annuatim sicut continetur in carta Willelmi de Wallibus . Ut autem hec nostra confirmatio rata et illi-

bata permaneat eam presentis scripti patrocinio eam sigilli nostri munimine duximus roborandam . Testibus .

Super petra cere ecclesie de Golyn annuatim solvenda pro capella omnium sanctorum de Dyrilton .

- 31 **O**mnibus Christi fidelibus hoc scriptum visuris vel auditoris Johannes de Wallibus salutem . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et pro salute animarum omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et beate Marie et matri ecclesie mee de Golyn unam petram cere de me et heredibus meis perpetuis temporibus annuatim in festo sancti Andree percipiendam in recognitionem juris quod dicta ecclesia habet in capella quam in honore omnium sanctorum in territorio meo de Dirltone fundavi . In hujus autem rei robur et testimonium presentem cartam sigilli mei appositione roboravi . Testibus .

Super indemnitate ecclesie de Golyn pro capella omnium sanctorum de Dyrilton .

- 32 **O**mnibus Christi fidelibus hoc scriptum visuris vel auditoris Johannes de Wallibus salutem . Noveritis quod cum venerabilis in Christo pater David Dei gracia episcopus sancti Andree consentientibus viris religiosi abbate et conventu de Dryburgh cantoriam capelle a me fundate in villa de Dirlton concesserit ego indemnitati matricis ecclesie de Golyn volens in omnibus providere promitto pro me et heredibus meis quod omnes et omnimodas obventiones ad dictam capellam pervenientes inperpetuum faciemus fideliter et integre ad matricem ecclesiam deferri . Et quicumque in dicta

capella ministraverit antequam ministret fidelitatem canonico jurabit qui in ecclesia pro tempore ministrabit . Quod si aliquod dampnum per dictam capellam matriçi ecclesie fuerit irrogatum volo quod canonicus qui in eadem ministrabit potestatem habeat dictam capellam suspendendi quoad usque dictum dampnum plenarie refarciatur . Et ego et heredes mei dicte capelle in perpetuum expensis nostris proprijs faciemus honeste deferviri . In cuius rei testimonium presenti scripto sigillum meum apposui . Testibus .

Super duobus croftis in villa de Golyn .

- 33 Sciant presentes et futuri quod ego Johannes de Wallibus dedi concessi et hac presenti carta mea confirmavi Deo et beate Marie et omnibus sanctis et matriçi ecclesie sancti Andree de Golyn et canonicis de Dribureht ibidem Deo servientibus pro salute anime mee et anime Ade de Wallibus quondam uxoris mee et animarum antecessorum meorum et heredum meorum unum croftum quod fuit quondam Waldewi de Golyn in Golyn et alium croftum quondam Ade le Scotis in eadem villa habendum et tenendum eidem ecclesie sancti Andree de Golyn et canonicis de Dryburgh cum libero introitu et exitu [in] puram et perpetuam elemosinam in perpetuum . Et ego Johannes et heredes mei predictos croftos ut puram et perpetuam elemosinam contra omnes homines warantizabimus acquietabimus et defendemus in perpetuum . In cuius rei testimonium huic presenti carte sigillum meum apposui . Testibus .

Super prato ecclesie de Golyn concessio .

- 34 Omnibus Cristi fidelibus etc. Willelmus de Wallibus salutem . Noverit universitas vestra me pro anima illustrissimi regis Willelmi et pro anima-

bus patris mei et matris mee et pro anima mea et pro animabus heredum meorum dedisse et concessisse et hac carta mea confirmasse Deo et ecclesie sancti Andree de Golyn et rectoribus ejusdem ecclesie et successoribus eorum in eadem ecclesia succedentibus totum pratum proximum ville de Golyn ex australi parte excepta una aera quam dedi Osmundo de Golyn per easdem rectas divisas per quas Andreas quondam rector illius ecclesie predictum pratum plenius tenuit et preterea illud pratum in magno prato de Golyne quod prenominate Andreas tenuit per easdem rectas divisas per quas idem Andreas illud pratum melius et plenius tenuit . Tenenda et habenda predicta prata in liberam puram et perpetuam elemosinam adeo libere et quiete plenarie et honorifice sicut aliqua ecclesia aliquam elemosinam in regno Scocie ex dono alicujus baronis liberius quietius plenius et honorificentius tenet et possidet . Et ut hec mea donatio et concessio rata et illibata permaneat in perpetuum eam presentis scripti munimine et sigilli mei appositione roboravi et ad majorem securitatem sigillum suum fecit apponi . Testibus etc .

Resignacio ecclesie de Golyn a conventu de Southberwik a magistro monialium et priorissa .

35 **O**mnibus Cristi fidelibus dominus Gregorius magister monialium et Froelina priorissa de Southberwik totusque ejusdem loci conventus salutem in Domino . Noverint universi nos de communi consensu capituli nostri in presencia fratris Jacobi domini Pape penitenciarij et capellani apostolice sedis Legati in Scocia sponte et pure renunciassse omni juri quod habebamus vel habere credebamus in ecclesia de Golyn transactionis causa cum de hoc coram eodem Legato questio verteretur inter nos moniales ex una parte et abbatem et conventum de Driburgh et Willelmum de Wallibus ex altera . salvo nobis et successoribus nostris toto eo in pace et quiete quod habebamus in tempore

litis mote in parochia ejusdem ecclesie et preter id falva tota decima garbarum de Kyngeston quam percipiemus et habebimus post mortem Willelmi de Wallibus persone de Golyn libere et quiete sine aliqua contradicitione . Nos eciam in ejusdem Legati prefencia juravimus quod nulla de cetero canonicis de Dryburgh super dicta ecclesia de Golyn vel ejus advocacione movebimus per nos vel per successores nostras vel per aliquam submissam personam . Insuper et cartas et omnia instrumenta que habebamus super eadem ecclesia in manus ejusdem Legati coram multis resignavimus supplicantes ipsi Legato ut prefate resignacioni et abjuracioni nostre suam preberet auctoritatem et assensum . Dictus vero Legatus precibus nostris misericorditer annuens dictam resignacionem et abjuracionem nostram auctoritate legationis qua fungebatur confirmavit . In cujus rei testimonium presenti carte sigillum ejusdem Legati una cum sigillo capituli nostri fecimus apponi . Testibus .

Confirmacio Penitenciarij super resignacione ecclesie de Golyn .

- 36 **O**mnibus Cristi fidelibus etc. frater Jacobus domini Pape penitenciarus et capellanus sedis apostolice Legatus salutem in Domino . Noveritis univarsi quod cum questio verteretur coram nobis inter moniales de Suthberwik ex una parte et abbatem et canonicos de Driburgh et Willelhum de Wallibus ex altera super ecclesia de Golyn quam predictę moniales dicebant ad suam ecclesiam spectare de jure prefatis canonicis et Willelmo assidentibus e contra . tandem intervenientibus amicis Domino volente talis transactio et amicabile compositio facta est inter eos scilicet quod predictę moniales habeant in pace et quiete totum illud quod habebant in tempore litis mote et preter id totam decimam garbarum de Kyngeston quam percipiant et habeant post mortem Willelmi de Wallibus persone ecclesie de Golyn libere quiete inperpetuum sine contradicitione et molestia-

tione predictorum et successorum suorum . Hijs autem exceptis et falvis magister et priorissa dictarum monialium auctoritate conventus et consensu manifesto renunciaverunt et resignaverunt omne jus utile et directum quod habebant vel quod videbantur habere in ecclesia vel ad ecclesiam supradictam . Hanc autem amicabilem compositionem ut supra legitur factam utraque pars confirmavit et approbavit promittentes fide data in manibus nostris se predictam compositionem ratam et firmam habere nec ullo tempore contravenire per se vel per successores suos vel per aliquam submissam personam . Ut autem hec eorum voluntas et compositio firmiori robore fulciretur nostre auctoritatis suppliciter postularunt adjuvari consensu et muniri sigillo . nos autem eorum iustis precibus annuere cupientes prefatam compositionem acceptandam duximus et legationis auctoritate qua fungimur confirmandam facientes eam ad perpetuam ipsius firmitatem tam nostri quam utriusque partis sigillorum munimine roborari et inde precipimus duas cartas ejusdem tenoris fieri et utrique parti ut justum est suam assignari . Acta sunt hec anno gracie millesimo cc° xxi . septimo decimo Kalendas Maij apud Keleou . Testibus etc.

Inter moniales de Suthberwik et rectorem ecclesie de Golyn quod de omnibus oneribus dictam ecclesiam tangentibus moniales pro duabus partibus respondebunt et rector pro tribus partibus .

- 37 Univerfis et singulis sancte matris ecclesie Gregorius Dei gracia Brechinenfis episcopus et Johannes prior de Restinoth et Dyonisius decanus de Forfar eternam in Domino salutem . Noverit universitas vestra nos mandatum domini Pape in hec verba suscepisse . Honorius episcopus servus servorum Dei venerabili fratri episcopo Brechinenfi et dilectis filiis priori de Restinoth et decano de Forfar diocesis sancti Andree salutem et apostolicam benedictionem . Willelmo rectore ecclesie de Golyn accepimus

conquerente quod prioriffa et moniales de Suthberwyk Ciftercienfis ordinis et quidam alij dioceffis fancti Andree fuper capella de Dirltoun decimis et rebus alijs ad ecclefiam fuam de Golyn de jure fpectantibus injuriuntur eidem . Quocirca difcretioni veftre per apostolica fcripta mandamus quatinus partibus convocatis audiatif caufam et appellatione remota fine debito terminetis facientes quod decreveritis per cenfuram ecclefiafticam firmiter obfervari . Teftes autem qui fuerint vocati fi fe gracia odio vel timore fubtraxerint per cenfuram eandem appellatione ceffante cogatis veritati testimonium perhibere . et fi non omnes hijs exequendis potueritis intereffe tu ea frater Epifcope cum eorum altero nichilominus exequaris . Datum ratum [*Reate*] quarto Kalendas Octobris pontificatus noftri anno quarto . Cum igitur auctoritate hujus mandati coram nobis inter perfonas prefatas contentio diucius verteretur tandem de affenfu et voluntate nofta predicte partes ordinationi venerabilis patris Willelmi epifcopi fancti Andree loci dioceffani fe fubjecerunt fub fide prefita ab utraque parte firmiter promittentes quod gratum ratum et in perpetuum inter fe obfervandum haberent quod prefatus epifcopus fancti Andree inter ipfas provideret ftatueret et ordinaret . Prefatus vero epifcopus poft multas altercationes hinc inde habitas de fapientum confilio inter predictas partes ordinavit in hunc modum fcilicet quod prefate moniales predictam capellam cum omnibus decimis ad eam pertinentibus parochialibus five predialibus fcilicet de Elbotle de Dyrilton de Karmurhoe in tota vita prediati Willelmi de Golyn habeant et poffideant libere quiete et pacifice ficut eas hafcenus predicte moniales habuerunt ita quod prefatus Willelmus nunquam per fe vel per alium de cetero litem vel caufam vel controverfiam fit moturus . Preterea oblaciones factas a familia domini Willelmi de Wallibus vel alterius qui pro tempore fuerit dominus caftelli de Dyrilton vel ab aliquo quocunque factas qui non fuerit parochianus matricis ecclefie de Golyn habeant predicto modo predicte moniales . ftatuit eciam quod ordinationem illam quam ipfemet prius fecit de matrice ecclefie de Golyn efficiendo predictum Willelmum rectorem

predictæ ecclesiæ gratam et ratam haberent et inviolabiliter temporibus prefati Willelmi observandam et nunquam per se vel per alios super predicta ecclesia vel aliquo ad ipsam pertinente prefatum Willelmum vel suos de cetero inquietarent sed bona sustinebunt quod prefatus Willelmus vel ejus assignatus in tota vita sua predictam ecclesiam habeat et teneat et in eadem tanquam in sua administratione libere quiete et pacifice sine quacunque molestia salvo jure sibi in prefata capella sicut superius ordinatum est obventiones etiam illas que extra decimam omnem et oblationes familie et quorundam aliorum superius assignatas . Ordinavit et predictus dominus episcopus quod de omnibus oneribus tam ordinarijs quam extraordinarijs ecclesiam quocunque modo tangentibus prefatus Willelmus rector ecclesiæ de Golyn respondebit pro tribus partibus et dicte moniales de Suthberwyk pro duabus partibus . Nos vero predictam ordinationem ratam et gratam habentes eam auctoritate apostolica confirmamus et appositione sigillorum nostrorum una cum sigillo domini Episcopi sancti Andree corroboramus . Ut autem prescripta provisio seu ordinacio et nostre auctoritatis confirmatio firmum robur obtineat et inconcussum facta sunt inde duo instrumenta ejusdem tenoris quorum una pars residet penes dictum Willelmum rectorem ecclesiæ de Golyn altera vero parte penes prefatas moniales de Suthberwyk remanente . Datum etc .

Super presentacione canonicorum ad vicarias in dioecesi sancti Andree .

38 David permissione divina ecclesiæ sancti Andree minister humilis omnibus Christi fidelibus etc. eternam in Domino salutem . Cum ex injuncto nobis officio subditorum nostrorum necessitatibus grata impendendo remedia subvenire teneamur eorum tamen utilitatem propensiori studio procurare debemus qui cum [religiosi] sint que sua sunt in usus pauperum peregrinorum et hospitum sibi met subtrahendo inessentialiter distribuunt . Cum igitur

canonici de Driburgh quorum religionem apud Deum et homines notam esse credimus operibus misericordie pauperes peregrinos et hospites passim recipiendo studio diligenti insistant . cum etiam mole debitorum tum propter monasterij sui constructionem tum propter alias et varias necessitates deprimantur . necessitatibus eorum in hac parte compatiens concessimus eisdem provida deliberatione statuentes ut ad singulas ecclesias eorundem quas in nostra optinent dyocesi et a predecessoribus nostris eis in proprios usus sunt concessæ quas eis etiam episcopali auctoritate confirmavimus unum de canonicis suis nobis et successoribus nostris presentent vicarium qui a nobis et successoribus nostris curam animarum suscipiat ita ut in singulis ecclesijs singuli vicarij resideant . unicuique vicario aliquo honesto sacerdote seculari associato cujus auxilio idem vicarius relevetur et solatio recreetur ut sic fructus earundem ecclesiarum in usus conventus cedant ad cujus sustentationem easdem ecclesias predecessores nostri pia devocione concesserunt . Ut hec nostra concessio robur perpetue firmitatis optineat presenti scripto sigillum nostrum apponi fecimus . Testibus etc . Datum apud Tynninghame anno gracie mille^{mo} cc^o xl^o ij^o decimo Kalendas Maij .

Confirmacio capituli sancti Andree super presentatione canonicorum ad vicarias .

- 39 **O**mnibus sancte matris ecclesie etc . Johannes Dei gracia prior sancti Andree apostoli in Scotia et ejusdem loci conventus humiliter eternam in Domino salutem . Noverit universitas vestra nos confirmationem venerabilis patris nostri David Dei gracia episcopi nostri in hec verba inspexisse cujus tenorem presenti scripto duximus inferendum . David permissione divina ecclesie sancti Andree minister humilis omnibus Christi fidelibus etc . eternam in Domino salutem . Cum ex injuncto nobis officio subditorum nostrorum

necessitatibus grata impendendo remedia subvenire teneamus eorum tamen utilitatem propensiori studio procurare debemus qui cum religiosi sint que sua sunt in usus pauperum peregrinorum et hospitum sibi nec subtrahendo incessanter distribuunt . Cum igitur canonici de Driburgh quorum religionem apud Deum et homines notam esse credimus operibus misericordie pauperes peregrinos et hospites passim recipiendo studio diligenti insistant . cum etiam mole debitorum tum propter monasterij sui constructionem tum propter alias et varias necessitates deprimantur . necessitatibus eorum in hac parte compatiētes concessimus eisdem provida deliberatione statuentes ut ad singulas ecclesias eorundem quas in nostra optinent dyocesi et a predecessores nostris eis in proprios usus sunt concessisse quas etiam eis episcopali auctoritate confirmamus unum de canonicis suis nobis et successoribus nostris presentent vicarium qui a nobis et successoribus nostris curam animarum suscipiat ita ut in singulis ecclesijs singuli vicarij resideant . unicuique vicario aliquo honesto sacerdote seculari associato cujus auxilio idem vicarius relevetur et solatio recreetur ut fructus earundem ecclesiarum in usus conventus cedant ad cujus sustentationem easdem ecclesias predecessores nostri pia devocione concesserunt . Et ut hec nostra concessio robur perpetue firmitatis optineat presenti scripto sigillum nostrum apponi fecimus . Hijs testibus etc . Datum apud Tynninghame anno gracie m^o . cc . xl . secundo . decimo Kalendas Maij . Nos igitur predictam concessionem et confirmationem dictis canonicis de Driburgh factam unanimi assensu et consensu ratam et gratam habentes eam presentis scripti munimine et sigilli nostri impressione confirmamus . Teste capitulo nostro . Datum anno gracie m^o . cc^o . xl secundo . vi^o nonas Julij .

Super ordinatione vicariorum secularium in dioecesi sancti Andree .

40 Univerſis Criſti fidelibus etc. Gamelinus miſeratione divina eccleſie ſancti Andree miniſter humilis ſalutem eternam in Domino . Noverit univerſitas veſtra quod de voluntate et conſenſu dilectorum filiorum abbatis et conventus de Dryburgh ordinis Premonſtratenſis talis per nos facta eſt ordinacio vicariarum parochialium eccleſiarum ipſorum abbatis et conventus . videlicet quod vicarius ſecularis qui in eccleſia de Kylrethny miniſtrabit recipiet annuatim a dictis abbate et conventu decem marcas ſterlingorum ad duos anni terminos videlicet medietatem ad penthecoſten et aliam medietatem ad feſtum ſancti Martini in hyeme et iſtud idem ordinamus et ſtatuiſmus de vicario qui in eccleſia de Saltoun miniſtrabit . Vicarius vero eccleſie de Golyn deſerviturus recipiet a dictis abbate et conventu duodecim marcas ſterlingorum annuas ad duos anni terminos ſupradiſtos . Vicarius qui in eccleſia de Childenkirk miniſtrabit qui quidem faciet obedienciam tam pro eccleſia de Childenkirk quam pro capella de Laweder recipiet a prefatis abbate et conventu decem libras annuas ad duos anni terminos ſupradiſtos . et dicti abbas et conventus facient deſervire dicte capelle per duos honeſtos capellanos . Et ſciendum eſt quod dicti abbas et conventus omnia onera ordinaria et extraordinaria ad dictas eccleſias pertinencia ſuſtinebunt a quibus dicti vicarij erunt immunes . excepto quod vicarius de Kilrethny pro domibus ſuis ſitis in terra noſtra ſolvat nobis et ſucceſſoribus noſtris annuatim tres ſolidos medietatem ad aſſumpcionem beate Virginis et medietatem ad purificationem beate Virginis . dicti vero abbas et conventus alijs vicarijs domicilia aſſignabunt que ipſi vicarij in poſterum ſuſtentabunt . Et ſi forte contingat prefatos abbatem et conventum per dictos vicarios vel per aliquem ſucceſſorum noſtrorum contra iſtam ordinationem noſtram aliquo tempore indebite moleſtari volumus pro nobis et ſucceſſoribus noſtris ut liceat eiſdem abbati et conventui dictis eccleſijs parochialibus per canonicos ſuos ſecun-

dum tenorem indulgentiarum predecessorum nostrorum sibi indultarum sicut prius consueverant deservire . Hec autem singula predicta pro nobis et successoribus nostris auctoritate episcopali confirmamus et in robur perpetuum et testimonium presenti scripto sigillum nostrum apponi fecimus . Acta apud Inchemurthanch xiii^o Kalendas Aprilis anno gracie millesimo cc^o lxxiii^o .

Confirmacio capituli sancti Andree super ordinatione vicariorum secularium .

- 41 Omnibus sancte matris ecclesie filiis etc. Johannes Dei gracia prior sancti Andree apostoli in Scocia et ejusdem loci conventus eternam in Domino salutem . Noverit universitas vestra nos inspexisse ordinationem venerabilis patris nostri Gamelini Dei gracia episcopi nostri super vicariis quarundem ecclesiarum parochialium abbatis et conventus de Dryburgh in hec verba . Universis Christi fidelibus etc. Gamelinus miseratione divina ecclesie sancti Andree minister humilis salutem in Domino . Noverit universitas vestra quod de voluntate et consensu dilectorum filiorum abbatis et conventus de Dryburgh ordinis Premonstratensis talis per nos facta est ordinatio vicariorum parochialium ecclesiarum ipsorum abbatis et conventus videlicet quod vicarius secularis qui in ecclesia de Kilrethny ministrabit recipiet annuatim a dictis abbate et conventu decem marcas sterlingorum ad duos anni terminos videlicet medietatem ad penthecosten et aliam medietatem ad festum sancti Martini in hyeme et istud idem ordinamus et statuimus de vicario qui in ecclesia de Saltoun ministrabit . Vicarius vero ecclesie de Golyne deserviturus recipiet a dictis abbate et conventu duodecim marcas sterlingorum annuas ad duos anni terminos supradictos . Vicarius vero qui in ecclesia de Childenkirch alias Childenkirk ministrabit qui quidem faciet obedienciam tam pro ecclesia de Childenkirk quam pro capella de Lawder recipiet a prefatis

abbate et conventu decem libras sterlingorum annuas ad duos anni terminos supradictos et dicti abbas et conventus facient deservire dicte capelle per duos honestos capellanos . Et sciendum est quod dicti abbas et conventus omnia onera ordinaria et extraordinaria ad dictas ecclesias pertinencia sustinebunt a quibus dicti vicarij erunt immunes . excepto quod vicarius de Kylrethny pro domibus suis fitis in terra nostra solvet nobis et successoribus nostris annuatim tres solidos medietatem ad assumptionem beate Virginis et aliam medietatem ad purificationem beate Virginis . Dicti vero abbas et conventus alijs vicarijs domicilia assignabunt que ipsi vicarij sustinebunt in posterum . Et si forte contingat prefatos abbatem et conventum per dictos vicarios vel per aliquem successorum contra istam ordinationem nostram aliquo tempore indebite molestari volumus pro nobis et successoribus nostris ut liceat eisdem abbati et conventui dictis ecclesijs parochialibus per canonicos suos secundum tenorem indulgentiarum predecessorum nostrorum sibi indultarum sicut prius consueverant deservire . Hec autem omnia et singula predicta pro nobis et successoribus nostris auctoritate episcopali confirmamus et in robur perpetuum et testimonium presenti scripto sigillum nostrum apponi fecimus . Actum apud Inchemurthauch xiiij Kalendas Aprilis anno gracie millesimo cc° lx° octavo . Nos igitur dictam ordinationem ratam et gratam habentes eam presentis scripti munimine et sigilli nostri impressione confirmamus . Teste capitulo nostro .

Super capellano inveniundo in capella de Congilton et terris assignatis ad dicte capelle sustentationem .

- 42 **G**regorius permissione divina episcopus Brechinensis et Germanus prior de Restinot et Dionisius decanus de Angusia omnibus has etc. eternam in Domino salutem . Literas domini Pape recepimus in hec verba . **HONORIUS** episcopus servus servorum Dei venerabili fratri Gregorio episcopo Brechinensi

et dilectis filijs Germano priori de Restinot et Dyonisio decano de Angusia sancti Andree diocesis salutem et apostolicam benedictionem . Willelmus rector ecclesie de Golyn nobis conquerendo monstravit quod Walterus miles de Congilton [et quidam alij] sancti Andree diocesis super jure parochiali ejusdem ecclesie ac rebus alijs injuriantur eidem discretione vestre per apostolica scripta mandamus quatenus partibus convocatis audiatis causam et appellacione remota sine debito terminetis facientes quod decreveritis per censuram ecclesiasticam firmiter observari . Testes autem qui fuerint nominati si se gracia odio vel timore subtraxerint per censuram eandem cessante appellacione cogatis veritati testimonium perhibere et si non omnes lijs exequendis potueritis interesse tu frater Episcopo cum eorum altero ea nichilominus exequaris . Datum Lateran xii Kal. Aprilis pontificatus nostri anno octavo . Hujus auctoritate mandati Walterum de Congilton militem sepius citari fecimus ut coram nobis compareret Willemo de Golyn rectori ecclesie de Golyn secundum formam mandati apostolici responsurus et juri pariturus . tandem post multas dilaciones et diutinas expectationes utraque pars consensit in virum venerabilem Willelmum episcopum sancti Andree ut de pace perpetua inter matricem ecclesiam de Golyn et capellam de Congilton et Willelmum rectorem ecclesie ejusdem de Golyn et Walterum de Congilton militem reformando ordinaret . qui recepta juratoria cautione ab utraque parte quod staret ejus ordinationi et non quereret artem vel ingenium veniendi per se vel per alium contra ipsius ordinationem presentibus domino Johanne de Wallibus patrono et Willelmo de Wallibus persona in hunc modum ordinavit . scilicet quod Willelmus rector ecclesie de Golyn inveniet capellanum suis sumptibus qui ministret in capella de Congilton quem amovere poterit cum viderit expedire et alium statuere . salvis matricis ecclesie de Golyn oblationibus et obventionibus et reatitudinibus omnimodis eam contingentibus salvis eciam eidem rectori ecclesie de Golyn et successoribus suis terris assignatis in territorio de Congilton et de Estyr Fenton cum uno tofto in Congilton et cum duobus toftis in Ester

Fenton ut de eis pro voluntate sua libere disponat et cum libera braciua in Estir Fenton et cum molendino et cum communi pastura in utraque villa ad octo boves et duos equos et quatuor vaccas et octoginta oves in liberam puram et perpetuam elemosinam . Si autem dictus miles aliquem capellanum circa se retinere voluerit non celebrabit in capella de Congilton nisi prius facta fidelitate matri ci ecclesie de Golyn et ejusdem rectori de omni indemnitate . qui si contra juramentum suum venire presumpserit statim amoveatur . Dictus autem miles et uxor ipsius et homines habentes domos in villa de Congilton cum ipsorum hominum familia venient ad matricem ecclesiam de Golyn tribus solempnibus diebus scilicet die sancti Andree et die natalis Domini et die Pasche ibidem divina audituri penitencias et ecclesiastica sacramenta percepturi . carucarii vero non habentes domos in villa de Congilton et pediseque et garcifere de aula et fenes et valetudinarii de villa audient divina in prefata capella de Congilton et ibidem confessi per capellanum matricis ecclesie de Golyn ecclesiastica percipient sacramenta et pueri in villa de Congilton oriundi in capella de Congilton baptizabuntur . Nos vero predictam ordinationem ratam et gratam habentes eam auctoritate apostolica confirmamus et appositione sigillorum nostrorum una cum sigillo domini Willelmi episcopi sancti Andree corroboramus .

Super ecclesia de Lanark et capella de Pedyunnan et Imbrifton .

- 43 **D**avid rex Scotorum episcopis abbatibus comitibus justiciarijs baronibus vicecomitibus ministris et omnibus hominibus tocius terre sue Francis Anglis et Scotis de [et] Galwienfibus salutem . Sciant tam posteri quam presentes me concessisse et dedisse et hac mea carta confirmasse ecclesie sancte Marie de Dryburgh et fratribus canonicis ibidem Deo fervientibus ad tenendum de me et heredibus meis in liberam et perpetuam elemosinam

ecclesiam de Lanark cum terris et decimis et omnibus rebus iuste ad illam pertinentibus et ecclesiam de Pedynnane cum omnibus suis pertinentijs et in eadem villa illam earucatam terre quam Nicholaus clericus meus de me habuit et tenuit ita libere et quiete ab omni seculari exactione et consuetudine eisdem fratribus perpetuo possidendas sicut aliqua ecclesia terre mee elemosinas suas melius et quiccius tenet et possidet ita tamen quod in ecclesijs illis officium divinum honeste fiat . Testibus etc .

Confirmacio episcopi super ecclesia de Lanark et capella de Pedynnane et Imbirfston in proprios usus .

44 **H**erebertus Dei gracia Glasguensis episcopus tam futuris quam presentibus sancte matris ecclesie filijs salutem . Notum sit vobis omnibus nos concessisse et per hanc cartam episcopali auctoritate confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et servituris ecclesiam de Lanark cum capella de Pedynnane cum omnibus pertinentijs et reatitudinibus earum et illam earucatam terre in Pedynnane quam Nicholaus clericus tenuerat que omnia David rex Scotorum illis in liberam et perpetuam elemosinam dedit et carta sua confirmavit . Volumus itaque et ad canonice religionis provectum pietatis intuitu eis concedimus et confirmamus ut predictam ecclesiam et capellam et omnia que ad eas pertinent perpetuo in usus suos ita libere quiete et plenarie teneant et possideant sicut aliqua domus religionis aliquam ecclesiam aut aliquod beneficium ecclesiasticum in episcopatu Glasguensi liberius et quiccius et plenius tenet et possidet et sicut carta domini regis donat et testatur salvo jure episcopali . Testibus etc .

Eccelesia de Lanark et capella de Pedyunnan in proprios usus confirmatur per episcopum .

- 45 **J**ocelinus Dei gracia Glasguensis episcopus omnibus sancte matris ecclesie filijs salutem in Christo . Notum fit vobis nos concessisse et hac carta nostra et episcopali auctoritate confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et perpetuam elemosinam ecclesiam de Lanark cum capella de Paduenane et omnibus ad eandem ecclesiam et capellam pertinentibus tenendam perpetuo libere et quiete plenarie et honorifice . Concedimus etiam illis et confirmamus pietatis intuitu necessitatibus eorum compatientes ut perpetuo a die decessus Hugonis capellani cui eandem ecclesiam in vita illius tenendam concesserunt in continenti liceat eis absque alicujus contradictione de proventibus ipsius ecclesie et capelle et omnium ad eas pertinencium ad utilitatem domus sue sicut sibi melius expedire viderint disponere et eisdem proventus libere in usus suos convertere et possidere . Quare volumus et episcopali auctoritate et sigilli nostri appositione eisdem canonicis confirmamus ut predictam ecclesiam cum omnibus pertinentijs suis perpetuo ita libere quiete plenarie et honorifice teneant et possideant sicut aliqui viri religiosi aliquam ecclesiam sive ecclesiasticum beneficium in episcopatu Glasguensi liberius quicquid plenius et honorificentius tenent et possident falvis episcopalibus . Testibus .

Super decimis de Nemflare et Cartland .

- 46 **W**illelmus Dei gracia rex Scottorum episcopis abbatibus comitibus baronibus iusticiarijs vicecomitibus prepositis ministris et omnibus probis hominibus totius terre sue clericis et laicis salutem . Sciant presentes et futuri me dedisse et concessisse et hac carta mea confirmasse Deo et ecclesie de Lanark

totam parochiam de Nenflare et de Carteland et decimam univerſam de omnibus averijs et vicarijs meis que in predictis villis poſita ſunt aut ponentur in liberam et quietam et perpetuam elemoſinam . Quare volo et firmiter precipio ut omnes homines in predictis villis aut eciam infra diviſas predictarum villarum manentes omnes decimas ſuas tam de vivis quam de mortuis et de omnibus alijs de quibus ſancta eccleſia decimas dari exigit prefate eccleſie de Lanark inperpetuum perſolvant et eidem in omnibus intendant ſicut matriſi eccleſie ſue intendere debent . Teſtibus .

Super grangia de Ingbuſton et ſuper toſto et croſto pertinentibus et comuni paſtura ejusdem ville .

- 47 **W**illelmus Dei gracia rex Scotorum epiſcopis abbatibus comitibus baronibus juſticiarijs miniſtris et omnibus probis hominibus totius terre ſue clericis et laicis ſalutem . Sciant preſentes et futuri me dediſſe et conceſſiſſe et hac carta mea confirmavi Deo et eccleſie ſancte Marie de Dryburgh et canonicis ibidem Deo ſervientibus in liberam et perpetuam elemoſinam terram illam in Padenane quam Robertus filius Werenberti vicecomes meus de Lanark ad opus meum perambulavit et ſyſclivit precepto meo illam ſcilicet terram quam canonici predicti tenuerant tempore regis David avi mei et regis Malcolmi fratris mei et meo . Concedo etiam eis toſtum et croſtum ad capellam de Paduenane et communem paſturam ejusdem ville quantum ad perſonam ipſius capelle pertinet . Volo itaque et firmiter precipio ut elemoſinam predictam ita libere et quiete et honorifice habeant et teneant ſicut alias elemoſinas ſuas liberius quicquid et honorificencius tenent . Teſtibus etc .

Super nemore in Paduenane Nicholao clerico concessio .

- 48 **D**avid rex Scotorum episcopis abbatibus comitibus iusticiarijs baronibus vicecomitibus prepositis ministris et omnibus probis hominibus totius terre sue salutem . Sciatis me dedisse et concessisse et hac mea carta confirmasse Nicholao clerico meo et successoribus ejus totum nemus quod est infra divisas illius terre quam Syrand sacerdos tenuit de me ante eum in Paduenane in firmam forestam et ideo prohibeo super forisfactum xl solidorum ut nullus omnino venetur in eo aut aliquid ibi molestie ei vel successoribus ejus faciat nisi per licenciam et benevolenciam eorum . Testibus etc .

Confirmacio super ecclesia de Lanark et capella de Padeuenane in proprios usus .

- 49 **F**lorentius Dei gracia Glasguensis electus omnibus sancte matris ecclesie filijs etc. salutem in Domino . Sciatis nos Dei intuitu et sancte religionis optentu ad exemplar felicitis memorie Herberti et Jocelini episcoporum predecessorum nostrorum concessisse et hac carta mea confirmasse Deo et ecclesie de Dryburgh et canonicis ibidem Deo fervientibus in liberam et quietam et perpetuam elemosinam ad usus proprios et sustentationem suam et pauperum et hospitum susceptionem ecclesiam de Lanark cum capella de Padeuenane et terris et decimis et omnibus proventibus ad ipsam ecclesiam vel capellam pertinentibus Tenendam inperpetuum et possidendam ad usus suos et hospitum susceptionem ita libere quiete plenarie et honorifice sicut aliqua conventualis ecclesia aliquam ecclesiam vel ecclesiasticum beneficium liberior quicquid plenius et honorificentius in episcopatu Glasguensi tenet et possidet salvis episcopalibus et sicut carte Herberti et Jocelini predecessorum nostrorum testantur . Testibus .

Confirmacio super capella de Clegern et super quatuor solidis pro dicta capella solvendis pro omnibus exactionibus .

50 **W**alterus Dei miseratione Glasguensis minister omnibus sancte matris ecclesie etc. eternam in Domino salutem . Noverit universitas vestra nos divine pietatis intuitu de consensu et assensu capituli nostri concessisse et hac carta nostra confirmasse auctoritate episcopali ecclesie sancte Marie de Dryburgh et canonicis ibidem Deo fervientibus capellam de Clegern tenendam et habendam inperpetuum liberam quietam et immunem ab omni indebita exactione tanquam capellam de jure spectantem ad matricem ecclesiam eorum de Lanark ita scilicet quod nos et successores nostri ratione synodaliū vel ejusecunque juris episcopalis quod ad nos pertinere possit nichil a dictis canonicis exigere valeamus ratione predictę capelle preter quatuor solidos tantum nobis et successoribus nostris pro synodalibus et generaliter alia exactione annuatim pro bono pacis solvendos per manum ministrantis in matrici ecclesia de Lanark honeste . Dicti autem canonici prefate capelle per capellanos suos de Lanark honeste tanquam capelle facient deferviri . Ut autem hec nostra concessio et confirmatio perpetuum robur optineat firmitatis eam presenti scripto et sigilli nostri appositione duximus roborandam . Teste magistro H . archidiacono nostro .

Confirmacio episcopi super ecclesia de Lanark et Padeuenane et Clegern et super carucata terre in Padeuenane et super Lessedwyne que in usus proprios conceduntur .

51 **O**mnibus sancte matris etc. Walterus miseratione divina ecclesie Glasguensis episcopus eternam in Domino salutem . Noverit universitas vestra nos ad imitationem predecessorum nostrorum Herberti et Jocelini predecef-

forum episcoporum Glasguensium divine pietatis intuitu et pie religionis optentu de consensu et assensu capituli nostri concessisse et episcopali auctoritate confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo ferventibus ecclesiam de Lanark cum capella sua de Padeuenane et capella de Cleghern liberam quietam et immunem ex omni exactione spectantem ad matricem ecclesiam de Lanark secundum formam carte nostre dictis canonicis super eadem collate et illam carucatam terre quam Nicholas clericus tenuit in Padeuenane cum omnibus ad prefatam ecclesiam et suas capellas pertinentibus ecclesiam etiam de Lassedewyne cum omnibus pertinentijs suis et cum terris domibus redditibus possessionibus quas in parochijs dictarum ecclesiarum suarum sive in episcopatu nostro iuste et pie tenent et possident que omnia presentis scripti patrocinio communimus et perpetuo utibus eorum et necessitatibus integre et illibate profutura confirmamus . Volumus ut dicti canonici prenominatas ecclesias cum omnibus pertinentijs suis in liberam puram et perpetuam elemosinam in usus proprios cum ceteris bonis suis prenotatis ita libere quiete plenarie et honorifice teneant et possideant sicut aliqui viri religiosi ecclesias suas vel ecclesiastica beneficia in diocesi Glasguensi liberius quicquid plenius et honorificentius tenent et possident salvo nobis et successoribus nostris jure episcopali in omnibus . In cujus rei testimonium presenti scripto sigillum nostrum apponi fecimus . Testibus etc . Datum apud Alneerum anno gracie millesimo cc° tricesimo secundo die sancti Dunstani episcopi .

Confirmacio super predictis et ut ecclesie nostre de Lanark et Lassedewyne per canonicos deserviantur .

52 **O**mnibus sancte matris ecclesie etc. Vilelmus miseratione divina ecclesie Glasguensis minister eternam in Domino salutem . Noverit universitas vestra nos ad imitationem predecessorum nostrorum episcoporum Glasguensium

divine pietatis intuitu et pie religionis optentu de consensu et assensu capituli nostri et ecclesie Glasguensis episcopali auctoritate confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus ecclesiam de Lanark cum capella sua de Padenenane et capella de Clegern spectante ad matricem ecclesiam de Lanark liberam quietam et immunem ab omni exactione secundum formam carte pie memorie Walteri episcopi Glasguensis predecessoris nostri super eadem eisdem collate et illam carucatam terre quam Nicolaus cleriens tenuit in Padenenane cum omnibus ad prefatam ecclesiam et suas capellas pertinentibus ecclesiam etiam de Laffedevyne cum omnibus pertinentijs suis et cum terris domibus redditibus et possessionibus quas in parochijs dictarum ecclesiarum suarum in episcopatu nostro iuste tenent et possident que omnia presentis scripti patrocinio communimus et perpetuo usibus eorum et necessitatibus necessarie et illibate profutura confirmamus volentes ut dicti canonici prenominate ecclesias cum omnibus pertinentijs suis in liberam plenam et perpetuam elemosinam in usus proprios cum ceteris bonis suis prenotatis ita libere quiete plenarie et honorifice possideant et teneant sicut aliqui viri religiosi ecclesias vel ecclesiastica beneficia in diocesi Glasguensi liberior quicquid plenius et honorificentius tenent et possident et ut prefatis ecclesijs suis per fratres suos canonicos honeste deserviant salvo nobis et successoribus nostris jure episcopali in omnibus . Ut autem nostra confirmacio debitam optineat securitatem eam presentis scripti patrocinio et sigilli nostri appositione duximus roborandam . Testibus etc .

Super ecclesia de Laffidiwyn .

- 53 **R**obertus de Londonia omnibus sancte matris ecclesie etc. salutem . Sciatis omnes me concessisse et dedisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam puram et perpetuam elemosinam ecclesiam de Laffidewyn cum

omnibus pertinentijs suis pro salute domini mei Willelmi regis Scotorum et pro salute anime mee et pro animabus patris mei Richardi de Londonia et matris mee Matilde Ferers et omnium antecessorum et successorum meorum . Quare volo et confirmo ut prefati canonici jam dictam ecclesiam cum terra ei adjacente et omnibus alijs reatitudinibus suis ita libere quiete honorifice et plenarie perpetuo teneant et possideant sicut aliqui religiosi aliquam ecclesiam in regno Scotie liberius et quietius et plenius tenent et possident . Testibus etc .

Super ecclesia de Laffidewyn .

- 54 **U**niversis etc. Robertus de Londonia salutem . Sciant tam posteri quam presentes me dedisse et hac carta mea confirmasse ecclesie sancte Marie de Driburgh et conventui ibidem Deo fervienti pro anima patris mei Ricardi de Londonia et matris mee Matilde de Ferers et Mauriej et Thome de Londonia pro salute anime mee in perpetuam elemosinam ecclesiam de Lessledewyn cum omnibus suis pertinentijs . Predictae vero ecclesie con-
 * ventus recipiet ad servitium Dei quatuor clericos quo eis ego presignabo
 * congruos pro animabus predictorum parentum meorum et salute anime mee
 * omnibus defunctis alios perpetuo abstineant et ideo volo ut predictam eccle-
 siam ita libere et quiete teneant sicut aliqua ecclesia liberius quietiusque
 tenetur . Testibus etc .

Confirmacio regis super ecclesia de Laffedevyn .

- 55 **W** . rex Scotorum omnibus probis hominibus totius terre sue salutem .
 Sciatis me dedisse concessisse et hac carta mea confirmasse ecclesie sancte
 Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et per-

petuam elemosinam ecclesiam de Lessedewyn cum omnibus iustis pertinentijs suis quam Robertus de Londonia eis dedit pro animabus antecessorum suorum tenendam ita libere quiete plenarie et honorifice sicut alias elemosinas suas tenent et sicut carta ipsius Roberti de Londonia testatur et confirmat . Testibus etc .

Item confirmacio Episcopi super Lessedewyn .

56 **J** . Dei gracia Glasguensis episcopus omnibus sancte matris ecclesie etc. salutem . Sciant tam posterii quam presentes me concessisse et episcopali auctoritate confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus ecclesiam de Lessedewyn cum capella sua de et omnibus iustis pertinentijs suis quam Robertus de Londonia eis in liberam et perpetuam elemosinam dedit et rex Willelmus carta sua confirmavit . Quare volo et concedo et hac mea carta eisdem fratribus confirmo ut predictam ecclesiam cum omnibus suis pertinentijs et recitudinibus ita libere et quiete et plenarie perpetuo teneant et possideant sicut aliqua ecclesia vel beneficium ecclesiasticum in episcopatu Glasguensi ab aliquibus viris religiosius liberior et quietius et melius tenetur et possidetur . salvo jure episcopali et salva tenura Gregorie persone in vita sua . Testibus etc .

Item confirmacio super ecclesia de Lessedewyn et capella de Newtoun in proprios usus .

57 **J** . inus Dei gracia episcopus Glasguensis omnibus sancte matris ecclesie etc. salutem . Sciant tam posterii quam presentes nos concessisse et hac carta nostra confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et perpetuam elemosinam ecclesiam de Lessedewyn

wyn cum capella sua de Newtoun et omnibus pertinentijs et rectitudinibus suis perpetuo eis possidendam sicut pie memorie Engilram predecessor noster eis carta sua confirmavit et communivit . volumus proinde necessitatibus eorum compatientes concedimus et confirmamus ut jam dictam ecclesiam cum omnibus que ad eam pertinent ita libere et quiete et plenarie in usus proprios suos sicut sibi melius expedire viderint disponendo perpetuo teneant et possideant sicut aliqui viri religiosi aliquam ecclesiam vel aliquod beneficium ecclesiasticum liberius quietius et plenius in diocesi Glasguensi tenent et possident . falvis episcopalibus nobis et successoribus nostris . Testibus etc .

Super toftis et pomerio et terra et prato ecclesie predictę concessis .

- 58 **T**homas de Londonia omnibus sanctę matris ecclesie etc. salutem . Sciatis quod ego dedi et hac mea carta confirmavi Deo et ecclesie sanctę Marie de Lestredewyn pro anima domini mei David regis et pro anima Margarete uxoris mee et pro salute anime mee et omnium antecessorum meorum toftas quas habui ex australi parte ecclesie et dimedium pomerij juxta ecclesiam quod meum fuit et terram et pratum ex occidentali parte ecclesie usque ad magnam viam que vadit erga Eldoun et ex aquilonali parte ecclesie terram a cimiterio ultra quoddam vetus fossatum sicut eam in principio dedi et assignavi usque in Twedam in liberam et puram et perpetuam elemosinam ita quod persona ecclesie constituet unum altare in honore sanctę Margarete virginis in parte australi ejusdem ecclesie atque singulis ebdomadis unam missam pro anima domini mei regis David et pro anima Margarete uxoris mee et pro animabus omnium fidelium defunctorum in eodem cantare faciet . Testante et consulente patre nostro domino Henrico episcopo Glasguensi etc .

Confirmacio super dictis toftis et dimidio pomerij et terra et prato .

59 **R**obertus de Londonia omnibus etc. falutem . Sciant tam pofteri quam prefentes me pro falute anime mee et animabus patris et matris mee et omnium antecessorum et fucefforum meorum conceffiffe et hac mea carta confirmaffe in puram et liberam elemofinam terras quas Thomas de Londonia dedit et confirmavit ecclefie fancte Marie de Leffedewyn feilicet toftas quas habuit ex australi parte ecclefie et dimidium pomerij juxta ecclefiam quod finum erat et terram et pratum ex occidentali parte ipfius ecclefie ufque ad magnam viam que vadit erga Eldoun et ex aquilonali parte terram a cimiterio ultra quoddam vetus foffatum ficut eam in principio dedit et assignavit ufque in Twedam in liberam et perpetuam elemofinam pro animabus antecessorum et fucefforum fuorum . et perfona predicte ecclefie faciet unam miffam fingulis ebdomadis cantari super altare fancte Margarete virginis quod predictus Thomas de Londonia fieri juffit pro anima Margarete fponse fue et pro animabus omnium fidelium defunctorum .

Super una domo in Leffedewyn folvente annuatim nobis tres folidos et unam libram piperis .

60 **O**mnibus fancte matris ecclefie etc. Robertus de Londonia frater domini Alexandri regis Scotorum falutem . Sciant tam pofteri quam prefentes me dediffe et conceffiffe et hac mea carta confirmaffe Deo et beate Marie de Dryburgh et canonicis ibidem Deo fervientibus pro anima regis Willelmi patris mei et pro animabus omnium antecessorum meorum et fucefforum meorum et pro falute domini Alexandri regis fratris mei et pro falute mea et omnium amicorum meorum redditum meum in Leffedewyn quem fingulis

annis perecepi de domo mea et tofto meo in predicta villa feilicet tres solidos argenti et unam libram piperis . Tenendum fibi inperpetuum in liberam et puram quietam et perpetuam elemofinam ita libere et quiete ficut aliqua elemofina in toto regno Scotie ab aliquo barone liberius et quietius tenetur et poffidetur . Tefibus .

Super redditu trium folidorum in villa de Leffedewyn .

- 61 **O**mnibus Chrifti fidelibus etc. Robertus de Roxburgh falutem . Noverit univerfitas veftra me dediffe concessiffe et hac carta mea confirmaffe Deo et beate Marie de Driburgh et canonicis ibidem Deo fervientibus pro falute regis Alexandri et pro anima Roberti de Londonia avunculi mei et pro animabus antecellorum et fuccellorum meorum redditum illum de Leffedewyn quem confeuti funt dicti canonici ex dono Roberti de Londonia avunculi mei videlicet tres solidos argenti falvo hofpitio meo et falva michi una libra piperis folvenda michi et heredibus meis fingulis annis in de Rokisburgh per manum Alexandri filij Layfing et heredum fuorum habendum et poffidendum in puram et perpetuam elemofinam ita libere et quiete ficut aliquam elemofinam in toto regno Scotie ab aliquo barone liberius et quietius tenent et poffident . Tefibus etc .

Conventio inter nos et Geddkirch fuper ecclefia de Leffedewyn et fuper duabus marcis folvendis pro dicta ecclefia .

- 62 **H**ec eft conventio inter canonicos de Geddkirch et canonicos de Driburgh feilicet ut canonici de Geddkirch pratum [*proprietatem*] habeant ecclefie de Neutoun et eam perpetuo poffideant convenientibus in hoc canonicis de

Driburgh et perpetuum suis fucefforibus filentium imponentibus ne aliquam contra eandem ecclefiam in eternum querelam movere prefumant . Canonici vero de Geddkirch convenit ut canonici de Driburgh ecclefiam de Leffedewyn liberam ab omni querela habeant perpetuum et ipfi fuis fucefforibus filentium imponentes ne ullam aliquo tempore contra hanc ecclefiam de Leffedewyn querelam movere prefumant . Clericorum vero qui eafdem ecclefias tenent videlicet magiftri Johannis et Willelmi de Canfi falva erit tenura in vita fua ita quod annuatim reddent canonici de Geddkirch de ecclefia de Nentoun marcam unam et canonici de Driburgh de ecclefia de Leffedewyn marcas duas . Cum vero unus eorum de hac vita decefferit medietatem ecclefie de Leffedewyn canonici de Driburgh habebunt et canonici de Geddkirch medietatem ecclefie de Newtoun . Ille vero clericus qui fuperites fuerit partem fuam in vita fua tenebit medietatem fcilicet de Leffidewyn et medietatem ecclefie de Newtoun . reddendo inde annuatim canonicis de Driburgh de ecclefia de Leffedewyn marcam unam et canonicis de Geddkirch marcam dimidiam . Cum autem et ipfe decefferit extunc canonici de Geddkirch habebunt totam ecclefiam de Newtoun et canonici de Driburgh totam ecclefiam de Leffedewyn . Cum vero canonici de Geddkirch totam ecclefiam de Newtoun habuerint et canonici de Driburgh totam ecclefiam de Leffedewyn tunc primum incipient canonici de Driburgh perfolvere annuatim perpetualiter canonicis de Geddkirch duas marcas unam ad feftum fancti Martini et unam ad Pentecoften . Hujus conventionis testes funt et fuis eam figillis extrapendentibus confirmaverunt Jocelinus epifcopus Glafguenfis Johannes abbas de Kelkou cum figillo conventus fui etc .

Super ecclesia de Lefsedewyn et fraternitate inter nos et Geddkirch confirmata et duabus marcis pro confirmatione pacis solvendis .

- 63 In nomine sancte trinitatis et individue unitatis ad confirmandam perpetuam in Domino pacem inter canonicos de Geddkirch et canonicos de Driburgh hec inter utriusque ecclesie conventum multis consulentibus et assistentibus viris egregijs conventio facta est anno ab incarnatione domini m^o . c^o . lxx^o . vij^o . In primis quidem firma concessione uterque in hoc conventus auctore Deo convenit ut pax sincera et fraternitas vera perpetuis inter eos temporibus inviolabiliter teneatur ubicunque . harum ecclesiarum fratres convenerunt honore invicem prevenientes simul secundum Deum stabunt in quocunque negotio regno mutuo consilio et auxilio indignerint quantum eis caritas dictaverit et facultas eis ministraverit posse . pro confirmacione vero jocunde hujus bonitatis et bone jocunditatis et ut inter eos perpetuo duret convenit abbatibus et utrique conventui concessione totius capituli sui ut canonici de Gedwirth ecclesiam de Newtown quietam in eternum ab omni querela liberam teneant et canonici de Driburgh ecclesiam de Lefsedewyn quietam in eternum et ab omni querela liberam teneant . perpetuum utrinque universis successoribus suis silentium imponentes ne aliquam ad invicem de hijs ecclesijs suis querelam movere presumant . Item pro confirmacione hujus pacis fraterne abbas et conventus de Driburgh singulis inperpetuum annis duas marcas canonicis de Gedwirth de camera sua persolvent unam ad festum sancti Martini et unam ad pentecosten . Hujus vero confederationis et conventionis testes sunt et suis eam sigillis extrapendentibus confirmaverunt dominus noster Willelmus rex Scotie et David frater ejus . episcopus sancti Andree etc .

Super jure patronatus ecclesie de Worgis .

64 **O**mnibus sancte matris ecclesie etc. Radulphus de Campania miles eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu dedisse et concessisse et hac mea presenti carta confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus vel servituris in liberam puram et perpetuam elemosinam jus patronatus ecclesie de Worgis in Galwithia et quicquid juris habui vel habere potui in eadem ecclesia cum omnibus pertinentijs et rectitudinibus suis Tenendam sibi in perpetuum pro salute anime mee et omnium antecessorum et successorum meorum specialiter autem pro salute anime domini mei Alani filij Rollandi et pro salute animarum patris mei et matris mee ita libere quiete plenarie et honorifice sicut aliquis patronus in regno Scotie jus aliquod patronatus aut aliud jus in ecclesia alicui ecclesie vel viris religiosi liberius quietius plenius et honorificentius conferre potest . Ut autem hec mea donatio libera in perpetuum rata maneat et inconcussa presentem cartam predictis canonicis mere caritatis intuitu contuli sigilli mei appositione roboratam . Testibus etc .

Confirmatio super jure patronatus ecclesie de Worgis .

65 **O**mnibus Christi fidelibus etc. Nicolayus de Campania salutem . Noveritis me divine caritatis intuitu concessisse et hac presenti carta mea confirmasse Deo et sancte Marie et canonicis de Driburgh ordinis Premonstratensis donationem illam super jure patronatus ecclesie de Worgis in Galwithia quam quondam dominus Radulphus de Campania miles avus meus fecit eisdem canonicis per cartam suam . Quare volo pro me et heredibus meis ut dicti canonici jus patronatus dicte ecclesie teneant et habeant in perpetuum

absque reclamacione mei vel heredum meorum adeo libere et quiete sicut carta dicti avi mei plenius testatur et proportionat . Ut autem hec mea confirmatio robor immobilis firmitatis optineat presenti scripto sigillum meum apposui . Testibus .

Confirmacio episcopi super ecclesia de Worgis in proprios usus .

- 66 **G**ilbertus miseratione divina Candidease episcopus universis sancte etc. eternam in Domino salutem . Sciatis me concessisse et hae presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ordinis Premonstratensis ibidem Deo fervientibus et servituris in liberam puram et perpetuam elemosinam ecclesiam sancti Nicholayi de Worgis eum omnibus pertinentijs suis tenendam perpetuo libere quiete plenarie et honorifice . Concedimus et ipsis canonicis pietatis intuitu necessitatibus eorum compacientes ut perpetuo a decessu Wilelmi de Gemlifton clericus eandem ecclesiam ad presentationem abbatis et dictorum canonicorum possidentis liceat eis libere de proventus ipsius ecclesie ad utilitatem suam et ecclesie sue sicut sibi melius expedire viderint disponere et eisdem proventus in usus proprios convertere et possidere salva in eadem ecclesia vicaria decem marcarum argenti cum sex acris terre arabilis et una aera prati . predictis abbate et canonicis nobis vel successoribus nostris ydoneam personam ad eandem vicariam cum vacare contigerit canonice presentantibus . que quidem vicaria nobis et successoribus nostris de episcopalibus synodalibus archidiaconalibus et extraordinarijs pro portione ipsam contingente respondeat . Volumus itaque et episcopali auctoritate confirmamus ut predicti canonici de Driburgh perpetuo teneant et possideant supradictam ecclesiam eum omnibus ad eandem pertinentibus prout superius continetur ita libere et quiete plenarie honorifice sicut aliqui viri religiosi aliquod beneficium ecclesiasticum in episcopatu nostro liberius et quietius plenius et honorificentius

tenent et possident . Ut autem hec nostra confirmacio et concessio perpetuum robur firmitatis optineat prefens scriptum sigilli nostri appositione duximus roborandum . Testibus etc .

Confirmatio episcopi Candidecæ super ecclesia de Worgis in proprios usus .

- 67 **U**niversis sancte matris ecclesie etc. Henricus miseratione divina Candidecæ episcopus eternam in Domino salutem . Noveritis nos concessisse et hac presenti carta nostra confirmasse Deo et beate Marie et canonicis de Driburgh ordinis Premonstratensis ibidem Deo fervientibus et inperpetuum servituris donationem illam super ecclesia de Worgis quam Gilbertus bone memorie predecessor noster fecit eisdem canonicis per cartam suam . Quare volumus et concedimus pro nobis et successoribus nostris ut dicti canonici dictam ecclesiam habeant et possideant in usus proprios secundum quod carta dicti Gilberti predecessoris nostri plenius testatur et proportionat . Ut autem ista confirmacio nostra et concessio firum robur optineat et inconcussum prefens scriptum sigilli nostri munimine duximus roborare . Testibus etc .

Prima donatio super ecclesia de Worgis .

- 68 **H**ugo de Morevilla omnibus amicis suis et hominibus probis suis tam futuris quam presentibus salutem . Sciatis me dedisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et fratribus ibidem Deo fervientibus pro anima patris mei et pro salute anime mee ecclesiam de Worgis cum omnibus pertinentijs suis in perpetuam elemosinam ita libere et quiete sicut aliqua elemosina potest liærius et quietius concedi et teneri . Testibus etc .

Confirmacio capituli super ecclesia de Worgis in proprios usus .

- 69 **U**niversis sancte matris ecclesie etc. Gregorius permissione divina prior Candidecase et ejusdem loci conventus eternam in Domino salutem . Ad universitatis noticiam vestre volumus pervenire nos unanimi consensu et assensu capituli nostri concessisse et hac presenti carta nostra confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus collationem eisdem factam super jure patronatus ecclesie de Worgis prout in instrumento domini Radulphi de Campania dictis canonicis super hoc confecto liberius et plenius continetur . Concedimus etiam auctoritate capituli nostri et confirmamus jam dictis canonicis de Driburgh concessionem et confirmationem quam venerabilis pater noster Gilbertus miseratione divina Candidecase episcopus eisdem super jam dicta ecclesia de Worgis fecit ut scilicet secundum tenorem confirmationis ejusdem prefatam ecclesiam in usus proprios perpetuo teneant et possideant salva vicaria ab eodem venerabili patre nostro Gilberto taxata et ordinata prout carta ejusdem super hoc confecta testatur plenius et proportat . Ut autem hec nostra concessio et confirmacio perpetue firmitatis robur optineat presens scriptum sigillo capituli nostri [duximus] roborandum . Teste eodem capitulo nostro etc .

Super corporali possessione in ecclesiam de Worgis .

- 70 **O**mnibus sancte matris ecclesie etc. Henricus permissione divina Candidecase episcopus eternam in Domino salutem . Noverit universitas vestra nos instituisse et in corporalem possessionem induxisse in ecclesiam de Worgis venerabilem patrem dominum abbatem et conventum de Driburgh per dominum archidiaconum et decanum nostrum de Deefnes die Veneris proxima post diem Cinerum anno domini millesimo ducentesimo sexagesimo

septimo In cujus rei testimonium eidem abbati et conventui has literas conceffimus patentes .

Super jure patronatus de minore Sowrby .

- 71 **O**mnibus sancte matris ecclesie etc. Robertus de Veteri ponte eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu dedisse conceffisse et hac mea presenti carta confirmasse Deo et ecclesie sancte Marie de Driburgh et fratribus meis canonicis ibidem Deo ferventibus vel servituris in liberam puram et perpetuam elemosinam jus patronatus ecclesie sancti Michaelis de minore Sowreby in Galwythya et quicquid juris habui vel habere potui in eadem ecclesia cum omnibus pertinentijs et rectitudinibus suis Tenendam sibi inperpetuum pro salute anime domini mei Alani filij Rollandi et pro salute anime patris mei et matris mee et pro salute anime mee et uxoris mee et omnium antecessorum et successorum meorum ita libere et quiete plenarie et honorifice sicut aliquis patronus in regno Scotie aliquid jus patronatus vel aliud jus in ecclesia alicui ecclesie vel viris religiosus liberius quietius plenarius et honorificentius conferre potest . Ut hec mea libera donatio in perpetuum rata permaneat et inconcussa presentem cartam predictis canonicis fratribus meis mere caritatis intuitu contuli sigilli mei appositione roboratam etc .

Confirmacio super patronatu de minore Sowrby .

- 72 **O**mnibus Christi fidelibus etc. Alanus de Veteri ponte eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu conceffisse et hac mea presenti carta confirmasse Deo et ecclesie beate Marie de Driburgh

et fratribus meis ibidem Deo fervientibus et servituris in liberam puram et perpetuam elemosinam donationem quam Robertus de Veteri ponte filius meus fecit eidem super jure patronatus ecclesie sancti Michaelis de minore Sowrby Tenendam sibi inperpetuum ita libere quiete plenarie et honorifice sicut in carta dicti Roberti super hoc confecta et dictis canonicis collata plenius continetur salva possessione Johannis de Wouill clerici mei . In ejus rei testimonium presenti scripto sigillum meum apponi feci . Testibus etc .

Super terra de minore Sowreby nobis data et super divis ejusdem terre .

- 73 Omnibus Christi fidelibus etc. Robertus de Veteri ponte salutem . Noverit universitas vestra me divine pietatis intuitu dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et fratribus meis canonicis ibidem Deo fervientibus et servituris in liberam puram et perpetuam elemosinam ad incrementum ecclesie de minore Sowrby quam eidem caritative contuli totam terram illam in dicta villa que se extendit in longum a parva cruce que sita est in occidentali parte ecclesie ville prenominate usque ad antiquum rivulum illum qui descendit de terra Willelmi de Anewith ex orientali parte predictae ville et que in latum se extendit a publica et antiqua via ex australi parte dictae ecclesie existente usque ad parvam crucem illam que sita est in aquilonali parte prefate ville sicut terram illam prefatis canonicis coram probis hominibus perambulare et mensurare feci . Tenendam inperpetuum pro salute animarum patris mei et matris mee et pro salute anime mee et uxoris mee et pro salute omnium antecessorum et successorum meorum adeo libere quiete et plenarie et honorifice sicut aliqua elemosina in toto regno Scotie ab aliquibus viris religiosis liberius quietius plenius et honorificentius potest teneri vel possi-

deri . Ut hec autem mea donatio libera perpetuum robur firmitatis optineat presenti scripto sigillum meum apponi feci . Testibus .

Confirmacio capituli Witernie super minore Sowrby in proprios usus .

- 74 **O**mnibus Christi fidelibus etc. Malcolmus Dei gracia prior Viternie et ejusdem loci conventus eternam in Domino salutem . Ad universitatis vestre noticiam volumus pervenire nos communi assensu et consensu capituli nostri concessisse et hac presenti carta nostra confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et fervituris in liberam puram et perpetuam elemosinam ecclesiam sancti Mychaelis de minore Sowrbye cum omnibus pertinentijs suis Tenendam perpetuo libere quiete et plenarie et honorifice . Concessimus et ipsis canonicis ut perpetuo [post decessum] Johannis de Wouill clerici liceat eis libere de proventus ipsius ecclesie ad utilitatem suam et ecclesie sue sicut sibi melius expedire viderint disponere et eosdem proventus in usus proprios convertere et possidere prout in confirmatione domini Walteri Candidecase episcopi super hoc confecta et dictis canonicis collata plenius continetur . Volumus itaque et auctoritate episcopali nostra confirmamus ut predicti canonici de Driburgh perpetuo teneant et possideant supradictam ecclesiam cum omnibus ad eandem pertinentibus ita libere et quiete plenarie et honorifice sicut aliqui viri religiosi aliquod beneficium ecclesiasticum in regno Scotie liberius et quietius plenius et honorificentius tenent et possident . In cujus rei testimonium presenti scripto sigillum capituli nostri duximus apponendum . Teste capitulo nostro etc .

Super ecclesia de majore Sowreby .

- 75 **U**niversis sancte matris etc. Ivo de Veteri ponte salutem eternam in Domino . Noverit universitas vestra me dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus pro salute anime mee et uxoris mee et antecessorum et successorum meorum ecclesiam sancti Foylani de majore Sowrby cum omnibus pertinentiis suis in puram et perpetuam elemosinam possidendam ita libere quiete plenarie et honorifice sicut aliquam ecclesiam in toto regno Scotie ex dono alicujus liberius quietius plenius et honorificentius tenent et possident . Testibus .

Super ecclesia majoris Soureby et terra adjacente ad eandem .

- 76 **D**omino suo Rollando filio Owfredi constabulario regis Scotorum et omnibus heredibus suis et cunctis fidelibus suis Ivo de Veteri ponte salutem . Sciatis me dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus ecclesiam sancti Foylani in majore Sowrby cum terra adjacente et omnibus alijs pertinentiis suis in perpetuam elemosinam ita libere et quiete sicut aliqua elemosina potest liberius et quietius concedi et teneri pro salute anime mee et antecessorum meorum et successorum . Testibus etc .

Donacio et confirmacio super majore Sowreby .

- 77 **O**mnibus sancte etc . Rollandus confrater [*constabularius*] regis Scotorum salutem . Sciatis me dedisse et presenti carta mea confirmasse Deo et ecclesie

sanctæ Marie de Driburgh et canonicis ibidem Deo fervientibus ecclesiam sancti Foyliani in majore Sowrby cum terra adjacente et omnibus alijs pertinentijs in puram et perpetuam elemosinam pro anima patris mei et matris mee et antecessorum et successorum meorum ita libere et quiete sicut carta Ivonis de Veteri ponte donatoris ipsius ecclesie testatur et confirmat . salvo jure W . de Wallonijs persone ejusdem ecclesie . Testibus etc .

Confirmatio episcopi Witternie super ecclesia de majore Sowrby in proprios usus concessa .

- 78 Johannes Dei gracia Witternensis episcopus omnibus sancte etc. eternam in Domino salutem . Noverit universitas vestra nos concessisse et hac nostra carta confirmasse Deo et ecclesie sanctæ Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et perpetuam elemosinam ecclesiam sancti Foyliani de majore Sowrby cum omnibus pertinentijs suis tenendam perpetuo libere quiete plenarie et honorifice . Concessimus et ipsis canonicis pietatis intuitu necessitatibus eorum compatiētes ut perpetuo a decessu Johannis capellani cui eandem ecclesiam in vicaria tenendam concesserunt liceat eis libere de proventibus ipsius ecclesie ad utilitatem suam et ecclesie sue sicut sibi melius viderint expedire disponere et eosdem proventus in usus proprios convertere et possidere . salvis episcopalibus nobis et successoribus nostris . Volumus itaque et auctoritate episcopali confirmamus ut predicti canonici de Driburgh perpetuo teneant et possideant supradictam ecclesiam cum omnibus ad eandem pertinentibus ita libere et quiete plenarie et honorifice sicut aliqui viri religiosi aliquid beneficium ecclesiasticum in regno Scotie liberius quietius et plenius tenent et possident salvis episcopalibus . Testibus etc .

Item confirmacio alia super ecclesia de majore Sowreby .

- 79 **J**ohannes Dei gracia Witternenfis episcopus tam presentibus etc. salutem .
 Notum sit vobis nos concessisse et auctoritate episcopali confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus donationem ecclesie sancti Foylani majoris Sowrby cum omnibus appendicijs suis quam Ivo de Vetere ponte illis in perpetuam elemosinam dedit et concessit . salvo jure episcopali . Testibus etc .

Confirmacio super ecclesia de majore Sowreby in proprios usus .

- 80 **U**niversis sancte matris etc. Walternus Dei gracia Candide case episcopus eternam in Domino salutem . Noverit universitas vestra nos concessisse dedisse et hac nostra carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam puram et perpetuam elemosinam ecclesiam sancti Foyliani de majore Sowreby cum omnibus pertinentijs suis tenendam perpetuo libere quiete et plenarie et honorifice . Concessimus et ipsis canonicis pietatis intuitu necessitatibus eorum compatientes ut perpetuo a decessu Johannis archidiaconi nostri cui eandem ecclesiam in vita sua de eis tenendam concesserunt liceat eis libere de proventibus ipsius ecclesie ad utilitatem suam sicut sibi melius et commodius expedire viderint absque aliqua contradicione disponere et eisdem proventus in usus proprios convertere et possidere . salvo episcopalibus nobis et successoribus nostris . Volumus itaque et episcopali auctoritate confirmamus ut predicti canonici de Driburgh perpetuo teneant et possideant supradictam ecclesiam cum omnibus ad eandem pertinentibus ita libere quiete plenarie et honorifice sicut aliqui viri religiosi aliquod beneficium ecclesiasticum in episcopatu nostro liberior quicquid et plenius tenent et possident . Testibus etc .

Confirmatio capituli Candide caſe ſuper eccleſia majoris Sowrby .

- 81 **U**niverſis ſanctę matris etc. Malcolmus Dei gracia prior Candide caſe et ejuſdem loci conventus humilis eternam in Domino ſalutem . Ad univerſitatis veſtre noticiam volumus pervenire nos divine pietatis intuitu conceſſiſſe et auctōritate capituli noſtri confirmāſſe abbati et conventui de Driburgh ordinis Premonſtratenſis eccleſiam ſancti Foylani de majore Sowrby cum omnibus ſuis pertinentijs in puram et perpetuam elemoſinam in uſus proprios perpetuo poſſidendam ſicut in carta domini Valteri Vitternie epiſcopi eis collata plenius continetur . Et ut hec noſtra conceſſio et confirmacio robur optineat perpetue firmitatis eam preſentis pagine teſtimonio et ſigilli noſtri munimine duximus roborandam . Teſte toto capitulo noſtro .

Super conſolidatione eccleſiarum majoris Sowrby et minoris .

- 82 **U**niverſis ſanctę matris etc. Gilbertus miſeratione divina Candide caſe epiſcopus eternam in Domino ſalutem . Quum indecens eſt ut domus Domini tanta paupertate vileſcat ut ſibi miniſtrans ydoneus ob hoc non valeat reperiri inde eſt quod abbas et conventus de Driburgh nobis intimarunt ipſorum eccleſias majoris Sowrby et minoris in ſubſtancia adeo fore tenues quod ad unius hominis vite ſuſtentacionem ambe vix ſufficerent . unde ijdem nobis humiliter ſupplicarunt ut ex officij noſtri poteſtate eaſdem unire et conſolidare curaremus noſque hoc fieri poſſe et debere ad honorem Dei et eccleſie honeſtatem attendentes eorundem petitionem admiffimus et eaſdem conſolidamus idque factum noſtrum auctōritate pontificali confirmamus ut eccleſia beati Michaelis minoris Sowrby loci utriuſque matrix

remaneat ita tamen quod eadem ecclesia sic unita quoad episcopalia synodalia et archidiaconalia et cetera contingentia in tanta quantitate respondeat in quanta eadem in duas prius divisa respondere consuevit . Ut autem hec nostra concessio et consolidatio perpetue firmitatis robur optineant prefens scriptum sigilli nostri appositione duximus roborandum . Testibus etc .

Confirmatio capituli Candide case super predicta consolidatione .

- 83 **U**niversis sancte matris etc. Gregorius permissione divina prior Candide case et ejusdem loci conventus eternam in Domino salutem . Universitati vestre significamus nos unanimi consensu et assensu capituli nostri ratam et gratam habere consolidationem et ordinationem quam venerabilis pater noster Gilbertus miseratione divina Candide case episcopus ad honorem Dei et ecclesie honestatem dilectis nobis in Christo abbati et canonicis de Driburgh super ecclesijs eorum majoris Sowrby et minoris caritative fecit prout in instrumento jam dicti venerabilis patris nostri super hoc confecto et prefatis canonicis de Driburgh collato plenius continetur . In cujus rei testimonium prefens scriptum perpetuis temporibus observandum sigillo capituli nostri duximus muniendum . Teste eodem capitulo nostro .

Sentencia iudicium super portione quam abbas et conventus de Kylwynnyne recipiunt in parrochia de Lawder et conventio inter dictos abbatem et conventum et nos super decimis in parrochia predicta existentibus .

- 84 **O**mnibus Christi fidelibus etc. Laurentius archidiaconus sancti Andree Ricardus de May et [] de Dunfermlyne priores salutem in Domino . Mandatum domini Pape in hec verba suscepimus . Honorius episcopus servus fervorum Dei dilectis filiis archidiacono sancti Andree et de May et de Dunfermlyne prioribus sancti Andree diocesis salutem et apostolicam benedictionem . Querelam dilectorum filiorum abbatis et conventus de Driburgh Premonstratensis ordinis recepimus continentem quod abbas et conventus de Kilwenyne et quidam alij Glasguensis et sancti Andree diocesis super ecclesia de Lauder ad eos de jure spectante ac rebus alijs injuriantur eisdem . ideoque discretionis vestre per apostolica scripta mandamus quatenus partibus convocatis audiatis causam et appellatione remota sine debito terminetis facientes quod decreveritis per censuram ecclesiasticam firmiter observari . Testes autem qui fuerint nominati si se gracia odio vel timore subtraxerint per censuram eandem cessante appellatione cogatis veritati testimonium perhibere . quod si non omnes hijs exequendis potueritis interesse duo vestrum ea nichilominus exequantur . Datum Lateran. vij idus Julij pontificatus nostri anno quinto . Hujus igitur auctoritate mandati partibus convocatis et in presencia nostra constitutis cum diu coram nobis causa inter abbatem et conventum de Driburgh ex parte una et abbatem et conventum de Kilwynnyne ex altera super ecclesia de Lauder esset ventilata tandem dicte partes amicorum communium et prudentium virorum consilio Deo volente sub hac forma amicabilem composuerunt . scilicet quod prefate partes de consensu et assensu domini Alani filij Rollandi Scotie constabularij libere debent percipere et quiete cum omni juris sui integritate perpetuo

possidendam et mediante bonorum virorum consideratione dimidiare in omnibus illam portionem quam magister Andreas de Moravia in eadem ecclesia tenuit tempore litis mote inter partes scilicet omnes decimas de Treburne de Pilmour de terra Valteri Hostiarij de terra Martini scilicet Withlaw et de Langelt et de terra Huttredi de Langelt et de terra Ailinfepeth et de terra Samfonis scilicet Todlaw et de Aldenistoun et de Welpelaw et de Iliftoun et de Burnecastell et si quid de novo infra istarum villarum fines emergat falvis ecclesie de Lander obventionibus tantum . Ad hujus autem rei stabilitatem et pacem inter predictas partes perpetuam utraque pars in verbo Domini fide media auctoritate nostra interveniente fideliter fecit dictam amicabilem compositionem servaturam et nullo tempore contraveniaturam promisit nostrorum insuper signorum testimonia ad majorem fidei cautelam signis partium simul appositis duximus apponenda . Acta sunt hec anno gracie millesimo ducentesimo vigesimo secundo apud Eryne . Hujus compositionis testes sunt dominus Thomas comes Atholie . dominus Fergustianus de Glenkarn . dominus Rogerus de Craufurd et alij .

Super portione abbati et conventui de Kylwynnyne et nobis in parochia de Lawder concessa .

- 85 **O**mnibus has literas etc. Alamus filius Rollandi Scotie constabularij salutem . Noveritis nos concessisse dedisse et hac presenti carta nostra confirmasse abbatibus et conventibus de Kilwynnyn et de Driburgh totam illam portionem quam magister Andreas de Moravia tenuit in parochia ecclesie de Lander scilicet decimas de Treburne de Pilmor de terra Valteri Hostiarij de terra Martini scilicet Withlaw et de Langelt et de terra Huttredi de Langelt et Hailfepeth et de terra Samfonis scilicet Todlaw et de Aldenistoun et de Welpelaw et de Lyolfstoun et de Burnecastall et si quid de novo infra fines istarum villarum emergat libere quiete et plenarie et honorifice a nobis

et heredibus nostris pro bono pacis perpetuo possidendam . Volumus autem ut ille qui pro tempore in ecclesia dicta persona fuerit nullam eis super eadem portione inferat molestiam vel gravamen . Et ut hec nostra donatio et concessio robur optineat firmitatis eam presenti scripto et sigilli nostri munimine roboramus . Testibus etc .

Confirmatio episcopi super conventionem inter nos et Kilwynnyn super ecclesia de Lawder .

86 **W**illelmus Dei gracia episcopus sancti Andree omnibus Christi etc. eternam in Domino salutem . Ad universitatis vestre noticiam volumus pervenire nos amicabilem compositionem inter dilectos filios abbates et conventus de Driburgh et de Kylwynnyn et dominum Alanum filium Rolandi constabularij Scotie coram viris venerabilibus archidiacono sancti Andree et de May et de Dunfermlyn prioribus iudicibus a domino Papa delegatis sicut canonice facta est super jure advocacionis [ecclesie] de Lauder et de decimis quibusdam ad eandem ecclesiam pertinentibus ratam habuisse et eandem prout in attentico predictorum iudicum delegatorum continetur quo ad nos spectat auctoritate pontificali confirmasse . Ad ejus rei majorem securitatem presenti scripto sigillum nostrum duximus apponendum . Testibus etc .

Confirmacio capituli sancti Andree super eadem .

87 **O**mnibus Christi etc. Symon Dei gracia prior ecclesie sancti Andree apostoli in Scotia et ejusdem loci conventus humilis eternam in Domino salutem . Ad universitatis vestre noticiam volumus pervenire nos amicabilem compositionem inter carissimos fratres et amicos nostros abbates et conventus de

Driburgh et de Kilewynnyn et nobilem virum dominum Alanum filium Rollandi constabularij Scotie coram viris venerabilibus archidiacono sancti Andree et de May et de Dunfermlyn prioribus judicibus a domino Papa delegatis sicut canonice facta est super jure patronatus ecclesie de Lawder et decimis quibusdam ad eandem ecclesiam pertinentibus ratam habuisse et eandem prout in attentico predictorum judicum delegatorum continetur quo ad nos spectat confirmasse et ad majorem hujus rei securitatem presenti scripto sigillum nostrum duximus apponendum . Teste toto nostro capitulo .

Confirmacio episcopi super medietate portionis quam habuimus in parochia de Lawder .

88 **W**illelmus miseratione divina ecclesie sancti Andree humilis [minister] omnibus sancte matris etc. eternam in Domino salutem . Ad universitatis vestre noticiam volumus pervenire nos intuitu divine pietatis concessisse et episcopali auctoritate confirmasse dilectis filiis abbati et conventui de Driburgh totam medietatem portionis quam dominus Andreas de Moravia tenuit in parochia ecclesie de Lauder in perpetuum pacifice possidendam salva tenura Symonis de Nufiaco in tota vita sua qui eam ad presens de dono dictorum canonicorum tenet . Eo autem cedente vel discedente dicte medietatem portionis prefatis canonicis concedimus et confirmamus in usus proprios libere et sine contradictione cum omni juris sui integritate perpetuis temporibus plenarie convertendam et sibi habendam sicut in attentico continetur judicum delegatorum instrumento quod penes se habent scilicet medietatem omnimodarum decimarum de Treburne de Pilmor de terra Valteri Hostiarij de terra Martini scilicet Withilaw et de Langelt et de terra Hutredi de Langelt et de Ailinisfeth et de terra Samsonis scilicet Todlaw et de Aldinfoun et de Welplaw et Lyalfoun et de Burneastell et si quid de novo infra istarum villarum fines emergat falvis ecclesie de Lauder ceteris obvencion-

ibus tantum . Volumus autem ut ille qui pro tempore in dicta ecclesia de Lawder persona fuerit nullam omnino eisdem canonicis super portione ipsos contingente in aliquo molestiam inferat vel gravamen . Ut autem hec nostra confirmatio perpetuum robur optineat firmitatis eam presentis pagine testimonio et sigilli nostri appositione duximus roborandam . Testibus etc .

Confirmatio capituli sancti Andree super predicta medietate portionis de Lawder .

- 89 **O**mnibus sancte matris etc. Henricus prior ecclesie sancti Andree in Scotia et ejusdem loci conventus eternam in Domino salutem . Ad universitatis vestre noticiam volumus pervenire nos pleno assensu capituli nostri ratam et gratam habere confirmationem quam venerabilis pater dominus Villelmus episcopus sancti Andree pia liberalitate fecit abbati et conventui de Dryburgh super portione sua in parochia ecclesie de Lauder prout in scripto ejusdem exinde confecto plenius continetur . Unde concedimus et auctoritate capituli nostri confirmamus ut prefatus abbas et conventus totam portionem suam cum vacaverit in usus proprios sine contradictione aliqua libere et quiete cum omni juris sui integritate perpetuis temporibus habeant et possideant sicut aliquam elemosinam sibi collatam liberius et quietius tenent et possident . Ut autem hec nostra concessio et confirmacio robur optineat firmitatis eam presentis pagine testimonio et sigilli nostri appositione duximus roborare . Teste capitulo nostro .

Super duabus marcis et dimidia pro ecclesia de Bofieih solvendis .

- 90 **H**ec est conventionis veritas inter canonicos ecclesie sancte Marie de Driburgh et canonicos ecclesie sancti Jacobi de Norththamton . quod ipsi canonici de Driburgh concedunt predictis canonicis de Norththamton ecclesiam de Bofgitta cum omnibus pertinentijs ad tenendam de eis in perpetuum Reddendo annuatim in vita Adelardi post decessum Algari patris sui viginti solidos et unum bitancium vel duos solidos pro bitancio . post decessum vero ipsius Adelardi ipsi canonici de Norththamtoun recipient ipsam ecclesiam de Bofgitta in manu sua liberam et quietam et reddent prenominatis monachis de Driburgh duas marcas et dimidiam annuatim in perpetuum et hoc post natale Domini quando nuncium suum miserint ad abbatiam sancti Jacobi . etc .

Conventio inter nos et conventum sancti Andree de Norththamtoun super terra de Newbygyn in villa de Lawder .

- 91 **S**ciant presentes et futuri quod hec est convencio facta inter abbatem et conventum de Driburgh ex una parte et priorem et conventum sancti Andree de Norththamtoun ex altera . scilicet quod predicti prior et conventus sancti Andree concesserunt et dimiserunt prefatis abbati et conventui de Driburgh totam terram suam cum omnibus pertinentijs suis quam habent de dono domine Helene de Morvilla in villa de Lawder tenendam et habendam in perpetuum libere quiete plenarie et honorifice per omnia sicut in carta ejusdem Helene dictis priori et monachis collata continetur . Reddendo inde annuatim dictis priori et monachis duas marcas argenti ad festum purificationis beate Virginis de domo sancti Jacobi juxta Norththamtoun scilicet de duabus marcis et dimidia quas abbas et conventus ejusdem domus abbati

et conventui de Driburgh pro ecclesia de Bosgetta annuatim solvere solebant . Et sciendum quod predicti abbas et conventus de Driburgh afflignaverunt prenominationis priori et monachis dictas duas marcas argenti et dimidiam annuatim percipiendas de prefatis abbate et conventu sancti Jacobi ad festum purificationis beate Virginis . ita videlicet quod prior et conventus de Norththantoun duas marcas ad opus suum proprium pro predicta terra retinebunt et pro predictis abbate et conventu de Driburgh quinque solidos abbati et canonicis de Laycester annuatim per proprium nuncium ad predictum terminum perfolvent et residuos viginti denarios prefatis abbati et conventui de Driburgh per certum eorundem abbatis et conventus nuncium mittendos reservabunt . si vero contingat quod predictus abbas et conventus de Driburgh prefatam terram cum pertinentijs et assiamenis pro defectu defencionis predictorum prioris et conventus aliquo tempore amittant liberum erit eis predictas duas marcas et dimidiam de domo sancti Jacobi sine impedimento et contradictione prioris et conventus sancti Andree exigere et recipere sicut antiquitus solebant dum cum nec dolus nec necligentia eorum in aliquo possit deprehendi . et si contingat quod predicti abbas et conventus sancti Jacobi a solutione predictarum duarum marcarum et dimidie cessaverint licitum erit predictis priori et conventui de Norththamtoun totam terram eorum predictam de Lauderdale sine contradictione et impedimento abbatis et conventus de Driburgh referire et in pace possidere sicut ante predictam conventionem quietius possidebant dum cum nec dolus nec necligentia eorum in aliquo possit deprehendi . Ut autem hec conventio rata et stabilis inperpetuum permaneat utraque pars sigillum capituli sui presenti scripto apposuit . Testibus etc .

Confirmatio super ecclesia de Bofith et molendino de Naythanthern et super decimis molendini de Newtoun et super terra in Rokysburgh .

- 92 **R**icardus de Morevilla omnibus amicis et probis hominibus suis salutem .
 Sciant tam presentes quam futuri me concessisse et hac mea carta confirmasse
 Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus
 donationem matris mee de ecclesia de Bofyete et molendinum de
 Nathanthern et terram suam de Rogesburgh quam emit a Rogero janitore
 et donationem Ade sororis mee scilicet decimam molendini de Newtoun
 in perpetuam elemosinam ita libere et quiete sicut aliqua elemosina liberius
 et quietius potest concedi et teneri pro salute anime mee et animabus
 antecessorum et successorum meorum . Testibus etc .

Super ecclesia de Bofyete .

- 93 **D**omino suo David regi Scotie et omnibus heredibus suis et Ricardo de
 Morevilla filio suo et omnibus heredibus suis et eunctis fidelibus B . de Bello
 campo salutem . Sciant me dedisse et concessisse Deo et ecclesie sancte Marie
 de Driburgh et canonicis ibidem Deo fervientibus ecclesiam de Bofyete mee
 libere dotis cum omnibus pertinentiis suis in perpetuam elemosinam ita
 libere et quiete sicut aliqua elemosina potest liberius et quietius concedi et
 teneri pro amore Dei et in remissionem peccatorum meorum . Testibus .

Alexander de sancto Martino super prima donatione de Langillawe .

- 94 **N**overint universi sancte matris ecclesie fideles etc. quod ego Alexander de
 sancto Martino dedi et presentis scripti pagina munivi Deo et sancte Marie

de Driburgh et canonicis ibidem Deo fervientibus Langelaw per eandem divisas per quas ego eandem terram tenui de Ada comitissa domina mea una nocte vel una die tenendam de me et heredibus meis in perpetuam elemosinam libere et quiete et honorifice eadem libertate qua aliqua elemosina liberius et quietius tenetur in regno . Hanc itaque terram dedi predicto
 pro anima Malcolmi de Morevilla in reconciliationem et pacem Ricardi de Morevilla constabularij et totius propaginis predicti Malcolmi et mei et totius propaginis et Adulphi fratris mei qui quodam infortunio Malcolmum de Morevilla peremit in venatu . Testibus etc .

Confirmatio Ade comitisse super Langelaw .

95 Ada comitissa mater regis Scotie omnibus sancte matris etc. salutem .
 Noverint presentes et futuri me concessisse et hac mea carta confirmasse Deo et sancte Marie et canonicis de Driburgh pro anima Malcolmi de Morevilla scilicet Langelaw per suas rectas divisas . Volo itaque quod memorati canonici predictam Langelaw teneant et possideant in perpetuum ita libere quiete et honorifice sicut carta ipsius Alexandri eidem testatur et sua carta confirmat . Testibus etc .

Confirmacio regis Willelmi super Langelaw .

96 Willelmus rex Scotie abbatibus comitibus baronibus justiciarijs vice-comitibus et omnibus probis hominibus totius terre sue salutem . Sciant presentes et futuri me concessisse et hac mea carta confirmasse Deo et sancte Marie et canonicis de Driburgh donacionem quam Alexander de sancto Martino fecit eis pro anima Malcolmi de Morevilla scilicet Langelaw per suas rectas divisas . Volo itaque et firmiter precipio ut prefati canonici

prenominatam Langelaw cum omnibus iustis pertinentijs suis teneant et possideant in liberam et perpetuam elemosinam ita libere quiete et honorifice sicut aliquas alias elemosinas suas liberior et quietius tenent in regno meo et sicut carta Alexandri de sancto Martino et carta Ade comitis matris mee testantur et confirmant . Confirmo et eis hac carta mea unum toftum in villa de Abirleuedi quod Ricardus episcopus Dunkeldensis eis in liberam elemosinam et perpetuam dedit . Quare volo et precipio ut prenomiuatum toftum ita libere et quiete teneant sicut carta Ricardi episcopi Dunkeldensis testatur et confirmat . Testibus etc .

Confirmacio super Langelaw .

- 97 **R**icardus de Morevilla constabularius domini regis Scotie omnibus amicis et parentibus suis presentibus et posteris et omnibus fidelibus sancte ecclesie filijs salutem . Sciant omnes me et heredes meos assensu et consilio totius progeniei nostre concessisse et hac carta confirmasse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam puram et perpetuam elemosinam pro anima Malcolmi fratris mei et animabus omnium parentum meorum totam terram de Langelaw per rectas divisas suas cum communibus pascuis quam terram Alexander de sancto Martino eisdem canonicis meis voluntate et consilio meo et parentele mee dedit in pacatione et reconuiliatione pro anima ejusdem Malcolmi fratris mei ita libere et quiete et plenarie eis possidendam sicut aliqua elemosina liberior et plenius potest concedi vel teneri . etc .

Super duabus marcis ecclesie sancti Andree pro omnibus decimis de Langelaw solvendis et super quibusdam decimis piscationum de Kilrethny et de sancto Andrea hinc inde non dandis .

- 98 Sciunt tam presentes quam futuri quod talis conventio et amicabile compositio facta est inter canonicos sancti Andree in Scotia ex una parte et canonicos de Driburgh ex altera super quibusdam decimis bladi et pisciarum scilicet quod communi consensu utriusque conventus quamdiu dicti canonici de Driburgh terram suam de Langelaw proprijs sumptibus colunt libere quiete et sine omni exactione ecclesie de Hadyngtoun et alia qualibet perturbacione retinebunt sibi et possidebunt omnes decimas dicte terre juxta tenorem privilegiorum suorum Reddendo pro bono pacis prefatis canonicis de sancto Andrea duas marcas argenti annuatim ad festum sancti Michaelis . quod si contingat eandem terram alijs dari vel ad firmam dimitti ecclesia de Hadyngtoun omnes decimas dicte terre plene et absque ulla contradicione percipiet . Preterea ita inter eos convenit quod piscatores de parochia ecclesie de Kilrethny in portu de sancto Andrea applicantes vel ibidem piscantes nullas omnino decimas vel jura ecclesiastica ecclesie de sancto Andrea perfolvent sed matriei eorum ecclesie de Kilrethny reservabunt reddenda . similiter vero piscatores de sancto Andrea in parochia de Kilrethny applicantes vel ibidem piscantes nullas omnino decimas vel jura ecclesiastica ecclesie de Kilrethny perfolvent sed matriei eorum ecclesie de sancto Andrea reservabunt reddenda . Ad hujus autem rei stabilitatem et pacem inter predictas domus perpetuam utraque pars dictam conventionem et amicabilem compositionem presenti scripto et sigillorum suorum munimine roboraverunt . Acta sunt hec anno gratie mº ccº xxii . Testibus utriusque domus capitulis .

Resignatio abbatis et conventus Leyceffrie fuper uno redditu x solidorum quos sibi vendicabant pro quadam terra in Langelaw et quod amplius quam quinque solidos non recipiant pro dicta terra .

99 **N**overint tam posteri quam presentes quod facta fuit hec conventio anno quarto post primam coronationem Ricardi regis Anglie in cathedra sancti Petri apostoli in capitulo generali ordinis Premonstratensis apud Newhus celebrato coram Willelmo abbate de Lefkijs et Roberto abbate de Newhus et universis alijs abbatibus fere totius Anglie ejusdem ordinis inter conventum et abbatem de Laycefter et abbatem et conventum de Driburgh fuper loquela que vertebatur inter ipsos de redditu decem solidorum quos abbas de Laycefter clamavit adversus abbatem de Driburgh ex dono Ricardi de Morevilla pro dimidia carucata terre in Langelaw quam canonici de Driburgh tenent . videlicet quod predicti abbas et conventus de Laycefter quietam clamaverunt terram illam prefatis abbati et conventui de Driburgh pro redditu quinque solidorum quos eis assignaverunt de redditu suo apud Northhamtoun quos canonici de sancto Jacobo de Northhamtoun canonicis de Laycefter annuatim ad purificationem beate Marie inperpetuum perfolverent de redditu . xxii . solidorum quos canonici de Driburgh pro ecclesia de Bofiete perfolvere tenentur . Ita quidem quod canonici de Laycefter nihil amplius quam quinque solidos a canonicis de Driburgh de cetero nunquam poterint exigere . Ut igitur hec conventio inperpetuum perseveret firma et inconcussa utriusque conventus scilicet de Laycefter et de Driburgh et abbatum de Lefkijs et de Newhus sigillorum appositione corroboratur . Testibus etc .

- 100 **R**esignatio magistri et prioris de Sowtheberwic super ecclesia de Golyn .
Prenotatur .

[*Supra ad numerum xxxv.*]

- 101 **C**onfirmacio Penitenciarij super resignatione dicte ecclesie . et prenotatur .
[*Supra ad numerum xxxvi.*]

- 102 **S**uper capellano inveniundo in capella de Congiltoun et de sustentatione
sua . et prenotatur .

[*Supra ad numerum xlii.*]

- 103 **C**onventio inter nos rectorem et moniales de Sowthberwic super ecclesia de
Golyn . Preferibitur .

[*Supra ad numerum xxxvii.*]

Super viginti acris terre et dimidia territorij de Elbotyll et Stodfald et alijs
libertatibus .

- 104 **W**illelmus de Wallibus omnibus sancte matris etc. salutem . Sciant
presentes et futuri me dedisse et concessisse et hac mea carta confirmasse
Deo et beate Marie et sancto Michaeli et canonicis de Driburgh ser-
vientibus vel servituris in insula mea de Elbotyll quam eis dedi et
confirmavi viginti aeras terre et dimidiam in territorio de Elbotyll sicut
perambulata fuit coram probis hominibus scilicet que jacent in parte orientis
et aquilonis proxime veteri castello similiter et ipsum vetus castellum totum

eum fossis suis et Stodfaldum et centum pedes terre ex omni parte Stodfaldi infra fossatum et omnes fossas et communem pasturam trecentis ovibus et decem vaccis et duodecim bobus cum omnibus aramentis ville de Elbotyll et Driltoune et spacium cum libero exitu ad ovile suum faciendum

eis placuerit inter vetus castellum et locum qui vocatur Wakelaue et focale in petario de Elbotyll et Driltoune si eis placuerit et coopertorium de bentta vel de alio coopertorio ad domos suas extra infulam et infra

eis placuerit et petram in petrifodina de Golyn ad edificia sua quantum opus habuerint . Concessi et predictis canonicis de Driburgh in predicta insula Deo fervientibus terram Reginaldi Tayllur cum tofto et crofto suo in villa de Driltoun in puram et perpetuam elemosinam ita quod idem Reginaldus et [heredes] ejus liberi et quieti ab omni seculari exactione eandem terram de predictis canonicis tenebunt Reddendo eis inde annuatim unam petram cere ad Pentecosten . Concessi et hae mea carta confirmavi sepedictis canonicis de Driburgh in predicta insula Deo fervientibus hanc libertatem ut utrique [*ubique*] in molendinis meis sint liberi a multura et ut proxime molatur [*molant*] post eum quem molentem invenerint . Has autem donationes et has libertates concessi eis in puram et perpetuam elemosinam ita libere et quiete et honorifice sicut aliquae elemosine liberius et quietius et honorificentius in regno Scotie ab aliquibus viris religiosi possidentur pro salute domini mei Willelmi regis et pro salute anime mee et uxoris mee et pro salute animarum patris mei et matris mee et heredum meorum et successorum et antecessorum meorum . Maledictionem autem Dei et sancte Marie et sancti Michaelis et meam heredibus meis et successoribus meis relinquo qui has donationes meas et has libertates in irritum ducere temptaverint vel impugnare presumpserint . Testibus etc .

Confirmatio super terra de Stodfald et pastura et alijs libertatibus .

105 **O**mnibus sancte matris etc. Johannes de Wallibus salutem . Sciant presentes et futuri me concessisse et hac mea carta confirmasse Deo et sancte Marie et sancto Michaeli et canonicis de Driburgh fervientibus vel fervituris in insula de Elbotyll ipsam insulam quam pater meus eis dedit . Preterea concessi eis et confirmavi viginti acras terre et dimidiam in territorio de Elbotyll sicut perambulata fuit coram probis hominibus scilicet que jacent in parte orientis et aquilonis proxime veteri castello similiter et ipsum vetus castellum totum cum fossis suis et Stodfald et centum pedes terre ex omni parte Stodfald infra fossatum et omnes fossas et communem pasturam trecentis ovibus et decem vaccis et duodecim bobus cum omnibus ayfiamentis ville de Elbotyll et Driltoune et spacium cum libero exitu ad ovile suum faciendum eis placuerit inter vetus castellum et locum qui vocatur Wakelaue et focale in petario de Elbotyll et de Driltoune si eis placuerit et coopertorium de beneta vel de alio coopertorio ad domos suas extra insulam et infra ubi eis placuerit et petram in petrifodina de Godyn ad edificia sua quantum opus habuerint . Concessi et confirmavi predictis canonicis de Driburgh in predicta insula Deo fervientibus terram Reginaldi Tallur cum tofto et crofto suo in villa de Driltoune in puram et perpetuam elemosinam ita quod idem Reginaldus et heredes ejus liberi et quieti ab omni seculari exactione eandem terram de dictis canonicis de Driburgh tenebunt Reddendo eis annuatim unam petram cere ad Pentecosten . Concessi autem et hac mea carta confirmavi sepe dictis canonicis de Driburgh in predicta insula Deo fervientibus hanc libertatem ut ubicunque in molendinis meis sint liberi a multura et ut proxime molant post eum quem molentem invenerint . Hec autem omnia prenominata concessi prenomnatis canonicis de Driburgh et hac carta mea confirmavi in puram et perpetuam elemosinam ita libere et quiete et honorifice sicut

alique elemosine liberius quietius et honorificentius in toto regno Scotie ab aliquibus viris religiosis possidentur pro salute domini mei Alexandri regis Scotie et pro salute animarum patris et matris mee et heredum meorum et antecessorum et successorum meorum . Maledictionem Dei et sancte Marie et sancti Michaelis et meam heredibus meis et successoribus meis relinquo qui has meas concessiones et confirmationes meas omnium prenominatorum quorum [*que*] dominus pater meus dedit prenominationis canonicis de Driburgh in irritum ducere temptaverint vel impugnare presumpserint . Testibus .

Super Stanyaere et duabus acris terre in territorio de Elbotyll .

- 106 **O**mnibus sancte matris etc. Robertus de Wallibus eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu dedisse et concessisse et presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus terram illam que vocatur Stanyaere in territorio de Elbotyll proximam veteri castello ab occidente et duas acras plenarias propinquiores eidem Stanyaere ex parte occidentali in liberam puram et perpetuam elemosinam pro salute anime mee et uxoris mee et prioris uxoris mee et omnium antecessorum meorum et successorum meorum Tenendas de me et heredibus meis inperpetuum ita libere quiete plenarie et honorifice sine omni servieio et seculari exactione sicut alique elemosine in regno Scotie liberius quietius plenius et honorificentius ab aliquibus viris religiosis tenentur et possidentur . Et sciendum est quod ego et heredes mei totam predictam terram predictis canonicis contra omnes homines warantizabimus . Ut autem hec mea libera donatio inperpetuum rata permaneat et inconeussa presenti scripto sigillum meum apposui . Testibus etc .

Confirmatio heredis super terra que vocatur Staniaere et duabus alijs acris terre in territorio de Elbotyll .

- 107 **Omnibus** sancte matris etc. Johannes de Wallibus filius Roberti de Wallibus eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus donationem illam quam pater meus prefate domui et canonicis predictis in puram et perpetuam elemosinam fecit super terra illa que vocatur Staniaere in territorio de Elbotyll proxima veteri castello ab occidente et super duabus acris propinquioribus eidem Staniaere ex parte occidentali pro salute anime mee et uxoris mee et pro animabus patris mei et matris mee et omnium antecessorum meorum et successorum meorum Tenendis de me et heredibus meis in perpetuum ita libere et quiete plenarie et honorifice sine omni servicio et seculari exactione sicut aliqua elemosina in regno Scocie liberius quietius plenius et honorificentius ab aliquibus viris religiosis tenetur et possidetur . Et sciendum est quod ego et heredes mei totam terram predictam predictis canonicis contra omnes homines et dotes mulierum in perpetuum varantizabimus . Ut autem hec nostra libera donatio in perpetuum rata permaneat et inconcussa presenti scripto sigillum meum apposui . Testibus .

Sententia iudicum de decima batelli canonicorum non danda de Stodfald .

- 108 **Omnibus** sancte matris etc. magister Laurentius archidiaconus sancti Andree magister Alexander de sancto Martino Radulphus decanus Loudonie salutem . Sicut boni iudicis est lites semper odiosas dirimere ita ad ejus spectat diligentiam cum semel fuerint decise ne iterum valeant recidiva

questione fuscitari providere . Eapropter volumus ad omnium notitiam pervenire quod coram nobis non ex delegatione aliqua sed ordinaria jurisdictione inter abbatem et conventum de Driburgh ex parte una et priorissam et moniales de Suthberwick ex altera super quasi spoliatione immunitatis prestationis decime de quodam batello canonicorum in insula de Elbotyll in capitulo Loudonie questio verteretur partibus in jure presentibus et lite solemniter contestata testibus inducitis et eorum depositionibus in scripta redactis demum post renunciationem publicatis partibus diem statuimus disputationis quibus diligenter auditis et plene intellectis evidenter perpendimus ac dilucide spoliationem quam intentabant canonici probatam plene necnon et moniales que dicebant se jure suo usas decimas capiendi in sue assertionis probatione penitus defecisse . Nos vero post disputationes et rationes partium intellectas communicato prudentium virorum capituli Loudonie consilio diffinitive pronuntiavimus canonicos esse restituendos immunitati prestationis decime predicti batelli salva monialibus questione super proprietate salva etiam predictis canonicis questione super dampnis et expensis ab eis occasione dicte litis factis . Ut autem hec nostra sententia robur perpetue firmitatis optineat sigillorum nostrorum appositione prefens scriptum roboravimus .

Super grangiam de Caddyfleya et pasonis [*pasnagium*] infra forestam .

- 109 David rex Scotie abbatibus comitibus baronibus justiciarijs vicecomitibus ministris episcopis et omnibus probis hominibus totius regni sui salutem . Sciatis me dedisse et concessisse ecclesie sancte Marie de Driburgh landam illam que vocatur Caddyfleya cum pasonis [*pasnagio*] infra forestam meam circumquaque pro salute anime mee et filij mei Henrici et animabus antecessorum et successorum meorum in perpetuam elemosinam liberam et quietam . Quare volo et precipio quod prefata ecclesia et canonici ibidem

Deo famulantes teneant eam libere et quiete fient aliqua ecclesia totius regni mei aliquam elemosinam liberius et quietius tenet et habet . Testibus .

Carta Willelmi de Lyndefay super farto Alwini juxta Caddefleya .

- 110 **W**illelmus de Lyndefay dominis suis et vicecomitibus Francis et Anglicis clericis et layeis universis denique tam futuris quam presentibus in Domino salutem . Sciant me concessisse et dedisse ecclesie sancte Marie de Driburgh et fratribus ibidem Deo fervientibus fartum Alwini ex illa parte aque versus Cadefley et a capite ejusdem farti usque ad vetus quoddam opidi signum et sic per viam que ducit Windesfordes pro anima mea et animabus antecessorum meorum in perpetuam elemosinam . Testibus etc .

Super farto Alwini et alia terra juxta Caddefleya .

- 111 **V**alterus de Lyndefaye dominis suis et vicecomitibus Francis et Anglicis clericis et layicis universis denique tam futuris quam presentibus in Domino salutem . Sciant me concessisse et dedisse ecclesie sancte Marie de Driburgh et fratribus ibidem Deo fervientibus fartum Alwini ex illa parte aque versus Caddefleya et a capite ejusdem farti usque ad vetus quoddam opidi signum et sic per viam que ducit Wyndesfordes pro anima mea et animabus antecessorum et successorum meorum in perpetuam elemosinam . Testibus etc .

Super landa que dicitur Herdesley apud Caddesley .

- 112 **V**alternus filius Alani dapifer regis Scotie omnibus sancte matris etc. salutem . Sciant me dedisse et concessisse et hac mea carta confirmasse Deo et sancte Marie et canonicis de Driburgh ibidem Deo fervientibus landam illam que dicitur Herdesley apud grangiam que vocatur Caddesley salva via que ducit ad nemus in liberam et perpetuam elemosinam . Testibus .

Mete affiguate inter nos et Miroscenses de Caddesley et Cumbesley .

- 113 **I**n nomine sancte Trinitatis hec est conventio inter monachos de Mylros et canonicos de Driburgh . Constitutum est ut ubicunque monachi Melrosenses habuerint potestatem aut communiam in pascuis vel terris canonici de Driburgh sine illorum consensu ibi nihil accipiant vel adquirant . quam caritatem monachi Melrosenses erga eosdem canonicos reservabunt . Hee insuper mete inter utroque constitute sunt ut ex occidentali parte Twede et Ledre canonici de Driburgh infra metas inter utrumque ordinem constitutas nichil omnino sive in terris sive in pascuis quomodo accipiant . a parte vero orientali eorundem fluminum monachi Melrosenses ergo eos eandem legem conservabunt . porro a parte australi grangie canonicorum eorundem scilicet Caddesley meta erit via illa que est ex australi parte Glouden sicut ipsa via tendit ad Ledre et ex altera parte ad viam que ducit Lauder . monachi de Melros habebunt ex australi parte canonici vero de Driburgh ex aquilonali . a parte itidem occidentali predictae grangie meta erit via illa que ducit ad Lauder usque ad silvam que dividit planitiem que dicitur Cumbesley ab alia quadam planitie que planicies fratribus de Driburgh Cumbesley vero cum silva fratribus cedet de Melros . Porro a parte orientali prefate vie usque ad premissam planiciem habebunt canonici de Driburgh

a parte vero occidentali monachi de Melrofs . Item et a filva illa que dividit premiffas planicies ficut eadem filva tendit verfus metas de Wedell a parte aquilonali habebunt canonici de Driburg et a parte vero auſtrali monachi de Melrofs . Iſta denique conventio metarumque diviſio inter utramque domum ex utriuſque capituli conſenſu et aſſenſu propter pacis caritatiſque cuſtodiam conſtituta eſt preſente et teſtificante domino Herberto Glaſguenſi epifcopo etc .

Super rectis diviſis inter Caddeſley et Ercildona .

- 114 Comes Patricius omnibus Chriſti etc. ſalutem . Noveritis quod ego pro quadam contentione et controverſia que fuit inter me et canonicos de Driburgh de rectis diviſis inter terram meam de Ercildon et grangiam eorum de Caddeſley intuitu pacis et caritatis et pro ſalute anime mee et antecellorum et ſucceſſorum meorum dictos canonicos ſuper dictis diviſis certificavi et eiſdem canonicis rectas diviſas inperpetuum tenendas coram probis hominibus meis perambulavi . ſcilicet incipiendo ab eo loco quo ſicketus qui eſt proximus Redehouch cadit in Leder et ſic aſcendendo verſus occidentem uſque ad quoddam vetus ſoſſatum et ſic per tranſverſum planicie uſque ad quendam acervum lapidum qui vocatur Harlaw et inde deſcendendo uſque in Dueniſden ad Hunterifford . Quare volo et concedo ut dicti canonici totam terram infra has diviſas contentam verſus grangiam ſuam de Caddeſley inperpetuum teneant et poſſideant in boſco et in plano ſine impedimento mei vel heredum meorum adeo libere quiete plenarie et honorifice ſicut aliqua clemofina liberius quietius plenius et honorificentius poſſit dari vel teneri in regno Scotie . Ego autem et heredes mei dictam terram cum dictis diviſis contra omnes homines dictis canonicis warantizabimus . Teſtibus etc .

Confirmacio heredis super rectis divisis inter Cadefley et Ercildoun .

- 115 Patricius filius Patricij comitis de Dunbar universis sancte matris etc. salutem . Noverit universitas vestra quod cum quedam contentio et controversia orta fuisset inter Patricium comitem de Dunbar patrem meum ex parte una et abbatem et conventum de Driburgh ex altera super rectis divisis inter terram de Ercildon et grangiam dicti conventus de Cadefley tandem dictus Patricius pater meus intuitu pacis et caritatis ipsos canonicos de Driburgh super dictis divisis certificavit et eisdem canonicis rectas divisas inperpetuum tenendas coram probis hominibus suis perambulavit scilicet incipiendo ab eo loco quo fictus qui est proximus de Redelhouch cadit in Ledar et sic ascendendo versus occidentem usque ad quoddam vetus fossatum et sic per transversum planicie usque ad quendam acervum lapidum qui vocatur Harlaw et inde descendendo usque in Dunenifden ad Hunterifford . Quam autem perambulationem et dicte terre per prenominate divisas certificationem universitati vestre significo me dictis canonicis de Driburgh concessisse et hac presenti carta mea inperpetuum confirmasse pro salute anime mee et omnium antecessorum et successorum meorum adeo libere quiete plenarie et honorifice sicut aliqua elemosina ab aliquibus viris religiosiis in regno Scotie liberior quietius plenarius et honorificentius tenetur et possidetur per omnia sicut carta dicti patris mei eisdem canonicis super hoc consecuta testatur plenius et proportat . Ego autem et heredes mei totam terram cum dictis divisis contra omnes homines prefatis canonicis warrantizabimus . Testibus .

Carta Patricij de Dunbar super terra que dicitur Elwynesley et duabus bovatis terre in Ercildon et tofto et crofto ac pastura ad centum oves et xii boves et xii porcos et duos equos .

- 116 **C**omes Patricius de Dunbar universis sancte matris etc. salutem . Notum sit presentibus et futuris me dedisse et concessisse in [et] hac carta mea confirmasse Deo et sancte Marie de Driburgh et canonicis ibidem Deo servientibus terram que dicitur Elwynesley et ita sursum sicut haya wadit usque ad Duneden et sicut sursum usque ad Rifebrigge et inde per Malcomes rode usque ad Strikerden et per Strikerden usque ad Ledre . et preterea dedi eis duas bovatas terre in Ercildon cum tofto et crofto qui est juxta viam que ascendit ad crucem ex occidentali parte ville cum communi pastura ad centum oves et duodecim boves et duodecim porcos et duos equos et cum omnibus assiamendis que pertinent ad tantum terre . Hec omnia que predictae sunt dedi eis pro salute anime mee et antecessorum et successorum meorum in perpetuam elemosinam et ita liberam et quietam ab omni seculari exactione et consuetudine sicut aliqua elemosina liberius et quietius tenetur et possidetur . Testibus etc .

Carta Willelmi de Lyndesay super duabus bovatis terre in Ercildon cum tofto et crofto et pastura .

- 117 **W**illelmus de Lyndesay omnibus ecclesie catholice filijs etc. salutem . Noverint tam posteri quam presentes me dedisse et hac carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo servientibus duas bovatas terre in Ercildon cum tofto et crofto qui est juxta viam proximam que ascendit sursum ad crucem ex occidentali parte [ville] et terram que ad eundem toftum pertinet cum communi pastura quantitati

tante terre pertinente et pro salute anime mee et antecessorum et heredum meorum in perpetuum elemosinam ita liberam et quietam ut aliqua elemosina liberius et quietius datur et ab omni seculari exactione et gravamine et consuetudine quietius tenetur . concedente Waltero filio et herede meo . Testibus etc .

Carta Patricij filij comitis super marca de Kirkyndyde novo operi concessa ad festum Pentecostes et sancti Martini annuatim solvenda .

- 118 **P**atricius filius comitis de Dunbar omnibus ballivis suis et fervientibus salutem . Noveritis me divine caritatis intuitu pro salute anime mee et omnium antecessorum et successorum meorum concessisse et hac mea carta confirmasse Deo et beate Marie et novo operi ecclesie de Driburgh unam marcam argenti in perpetuum de firma mea de Kirkyndyde percipiendam . Quare volo et precipio quatinus canonicis in dicta ecclesia Deo fervientibus in perpetuum de dicta marca respondeatis et eis sine perturbatione et contradictione perfolvatis terminis statutis scilicet dimidiam ad Pentecosten et dimidiam ad festum sancti Martini de firma mea de Kirkyndyde . Testibus .

Carta Patricij filij comitis super una marca annua in Kirkyndyde .

- 119 **U**niversis Christi fidelibus etc. Patricius filius comitis de Dunbar eternam salutem in Domino . Noverit universitas vestra me dedisse concessisse et hac carta mea confirmasse Deo et beate Marie de Driburgh et novo operi ecclesie et canonicis ibidem Deo fervientibus pro salute anime mee et sponse mee et omnium antecessorum et successorum meorum et pro anima Willelmi regis Scotie et pro animabus patris et matris mee annuatim unam

marcam argenti singulis annis de me et heredibus meis inperpetuum percipiendam de firma mea de Kyrkynfyd ad ipsius ecclesie edificationem et emendationem in liberam puram et perpetuam elemosinam ita libere et quiete sicut aliqua elemosina in regno Scotie liberius tenetur et possidetur dimidiam ad Pentecosten et dimidiam ad festum sancti Martini . Canonici vero prenominati caritatis intuitu nos scilicet me et sponfam meam et heredes nostros receperunt in fraternitatem et participationem beneficiorum ecclesie sue inperpetuum . Testibus etc .

Carta Eufemie comitisse super marca in Kirkinfyd annuatim percipienda .

120 Omnibus hoc scriptum etc. Eufemia comitissa sponsa quondam Patrieij comitis de Dumbar eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu cum essem in tempore viduitatis mee et in legitima potestate mei constituta concessisse et mea carta presenti confirmasse Deo et sancte Marie et fabrice ecclesie de Driburgh et canonicis ibidem Deo fervientibus pro anima domini mei Patrieij comitis et pro salute anime mee et omnium antecessorum et successorum meorum donum quod dominus meus comes Patrieius eidem canonicis fecit et operi predictae ecclesie assignavit scilicet unam markam de firma de Kirkinfyde de libero maritagio meo inperpetuum singulis annis percipiendam scilicet medietatem ad Pentecosten et medietatem ad festum sancti Martini in hyeme sicut carta ipsius testatur Tenendam et habendam de me et heredibus meis in puram et perpetuam elemosinam ita libere et quiete sicut aliqua elemosina in regno Scotie liberius et quietius ab aliquibus viris religiosis tenetur vel possidetur . Volo igitur ut post decessum meum in die anniversarii mei predicta elemosina conventui assignetur ad pitantiam . In cuius rei testimonium presenti scripto sigillum meum apponi feci . Testibus etc .

Carta comitis Patricij super uno tofto in Dunbar et duabus acris terre et dimidia in eadem villa .

- 121 **P**atricius comes de Dumbar omnibus Chrifci etc. falutem . Noverit univerfitas veftra me divine pietatis intuitu dediffe conceffiffe et hac mea carta confirmaffe Deo et beate Marie de Driburg et abbati et conventui ibidem Deo fervientibus unum toftum in burgo meo de Dumbar fcilicet quod fuit Hugonis quondam capellani domini patris mei cum domo et duabus acris terre et dimidia quas dominus Hugo tenuit in villa et territorio de Dumbar Tenenda fibi et habenda de me et heredibus meis in liberam puram et perpetuam elemofinam pro animabus patris et matris mee et pro falute anime mee et uxoris mee et liberorum meorum et fuccefforum meorum . Quare volo ut prefati abbas et conventus teneant et habeant fupradictam elemofinam inperpetuum ita libere quiete plenarie et honorifice fine omni fervicio confuetudine et feculari exactione ficut aliqui viri religiofi in tota terra mea vel in toto regno Scotie quamlibet elemofinam liberius quietius plenius et honorificentius tenent et poffident . Ut autem hec mea donatio perpetuum firmitatis robur optineat eam prefenti fcripto et figilli mei appofitione roboravi . Testibus etc .

Confirmatio Patricij comitis fuper omnibus donationibus antecessorum fuorum .

- 122 **O**mnibus hoc fcriptum etc. Patricius de Dumbar comes Marchie falutem in Domino fempiternam . Noveritis me pro falute anime mee et fponfe mee et omnium antecessorum et fuccefforum meorum conceffiffe et hoc prefenti fcripto meo confirmaffe Deo et ecclefie beate Marie de Driburgh et cano-

niciis ibidem Deo fervientibus et inperpetuum fervituris omnes donationes et elemosinas ipsis datas et concessas ab antecessoribus meis comitibus de Marchia secundum omnes articulos et divisas in cartis ipsorum contentas . In cujus rei testimonium presenti scripto sigillum meum apposui . Testibus etc. . Data apud Buchelm die Mercurij in vigilia sancti Thome apostoli anno gratie millesimo ducentesimo nonagesimo .

Super terra de Houbeuchoufyd in territorio de Thirlestan .

- 123 **U**niversis Christi fidelibus etc. Ricardus Mautaland salutem in Domino . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et pro salute Auicie sponse mee et pro salute animarum omnium antecessorum meorum et successorum meorum dedisse concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et inperpetuum servitaris totam illam terram in territorio meo de Thirlestan que vocatur Houbeuchoufyd per istas divisas incipiendo scilicet a siketo illo qui dicitur Butheslad sicut siketus ille cadit in rivulum Houbeuchou versus orientem et a dicto siketo ascendendo per stratum publicam que tendit usque Egrop' versus aquilonem usque ad quandam parvum collem juxta metas terre que fuit Walteri clerici et sic a dicto colli in transverso usque ad dictum rivulum de Houbeuchou et sic descendendo versus austrum sicut ipse rivulus currit usque ad descensum dicti siketi de Butheslade . Tenendam et habendam dictis canonicis in liberam puram et perpetuam elemosinam scilicet ita libere quiete plenarie et honorifice sicut aliqua elemosina de dono alterius baronum tenetur liberius quietius plenius melius et honorificentius in toto regno Scotie cum omnibus communibus ayliamentis ad villam de Thirlestan pertinentibus salva tertia parte domine Agnetis quondam sponse Thome de Thirlestan in vita sua .

Dicta vero Agnete cedente vel decedente tota dicta terra per divisas pre-nominatas cedet in usus dictorum canonicorum libere et sine aliqua inpetitione mei vel heredum meorum . Ego vero et heredes mei hanc dictam donationem concessionem et confirmationem factam dictis canonicis contra omnes homines et feminas warantizabimus acquietabimus et defendemus inperpetuum . Ad majorem autem hujus donationis mee securitatem presentem cartam figilli mei appositione roboravi . Testibus etc .

Carta Ricardi Mautaland super Snaudon et pastura ad quadraginta oves et sexaginta vaccas et viginti equos cum sequela trium annorum .

- 124 **O**mnibus Christi etc. Ricardus Mautaland salutem . Noverit universitas vestra me divine pietatis intuitu pro salute anime mee et Avicie sponse mee et pro salute animarum omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo servientibus vel servituris in liberam puram et perpetuam elemosinam totam terram illam quam Valterus de Gilling tenuit et possedit in feodo meo de Thirlestan per eandem metas et divisas et liberas consuetudines per quas dictus Valterus aliquo tempore ipsam terram plenius tenuit et possedit . et ad incrementum dicte terre do et concedo ipsis canonicis mere caritatis intuitu communem pasturam in dicto feodo meo de Thirlestan ad quadraginta oves sexaginta vaccas et ad viginti equos cum sequela trium annorum tenendam et habendam sibi inperpetuum adeo libere quiete plenarie et honorifice sicut aliqua elemosina in regno Scotie ab aliquibus viris religiosis liberius quietius plenius et honorificentius tenetur et possidetur . Ego autem et heredes mei dictam terram cum omnibus pertinentijs et donationem de communi pastura factam cum omnibus assumentis prefatis canonicis contra omnes

homines et feminas ac dotes mulierum warantizabimus . Et ut hec mea donacio concessio et confirmatio perpetue firmitatis robur optineat presentem cartam sigilli mei appositione roboravi . Testibus etc .

Confirmacio heredum super terra de Houbeuchoufyd in territorio de Thirlistun .

- 125 **U**niversis Christi fidelibus etc. Willelmus Mantaland salutem . Noverit universitas vestra me divine pietatis intuitu pro salute anime mee et pro salute anime patris mei et matris mee et sponse mee et omnium antecessorum et successorum meorum concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et fervituris totam terram de Houbeuchoufyd quam dominus et pater meus Ricardus eidem dedit in territorio de Thirlistun . Tenendam et habendam sibi inperpetuum adeo libere quiete plenarie et honorifice sicut carta dicti patris mei super hoc confecta et dictis canonicis collata testatur plenius et proportat . Ut autem hec mea concessio et confirmatio perpetue firmitatis robur optineat presentem cartam sigilli mei appositione roboravi . Testibus etc .

Tenor carte Ade Smerdall super terra sua de Thirlestun .

- 126 **O**mnibus sancte matris etc. Thomas de Thirlestun salutem . Sciant tam presentes quam futuri me dedisse et hac carta mea confirmasse Ade de Smerdall et heredibus suis pro homagio et servicio suo unam terram illam scilicet incipiendo ad petarium de Bucheslad ita ascendendo usque ad semitam que jacet ultra Faufyd et ita descendendo subtus Clortyfyd in australi parte de Hunterell usque in viam ita descendendo per pre-

dictam viam usque Bueflade et ita ascendendo usque ad predictum petarium .
 Tenendam sibi et heredibus suis de me et heredibus meis libere quiete
 plenarie et honorifice ab omni servicio consuetudine et exactione preterquam
 reddendo michi et heredibus meis ipse et heredes sui annuatim pro omnibus
 servicijs unam libram piperis et faciendo forinsecum servicium quantum
 pertinet duabus bovatis terre in villa de Thirlestan . Preterea concedo
 predictum et heredes suos rumfre post bladum meum et Ricardi de Egrope
 et fratris sui cum omnibus ayliamentis totius terre mee . Testibus
 etc .

Pincipium carte Symonis de Smerdale subnotatur .

127 **O**mnibus etc. Symon de Smerdale salutem .

Super terra Symonis de Smerdale in territorio de Thirlestan .

128 **O**mnibus Christi fidelibus etc. Johannes de Gray salutem . Noverit uni-
 versitas vestra me divine caritatis intuitu et pro salute anime mee et
 Margarete sponse mee dedisse concessisse et hac presenti carta mea confir-
 masse Deo et beate Marie et canonicis de Driburgh totam illam terram que
 fuit Symonis de Smerdale in territorio de Thirlestan cum omnibus per-
 tinentijs suis . Tenendam sibi et habendam in liberam puram et perpetuam
 elemosinam absque omni seculari servicio et demanda . et ego et heredes mei
 dictam terram cum omnibus pertinentijs suis et articulis prenominate con-
 tra omnes homines et feminas warantizabimus inperpetuum .

Carta Thome de Thirlestan super decima molendini de Thirlestan .

- 129 **O**mnibus Chrifci etc. Thomas de Thirlestan falutem . Noverit univerfitas veftra me caritatis intuitu conceffiffe et hac prefenti carta confirmaffe Deo et beate Marie de Driburgh et canonicis ibidem Deo fervientibus decimam molendini mei de Thirlestan libere integre plenarie et fine contradicitione aliqua inperpetuum perepiendam in liberam puram et perpetuam elemofinam pro animabus patris et matris mee et pro falute anime mee et uxoris mee et omnium antecelforum et fuccelforum meorum pacifice poffidendam ficut aliqua elemofina in regno Scotie a viris religiofis liberius et quietius tenetur . Ut autem hec mea conceffio et confirmacio perpetuum robur optineat firmitatis prefens fcriptum eis contuli figilli mei appofitione roboratum . Teftibus etc .

Carta Ricardi Mautaland fuper terra Henrico de Befingham conceffa in Thirlestan .

- 130 **S**cient prefentes et futuri quod ego Ricardus Mantaland dedi et conceffi et hac mea carta confirmavi Henrico de Befingham totam terram illam cum toftis et croftis que Ofwynus faber quondam tenuit infra feodum de Thirlestan cum viginti acris proximo adjacentibus in dominico meo de Brigeffaite .

Carta donationis Henrici de Bifingham super eadem terra nobis in territorio de Thirlestan concessa .

- 131 **O**mnibus Christi fidelibus etc. Henricus de Bifingham salutem . Noverit universitas vestra me divine pietatis intuitu dedisse concessisse et hac mea carta confirmasse Deo et beate Marie et abbati et conventui de Driburgh totam terram illam quam habui ex dono domini Ricardi Mantaland in territorio de Thirlestan scilicet totam terram cum toftis et croftis que Ofwinus faber tenuit infra feodum de Thirlestan cum viginti aeris proximo adjacentibus in dominico domini de Briggeflat scilicet in occidentali parte eujusdam culture proxime infra terram quam Robertus Smel habuit in eadem cultura et cum terris que vocantur Crukes que quondam fuerunt Ade Kyngeslawe et eum duobus pratis que vocantur Langelethes et eum augmento totius illius terre que vocatur Brumcrok que jacet inter predictas Crukes et prefata prata ex australi parte ovilis mei et eum uno tofto et crofto proximo domui prefati Ofwyni ex oriente eum tribus aeris terre in territorio ejusdem ville pertinentibus ad predictum toftum Tenenda et habenda sibi in perpetuum in liberam puram et perpetuam elemosinam ita libere quiete plenarie et honorifice et integre ab omni servicio et auxilio et consuetudine et exactione cum omnibus communibus assiamendis et libertatibus infra et extra dictam villam de Thirlestan pertinentibus sicut in carta dicti domini Ricardi Mantalent super hijs confecta et mihi collata plenius continetur . Hanc autem elemosinam prefate domui libere contuli et de consensu abbatis et conventus ad pitanciam in festo omnium sanctorum fratribus meis annuatim in perpetuum faciendam pro salute anime mee et uxoris mee et antecessorum et successorum meorum caritative assignavi . Ut autem hec mea libera donatio perpetuum robur optineat firmitatis presentem cartam jam dictis abbati et conventui contuli sigillo meo roboratam una eum carta prefati domini Ricardi Manteland mihi super hijs collata . Testibus etc .

Confirmacio Willelmi Mautaland fuper eadem terra .

132 **S**cient prefentes et futuri quod ego Willelmus Mautaland filius Ricardi Matalent conceffi et hac mea carta confirmavi Deo et ecclefie beate Marie de Driburgh et canonicis ibidem Deo fervientibus et inperpetuum fervituris totam terram quam Henricus de Befingham eis dedit in territorio de Thirleſtan cum omnibus pertinentijs et libertatibus fuis videlicet totam illam terram cum toftis et croftis que Ofwinus faber quondam tenuit infra feodum de Thirleſtan cum viginti acris proximo adjacentibus in dominio meo de Brigeſlat . feilicet in occidentali parte ejuſdam culture proxime juxta terram quam Robertus Smel habuit in eadem cultura et cum terris que vocantur Crukes que fuerunt quondam Ade Kyngeſſelaw et cum duobus pratis que vocantur Langeleht' et cum augmento totius illius terre que vocatur Bromyerok que jacet inter predictas Crokes et prefata prata ex auſtrali parte ovilis ipſius Henrici et cum uno tofto et croſto proximo domui prefati Ofwyni ex oriente cum tribus acris terre in territorio ejuſdem ville pertinentibus ad predictum toftum Tenenda et habenda dictis canonicis in puram et perpetuam elemofinam libere quiete plenarie et honorifice et integre abſque omni ſervicio et auxilio et conſuetudine et exactione in boſeo et plano et pratis et paſcuis in moris et morijs et petarijs in aquis et ſtagnis in vijs et ſemitis et in omnibus communibus et aſſiamentis et libertatibus infra villam et extra ad dictam villam de Thirleſtan pertinentibus . Predicti vero canonici et homines fui ſuper predicta terra manentes molent ad molendum de Thirleſtan et quieti erunt de multura et erunt rumfre poſt bladum inventum in tremodio preter bladum meum proprium . dicti etiam canonici habebunt in dominica paſtura de Thirleſtan duos equos ſuos proprios ad herbagium cum equis meis proprijs . habebunt in boſeis meis dicti canonici et homines fui in eadem terra manentes ad omnia rationabilia eſtoveria ſua in eadem terra per viſum foreſtarij mei . Iſtam autem elemofinam conceſſi

et confirmavi dictis canonicis pro me et heredibus meis inperpetuum adeo libere et quiete sicut aliqua elemosina in regno Scotie aliquibus viris religiosi liberius et quietius quantum ad me et heredes meos pertinet conceditur et confirmatur absque alienius rei temporalis exigentia . Testibus etc .

Carta Petri de Haga super duabus bovatis terre in Bemerfyd et uno mesagio et orto et pastura ad tres vaccas et viginti oves .

- 133 **O**mnibus sancte matris etc. Petrus de Haga salutem . Noverit universitas vestra me dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus pro salute dominorum meorum et mea et pro salute antecessorum et successorum meorum et pro anima Ade quondam uxoris mee et pro animabus parentum meorum et omnium fidelium defunctorum duas bovatas terre in dominio meo de Bemerfyd scilicet Thirlestanslat et in Croflerigeflat propinquiores terre ipsorum canonicorum . Tenendas de me et heredibus meis inperpetuum . unum mesagium in villa de Bemerfyd in dominio meo scilicet quantum ad orientem in domo que fuit quondam bone memorie Gode matris mee cum orto ad hoc assignato tali conditione quod abbas et predicti canonici ponent tantummodo unum hominem cum propria familia sua in illo mesagio et ille homo habebit tres vaccas et viginti oves in pastura cum hominibus ejusdem ville Concessi etiam eisdem canonicis ex dono meo totam illam partem nemoris que inter ipsos canonicos et me erat in litigio scilicet Trepewod usque ad magnam viam que dividit idem nemus et Flatwod in liberam et puram et perpetuam elemosinam . Testibus etc .

Carta Petri de Haga fuper nemore de Flatwode .

- 134 **O**mnibus hoc scriptum etc. Petrus de Haga dominus de Bemersfyd salutem in Domino . Noveritis me divine pietatis intuitu et pro salute anime mee et Katerine sponse mee et pro animabus omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et inperpetuum servituris totam illam partem nemoris mei de Flatwod que incipit ad cruceum lapideam sitam in capite dicti nemoris descendendo per viam que vocatur Horfmangate usque ad Munkeford de Twede et de Munkeford ascendendo juxta fossiam adherentem terre de Driburgh usque ad magnam viam existentem inter Flatwod et Trepewod et sic [per] totam illam viam usque ad capud de Horfmangate . Hanc autem donationem meam prenominatam dedi et concessi dictis abbati et conventui pro me et heredibus meis in liberam puram et perpetuam elemosinam cum libero introitu et exitu per totam terram meam cum caritagijs et rebus suis exceptis terris seminatis et pratis non falcatis . Quare volo et concedo pro me et heredibus meis ut dicti religiosi dictam partem nemoris teneant et possideant inperpetuum adeo libere et quiete sicut aliqui religiosi in regno Scotie aliquam elemosinam liberius et quietius tenent et possident aut tenere poterint vel possidere . Ego vero et heredes mei has meas donationes prenominate dictis viris religiosis contra omnes homines et feminas varantizabimus et ab omni exactione seculari consuetudine et demanda acquietabimus et inperpetuum defendemus . In cujus rei testimonium presenti scripto sigillum meum apposui . Testibus etc .

Confirmatio Johannis de Haga super nemore de Flatwod .

- 135 Omnibus hoc scriptum etc. Johannes de Haga filius et heres Petri de Haga dominus de Bemerfyd salutem . Noveritis me divine pietatis intuitu et pro salute anime mee et pro animabus omnium antecessorum et successorum meorum mera et spontanea voluntate concessisse et presenti scripto confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus et inperpetuum [servituris] donationem Petri de Haga patris mei super illa portione nemoris de Flatwod que incipit ad crucem lapideam sitam in capite dicti nemoris descendendo per viam que vocatur Horfinangate usque ad Munkeford de Twede et [de] Munkeford ascendendo juxta fossam adherentem terre de Driburgh usque ad magnam viam existentem inter Flatwode et Trepwod et sic [per] totam magnam viam usque ad capud de Horfinangate in liberam puram et perpetuam elemosinam . Quare volo et concedo pro me et heredibus meis ut dicti religiosi dictam partem nemoris teneant et possideant adeo libere et quiete sicut aliqui religiosi aliquam elemosinam in regno Scotie tenent vel possident aut tenere poterunt vel possidere una cum libero introitu et exitu per totam terram meam cum cariagijs et rebus suis exceptis terris feminatis et pratis non falcatis . Ego vero Johannes et heredes mei omnem donationem patris mei prenominatam et meam contra omnes homines et feminas warrantizabimus et ab omni exactione seculari consuetudine et demanda acquietabimus et inperpetuum defendemus . In cujus rei testimonium presenti scripto sigillum meum appofui . Testibus etc .

Carta Alexandri de Balliolo super medietate bosci de Gledidwode et medietate capitis ejusdem bosci et super quadraginta solidis pro dicto bosco solvendis annuatim .

- 135 **Omnibus** Christi etc. Alexander de Balliolo dominus de Caveris eternam in Domino salutem . Noverit universitas vestra me caritatis intuitu pro salute anime mee et domini Gwido fratris mei et pro animabus omnium antecessorum et successorum meorum dedisse concessisse et hac carta mea confirmasse Deo et sancte Marie et abbati et conventui de Driburgh medietatem bosci de Gladifwod que quondam fuit domini Johannis de Wallibus et domine Dernorgille sponse sue cum medietate capitis ejusdem bosci et cum omnibus assiamendis et libertatibus Tenendas et habendas sibi et successoribus suis de me et heredibus meis ad feodifirmam inperpetuum Reddendo inde annuatim mihi et heredibus meis quadraginta solidos sterlingorum medietatem videlicet ad Pentecosten et aliam medietatem ad festum sancti Martini in hyeme pro omni alio servitio seculari consuetudine sectis et demandis . Et ego Alexander et heredes mei totam medietatem predicti bosci cum medietate dicti capitis et cum omnibus libertatibus et pertinentijs suis dictis abbati et conventui contra omnes homines et feminas varantizabimus acquietabimus et defendemus inperpetuum . Et si dictam medietatem bosci cum alijs predictis prefatis abbati et conventui varantizare non poterimus ego vel quicumque heredum meorum superstes fuerit solvam vel solvet dictis abbati et conventui infra mensem proximum post defectum varantie centum marcas sterlingorum bonorum et legalium cum omnibus dampnis et expensis que vel quas incurrerint vel fecerint pro defectu varantie . subjiiciens me et heredes meos jurisdictioni cujuscunque judicis ordinarij qui per dictos abbatem et conventum fuerit interpellatus vel requisitus ut me vel heredes meos ad solutionem dictarum centum marcarum cum dampnis et

expensis infra predictum terminum faciendam per cenfuram ecclesiasticam omni appellatione seu contradictione remota possit compellere . In cujus rei testimonium presentibus sigillum meum apposui . Testibus etc .

Tenor carte quam Alexander de Balliolo habuit super medietate bosci de Gledifwod .

- 136 **S**cient presentes et futuri quod ego Johannes de Balliolo concessi confirmavi et ad feodifirmam dimisi domino Alexandro de Balliolo domino de Caverys medietatem bosci de Gledifwod cum medietate capitis ejusdem bosci . etc .

Super sayfina bosci medietatis de Gledifwod .

- 137 **A**lexander de Balliolo dominus de Caverys dilectis et fidelibus suis Roberto de Edristona ballivo suo et Valtero Walensi salutem . Mandamus vobis quatinus cum per abbatem vel priorem seu selerarium de Driburgh fueritis requisiti detis et faciatis dictis abbati et conventui de Driburgh sayfinam coram terra de Lauder super medietatem bosci de Gledifwod cum Johanne de Wallibus et domine Heruorgill sponse sue secundum quod in carta quam super hoc dedimus plenius continetur . Quod si ambo ad hoc faciendum interesse non poteritis unus vestrum qui per aliquem predictorum super hoc fuerit requisitus istud nihilominus sine dilacione exequatur . In cujus rei testimonium has literas nostras vobis mittimus patentes . Datas apud Driburgh die Veneris proxima ante Pentecosten anno gracie millesimo ducentesimo septuagesimo primo .

Carta Rogeri de Quincy super toto bosco de Gledidwode .

- 138 **O**mnibus presentem cartam visuris vel audituris Rogerus de Quincy comes Wintonie et constabularius Scotie eternam in Domino salutem . Noverit universitas vestra nos divine pietatis intuitu et pro salute anime nostre et Alyenore sponse mee et pro animabus Alani de Galwythya et Helene filie sue quondam sponse nostre et pro animabus antecessorum et successorum meorum dedisse concessisse et presenti carta mea confirmasse pro nobis et heredibus nostris Deo et ecclesie beate Marie de Driburgh et abbati et conventui ibidem Deo servientibus et inperpetuum servituris in liberam puram et perpetuam elemosinam totum boscum nostrum de Gledidwod per suas rectas divisas sine aliquo retinemento cum solo ejusdem bosci et eum pastura et omnibus alijs ayfamentis et pertinentijs ad dictum boscum pertinentibus Tenendum et habendum de nobis et hominibus nostris dictis abbati et conventui et omnibus eorum successoribus inperpetuum adeo bene libere et quiete sicut aliqua elemosina in regno Scotie melius liberius quietius dari potuerit et concedi . Dicti autem abbas et conventus et eorum successores die obitus nostri et singulis annis die anniversarij nostri pro anima nostra divine caritatis intuitu plenarium facient servitium inperpetuum sicut pro uno abbate sui ordinis . Et nos et heredes nostri dictum boscum cum solo ejusdem et pastura et omnibus pertinentijs sicut predictum est dictis abbati et conventui et eorum successoribus contra omnes inperpetuum warantizabimus acquietabimus et defendemus . In cujus rei testimonium presenti scripto sigillum meum duximus apponendum .

Carta Rogeri de Quincy comitis Wintonie super piscaria in lacu de Mertonæ .

- 139 **O**mnibus presentem cartam visuris vel audituris Rogerus de Quyncey comes Wintonie constabularius Scotie eternam in Domino salutem . Noverit universitas vestra nos divine pietatis intuitu et pro salute anime nostre et Alienore sponse nostre et pro animabus antecessorum et successorum nostrorum dedisse concessisse et hac presenti carta nostra confirmasse pro nobis et heredibus nostris Deo et ecclesie beate Marie de Driburgh et abbati et canonicis et omnibus eorum successoribus ibidem Deo fervientibus et in perpetuum servituris totam piscariam nostram de Myertoun in lacu ejusdem quantum ad nos et heredes nostros cum omnibus pertinentiis sine aliquo retinemento . Habendam et tenendam in liberam puram et perpetuam elemosinam de nobis et heredibus nostris in perpetuum adeo libere bene et quiete sicut aliqua elemosina melius liberius quietius dari poterit et teneri cum omnibus pertinentiis libertatibus et assiamendis ad dictam piscariam pertinentibus vel pertinere debentibus . falsis tamen nobis et heredibus nostris captionibus piscium in dicto lacu pro voluntate nostra quotienscunque nos vel heredes nostros in partibus de Myertoun venire contigerit . Et nos et heredes nostri dictam piscariam in dicto lacu quantum ad nos vel heredes nostros pertinet sicut predictum est dicto abbati et conventui et omnibus eorum successoribus contra omnes homines et feminas warrantizabimus acquietabimus et defendemus in perpetuum . In cujus rei testimonium et securitatem presentem cartam sigilli nostri impressione duximus roborandam . Testibus etc .

Generalis confirmatio Rogeri de Quincy super omnibus donationibus suis .

- 140 **O**mnibus presentem cartam visuris vel auditoris Rogerus de Quincy comes Vintonie constabularius Scotie eternam in Domino salutem . Noverit universitas vestra quia canonici de Driburgh de pluribus terris redditibus et tenementis per diversa loca in feodo nostro per plures cartas feotestantur [*feofantur*] nos pro nobis et heredibus nostris omnes donationes et feofamenta terrarum reddituum et tenementorum in feodo nostro obtentorum dictis eanonice et omnibus eorum successioribus fecundum vires et articulos in cartis suis contentos quas de dictis terris redditibus seu tenementis habent concedimus quietum clamamus et presentis carte nostre tenore confirmamus . In eujus rei testimonium et securitatem presentem cartam sigilli nostri impressione duximus roborandam . Testibus etc .

Carta Rogeri de Quincy super uno tosto in villa de Hadyngtoun .

- 141 **O**mnibus hoc etc. Rogerus de Quincy salutem . Noverit universitas vestra me caritatis intuitu pro salute mea et pro salute animarum antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et beate Marie de Driburgh et canonicis ibidem Deo servientibus totum tostum meum quod habui in villa de Hadyngtoun illud scilicet quod dominus Willelmus quondam rex Scotie domino Roberto de Quincy avo meo dedit integre eum pertinentijs suis in liberam et perpetuam elemosinam tenendum et habendum sibi inperpetuum de me et heredibus [meis] libere quiete integre pacifice et honorifice Reddendo inde mihi et heredibus meis annuatim unam partem terre [*petram cere*] vel quadraginta denarios ad



festum sancti Mychaelis pro omni servicio et exactione . Ut autem hec mea donatio rata permaneat et inconcussa prefens scriptum sigilli mei munitione roboravi . Testibus .

Carta Willelmi regis super viginti solidis de firma burgi de Rogesburgh annuatim percipiendis .

- 142 **W**illelmus Dei gratia rex Scotorum omnibus probis hominibus totius terre sue clericis et laycis salutem . Sciant presentes et futuri me dedisse et concessisse et hac carta mea confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus pro salute anime mee et Malcolmi filij mei et antecessorum et heredum meorum viginti solidos singulis annis percipiendos de firma burgi mei de Rogesburgh in liberam et perpetuam elemosinam ad luminare prefate ecclesie de Driburgh . Quare precipio prepositis meis de Rogysburgh ut prefcriptos viginti solidos pre-nominatis canonicis annuatim sine contradictione et molestia persolvant scilicet decem solidos ad festum sancti Martini et decem solidos ad Pentecosten . Testibus etc .

Carta Beatricis de Bello campo super terra nostra in Rogesburgh et de decima molendini de Naythinthern .

- 143 **D**omino suo David regi Scotie et omnibus heredibus suis Rogero de Morevilla filio suo et omnibus heredibus suis et cunctis fidelibus Beatrix de Bello campo salutem . Sciant me dedisse et concessisse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus totam illam terram de Rogesburgh quam emi a Rogero janitore et decimam molendini de

Naythinthern in perpetuam elemosinam ita libere et quiete sicut aliqua elemosina potest liberius quietius concedi et teneri pro amore Dei et in remissione peccatorum meorum . Testibus etc .

Confirmatio regis Malcolmi super terra de Rogesburgh quam Beatrix nobis dedit .

- 144 **M**alcolmus rex Scotie iusticiarijs vicecomitibus prepositis et omnibus probis hominibus totius terre sue salutem . Sciatis me concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus terram illam quam Beatrix de Bello campo de Rogero janitore emit et eis pro salute anime sue dedit in perpetuam elemosinam terram illam scilicet et omnia pertinentia ad illam ita libere et quiete concedo sicut liberius et quietius ab avo meo David Rege tenuit et Henrico comite patre meo . Testibus et cetera .

Henricus comes confirmat domine Beatrici de Bello campo terras et tenuras suas .

- 145 **H**enricus comes filius regis Scotie episcopis abbatibus iusticiarijs baronibus vicecomitibus ministris et omnibus probis hominibus totius terre sue Francis et Anglicis tam futuris quam presentibus salutem . Sciatis me concessisse et per prefens scriptum confirmasse domine Beatrici de Belchaump terras et tenuras suas de Rogesburgh quas ipsa de patre meo tenuit . Volo itaque et precipio quatinus illas terras et tenuras de me habeat et teneat libere et honorifice sicut ipsa de patre meo illas liberius et quietius tenuit . Testibus etc .

Carta Henrici comitis super tofto extra murum de Rogesburgh .

- 146 **H**enricus comes filius regis Scotie episcopis iusticiarijs abbatibus baronibus vicecomitibus prepositis ministris et omnibus probis hominibus suis de Teuidall salutem . Sciant me dedisse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus illud toftum quod fuit Johannis capellani in burgagio extra murum de Rogesburgh . Et volo et precipio ut ecclesia supradicta illud habeat et teneat libere et quiete ab omni consuetudine et servicio sicut meam liberam elemosinam . Testibus etc .

Carta regis David super licencia accipicendi necessaria in nemoribus regis et quietancia tolonei et ut finis liberi et quieti de omnibus secularibus exactionibus et consuetudinibus .

- 147 **D**avid rex Scotie episcopis abbatibus comitibus baronibus iusticiarijs vicecomitibus prepositis ministris et omnibus probis hominibus totius terre sue clericis et layeis Francis et Anglicis presentibus et futuris salutem . Sciant me concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus illam terram et omnia ad eam pertinentia quam Beatrix de Bello campo de Rogero janitor emit et eis in liberam et perpetuam elemosinam dedit ita libere et quiete perpetuo tenendam sicut aliqua elemosina liberius et quietius tenetur et possidetur et illud etiam toftum extra portam occidentalem de Rogesburgh quod Johannis capellani fuit ita liberum et quietum eis concedo sicut carta Henrici comitis filij mei eis donat et confirmat . Concedo etiam et confirmo eis illam terram que est inter murum ejusdem porte quam Ada capellanus meus eis concessu meo in liberam et perpetuam elemosinam dedit

eum eadem libertate quam eidem Ade concesseram scilicet ut nullus super plenarium forisfactum meum de illa terra censum aut aliquam omnino consuetudinem que burgo advenerit presumat exigere . Preterea prefatis fratribus concedo et hac presenti carta confirmo ut liceat eis in nemoribus meis accipere ea que necessaria habuerint in usibus suis et edificijs ita ut nullus eos injuste disturbet et ut sint liberi et quieti in omni regno meo de toloneo et omnibus secularibus exactionibus et consuetudinibus sicut aliqui viri religiosi in tota terra mea liberiores inveniuntur scilicet quantum ad se et propria catella sua . volo itaque et precipio ut predicta domus prenominate elemosinas donationes et libertates ita libere et quiete et honorifice perpetuo teneat et possideat sicut aliqua ecclesia in omni regno meo liberius et quietius tenet et possidet . Testibus etc .

Carta Roberti de Boneire super terra nostra in Senedegate in villa de Rogesburgh .

- 148 **O**mnibus sancte matris etc. Robertus de Boneire burgenfis de Rogesburgh salutem . Noverit universitas vestra me consensu et assensu uxoris mee et heredis mei dedisse et concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam puram et perpetuam elemosinam medietatem illius terre que fuit Edolphi molendinarii in Senedegate tenendam inperpetuum et habendam ita libere et quiete ab omni servicio et consuetudine et seculari exactione sicut aliqua elemosina viris religiosi liberius quietius et honorificentius ab aliquo dari potest et confirmari Reddendo de predicta terra annuatim monialibus de Redesdale quinque denarios medietatem scilicet ad Pascham et medietatem ad festum sancti Michaelis . et sciendum est quod ego et heredes mei ipsam terram prefatis canonicis contra omnes homines defendemus et warantizabimus . Ut autem hec libera donacio mea inperpetuum

rata permaneant et inconcussa presenti scripto sigillum meum apponere curavi et illud testimonio bonorum hominum corroborare decevi quorum nomina subscribere feci . Testibus .

Carta Johannis regis super viginti solidis in Rogesburgh annuatim percipiendis .

- 149 **J**ohannes Dei gratia rex Scotorum vicecomitibus et ballivis suis de Rogesburgh salutem . Sciant quod caritatis intuitu concessimus religiosis viris abbati et conventui de Driburgh illam elemosinam quam annuatim percipere consueverunt de redditibus burgi de Rogesburgh per concessionem regum Scotorum predecessorum nostrorum . Quare vobis precipimus et mandamus quatinus dictam elemosinam predictis abbati et conventui vel eorum certo aetornato latori presentium quolibet anno liberare faciatis sicut eam hactenus eisdem solvere consuevistis et nos eandem elemosinam vobis in compotis vestris singulis annis faciemus plenius allocare . Testibus .

Carta Rogeri Bertram super decima molendini de Naythanthirn .

- 150 **R**ogerus Bertram omnibus hominibus suis et amicis Francis et Anglicis tam futuris quam modernis et omnibus ad quorum notitiam iste literae pervenerint salutem . Sciant me dedisse et concessisse ecclesie sancte Marie de Driburgh et canonicis ibidem Deo servientibus omnem decimam molendini de Naythanthirn in liberam elemosinam pro salute anime Hugonis de Morevilla et pro me et Ada sponsa mea et pueris meis . Testibus .

Carta Willelmi episcopi super decima molendini de Naythanthirn .

- 151 **W**illelmus Dei gracia episcopus sancti Andree universis sancte matris etc. eternam in Domino salutem . Noverit universitas vestra nos divine pietatis intuitu dedisse et concessisse et hac carta nostra confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus decimam molendini de Naythanthirn in liberam quietam puram et perpetuam elemosinam . Quare volumus et auctoritate episcopali firmiter precipimus ut predicti canonici predictam decimam ita libere quiete et plenarie et honorifice teneant et possideant sicut aliquam elemosinam in dyocesi nostra liberius quietius plenius honorificentius tenent et possident salva propria libera multura sua . Testibus et cetera .

Carta Willelmi episcopi super decima molendini de Newtounne .

- 152 **W**illelmus miseratione divina episcopus sancti Andree universis sancte matris etc. eternam in Domino salutem . Noverit universitas vestra nos divine caritatis intuitu ad imitationem venerabilium patrum predecessorum nostrorum episcoporum sancti Andree dedisse concessisse et hac carta nostra confirmasse Deo et ecclesie sancte Marie de Dryburgh et canonicis ibidem Deo fervientibus decimam molendini de Newtounne in liberam puram et perpetuam elemosinam . Quare volumus et auctoritate episcopali firmiter precipimus ut predicti canonici predictam decimam ita libere quiete plenarie et honorifice teneant et possideant sicut aliquam elemosinam in dyocesi nostra liberius et quietius plenius et honorificentius tenent et possident . Testibus etc. . Ad majorem autem hujus concessionis et confirmationis nostre securitatem presenti scripto sigillum nostrum apponi fecimus

Datum apud Lawder die Veneris proxima ante festum sancte Margarete virginis Anno gracie m^o cc^o octogesimo primo .

Carta Willelmi de Lyndefay super domibus nostris in Berwico .

- 153 **O**mnibus Christi etc. Willelmus de Lyndefay salutem . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus et servituris terram que fuit magistri Thome de Haregunc in villa de Berwic proxime cimiterio sancte Trinitatis in australi parte herentem Tenendam inperpetuum et habendam in liberam puram et perpetuam elemosinam ita libere quiete plenarie et honorifice sicut aliqua elemosina in regno Scotie a viris religiosis liberius quietius et honorificentius tenetur et possidetur . Hanc vero donationem meam ego et heredes mei predictis canonicis contra omnes homines warrantizabimus et defendemus . Ut autem hec mea libera donatio inperpetuum rata permaneat et inconcussa prefens scriptum sigilli mei appositione roboravi . Testibus .

Carta Johannis de Dunbar super annuo redditu quinque solidorum in Revenysden in Berwico .

- 154 **O**mnibus Christi etc. Johannes de Dunbar burgenfis de Berwico salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta confirmasse Deo et ecclesie sancte Marie de Driburg et canonicis ibidem Deo fervientibus et inperpetuum servituris in puram et perpetuam elemosinam quendam annuum redditum

quinque solidorum de terra illa jacente in Revenyſden infra villam de Berwico ſicut ſe extendit in longum et latum in terram Criſtiane Couper ex parte una et terram meam ex altera percipiendum annuatim per manus cujuſcunque dictam terram inhabitantis ad duos anni terminos videlicet medietatem ad Pentecoſten ac aliam medietatem ad feſtum ſancti Martini in hyeme ſine contradictione et impedimento . Ego vero Johannes de Dunbar et heredes mei predictum annuum redditum quinque solidorum abbati et conventui de Driburgh qui pro tempore fuerint contra omnes homines et feminas warantizabimus et defendemus . In cujus rei teſtimonium preſenti ſcripto ſigillum meum appoſui . Datum apud Berwicum die ſabbati proxima poſt feſtum decollationis ſancti Johannis baptiſte anno gracie M^o CC^o LXX^o quinto . Teſtibus etc .

Carta David Olifard ſuper plenaria carucata terre in Smalham et paſtura ad trecentas oves .

155 **D**avid Olifard dominis ſuis et amicis et omnibus probis hominibus ſuis ſalutem . Sciant tam preſentes quam futuri me dediſſe et hac mea carta confirmiſſe Deo et eccleſie ſancte Marie de Driburgh et fratribus ibidem Deo ſervientibus unam plenariam carucatam terre in Smalham cum omnibus paſcuis ad trecentas oves pro remiſſione peccatorum meorum et pro animabus dominorum meorum qui mihi terram dederunt et pro animabus antecellorum et ſucceſſorum meorum in perpetuam elemoſinam ita libere et quiete ſicut aliqua elemoſina liberius et quietius poteſt concedi et teneri . Teſtibus etc .

Confirmatio regis super carucata terre in Smalham .

- 156 **Malcolmus** rex Scotie omnibus probis hominibus totius terre sue salutem .
 Sciant clerici et layci me concessisse et hac mea carta confirmasse Deo
 et ecclesie sancte Marie de Driburgh et abbati et canonicis ibidem Deo
 fervientibus illam carucatam terre in Smalham quam David Olifard abbati
 predicti loci in perpetuam elemosinam dedit cum pastura simul concessa
 Tenendam ita libere et quiete sicut aliqua terra elemosinaria liberior et
 quietius tenetur et possidetur in regno meo . Testibus .

Carta Valteri de Moravia super libertate multure de terra de Smalham .

- 157 **Valterus** de Moravia fidei suo Alexandro Ciffori ballivo suo de Smalham
 salutem . Scias quod concessimus abbati et conventui de Driburgh pro
 nobis et heredibus nostris ut sint liberi a multura totius terre quam tenent
 de nobis in territorio de Smalham inperpetuum licet aliquo tempore
 fuerimus in possessione percipiendi multuram de quadam parte dicte terre
 ad firmarios dictorum abbatis et conventus . quare tibi mandamus et precipi-
 mus quatinus dictos abbatem et conventum vel eorum procuratorem bladum
 suum dicte terre sine nugentia [*exigentia*] multure pacifice permittas carries et
 prohibemus pro nobis et heredibus nostris ne aliquis ballivus noster vel
 alius exigit a dictis abbate et conventu vel eorum procuratore multuram
 ratione dicte terre in toto vel in parte vel eisdem molestiam super hoc inferat
 aut gravamen . In cujus rei testimonium has literas nostras tibi mittimus
 patentes dicto abbati et conventui retradendas . Datas apud Botheuyle in
 crastino sancti Mathei apostoli anno gracie m^o cc^o lxx^o octavo . Testibus .

Carta David regis super duabus marcis Nicholao clerico in villa de Hedinham .

- 158 **D**avid rex Scotie episcopis abbatibus comitibus vicecomitibus baronibus justiciarijs ministris et omnibus probis hominibus totius regni sui salutem . Sciatis me dedisse et concessisse Nicholao clerico viginti solidos in carucata illa quam Petrus filius Valteri de Strevelyn de me tenet in Hedinham et preter hoc dimidiam marcam in illa dimidia carucata terre quam Tebaldus de Norham de me tenuit in eadem villa ita ut illi predicto Nicholao firmam illam reddant sicut mihi reddere solebant . Has itaque predictas duas marcas do ei et concedo et per cartam presentem confirmo in escambio illarum duarum marcarum quas in Belleflene Uctredi sacerdotis ex dono episcopi Johannis eidem Nicholao concesseram et confirmaveram ita libere et quiete ab omni servicio et consuetudine sicut carta ipsius Johannis testatur se ei predictas duas marcas dedisse et concessisse . etc .

Carta Malcolmi regis super duabus marcis et dimidia carucata terre in Hedinham et super uno tosto vicino muro porte occidentalis de Rogesburgh .

- 159 **M**alcolmus rex Scotie episcopis abbatibus comitibus justiciarijs baronibus vicecomitibus et omnibus probis hominibus totius regni sui salutem . Sciant omnes me pro salute antecessorum meorum et mea concessisse et dedisse et per hanc cartam confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et puram et perpetuam elemosinam duas marcas singulis annis in Edinham quas Nicholaus clericus meus habuit in terra Petri filij Valteri de Strevelyn et Thebaldi de Norham et preter hoc dimidiam carucatam terre in eadem villa quam avus meus

rex David predicto Nicholaio dedit . Et preter hoc do et confirmo eis in Rogesburgh toftum illud quod vicinum est muro porte occidentalis cum eadem libertate quam avus [meus] cum predicto tofto Ade capellano suo dedit et confirmavit . Volo itaque ut predicti canonici prefatam terram et elemofinas ita libere quiete teneant perpetuo sicut aliqua elemofina in regno meo liberius et quietius tenetur . Testibus etc.

Carta Willelmi regis super dimidia carucata terre in Hedinham danda in excambium .

160 **W**illelmus Dei gratia rex Scotorum omnibus probis hominibus totius terre sue clericis et laycis salutem . Sciant presentes et futuri me dedisse et concessisse et hac carta mea confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ibidem Deo fervientibus illam dimidiam carucatam terre in Edinham quam Erchibaldus abbas de Dunfermelyne et alij probi homines mei precepto meo eis tradiderunt et perambulaverunt in excambium illius dimidie carucate terre quam rex David avus meus Nicholayo clerico in eadem villa dederat cum toftis et croftis que Godewynus homo Nicholayi predicti tenuit ad predictam dimidiam carucatam terre . Quare volo et precipio ut predicti canonici prefatam dimidiam carucatam terre habeant et teneant in liberam et perpetuam elemofinam ita libere et quiete plenarie et honorifice sicut alias elemofinas suas liberius quietius plenius et honorificentius tenent et possident . Testibus etc .

Quod dimidia marca quam pro dimidia carucata terre in Hedinham quondam percepimus dimittitur in excambium pro quadam terra in Petcorthyn .

- 161 **H**ec est conventio facta inter abbatem et conventum de Driburgh ex una parte et magistrum et congregationem domus hospitalis sancti Leonardi de Edinham ex altera scilicet quod cum abbas et conventus de Driburgh annuatim percipere solebant unam dimidiam markam argenti et unam libram incensi de dicta domo hospitalis pro quadam dimidia carucata terre in territorio de Edinham dicti abbas et conventus quietam dimiserunt solutionem dicte dimidie marce et incensi predictæ domui hospitalis in perpetuum pro tota illa terra quam magister et congregatio ejusdem hospitalis ex dono Ade comitis in territorio de Petcorthyn in Scotia habuerunt . Quam scilicet terram ipsi ut immunes essent in perpetuum a solutione prefate dimidie marce et libre incensi predictis abbati et conventui in perpetuum ex omni congregationis sue consensu dimiserunt perpetuis temporibus tenendam et possidendam quiete plenarie et honorifice cum omnibus assiamendis et libertatibus ejusdem terre sicut prefata domus hospitalis liberius quietius plenarius et honorificentius eam tenuit et sicut carta dicte Ade comitis super eadem terra proportionat . Et sciendum quod magister et congregatio predicti hospitalis totam supradictam terram cum libertatibus et assiamendis suis prefatis abbati et conventui contra omnes homines warrantizabunt . Ut autem hec conventio inter predictas domus perpetuis temporibus rata permaneat et inconcussa ipsam utraque pars capitulorum suorum consensu et sigillis hinc inde apposis confirmavit . Sciendum est autem quod predicti abbas et conventus ad magnam instantiam petitionis communium amicorum concesserunt dicte congregationi hospitalis fullare quolibet anno in perpetuum tantum viginti quatuor ulnas albi panni ad molendinum suum

de Driburgh sumptibus suis caritatis intuitu eo modo quo parare solent tunicas converforum fuorum . Testibus etc .

Super quadam terra in villa de Brothirstanfide et pastura quinquies viginti ovibus et octo bobus et quatuor vaccis et duobus averijs .

162 **O**mnibus sancte matris etc. Helias de Brothirstanfide salutem . Sciant presentes et futuri me dedisse et concessisse et hac mea carta confirmasse Deo et operi ecclesie sancte Marie de Driburgh et conventui ibidem Deo fervienti in villa mea de Brothirstanfyd ex aquilonali parte ejusdem ville totam terram illam que est inter croftum Willelmi Hirdeman et exitum predicte ville penes orientem usque ad fossatum penes aquilonem in liberam et puram et perpetuam elemosinam Tenendam et habendam de me et heredibus meis in perpetuum ita libere et quiete et honorifice sicut aliqua terra liberior et quietior et honorificentior in elemosinam confirmandam [*confirmari*] potest pro salute dominorum meorum et pro salute mea et uxoris mee et heredum meorum et liberorum meorum specialiter autem pro anima Ade filij mei et omnium antecessorum et successorum meorum . Dedi etiam et etiam concessi et hac presenti carta mea confirmavi predicto conventui communem pasturam quinquies viginti ovibus et octo bobus et quatuor vaccis et duobus averijs in tota terra mea cum omnibus alijs ayfamentis totius terre mee . Testibus etc .

Super crofto et terra in Brothirftanfide et pafтура octogintis ovibus et octo bobus et sex vaccis et duobus averijs .

- 163 **O**mnibus Chrifti etc. Helyas de Brothirftanfide falutem . Noverit univerfitas veftra me divine pietatis intuitu confenfu et affenfu heredis mei dediffe conceffiffe et hac mea carta confirmaffe Deo et ecclefie fancte Marie et novo operi de Driburg croftum quod fuit Willelmi Hirdeman in villa de Brothirftanfide ex parte aquilonali directum ufque ad foftatum quod vocatur Wattirdike . infuper et totam terram que eft inter dictum croftum et exitum ejufdem ville verfus orientem et ufque ad predictum foftatum penes aquilonem in liberam puram et perpetuam elemofinam Tenendam de me et heredibus meis ufibus fuis applicandam prout fibi melius viderint expedire pro falute anime mee et uxoris mee et omnium antecessorum et fuccefforum meorum fpecialiter pro anima Ade filij mei ita libere quiete et honorifice fine omni fervicio confuetudine et feulari exactione ficut aliqua elemofina in regno Scotie viris religiofis liberius quietius et honorificentius cum omni pafтура octogentis ovibus et octo bobus et sex vaccis et duobus averijs infra totam terram meam cum omnibus ayfiamenis totius terre mee tam fibi quam hominibus fuis . Teftibus etc .

Confirmatio heredis fuper terra in Brothirftan' et fuper pafтура prenotata .

- 164 **O**mnibus Chrifti etc. Alanus filius Helene [*Helye*] de Brothirftan' falutem . Noverit univerfitas veftra me caritatis intuitu conceffiffe et hac mea carta confirmaffe Deo et fancte Marie de Driburgh et novo operi domus [*donum*] quod pater meus eidem operi fecit fuper terra in elemofinam collata in territorio de Brothirftane cum communi pafтура et alijs ayfiamenis ejufdem ville prout carta ipfius patris mei proportat . Quare volo et concedo

ut eadem ecclesia de Driburgh prefatum donum cum pertinentijs et ayfamentis suis inperpetuum teneat et possideat de me et heredibus meis in liberam puram et perpetuam elemosinam ita libere quiete et honorifice sicut aliqua elemosina in regno Scotie viris religiosus liberius quietius et honorificentius potest concedi vel confirmari . Testibus .

Super quadam terra in territorio de Brothirftanefyde et super rectis divisis predictæ terre .

- 165 **Omnibus Christi etc.** Helyas de Brothirftanefide salutem . Noverit universitas vestra me caritatis intuitu dedisse concessisse et hac mea carta confirmasse Deo et beate Marie et operi ecclesie de Driburgh et canonicis ibidem Deo fervientibus in augmentum terre quam dictæ ecclesie antea contuli et carta mea confirmavi quandam particulam terre usibus suis applicandam sicut viderint sibi melius expedire in territorio de Brothirftan' proximam crofto suo quod antea ex dono meo habuerunt per has divisas scilicet incipiendo ab eodem crofto usque ad antiquam fossam versus aquilonem que antiquitus vocabatur Watridike in latum et per latitudinem crofti prenominati ab occidente tendendo directe versus orientem usque ad exitum communem ejusdem ville in longum sicut ego coram domino Henrico abbate de Driburgh et alijs probis hominibus eis perambulavi in liberam puram et perpetuam elemosinam Tenendam de me et heredibus meis inperpetuum ita libere quiete et honorifice sicut aliqua elemosina liberius quietius et honorificentius potest dari aut confirmari . Testibus .

Super fex aeris terre arabilis in territorio de Brothirftan' et rectis divifis ejufdem terre .

166 **O**mnibus fancte matris etc. Helyas de Brothirftanfide falutem . Noverit univerfitas veftra me divine caritatis intuitu dediffe et conceffiffe et hae mea carta confirmaffe Deo et ecclefie fancte Marie de Driburgh et canonicis ibidem Deo fervientibus vel fervituris fex plenarias aeris terre arabilis circumcinctas hijs divifis fcilicet ex orientali parte culture mee de Witerig totam terram arabilem jacentem inter marifeum vicinum ab aquilone et oriente et rivulum qui vocatur Blakeburn currentem ex auftro et ita ab oriente ficut marifeus et Blakeburn circumeingunt ex utraque parte totam terram continue et latum et longum verfus occidentem verfus [*ufque*] ad acervos lapidum quos ibi coram probis hominibus conceffi in divifas inter ipfas fex aeris terre et reliquam terram de Witerig in liberam puram et perpetuam elemofinam Tenendam fibi et habendam de me et heredibus meis imperpetuum pro animabus dominorum meorum et pro falute anime mee et uxoris mee et liberorum meorum et omnium antecessorum et fucefforum meorum cum omnibus ayfiamentis infra predictas metas in eadem terra prefatis fratribus neceffarijs prout fecundum difpofitionem fuam voluerint et valuerint et fibi expedire viderint ita libere quiete plenarie et honorifice fine omni fervicio et exactione ficut aliqua elemofina viris religiofis liberius et quietius plenius et honorificentius caritative dari potest et confirmari . Ut autem hec libera donatio mea imperpetuum rata permaneat et inconeuſſa prefenti ſcripto figilli mei teſtimonium appoſui . Teſtibus etc .

Super quinque acris terre in territorio de Brothirftan' et pafcura ad octoginta oves et quatuor boves cum uno equo .

- 167 **O**mnibus Chrifti etc. Thomas de Brothirftan' falutem eternam in Domino .
 Noverit univerfitas veftra me divine pietatis intuitu dediffe conceffiffe et hac mea carta confirmaffe Deo et beate Marie et ecclefie de Driburgh et canonicis ibidem Deo fervientibus in puram et perpetuam elemofinam unam acram terre in territorio de Brothirftane in augmentum fex acrarum in Vytrig et quatuor in territorio de Brothirftane proximo loco juxta predictas quatuor acras quas habent cum alijs ex dono antecellorum meorum cum tofto et domicilio que ego tenui tempore patris mei cum communi pafcura ad octoginta oves et quatuor boves cum uno equo libere plene quiete ab omni confuetudine et exactione et demanda Reddendo multuram quantum pertinet ad decem acras . Ego vero et heredes mei predictam donationem warantizabimus contra omnes homines et feminas et dotes mulierum . In cujus rei testimonium prefenti fcripto figillum meum apponi feci . Testibus etc .

Super una acra terre in territorio de Brothirftan' feu Viterig .

- 168 **O**mnibus Chrifti etc. Thomas de Brothirftan' eternam in Domino falutem .
 Noverit univerfitas veftra me divine pietatis intuitu et pro falute Johannis filij mei dediffe et hac mea carta confirmaffe Deo et ecclefie fancte Marie de Driburgh et canonicis ibidem Deo fervientibus et inperpetuum fervituris unam acram in territorio de Witerigh proximam fex acris dictorum canonicorum verfus occidentem quas habent ex collatione domini Helye avi mei in eodem territorio . Tenendam et habendam fibi in perpetuam et puram elemofinam abfque omni feculari exactione et demanda falva multura domini

quantum pertinet ad tantam terram . Ego vero et heredes mei dictam terram contra omnes homines et feminas warrantizabimus dictis canonicis inperpetuum . In cujus rei testimonium presentibus figillum meum apposui . Testibus etc .

Carta Symonis de la Wardrope super terra sua de Brothirftanß .

- 169 Sciant presentes et futuri quod ego Helyas de Brothirftane dedi et concessi et hac presenti carta mea confirmavi Symoni de la Wairdrope cum Matilda filia mea septemdecim acras terre et tertiam partem unius perchie in libero maritagio de meo dominio in territorio de Brothirftane in hijs locis .

Carta donationis Symonis de la Wairdrope super decem et octo acris terre in territorio de Brothirftans .

- 170 Omnibus Christi etc. Symon de la Wairdrope salutem in Domino . Noverit universitas vestra me de consensu et assensu Matildis uxoris mee filie Helye de Brothirftane et heredis mei dedisse concessisse et hac presenti carta mea confirmasse Deo et beate Marie de Dryburgh et abbati et conventui fratribus meis totam terram quam habui ex dono dicti Helye in territorio ville de Brothirftane scilicet decem et septem acras terre et unam acram quam habui in incrementum ex dono Alani filij dicti Helye cum mesuagio in dicto territorio prefate ville Tenendas et habendas sibi in liberam puram et perpetuam elemosinam ita libere quiete plenarie et honorifice cum omnibus assiamendis et libertatibus infra villam et extra sine omni exactione seculari et consuetudine sicut aliqua elemosina in regno Scotie ex dono Alani liberius quietius et plenius et honorificentius a viris

religiosis tenetur et possidetur Reddendo inde annuatim pro omni seculari exactione servicio et auxilio et consuetudine domino prefate ville et heredibus suis tres denarios ad Pentecosten et falva multura dicte terre . Ego autem Symon de la Wairdrope et heredes mei totam dictam terram cum prefcriptis libertatibus et ayfiamendis infra villam et extra contra omnes homines prefatis fratribus meis abbati et conventui de Driburgh warantizabimus acquietabimus et defendemus . Ut autem ista mea libera donatio robur perpetne firmitatis optineat eam presenti scripto et sigilli mei appositione roboravi . Testibus etc .

Quoddam principium carte super terra de Brothirftanß .

- 171 Omnibus Christi etc. Thomas filius Alani de Brothirftanß salutem eternam in Domino . Noverit universitas me dedisse et concessisse et hac presenti carta mea confirmasse Olivero fratri meo etc .

Super tosto et crosto et quatuor acris terre in territorio de Brotherftanß .

- 172 Omnibus Christi etc. Thomas de Brothirftanß salutem in Domino . Noverit universitas vestra me concessisse et hac presenti carta mea confirmasse abbati et conventui de Driburgh tostum et crostum que fuerunt Alani quarioris in villa de Brothirftan' et quatuor acras terre arabilis in territorio de Brothirftane super pratum camere libere quiete honorifice et plenarie in pratis et pasturis in aquis et semitis et cum omnibus communibus ayfiamendis dicte ville pertinentibus Reddendo inde annuatim mihi et heredibus meis unum denarium ad festum sancti Jacobi apostoli vel quasdam albas cyrothecas pro omnibus servicijs excepta multura domini .

quidem toftum et croftum et quatuor acras terre arabilis Oliverus frater meus dedit et carta fua confirmavit dictis abbati et conventui . Ego vero Thomas de Brothirftans et heredes mei predicta toftum et croftum et quatuor acras terre arabilis cum omnibus pertinentijs et libertatibus fuis dictis abbati et conventui contra omnes homines et feminas inperpetuum warantizabimus . In cujus rei testimonium figillum meum prefentibus appofui . Testibus etc .

Super viginti acris terre in territorio de Brothirftans .

- 173 **O**mnibus Chrifii fidelibus hoc fcriptum etc. Thomas filius Alani de Brothirftans falutem . Noverit univerfita veftra me divine caritatis intuitu et pro falute anime mee et pro falute patris mei et matris mee et omnium antecelforum et fucefforum meorum conceffiffe et hae mea carta confirmaffe Deo et ecclefe fancte Marie de Driburgh et canonicis ibidem Deo fervientibus et inperpetuum fervituris viginti acras terre in villa de Brothirftane in occidentali parte ejufdem ville fcilicet decem acras fubtus viam que ducit verfus Rogesburgh et decem acras fupra eandem viam quas pater meus dedit Helene forori mee et heredibus fuis in libero maritagio Quas quidem viginti acras terre Alanus filius dicte Helene dedit dictis canonicis de Driburgh . Hanc autem donationem dicti Alani conceffi et confirmavi dictis canonicis de Driburgh in puram et perpetuam elemofinam libere quiete plenarie et pacifice cum omnibus ayfiamendis et libertatibus predictae ville pertinentibus excepta multura que domino feudi debetur Reddendo inde annuatim mihi et heredibus meis unam libram piperis ad nundinas de Rogesburgh vel octo denarios pro omni fervicio et confuetudine et feculari demanda . Ego vero et heredes mei dictam donationem prefatis canonicis factam cum omnibus libertatibus et pertinentijs fuis contra omnes homines

et feminas warantizabimus . Ut autem hec mea concessio et confirmacio perpetue firmitatis robur optineat presentem cartam sigilli mei appositione roboravi . Testibus etc .

Super una acra terre et una acra prati in territorio de Lawder .

- 174 Univerſis ſancte matris etc. Everardus piſtor de Laweder eternam in Domino ſalutem . Noverit univerſitas veſtra me dediſſe et conceſſiſſe et hac preſenti carta mea confirmiſſe Deo et novo operi ſancte Marie de Driburgh et conventui ibidem Deo ſervienti pro ſalute dominorum meorum et mea unam acram terre arabilis in cultura que vocatur Alricheſ croſtys exterior in illa cultura et propinquiorem terre domini mei Alani de Galwythia verſus aquilonem et unam acram prati qui jacet inter terram arabilem exterius verſus auſtrum in puram et perpetuam elemofinam . Teſtibus etc .

Super duabus marcis ad ceram de molendino de Ulkilſtoun .

- 175 Univerſis preſentes literas inſpecturis Vilelmus de Abirnithy miles ſalutem in Domino . Noveritis quod ego intuitu Dei et honoris glorioſe virginis Marie et pro ſalute anime mee anteceſſorum et ſuceſſorum amicorum et familiarium meorum do et concedo Deo et eccleſie ſancte Marie et abbati et conventui de Driburgh duas marcas annui redditus ad ſuſtentionem luminis in miſſis ſancte Marie in dicta eccleſia celebrandis recipiendas annuatim de fructibus molendini mei de Ulkeſtoun ad quoſcunque dicti fructus devenerint . Et volo et ordino quod de dicta pecunia ſufficiens habeatur cereus ſpecialiter coram ymagine beate Virginis in choro dicte eccleſie . Promitto etiam fideliter pro me et heredibus meis et ſuceſſoribus dictum redditum annuum ſingulis annis dictis abbati et conventui inperpetuum

folvere ad festum purificationis sancte Marie et juxta formam prescriptam contra omnes homines warantizare . In ejus rei testimonium presentibus literis sigillum meum apposui . Datum anno Domini m^o cc^o lxx^o tertio in octavis apostolorum Petri et Pauli .

Super uno tofto et crofto et terra et prato in Samfonchelis .

- 176 **O**mnibus etc. Henrius filius Samfonis de Logis salutem . Noverit universitas vestra me consensu et assensu uxoris mee et heredis mei caritatis intuitu dedisse et concessisse et hac mea presenti carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et matriei mee ecclesie de Childinchireh in villa de Samfonchelis unum toftum et croftum toftum scilicet unius rode in fronte et croftum cum [*trium*] plenarum acrarum terre contigue eidem crofto proximo domui mee ab occidente et insuper terram illam tam arabilem quam pratum que jacet ex parte occidentali inter predictum croftum suum et rivulum metam inter terram meam et Pilemur videlicet incipiendo ex parte australi a quadam cruce lapidea statuta in margine ejusdem rivuli usque in Dereftrete versus boream in longum . Ad hec etiam acram que fuit Villehni filij Roberti cum terra que jacet inter eandem acram et fossatum inter Samfonchelis et Pilemur in latum et a supradicta cruce lapidea usque in viam que ducit ad Wennefheued in longum et sic per eandem viam ex parte orientali continue a fossato de Pilemore usque in Bradefrothirburne et inde tendendo versus aquilonem sicut rivulus ille antiquitus currebat usque in Leder . in liberam puram et perpetuam elemosinam et in terram ecclesie pro salute dominorum meorum et pro salute anime mee et uxoris mee et omnium antecessorum et successorum meorum Tenendam sibi et habendam inperpetuum ita libere quiete et sine omni consuetudine et seclari exactione sicut aliqua terra ecclesie vel alia elemosina ab aliquo in ecclesiasticum beneficium plenius quietius et

honorificentius potest conferri . Ego autem et heredes mei omnia forinfeca et auxilia et omnes exactiones dictam terram contingentes faciemus et totam eandem terram contra omnes homines dictis canonicis warantizabimus . Concessi etiam et dedi predictę domui communem pasturam trescentis ovibus et sexaginta averijs bobus vel vaccis et duobus caballis infra totam terram meam cum omnibus ayfiamendis totius terre mee et ut homines prefate domus undecunque venientes cum bobus vel caballis suis habeant omnia ayfiamenta infra precriptas metas terre sibi collate ad placitum suum sine contradictione aliqua prout voluerint et valuerint et sibi expedire viderint . Ut autem hec mea libera donatio perpetuum robur optineat stabilitatis eam presenti scripto et sigillo meo apposito et bonorum hominum testimonio roboravi . etc .

Super terra mea de Samfonchelis .

- 177 **O**mnibus sanctę matris etc. Henricus filius Samfonis salutem . Noverit universitas vestra me consensu et assensu uxoris et heredum meorum dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie sanctę Marie de Driburgh et matrieci ecclesie mee de Childinchirch in villa mea de Samfonchelis unum toftum et croftum toftum scilicet unius rode et croftum unius acre plene in crofto meo habentis in latitudine spacium novem rodarum per totum usque ad mensuram unius acre plene a fossato scilicet domus mee versus occidentem et ad hec ex occidentali parte ejusdem crofti proxime jacentem unam aeram prati in prato meo juxta fossatum exitus ejusdem ville et preter hec in territorio ejusdem ville totam terram illam que jacet inter aeram Willelmi filij Roberti et fossatum inter menm et Pilemor per istas divisas scilicet a fine predictę acre terre Willelmi usque ad unum Witnesbusk et inde usque in viam que ducit ad Wennchede et sic per viam illam continue usque in Bradestrotbirburne et inde tendendo versus aquilo-

nem sicut rivulus ille ivit antiquitus usque in Leder et ab ipsa aqua Leder versus occidentem usque in ficketum illud quod est inter me et Gilbertum generum meum in liberam et puram et perpetuam elemosinam et in terram ecclesie tenendam et habendam de me et heredibus meis inperpetuum ita libere et quiete et sine omni consuetudine et seculari exactione sicut aliqua terra ecclesie vel aliqua elemosina in ecclesiasticum beneficium ab aliquo plenius et quietius dari et confirmari potest pro salute dominorum meorum et pro salute anime mee et uxoris mee et liberorum meorum et omnium antecessorum et successorum meorum specialiter autem pro anima patris mei Samfonis et pro anima matris mee . Dedi etiam et concessi predictae domui communem pasturam decies viginti ovibus et quadraginta averijs bobus vel vaccis et duobus caballis in tota terra mea cum omnibus alijs ayfamentis totius terre mee . Preterea volo et concedo ut homines prenominatae domus undecunque venientes cum bobus vel caballis suis habeant omnia ayfamenta infra prescriptas metas pretaxate terre quam dedi eis ad placitum suum sine contradictione prout voluerint et valuerint et sibi expedire viderint . Ut autem hec mea donatio libera inperpetuum rata sit et inconcussa presenti scripto sigillum meum apposui et illud testimonio bonorum hominum corroboravi . Testibus etc .

Item super terra de Samfonchelis .

178 **O**mnibus etc. Wilhelmus filius Roberti salutem . Noverit universitas vestra me divine caritatis intuitu dedisse et concessisse et hac mea carta confirmasse consensu et assensu heredum meorum Deo et ecclesie sancte Marie de Dryburgh et canonicis ibidem Deo servientibus et servitoris in liberam puram et perpetuam elemosinam pro salute dominorum meorum et omnium antecessorum et successorum meorum unum croftum [*toftum*] in villa de Samfonchelis scilicet quod est inter domum Gilberti generi Henrici et domum Ade

filie Lyolphy cum crofto et [*eidem*] tofto adherenti et preterea in territorio ejusdem ville totum illud pratum quod jacet inter Morelaw et Kaldewell in longum et inter Standandestane et capud croftorum de Longis ex utraque parte rivuli in latum et etiam totam terram cultam cum mora que infra idem pratum et extra mea fuit incipiendo a predicto Morilaw in obliquum usque ad Standandestane et inde versus orientem per viam juxta jacentem usque ad quendam Witnesbufg' ultra viam que venit de Wennesheuede et ab eodem Witnesbusk versus orientem facto circuitu versus ampnem Leder usque ad prenomiatum Caldewell Tenenda sibi inperpetuum in liberam et puram elemosinam ita libere quiete plenarie et honorifice ab omni consuetudine et seculari exactione sicut aliqua elemosina ab aliquo liberius quietius plenius et honorificentius viris religiosus potest conferri . Et sciendum est quod ego et heredes mei totam dictam terram prefatis canonicis contra omnes homines warantizabimus et forinseca et omnia alia ipsam terram contingentia faciemus . Ut autem hec mea libera donatio dictis canonicis inperpetuum stabili sit et inconeussa prefens scriptum eisdem contuli sigillo meo roboratum . Testibus etc .

Item super tofto et crofto in Samfonfelis .

- 179 **O**mnibus Christi etc. Henricus filius Samsonis de Logis salutem . Noverit universitas vestra me divine caritatis intuitu concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et servituris domum Willelmi filij Roberti quod eisdem canonicis fecit scilicet unum toftum in villa de Samfonfelis illud scilicet quod est inter domum Gilberti generi mei et domum Ade filie Lyolphy cum crofto eidem tofto adherenti et preterea in territorio ejusdem ville totum illud pratum quod jacet inter Morilaw et Caldevele in longum et inter Standandestane et capud croftorum de Logis ex utraque parte rivuli

in latum et etiam totam terram cultam cum mora que infra id pratum et extra mea fuit incipiendo a predicto Morilaw in obliquum usque ad Standandstane et inde versus orientem per viam juxta jacentem usque ad quandam Witnesbusk ultra viam que venit de Wennefhened et ab eodem Witnesbusk versus orientem facto circuitu versus ampnem Ledre usque ad prenomiatum Caldewell sicut carta ejusdem Willelmi eidem proportat Tenenda sibi in perpetuum libere et quiete ab omni seculari exactione sicut aliqua elemosina liberius potest et quietius concedi . et warantizabimus ego et heredes mei eidem canonicis prefatum donum contra omnes homines . Ut autem hec mea concessio perpetuum optineat robur firmitatis eam presenti scripto et sigilli mei munimine roboravi . Testibus etc .

Super tofto et crofto in Samfonchelis .

- 180 **Omnibus** sancte matris etc. Alanus filius Rollandi Scotie constabularij salutem . Noverit universitas vestra nos concessisse et hac presenti mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et matri ecclesie de Childinchirch in villa de Samfonchelis unum toftum et croftum cum alijs terris quas Henricus filius Samfonis canonicis dicti loci de Driburgh dedit infra terram suam sicut carta ejusdem Henrici iuste testatur et proportat . salvo nobis et heredibus nostris servicio nostro . Et ut hec mea confirmatio rata permaneat et inconcussa presenti scripto sigillum meum apposuimus . Testibus etc .

Item super terra et prato in Samfonchele .

- 181 **Omnibus** Christi etc. Willelmus filius Roberti salutem . Noverit universitas vestra me divine caritatis intuitu dedisse et concessisse et hac mea carta con-

firmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et servituris in liberam puram et perpetuam elemosinam pro salute dominorum meorum et omnium antecessorum et successorum meorum totum illud pratum quod habui ex dono Samsonis de Logis scilicet totum illud pratum quod ex utraque parte rivuli jacet inter Morilaw et Caldeweale in longum et inter Standandstane et capud croftorum de Logis in latum et etiam totam terram cultam que jacet infra idem pratum Tenenda sibi inperpetuum ita libere quiete plenarie et honorifice absque omni consuetudine et seculari exactione sicut aliqua elemosina ab aliquo liberius quietius plenius et honorificentius viris religiosus potest conferri . Et sciendum est quod ego et heredes mei totam dictam terram prefatis canonicis warantizabimus contra omnes homines et forinseca et omnia alia predictam terram contingentia faciemus . Ut autem hec mea libera donatio dictis canonicis inperpetuum robar optineat firmitatis prefens scriptum eidem contuli sigillo meo roboratum . Testibus .

Item confirmatio Henrici filij Samsonis super predicto prato et terra .

- 182 **O**mnibus etc. Henricus filius Samsonis de Logis salutem . Noverit universitas vestra me divine caritatis intuitu concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus donum Willelmi filij Roberti quod ipse eidem canonicis fecit super toto illo prato quod idem Willelmus habuit ex dono patris mei et terra culta jacente infra idem pratum scilicet super prato illo quod ex utraque parte rivuli jacet inter Morilaw et Caldeweale in latum et longum sicut carta ejusdem Willelmi eidem proportat Tenendum sibi inperpetuum libere et quiete ab omni seculari exactione sicut aliqua elemosina liberius potest et quietius concedi . Et warantizabimus ego et heredes mei eidem canonicis prefatum donum contra omnes homines . Ut autem hec mea

concessio perpetuum robur optineat firmitatis eam presenti scripto et sigilli mei munimine roboravi . Testibus .

Carta Willelmi de Burnecastall super prato quod vocatur Flaxillis et septem aeris terre cum tosto in Logis Samsonfehele et super quatuor denarijs vel dimidia libra piperis pro eadem terra annuatim solvendis .

- 183 Omnibus Christi etc. Willelmus de Burnecastall salutem in Domino .
 Noverit universitas vestra me divine caritatis intuitu dedisse concessisse et hac mea carta confirmasse Deo et beate Marie de Driburgh et canonicis ibidem Deo servantibus et inperpetuum servituris unum pratum in Logis Samsonis quod vocatur Flaxillis et moram unam que jacet inter predictum pratum et viam que venit per Standandstane et inter terram illam quam Ricardus venator colere solebat et Loufilawe [*Dunfelaue*] et quatuor aeras in Folkefflate scilicet unam que jacet inter terram que fuit Henrici filij Samsonis et terram predictorum canonicorum cum tosto et tres aeras in Folkefflate proximas terre Hutredi carpentarij in australi parte cum omni pastura et omnibus assiamendis in liberam puram et perpetuam elemosinam adeo libere quiete plenarie et honorifice ab omni forinseco et seculari exactione consuetudine et demanda sicut in carta predecessorum meorum plenius continetur Reddendo inde annuatim quatuor denarios vel dimidiam libram piperis infra nundinas de Rogelburgh . Ego vero et heredes mei dictum pratum et totam dictam terram cum omnibus libertatibus suis predictis canonicis contra omnes homines et dotes vel tertias feminarum warrantizabimus et defendemus . preterea confirmo hac carta mea pro me et heredibus meis dictis canonicis omnes donationes et concessiones omnium predecessorum meorum que me vel heredes meos in aliquo contingunt vel contingere poterint . Ut autem hec mea libera donatio et confirmatio robur firmitatis

optineat inperpetuum eam presenti scripto et figillo meo apposito et virorum bonorum testimonio roboravi . Testibus etc .

Confirmatio Alexandri filij Henrici super dono Willelmi de Burnecastall .

- 184 **O**mnibus hoc scriptum etc. Alexander filius Henrici de Samfonfelis salutem . Noverit universitas vestra me concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus et servituris donationem quam fecit eis Willelmus de Burnecastall videlicet de uno prato in Logis Samfonis quod vocatur Flaxillis et mora una que jacet inter predictum pratum et viam que venit per Standandstane et inter terram illam quam Ricardus venator colere solebat et Dunsfelaw et de quatuor acris in Folkefflat scilicet una que jacet inter terram que fuit Henrici filij Samfonis et terram predictorum canonicorum cum tosto et tribus acris in Folkefflate proximis terre Hutredi carpentarij australi parte cum omni pastura in liberam puram et perpetuam elemosinam adeo libere quiete plenarie et honorifice ab omni forinseco et seculari exactione et consuetudine et demanda sicut in carta dicti Willelmi super hoc confecta et dictis canonicis collata plenius continetur . Ad majorem autem hujus mee concessionis et confirmationis securitatem prefens scriptum figillo meo roboravi . Testibus etc .

Super quatuor acris terre et quatuor acris prati ecclesie de Childinchirch concessis .

- 185 **U**niversis sancte matris etc. Thomas clericus filius Willelmi de Collilaw salutem in Domino . Noverit universitas vestra me divine caritatis intuitu et pro salute anime mee et pro salute animarum omnium antecessorum et successorum meorum dedisse concessisse et hac mea carta confirmasse Deo et ecclesie sancti Cutberti de Childinchirch et canonicis de Driburgh octo acras terre scilicet quatuor acras terre arabilis et quatuor acras prati scilicet le halch subtus Langefyde in territorio de Ulkilstoun in puram et perpetuam elemosinam tenendam et possidendam sibi de me et heredibus meis in perpetuum adeo libere quiete plenarie et honorifice sicut aliqua elemosina liberius quietius plenius et honorificentius ab aliquibus viris religiosis in toto regno Scotie tenetur et possidetur . Ego autem et heredes mei prenominatam terram prefatis canonicis contra omnes homines warrantabimus . Et ut hec mea donatio concessio et confirmatio perpetuum robur optineat firmitatis presenti scripto sigillum meum apposui . Testibus etc .

Super indempnitate ecclesie de Childinchirch ratione capelle de Glengelt' .

- 186 **O**mnibus hoc scriptum etc. Henricus de Mundevilla eternam in Domino salutem . Universitati vestre significo me tam cautione juratoria prestita quam presenti scripto obligatum fore erga dominum abbatem et conventum de Driburgh pro me et heredibus meis perpetuo quod nunquam ratione capelle in curia mea de Glengelt construite matrici ecclesie de Childinchirch in aliquo prejudicabo sed obventiones omnimodas dicte ecclesie de Childinchirch indempniter confirmabo secundum tenorem carte ab abbate et conventu de Driburgh super divinorum in dicta capella celebratione mihi collate . Dedi

infuper et conceffi dictis abbati et conventui de Driburgh tres acras terre in territorio meo de Glengelt contiguas illis feptem acris terre quas ex collatione domini Ivonis de Veteri ponte antecefforis mei in eodem territorio tenent et poffident ex orientali parte dicte ecclefie de Childinchirch Tenendas et habendas fibi in puram et perpetuam elemofinam per metas et divifas in carta mea fuper hijs tribus acris terre confeâta plenius nominatas quarum etiam fayfinam eifdem feci plenariam . In cujus rei robur perpetuum prefenti feripto figillum meum appofui . Teftibus etc .

Super una libra piperis et altera cymini pro decima de Fulewithnis in parochia de Childinchirch a magiftro de Soutre nobis folvendis annuatim .

- 187 **H**ec eft conventio facta inter abbatem et conventum de Driburgh ex una parte et magiftrum de Soutre et fratres ejufdem loci ex altera feilicet quod idem abbas et conventus caritatis intuitu concefferunt et relaxaverunt domui de Soutre et fratribus ejufdem loci omnes decimationes et reftituciones quas ijdem fratresolvere deberent jure ecclefiafticomatrici ecclefie de Childinchirch de illa carucata terre quam habuit in parochia de Childinchirch que vocatur Fulewithnis ad Wedelford tam feilicet in blado in ufus proprios ex proprijs fumptibus culto quam in alijs mobilibus in eadem terra ipsis reddentibus domui de Driburgh annuatim pro recognitione matricis ecclefie de Childinchirch unam libram piperis et alteram cymini ad nundinas de Rogefburgh . Et notandum eft quod hoc eifdem fratribus caritative conceffum eft quamdiu predictam terram in ufus proprios proprio cultu tenent . fervientes vero eorum in eadem terra et eciam omnes homines quos habuerint fub fe in eadem terra fedentes plene et integre per omnia folvent decimas fuas et omnes reftituciones matriçi ecclefie de Childinchirch tam in vita quam in obitu five incolatur ipfa terra a domo de Soltre five non . fi autem fratres prefate domus de Soltre jam dictam terram alijs dederint vel vendiderint fen etiam

ad firmam dimiserint omnes donationes et jura ecclesiastica totius illius terre tam de blado quam de ceteris omnibus plenarie et integre in omnibus matrici ecclesie perfolventur . Preterea ita convenit inter eos quod si fratres sepeditæ domus de Solre scilicet ab anno incarnationis Domini m^o cc^o xx^o aliquam terram in parochia de Childinchirel ad firmam acceperint vel ex [] alicujus consecuti fuerint predictam terram plenarias decimationes et jura ecclesiastica integre in omnibus et per omnia matrici ecclesie de illa terra et de omnibus in ea perfolvent similiter et ubicunque in eorum parochijs aliquid habuerint tam ipsi quam eorum servientes et homines de se tenentes . In hujus autem rei testimonium scripto istius conventionis sigilla utriusque domus hinc sunt apposita et inde . Testibus etc .

Super quinque acris terre in territorio de Sawlton concessis et super divisis ejusdem terre .

- 188 Omnibus Christi etc. Johannes de Sawlton et Agnes sponsa ejus filia et heres Thome filij Spilmani salutem . Noverit universitas vestra nos divine pietatis intuitu et pro salute animarum nostrarum et pro anima Thome filij Spilman et animabus omnium antecessorum et successorum nostrarum dedisse concessisse et hac nostra presenti carta confirmasse Deo et beate Marie de Driburgh et matri ecclesie sancti Michaelis de Sawlton et canonicis de Driburgh ecclesie ejusdem rectoribus quinque acras terre in territorio de Sawlton juxta crucem versus orientem per istas divisas . incipiendo a via que ducit versus orientem apud Blauchou ex parte aquilonali predictæ terre directæ ascendendo versus austrum in longum usque ad illam culturam que vocatur Langelandis et inter acram que solet esse Thome filij David et illam culturam que vocatur Wendales in latum in perpetuum sicut dictis canonicis terram sepeditam coram probis hominibus assignavimus plenariam et integram tenendam et habendam libere quiete

integre et pacifice in liberam puram et perpetuam elemosinam sicut aliqua elemosina liberius quietius et honorificentius alicui ecclesie potest dari vel confirmari ad sustentationem luminis diebus festivis super altare beate Marie Magdalene in predicta ecclesia et ut in qualibet septimana semel servitium ad prenominationum altare celebretur . Hanc vero donationem nos et heredes nostri sepe dicte ecclesie contra omnes homines warrantizabimus in perpetuum . Ut autem ista donatio et concessio rata permaneat et inconcussa prefens scriptum sigilli nostri appositione roboravimus . Testibus etc .

Super terra a parte orientali grangie nostre de Saultoun nobis data .

- 189 **U**niversis Christi fidelibus etc. Henricus filius Willelmi de Saultoun eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu et pro salute anime patris mei et matris mee et pro salute animarum omnium antecessorum et successorum meorum dedisse et concessisse et hac presenti carta mea confirmasse Deo et ecclesie beate Marie de Driburgh et canonicis ordinis Premonstratensis ibidem Deo fervientibus a parte orientali grangie ipsorum canonicorum in Saultoun totam terram illam in territorio ejusdem ville de Saultoun quam Willelmus pater meus eidem caritative contulit et de qua eidem dum adhuc viveret plenariam fayfinam fecit Tenendam et habendam sibi de me et heredibus meis in liberam puram et perpetuam elemosinam adeo libere et quiete plenarie et honorifice sicut aliqua elemosina ab aliquibus viris religiosi liberius quietius plenius et honorificentius tenetur et possidetur . Ego autem et heredes mei hanc dictam donationem et concessionem dictis canonicis contra omnes homines et dotes mulierum warrantizabimus in perpetuum . In cujus rei robur et testimonium presenti scripto sigillum meum apposui . Testibus etc .

Super quatuor aeris terre ecclesie de Saultoun concessis .

- 190 **O**mnibus has literas etc. Johannes Burgulum de Saultoun salutem in Domino . Noverit universitas vestra me in veneratione sancte crucis et divine pietatis intuitu et pro salute anime mee et animarum antecessorum et successorum meorum dedisse concessisse et hac mea carta confirmasse Deo et beate Marie et matrici ecclesie sancte Michaelis de Saultoun et canonicis de Driburgh ejusdem ecclesie rectoribus quatuor aeras terre in territorio de Saultoun scilicet in parte aquilonali illius culture que vocatur Langeleys cum communi pastura tam in terra mea quam in communia ejusdem ville et cum omnibus ayfamentis et libertatibus terre mee pertinentibus inperpetuum sicut dictis canonicis terram prenominatam coram probis hominibus assignavi plenariam et integram Tenendam et habendam sibi et successoribus suis libere quiete integre et pacifice in liberam puram et perpetuam elemosinam sicut aliqua elemosina liberius quietius et honorificentius alicui ecclesie in regno Scotie potest dari vel confirmari ad sustentationem luminis diebus festivis ante in predicta ecclesia . Hanc vero donationem ego et heredes mei sepedicte ecclesie contra omnes homines warrantizabimus inperpetuum . Ut autem ista donatio et concessio rata permaneat et inconvulsa prefens scriptum sigilli mei appositione roboravi . Testibus etc .

Super indempnitate ecclesiarum de Childinchireh et Saultoun pro capellis de Irdmanstoun et Carfra et super duabus aeris terre in territorio de Irdmanstoun .

- 191 **O**mnibus Christi etc. Johannes de Saunceler salutem in Domino . Noverit universitas vestra quatenus viri religiosi abbas et conventus de Driburgh concesserint mihi et heredibus meis ut possimus construere capellas tam

apud Hirdmanstoun quam apud Carfra et habere capellanum in eisdem celebrantem videlicet nobis et familie domus nostre et hospitibus seu extraneis supervenientibus et non alijs . ego Johannes pro me et heredibus meis fideliter promitto quod matrices ecclesie de Saultoun et de Childinchirch nullum occasione dictarum capellarum incurrerint dampnum vel jacturam et omnes obventiones ad dictas capellas undecunque provenientes faciemus in perpetuum fideliter et integre matricibus ecclesijs restitui . capellani vero qui in dictis capellis ministrabunt antequam ministrent in aliqua illarum fidelitatem facient matrii ecclesie et jurabunt quod ipsas matrices ecclesias ratione dictarum capellarum in omnibus conservabunt indemnes . quod si forte aliquod dampnum vel prejudicium occasione dictarum capellarum matrii ecclesie ejusdem evenerit volo quod quicumque in eadem matrice ecclesia ministraverit potestatem habeat dictam capellam suspendendi quoadusque matrix ecclesia iustam super dicto dampno vel prejudicio receperit emendationem . Et sciendum quod die Nativitatis Domini Purificationis Palmarum Pasche Pentecostes Omnium sanctorum et in precipuo festo matricis ecclesie nec ego nec heredes mei audiemus divina in aliqua predictarum capellarum nec celebrabitur missa in aliquo predictorum dierum . Ego vero in recognitionem juris utriusque matricis ecclesie dedi et concessi et hac presenti carta mea confirmavi dictis abbati et conventui duas acras terre in territorio meo de Hirdmanstoun que jacent propinquiores terre eorundem de Santoun quas eisdem feci mensurari et eosdem in possessione posui . Ego insuper et heredes mei dictas duas acras dictis abbati et conventui warantizabimus in perpetuum . In cujus rei testimonium presenti scripto figillum meum apposui . Testibus etc .

Sentencia iudicium super una marca annua ecclesie de Kilrethny a monachis de May annuatim solvenda ad Pentecosten et ad festum sancti Martini .

- 192 **Omnibus** Christi etc. Adam Dei gracia abbas et prior de Melros et Ricardus decanus de Tevidall salutem in Domino . Mandatum domini Pape in hec verba suscepimus . Honorius episcopus servus servorum Dei dilectis filiis abbati et priori de Melros et decano de Thevidale Glasguensis diocesis salutem et apostolicam benedictionem . Querelam dilectorum filiorum abbatis et conventus de Driburgh Premonstratensis ordinis recepimus continentem quod prior et monachi de May et quidam alij diocesis sancti Andree super quibusdam decimis ad ecclesiam eorum de Kilrethny de jure spectantibus et rebus alijs injuriantur eisdem ideoque discretionis vestre per apostolica scripta mandamus quatinus partibus convocatis audiatis causam et appellatione remota sine debito terminetis facientes eisdem [quod] decreveritis per censuram ecclesiasticam firmiter observari . Testes autem qui fuerint nominati si se gracia odio vel timore subtraxerint censura simili appellatione cessante cogatis veritati testimonium perhibere . Quod si non omnes et cetera . Datum Signie vº idus Augusti . Hujus igitur auctoritate mandati partibus in nostra presentia constitutis pars canonicorum intentionem suam fundavit in hijs verbis . Dicunt abbas et conventus [de] Driburgh quod cum naves et navicelle piscarie applicantes in rivulo illo qui est medius terminus inter parochiam de Kilrethny ex una parte et parochiam de Kinfrothir ex altera propter vicinitatem locorum situ suo metas occupent parochie de Kilrethny que extenditur usque in medium alveum ejusdem rivuli et anchoras suas infra metas ejusdem parochie figentes adminiculo ejusdem ibidem resident et in metis suis pernoctantur medietas decimarum omnium navium et navicellarum piscariorum ibidem applicantium et metas dicte parochie occupantium de jure spectare debet ad matricem ecclesiam de Kilrethny quam

medietatem in prejudicium ejusdem ecclesie prior et monachi de May ut dicunt dicti abbas et conventus sibi usurpant et detinent unde sibi petunt justiciam exhiberi . ista autem dicunt salvo sibi jure addendi vel mutandi vel muniendi . De hijs igitur lis inter partes aliquandiu agitata per provisionem judicum de assensu partium hoc fine quievit quod monachi de May pro bono pacis solvent annuatim inperpetuum unam marcam argenti medietatem ad Pentecosten et medietatem ad festum sancti Martini ecclesie parochiali de Kilrethny in eadem ecclesia scilicet procuratori abbatis et canonicorum ad hoc constituto et per hanc solutionem dicte marce liberi erunt dicti monachi et immunes ab omni exactione et impeditone canonicorum quoad omnia supranominata . Hoc salvo quod canonici de parochianis proprijs hoc est de hijs qui percipiunt spiritualia jure parochiali in ecclesia canonicorum commorantibus in eadem parochia ad dictam partem littoris applicantibus decimas integre percipient . monachi vero de omnibus alijs aliunde venientibus ad eandem partem littoris applicantibus decimas percipient integraliter et neutra pars in prejudicium alterius aliquid acceptabit . Ut autem pax ista amicabilem et caritative formata inperpetuum firma sit nos de voluntate partium eandem confirmamus apostolica auctoritate qua fungimur et ad securitatem perpetuam huic instrumento signa nostra una cum sigillis partium et cum sigillo abbatis de Redinch fecimus apponi . Datum apud Melros anno gracie m° cc° xxv° Idus Decembris in prefencia multorum .

Super dimidia marca ad natale Domini a priorissa de Eccles annuatim nobis solvenda scilicet de terra de Hunteredis .

- 193 Omnibus Christi etc. Thomas de Lessedewyn eternam in Domino salutem .
Noverit universitas vestra me pro salute anime mee et pro salute omnium antecessorum et successorum meorum dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem

Deo fervientibus dimidiam marcam argenti in perpetuam et puram elemosinam ad petanciam predictorum canonicorum die nathalis Domini annuatim inperpetuo percipiendam de me et heredibus meis de firma terre mee de Huntrodes apud Eccles ad festum sancti Martini in hyeme quam quidem terram Priorissæ et conventui de Eccles et ejusdem loci conventus magistro qui pro tempore fuerit in perpetuam prebendam firmavi dedi et concessi prout in munimentis inter me et ipsos confectis continetur . Volo etiam et concedo ut dicti Priorissa et conventus et eorum magister qui pro tempore fuerint de firma mea vel heredum meorum in qua mihi vel heredibus meis annuatim ad festum sancti Martini in hyeme tenentur sine ulteriori dilatione absque ulla cavillatione dictam dimidiam marcam ad dictum tempus dictis canonicis perpetuo perfolvant . Et ut hec mea donatio firma sit et stabilis presenti scripto sigillum meum apposui .

Super petaria de Fawnys et rectis divisis ejusdem petarie .

- 194 Omnibus Christi etc. Adam de Faunys salutem . Noverit universitas vestra me divine pietatis intuitu dedisse concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in territorio meo de Faunes unam petariam ex occidentali et australi parte de Kingeswell per has divisas scilicet incipiendo ab eodem Kingeswell versus occidentem per sicutum aquilon[al]em usque ad longas fossas Arkilly et inde versus austrum per fossatum qui jacet ab occidente usque ad fossatum australem quem coram hominibus meis feci in metam inter eandem petariam canonicorum et petariam hominum meorum et iterum ex alia parte incipiendo a predicto Kingeswele versus austrum per cursum ejusdem fontis directo usque in prenominationum fossatum australem circumentem prefatam petariam ab austro et sic infra eundem fossatum et transversum versus occidentem usque ad quandam crucem lapideam erectam ab occidente in

liberam puram et perpetuam elemosinam et pro salute anime mee et uxoris mee et heredum meorum et omnium antecessorum et successorum meorum . Volo igitur et concedo ut predicti canonici teneant habeant inperpetuum totam terram infra predictas divisas contentam cum libero introitu et exitu ubicunque viderint sibi expedire et cum communi pastura tam bobus suis quam caballis ad eandem petariam accedentibus et in ea laborantibus libere quiete et honorifice sicut aliquam terram liberius quietius et honorificentius tenent et possident . et ut redigant predictam petariam in pratum aut in pasturam aut in quemlibet usum alium sicut sibi commodius viderint expedire absque omni contradictione . et sciendum quod ego et heredes mei warrantabimus totam predictam terram prefatis canonicis cum divisis et assiammentis suis contra omnes homines . Testibus etc .

Item super alia petaria in Fawnys .

- 195 **U**niversis Christi etc. Adam de Gordun miles eternam in Domino salutem . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et Alicie sponse mee et pro salute animarum omnium antecessorum et successorum meorum dedisse concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ordinis Premonstratensis ibidem Deo fervientibus et servituris in liberam puram et perpetuam elemosinam totam petariam meam in territorio de Faunes que incipit ab australi parte portionis que fuit Ade generis Willelmi versus occidentem proxime jacentem divisas petarie quam Adam de Faunes contulit canonicis supradictis cum libero introitu et exitu ubicunque sibi viderint expedire et cum communi pastura tam bobus suis quam caballis ad eandem petariam accedentibus et in ea laborantibus adeo libere quiete et honorifice sicut aliqua elemosina in regno Scocie liberius quietius et honorificentius tenetur et possidetur . et ut redigant predictam petariam in pratum aut pasturam aut

quemlibet alium ufum ficut fibi commodius viderint expedire abfque ulla contradicthone mei vel heredum meorum . et feiendum eft quod ego Adam et heredes mei dictam petariam cum omnibus ayfiamementis fuis et divifis dictis canonicis inperpetuum contra omnes homines warantizabimus . In cujus rei testimonium prefenti fcripto figillum meum appofui . Testibus etc .

Item fuper una acra terre in villa de Fawnes .

- 196 **O**mnibus hoc fcriptum etc. Ricardus filius Nicholayi de Faunes falutem . Noverit univerfitas veftra me divine pietatis intuitu et pro falute animarum patris mei et matris et pro falute animarum omnium antecessorum et fuecessorum meorum dediffe concessiffe et hac prefenti carta mea confirmaffe Deo et ecclefie fancte Marie de Driburgh et canonicis ordinis Premonftratenfis ibidem Deo fervientibus in tenemento meo de Fawnes unam acram terre illam fcilicet que jacet proxima communi ville de Faunes juxta partem occidentalem de Suthebuttes infra foſſatum et incipit a ftrata publica et descendit ufque ad pratum domini Tenendam et habendam fibi inperpetuum in liberam puram et perpetuam elemofinam adeo libere et quiete et honorifice ficut aliqua elemofina in regno Scocie ab aliquibus viris religioſis liberius quietius et honorificentius tenetur et ab eisdem poſſidetur . Ego autem et heredes mei dictam acram terre dictis canonicis contra omnes homines warantizabimus et ad majorem hujus mee donationis fecuritatem quia figillum proprium non habui figillum Henrici Belle patris mei in lege prefenti fcripto apponi feci . Testibus etc .

Super plenaria dimidia acra terre in territorio de Fawnys et rectis divisis ejusdem terre .

- 197 **O**mnibus Christi etc. Eda filia Nicholaij de Faunys salutem . Noverit universitas vestra me consensu et assensu Johannis sponsi mei dedisse et concessisse et presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in puram et perpetuam elemosinam pro animabus patris et matris mee et pro salute anime mee et Johannis viri mei ac successorum meorum unam plenariam dimidiam acram terre cum omnibus pertinentijs in territorio de Faunys illam scilicet que jacet proxima illi acre terre versus orientem quam Ricardus frater meus dictis canonicis dedit . Tenendam et habendam eisdem canonicis adeo libere quiete plenarie et honorifice sicut aliqua elemosina in regno Scotie ab aliquibus viris religiosis liberius quietius plenius et honorificentius tenetur et possidetur . Sciendum autem quod plenariam fayfinam feci dictis canonicis de supradicta dimidia acra terre . In cujus rei testimonium quia proprium sigillum tunc temporis non habui prefens scriptum sigillo dilecti mei Henrici Belle signavi . Testibus etc .

Super turbaria de Fawnys et communi pastura bobus seu caballis in dicta turbaria laborantibus .

- 198 **O**mnibus sancte matris etc. Ricardus de Faunis salutem . Noverit universitas vestra me dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in territorio meo de Faunys turbariam que est ex occidentali parte de Kingeweles sicut jacet inter fossatas scilicet acram et dimidiam et ex parte australi fossate dimidiam acram turbarie propinquiorem predictis acre et dimidie in

liberam et puram et perpetuam elemosinam pro salute anime mee et uxoris mee et heredum meorum et omnium antecessorum et successorum meorum . Volo etiam et concedo ut predicti canonici habeant communem pasturam tam bobus quam caballis in predicta turbaria laborantibus et redigant predictam turbariam in pratum aut pasturam aut in quemlibet usum sicut sibi commodius viderint expedire absque omni contradictione et teneant eam et possideant ita libere quiete et honorifice sicut aliquam terram liberius quietius et honorificentius tenent et possident . etc .

Super turbaria in Fawnys et rectis divisus ejusdem turbarie .

- 199 **O**mnibus sancte matris etc. Patricius comes de Dunbar eternam in Christo salutem . Noverit universitas vestra me concessisse et hac mea presenti carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in territorio de Faunys illam turbariam que est ex occidentali parte de Kingeswele sicut jacet inter fossatas scilicet aeram et dimidiam et ex parte australi fossate dimidiam aeram turbarie propinquiorem predictis aere et dimidie . Tenendam et habendam in liberam puram et perpetuam elemosinam ita libere quiete plenarie et honorifice in omnibus et per omnia sicut continetur in carta Ricardi de Faunys . Preterea concedo et hac mea carta confirmo predictis canonicis totum pratum de Kingesete per suas plenas divisas Tenendum de Ricardo de Faunys et heredibus ejus usque ad terminum inter eos statutum ita libere et quiete et plenarie et honorifice in omnibus libertatibus et per omnia sicut continetur in cyrographo inter eos et Ricardum de Faunys facto . Heec omnia supradicta predictis canonicis concedo et confirmo in omnibus sicut statutum est salvo servitio meo . etc .

Sententia iudicium super Maxtoun et super dimidia carucata terre nobis in territorio de Newtoun cum pastura ad quatuor boves et unum caballum data et super recognitione juris quod habuimus in ecclesia de Maxtoun .

- 200 **O**mnibus Christi etc. Thomas et Ivo de sancto Andrea et de May priores et magister S . de sancto Andrea salutem . Noverit universitas vestra quod causa que vertebatur super ecclesia de Maxtoun inter abbatem et conventum de Driburgh ex una parte et Hugonem militem de Normanvill et Ricardum de Normanvill de Maxtoun ex altera parte nobis a domino Papa delegata et coram nobis aliquandiu ventilata in hac forma pacis mediante auctoritate qua functi fuimus finaliter et perpetuo terminata est . videlicet quod predicti abbas et conventus quietum clamaverunt prefato Henrico militi et heredibus suis et eorum successoribus omne jus quod in ecclesia de Maxtoun habere potuerunt aut habere dixerunt et quod nullo tempore contra ipsum militem et heredes suos et eorum successores super illa ecclesia querimoniam movebunt . Predictus etiam miles pro bono pacis perpetue dedit et concessit et sua carta confirmavit abbati et canonicis de Driburgh dimidiam carucatam terre in territorio de Newtoun integram et quietam a multura ab omni consuetudine et seculari exactione per metas et divisas que in carta ipsius militis continentur . Qui quidem miles et heredes sui vel successores predictam terram predictis canonicis warrantizabunt contra omnes homines . habebunt et sepedicti canonici communem pasturam quatuor bobus et uni caballo cum hominibus de Newtoun . Hanc igitur terram predicti abbas et conventus tenebunt et possidebunt in puram et perpetuam elemosinam . Nos igitur hanc pacem auctoritate domini Pape confirmamus et ut in posterum hec confirmatio rata sit et irrefragabilis presenti scripto sigilla virorum venerabilium sancti Andree et Glasguenfis episcoporum una cum nostris sigilla etiam abbatis et conventus de

Driburg et Henrici militis decernimus apponi et testes annotari .
Testibus etc .

Super dimidia carucata terre in territorio de Newtoun nobis concessa et
pastura ad quatuor boves et unum caballum .

- 201 Omnibus Christi etc. Hugo de Morevill salutem . Noverit universitas
vestra me dedisse et concessisse et presenti carta mea confirmasse Deo et
sancte Marie de Driburgh et canonicis ibidem Deo ferventibus pro salute
anime mee et predecessorum meorum dimidiam carucatam terre in territorio
de Newtoun scilicet quam Willelmus senescallus meus tenuit ab occidentali
parte de Dereftrete in longum et latum juxta metas et divisas de Thirle-
stan que coram abbate de Driburgh et me et probis hominibus facte sunt
in puram et perpetuam elemosinam Tenendam liberam et quietam a mul-
tura et ab omni consuetudine firma et servitio seculari cum communi
pastura quatuor bobus et uni caballo cum hominibus de Newtoun . Ego
autem et heredes mei warrantizabimus predictis canonicis predictam terram
contra omnes homines et ad hanc cartam perpetuis temporibus roborandam
episcopi de sancto Andrea et de Glasgu rogatu meo et voluntate sigilla
sua cum meo apposuerunt . Testibus etc .

Sententia judicium super dimidia marca pro decima molendini de Naythen-
thirne annuatim ecclesie de Naythenthirne danda .

- 202 Omnibus Christi etc. Hugo Dei gratia Dunkeldensis episcopus et Johannes
eadem gratia abbas de Lundors et ejusdem loci prior eternam in Domino
salutem . Mandatum domini Pape in hec verba suscepimus . Honorius episco-
pus servus servorum Dei venerabili fratri episcopo Dunkeldensi et dilectis

filij abbati et priori de Lundors sancti Andree diocesis salutem et apostolicam benedictionem . Dilectus filius Rector ecclesie de Naythinthern nobis conquerendo monstravit quod abbas et conventus de Driburgh sancti Andree diocesis super quibusdam decimis et rebus alijs injuriantur eidem ideoque discretionis vestre per apostolica scripta mandamus quatinus partibus convocatis audiatis causam et appellatione remota sine debito terminetis facientes quid decreveritis per censuram ecclesiasticam firmiter observari . testes autem qui fuerint nominati si se gratia odio vel timore subtraxerint per censuram eandem appellatione cessante cogatis veritati testimonium perhibere . Quod si non omnes hijs exequendis potueritis interesse tu frater Episcopo cum eorum altero ea nihilominus exequaris . Datum Lateran' ij nonas Aprilis pontificatus nostri anno neno . Hujus igitur auctoritate mandati partibus in presencia nostra constitutis cum dictus magister Stephanus coram nobis proposuisset quod abbas et conventus de Driburgh injuriantur eidem percipiendo decimas molendini de Naythanthern et detinendo decimas inde perceptas a tempore quo ecclesia de Nathanthern ei fuit collata tandem lis super hijs aliquandiu inter partes agitata per provisionem nostram de assensu partium mediante domino Willelmo Dei gratia episcopo sancti Andree hoc sine quievit . scilicet quod canonici de Driburgh pro bono pacis solvent annuatim inperpetuum dimidiam marcam argenti medietatem scilicet ad Pentecosten et medietatem ad festum sancti Martini ecclesie de Naythinthern et liberi et immunes ab omni exactione et impetratione rectoris ejusdem ecclesie decimas integraliter percipient inperpetuum predicti molendini . Ipse autem magister Stephanus consensu manifesto renunciavit omni juri quod habuit vel habere videbatur in decimis vel ad decimas supradictas . Ut autem hec inter partes pax et compositio amicablem et caritative formata firmiore robore fulciretur episcopalis etiam auctoritatis suppliciter eam postularunt adjuvari consensu et muniri sigillo . quorum iustis precibus misericorditer annuens prenomинatus dominus episcopus ipsam compositionem acceptandam duxit et episcopali auctoritate una cum

figilli fui appositione roboravit et nos eandem ut inperpetuum firma sit et stabili de voluntate partium auctoritate apostolica qua fungimur confirmamus . Et ad ejus securitatem perpetuam huic instrumento signa nostra una cum sigillo dicti domini episcopi et sigillis partium fecimus apponi . Acta sunt hec anno gratie m^o cc^o vicesimo septimo .

Super una acra terre in territorio de Naythinthern .

- 203 **O**mnibus Clristi etc. Robertus filius Symonis de Naythinthern salutem . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et pro animabus omnium antecessorum et successorum meorum dedisse et concessisse et hac mea carta confirmasse Deo et beate Marie et operi ecclesie de Driburgh canonicis ibidem Deo fervientibus unam acram terre inperpetuum in territorio de Naythinthern scilicet in Videlip quam eis integram et plenariam coram probis hominibus assignavi Tenendam libere quiete pacifice et integre sicut aliqua elemosina liberius quietius et honorificentius alteri ecclesie potest dari vel confirmari . Hanc vero donationem ego et heredes mei predictis canonicis contra omnes homines warrantizabimus . Testibus etc .

Super una acra terre in territorio de Newtoun .

- 204 **O**mnibus Clristi etc. Ifabele de Merlinton salutem . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et pro anima Willelmi de Bofvill mariti mei et omnium antecessorum meorum et successorum tempore viduitatis mee cum essem in libera potestate mea dedisse concessisse et hac presenti carta mea confirmasse Deo et sancte Marie et operi de Driburgh et canonicis ibidem Deo fervientibus unam acram

terre in perpetuum in territorio de Newtoun . illam scilicet integram quam habui in Brokiflawe et assignavi eidem canonicis coram probis hominibus Tenendam libere quiete pacifice et integre sicut aliqua elemosina liberiorius quietius et honorificentius alicui ecclesie potest dari vel confirmari . Hanc vero donationem ego et heredes mei predictis canonicis contra omnes homines warrantizabimus . Testibus etc .

Super decem acris terre in territorio de Yliffoun et rectis divisis ejusdem terre .

205 **U**niversis Christi etc. Johannes filius Yliff de Yliffoun salutem . Noverit universitas vestra me divine caritatis intuitu dedisse et concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus pro salute animarum omnium antecessorum et successorum meorum in liberam puram et perpetuam elemosinam decem acras terre de dominio meo in villa de Yliffoun per istas divisas scilicet duas acras in tofto et crofto scilicet propinquiores rivulo qui currit sub gardino meo ex orientali parte ejusdem rivuli et quinque acras in Rokflat scilicet propinquiores vie tendenti versus Boulden ex occidentali parte ejusdem vie et tres acras in Grenerig Tenendas de me et heredibus meis adeo libere quiete et honorifice sine omni servicio et consuetudine et seculari exactione sicut aliqua elemosina in toto regno Scotie ab aliquibus viris religiosus liberiorius quietius et honorificentius tenetur et possidetur . Et sciendum est quod ego et heredes mei totam predictam terram cum predictis divisis et libertatibus suis prefatis canonicis contra omnes homines warrantizabimus et forinseca et omnia alia servicia terram contingencia faciemus . Testibus etc .

Super uno tofto et duabus acris terre et dimidia perticata in territorio de Yliftoun .

206 **O**mnibus Chrifti etc. Johannes filius Ylif de Yliftoun falutem . Noverit univerfitas veftra me divine pietatis intuitu confenfu et affenfu uxoris mee et filiarum mearum dediffe et conceffiffe et hac mea carta confirmaffe Deo et beate Marie et domui de Driburgh unum toftum in villa de Yliftoun quod fuit Alani Dammefone feilicet quatuor perticatas in longitudine et totidem in latitudine et duas acras terre et dimidiam perticatam feilicet de crofto quod fuit Alani Dammefone et unam acram in Grenesfid juxta Haireftan in orientali parte Tenendam fibi inperpetuum in liberam puram et perpetuam elemofinam ita libere et quiete fine omni ferviceio et feculari exaétione ficut aliquam elemofinam tenent et poffident quam eifdem ego et heredes mei contra omnes homines warantizabimus . In cujus rei teftimonium prefenti fcripto figillum meum appofui . Teftibus etc .

Refignatio fuper terra de Yliftoun .

207 **O**mnibus etc. Elmeras filius Roberti de fancto Michaele eternam in Domino falutem . Noverit univerfitas veftra me resignaffe et quietam clamaffe viris religiofis abbati et conventui de Driburgh totam illam terram quam de eifdem tenui in villa de Yliftoun cum omnibus libertatibus et pertinentijs dictam terram contingentibus pro quadam fumma pecunie quam mihi pre manibus folverunt . In cujus rei teftimonium prefentibus literis figillum meum appofui . Teftibus etc .

Compositio inter Driburgh et Melros super quibusdam decimis de Lefsedewyn et super marca ad nundinas de Rogesburgh solvenda .

- 208 Sciant presentes et futuri quod cum questio inter abbatem et conventum de Driburgh ex parte una et abbatem et conventum de Melros ex altera super quibusdam decimis ad ecclesiam de Lefsedewyn spectantibus verteretur tandem amicabile compositio intervenit de dictis decimis videlicet . quod salvis dictis abbati et conventui de Driburgh decimis garbarum et feni quas ipsi ante consecutionem hujus instrumenti continue perceperunt de terris quas portarius de Melros tennit in territorio de Yliffoun infra parochiam de Lefsedewyn die consecutionis hujus instrumenti prefati abbas et conventus de Melros solvent annuatim per portarium suum de Melros dictis abbati et conventui de Driburgh unam markam argenti in nundinis de Rogesburgh pro omni alia indempnitate dicte ecclesie ratione dictarum terrarum . Tenentes vero si quos dicti abbas et conventus de Melros in dictis terris habuerint et fervientes eorundem abbatis et conventus de Melros qui per annum vel per dimidium annum infra dictam parochiam in servicio suo moram fecerint omnia jura ecclesiastica tam in vita quam in obitu suo matriei ecclesie de Lefsedewyn plenarie persolvent . Si vero contingat quod aliqui alij quam dicti abbas et conventus de Melros dictas terras quoquomodo tenuerint dicta matrix ecclesia de Lefsedewyn omnia jura ecclesiastica de ipsis percipiet et dicti abbas et conventus de Melros quieti erunt tantundem a soltione dicte marce salvis in omnibus prescriptis articulis cum dicte terre ad ipsos de Melros fuerint resolute . Et si contingat quod dicti abbas et conventus de Melros aliquas terras in parochijs dictorum abbatis et conventus de Driburgh quoquomodo tenuerint vel adquisierint a tempore consecutionis presentium sive abbas et conventus de Driburgh in parochijs abbatis et conventus de Melros aliquas terras tenuerint vel adquisierint utraque ecclesia fervabitur indempnis per consilium patrum abbatum de

Rivelle et de Alnewike qui tertiam partem neutri parti suspectam eligent quorum jurisdictioni et potestati utraque pars se sponte subjecit ut ipsi patres abbates ad omnium premiorum observantiam utramque partem per censuram ecclesiasticam libere valeant coercere . In cujus rei testimonium huic parti cyrographi penes dictos abbatem et conventum de Driburgh remanenti abbas de Melros sigillum suum una cum sigillo sui patris abbatis de Rivalle apposuit . Acta apud Melros anno gratie millesimo ducentesimo quinquagesimo secundo die beate Marie Magdilene .

Super ecclesia de Lanark et capella de Padynane et super carucata terre in eadem villa .

209 **D**avid rex Scotie episcopis abbatibus comitibus iusticiarijs baronibus vicecomitibus ministris et omnibus hominibus totius terre sue Francis et Anglicis et Scotis et Galwithensibus salutem . Sciant tam posteri quam presentes me concessisse et dedisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et fratribus canonicis ibidem Deo fervientibus ad tenendum de me et heredibus meis in liberam puram et perpetuam elemosinam ecclesiam de Lanerk cum terris et decimis et omnibus rebus iuste ad illam pertinentibus et ecclesiam de Padynane cum suis pertinentijs et in eadem villa illam carucatam terre quam Nicholaus clericus meus de me habuit et tenuit . ita libere et quiete et plenarie et pacifice ab omni seculari exactione et consuetudine eisdem fratribus perpetuo possidendas sicut aliqua alia ecclesia terre mee elemosinas suas melius et liberius et quietius tenet et possidet . Ita tamen quod in ecclesijs divinum officium honeste fiat . Testibus etc .

Confirmatio super ecclesia de Lanerk et capella de Pedynnan et quod proventus dicte ecclesie libere in usus proprios convertantur .

- 210 **J**ocelinus Dei gracia Glasguensis episcopus omnibus sancte matris etc. salutem in Christo . Sciant nos concessisse et hac carta nostra et episcopali auctoritate confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in liberam et perpetuam elemosinam ecclesiam de Lanerk cum capella de Padinnan et omnibus ad eandem ecclesiam ipsamque capellam pertinentibus tenendam perpetuo libere quiete plenarie et honorifice . Concessimus etiam ipsis canonicis pietatis intuitu necessitatibus eorum compatiens ut post decessum Hugonis capellani cui eandem ecclesiam in vita sua tenendam concesserunt liceat eis de proventibus ipsius ecclesie perpetuo ad utilitatem suam et ecclesie sue sicut sibi melius expedire viderint disponere et eosdem proventus libere in usus suos convertere salvis episcopalibus . Quare volumus ut ipsi canonici de Driburgh teneant et possideant ipsam ecclesiam de Lanerk cum omnibus pertinentijs suis perpetuo ita libere quiete plenarie et honorifice sicut aliqui viri religiosi aliquam ecclesiam vel ecclesiasticum beneficium in episcopatu Glasguensi liberius quietius plenius et honorificentius tenent et possident et sicut eis hac carta nostra confirmavimus salvis episcopalibus . Testibus etc .

Super quinque solidis et sex denarijs in villa de Lanark ad luminaria ecclesie et capelle concessis .

- 211 **O**mnibus Christi etc. Alexander regis Scotorum senescallus salutem . Noverit universitas vestra nos caritatis intuitu dedisse concessisse et hac carta nostra confirmasse Deo et beate Marie et sancto Kentegerno et canonicis de Driburgh in ecclesia de Lanark procuratoribus totum redditum

annuatim solvendum de tota terra pertinente ad baroniam nostram scilicet quinque solidos et sex denarios ad duos terminos in eadem villa . Tenendum et habendum de nobis et heredibus nostris in liberam puram et perpetuam elemosinam ad sustentanda luminaria in majori ecclesia et capella dicte ville specialiter pro anima domini Alexandri regis Scottorum et pro animabus omnium antecessorum et successorum meorum libere et quiete sicut aliqua elemosina in regno Scotie liberius et quietius tenetur . homines antedictam terram tenentes forinseca auxilia et omnia servicia et omnia eandem terram contingentia facient et plenum redditum prefatis canonicis sine contradictione annuatim persolvent quem si solvere cessaverint vel contradixerint licebit procuratoribus dicte ecclesie ipsos detinentes prout expedire sibi viderint iuste compellere . Ut autem hec nostra donatio perpetuum robor optineat firmitatis presentem cartam eisdem canonicis caritative contulimus sigillo nostro roboratam salvis nobis et heredibus nostris debitis assuamenti infra dictam terram quociens necesse fuerit . Testibus etc .

Super quinquaginta denarijs ad luminaria capelle sancti Nicholaij de Lanark concessis annuatim .

212 Sciant omnes has literas visuri vel audituri quod ego Robertus diaconus filius Hugonis clerici de Lanark dedi et concessi et hac mea carta confirmavi Deo et sancto Nicholaio de Lanark ad luminare capelle illius totam firmam terre illius quam emi de Willelmo filio Wlphe et heredibus suis scilicet quinquaginta denarios annuos quam [terram] Willelmus carnifex et heredes sui tenent et possident de me et meis assignatis Reddendo annuatim predictos denarios . xxv . ad festum sancti Martini et . xxv . ad Pentecosten . Et volo ut quicumque fuerit rector ecclesie de Lanark suscipiat predictam firmam post decessum meum sive ad communem vitam me transfulero . sciendum autem quod predictus Willelmus et heredes sui omnia forinseca

et secularia ad predictam terram contingentia facient . quod si ipse Wilhelmus vel heredes sui sepedictam firmam retinuerint vel reddere noluerint rector ecclesie predictam [terram] sine omni contradictione cuicunque melius poterit locabit . Ut autem hec donatio mea sit rata et inconcussa literas istas bonorum virorum et autenticorum testimonio feci corroborari . Testibus etc .

Super tribus solidis ad luminaria ecclesie de Lanark concessis .

- 213 Sciant omnes has literas visuri vel audituri quod ego Robertus diaconus filius Hugonis clerici de Lanark dedi et concessi et hac mea carta confirmavi Deo et sancto Kintegerno de Lanark ad luminare ecclesie illius totam firmam terre illius scilicet tres solidos annuatim quam Walterus taliator frater meus et heredes sui tenent et possident de me et meis assignatis Reddendo annuatim . xviii . denarios ad festum sancti Martini et . xviii . denarios ad Pentecosten . Et volo ut quicunque fuerit rector ecclesie de Lanark suscipiat predictam firmam post decessum meum sive ad communem vitam me transfulero . sciendum autem quod predictus Walterus et heredes sui omnia forinfeca et secularia ad predictam terram contingentia facient . Quod si forte ipse Walterus vel heredes sui sepedictam firmam retinuerint vel reddere noluerint rector ecclesie predictam terram sine omni contradictione cuicunque melius poterit locabit . Ut autem hec mea donatio rata sit et inconcussa literas istas bonorum virorum et autenticorum testimonio feci corroborari . Testibus etc .

Super quodam burgagio in villa de Lanark .

- 214 **S**ciant omnes et presentes et futuri quod ego Amfridus cornaifarius de Lanerk consensu et assensu uxoris mee Geretrudis et heredum meorum pro salute mea et pro anima domini regis Scotie Willelmi neenon pro animabus antecessorum meorum et heredum et successorum meorum dedi concessi et hac presenti carta mea confirmavi Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus terram meam in Lanark illam scilicet quam teneo in burgagio de domino rege que jacet inter fabricam Henrici Uell et Willelmi janitoris in liberam puram et perpetuam elemosinam honorifice libere et quiete salvo servicio domini regis . Testibus etc .

Super quinque solidis pro quodam burgagio in villa de Lanark nobis annuatim solvendis .

- 215 **O**mnibus has literas etc. Willelmus de Karamikley burgenfis de Lanark salutem in Domino . Noveritis me dedisse concessisse et hac carta mea confirmasse viris religiosiis abbati et conventui de Driburgh burgagium unum in villa de Lanark medium inter mansionem Willelmi textoris ex parte una et mansionem Johannis Blaw' ex altera quod quidem burgagium eisdem concessi et in plenaria sayfina ejusdem ipsos institui in escambium cujusdam alterius burgagij quod dicti abbas et conventus habuerunt in predicta villa de Lanark ex opposito domus mee quod mihi concesserunt et per cartam suam mihi et heredibus meis vel assignatis perpetuo confirmaverunt . Ego vero et heredes mei dictum burgagium quod modo supradicto dictis abbati et conventui contuli contra omnes homines et feminas warantizabimus et defendemus . Ita quod Johannes filius Enoch et heredes sui qui

dictum burgagium ad feodifirmam de me et heredibus meis tenent quinque solidos sterlingorum dictis abbati et conventui pro firma dicti burgagij annuatim perfolvent videlicet medietatem ad festum Pentecostes et aliam medietatem ad festum sancti Martini in hyeme . Et si contingat quod ego vel heredes mei vel assignati dictum burgagium dictis abbati et conventui warantizare non poterimus volo quod burgagium illud quod in escambium istius ab ipsis recepi sine omni contradictione ad ipsos revertatur . In cuius rei testimonium presenti scripto sigillum meum apposui . Teste tota communitate burgenfium de Lanark .

Super quadam terra in territorio de Lanark data et super rectis divisis predictæ terre .

- 216 Univerfis etc. Jordanus Brac salutem . Noverit universitas vestra me consensu et assensu heredis mei dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et ecclesie sancti Kentegerni de Lanark terram quandam tenendam de me et heredibus meis in puram et perpetuam elemosinam pro salute anime domini mei Willelmi regis Scotie et pro salute anime mee et antecessorum et successorum meorum per istas divisas scilicet per medium cuiusdam marisij proxime adjacentis terre Fratrum Hospitalis quam dedi eis et sic ad veterem fossam in australi parte et sic per mariseum parvum in orientali parte cum toto illo marisco usque in viam regiam ascendendo usque ex equo respondeatur medietati primo nominati marisci sicut predicta terra fossa canonicorum circumdatur et eis pro me et per visum proborum virorum perambulatur et traditur cum omni pastura et libertate multure libere et quiete sicut ego totam terram meam teneo de domino meo rege Alexandro . Volo autem ut predicti canonici sepedictam terram possideant et teneant ita libere et quiete honorifice plenarie sicut aliqua elemosina potest liberius quietius plenius et honorificentius

possideri et confirmari . Ut autem ista donatio rata sit et inconcussa prefens scriptum sigilli mei appositione confirmavi . Testibus etc .

Super quadam terra in territorio de Lanark .

- 217 **O**mnibus Christi etc. Johannes Brac salutem . Noverit universitas vestra me divine pietatis intuitu dedisse concessisse et hac mea carta confirmasse Deo et beate Marie et sancto Kentigerno et abbati et conventui de Driburgh rectoribus ecclesie de Lanark totam terram quam tempore patris mei habuerunt de dono ipsius circumdatam fossato ex orientali parte ecclesie de Lanark . Tenendam sibi de me et heredibus meis et pro salute domini Alexandri regis Scotie et pro salute anime mee et animarum antecessorum et successorum meorum in liberam puram et perpetuam elemosinam in terram scilicet sancti [Kentigerni] matricis ecclesie nostre de Lanark quietam et immunem ab omni servicio consuetudine et demanda sicut aliqua elemosina in regno Scotie quietius et honorificentius tenetur et possidetur . Ego vero et heredes mei dictam terram prefatis abbati et conventui warrantizabimus contra omnes homines et feminas inperpetuum . Ut autem hec mea donatio concessio et confirmatio perpetuum robur debite securitatis optineat presentem cartam dictis canonicis caritative contuli sigilli mei appositione roboratam . Testibus .

Super decimationibus et obventionibus terre de Mosplat ecclesie de Lanark datis .

- 218 **S**ciant tam presentes quam futuri quod ego Wilhelmus Gilis dedi et concessi et hac mea carta confirmavi Deo et ecclesie sancti Kentigerni matri de Lanark omnes decimationes et obventiones totius terre mee de Mosplat quam

teneo ex dono domini regis Alexandri in foresta sua tam de molendinis quam de terris cultis et colendis tam de pratis quam de pascuis in puram et perpetuam elemosinam pro anima domini Willelmi regis Scotie et pro salute domini Alexandri regis Scotie et omnium heredum meorum libere et honorifice sicut aliquod ecclesiasticum beneficium liberius et honorificentius potest conferri . Testibus etc .

Super tofto et crofto in villa de Padenenane et communi pastura ejusdem ville .

- 219 **O**tho de Tilli omnibus sancte etc. salutem . Sciant tam posterius quam presentes me concessisse et hac mea carta confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in perpetuam elemosinam toftum illum et croftum quem rex Willelmus predictis canonicis donavit scilicet ab australi parte capelle et occidentali parte fontis in villa de Padynnane cum communi pastura ejusdem ville quantum ad pasturam pertinet . Tenendum plenarie libere et quiete sicut aliqua elemosina liberius et quietius in toto regno Scotie tenetur . Testibus etc .

Renunciatio Alexandri rectoris de Colbaynistoun super decimis de Clouburn .

- 220 **O**mnibus sancte matris etc. Henricus Dei gratia dictus abbas de Kelcow et ejusdem loci Prior et Rector monialium de Eklis salutem eternam in Domino . Mandatum domini Pape in hec verba suscepimus . Innocentius episcopus servus servorum Dei dilectis filiis abbati et priori de Kelcow et rectori ecclesie de Eklis sancti Andree diocesis salutem et apostolicam benedictionem . Innuarunt nobis dilecti filij abbas et conventus de Driburgh

Premonstratenſis ordinis quod cum Alexander clericus de Colbayniſtoun Glaſguenſis diocēſis ipſos ſuper quibuſdam decimis ad eccleſiam ſuam de Lanark ſpectantibus coram venerabili fratre meo Glaſguenſi epifcopo non ex delegatione noſtra traxiſſet in cauſam ipſi ſentientes ſe ab eodem injuſte gravari noſtram judicentiam applicarunt [*noſtram in audientiam appellarunt*] ut ipſe clericus poſtmodum ſuper prefatis decimis et alijs rebus dampnatis et injurias inferre preſumſit . Ideoque diſcretioni vœſtre per apoſtolica ſcripta mandamus quatinus partibus convocatis et auditis hinc inde propoſitis quod canonicum fuerit appellatione poſtpoſita ſtatuantis facientes quod ſtatueritis per cenſuram eccleſiaſticam firmiter obſervari et reducentes in ſtatum debitum quicquid poſt appellationem ad nos legitime interpoſitam inveneritis illicite acceptatum . Teſtes autem qui fuerint nominati ſi ſe gratia odio vel timore ſubtraxerint cogatis cenſura ſimili appellatione ceſſante veritati teſtimonium perhibere nullis literis veritati et juſticie prejudicantibus a ſede apoſtolica impetratis . Quod ſi non omnes hijs exequendis potueritis intereſſe duo vœſtrum ea nichilominus exequantur . Datum Lateran quinto idus Junij pontificatus noſtri anno xiiij^o . Hujus igitur auctōritate mandati partes ad preſentiam noſtram vocari fecimus tandem poſt multa hinc inde propoſita partibus coram nobis conſtitutis in predicta cauſa compoſitio amicabilis de partium aſſenſu eſt admiſſa in hunc modum ſcilicet . quod dictus rector eccleſie de Colbayniſtoun in preſencia noſtra renunciavit juri quod proteſtatus eſt ſe habere in decimis et proventibus de Clouburn et juramento corporaliter preſtito juravit ſe nunquam conſilio vel auxilio contra jus predictorum canonicorum quod habent in predictis decimis controverſiam aliquando moturum ſed in omnibus ut premiſſum eſt fideliter predictam compoſitionem obſervaturum . Ut autem hec compoſitio rata ſit et inconcuſſa eam auctōritate domini Pape confirmamus et ſigillorum noſtrorum appoſitione communimus . Teſtibus etc .

Renunciatio Petri de Affeby fuper jure quod habuit in terra de Imbriftoun .

- 221 **O**mnibus fancte matris etc. Petrus de Affeby filius Willelmi de Affeby salutem . Sciant me dediffe et concessiffe et hac mea carta et figillo meo et figillo bonorum hominum et testimonijs confirmaffe Deo et ecclesie fancte Marie de Driburgh et canonicis ibidem Deo fervientibus totum jus hereditarium quod pater meus et ego vel aliquis heredum meorum habuit vel habere potuerit in terra de Ingelbriftoun eandemque terram cum omni jure nostro quod in eadem terra habuimus quietam clamaffe inperpetuum pro salute anime mee et omnium antecessorum meorum ita ut deinceps nullus heredum nostrorum aliquid in terra illa jure hereditario teneatur possidere et cartam quam pater meus de eisdem canonicis habuerat eis reddidi in presentia domine Christine uxoris quondam Willelmi de Morevilla apud Naythanthirn coram hijs testibus Johanne de fancto Claro et Willelmo filio ejus et Symone de Naythanthirn et pluribus alijs . Ipsi vero canonici reddiderunt mihi in presentia domini Willelmi clerici Glasgouensis decem marcas apud Lillefelyf quas acceperunt a patre meo pro predicta terra . Hijs testibus domino Henrico clerico . Willelmo dapifero clerici . Gamello et Ever' de Lessedewyn et multis alijs . Insuper hec omnia concessi ore meo et rata fore volui in synodo apud Rogelburgh . Id ipsum feci in presentia domini Regis Vicecomitis de Lanark coram ballivis domini regis et coram hijs testibus Waltero clerico domini regis . Ricardo Gerin . Waltero Croc filio Roberti Croc . Hugone filio regis vic' . Willelmo Hostiario . Willelmo filio Arkinbaldi . Waltero filio regis . Willelmo filio Hugonis presbiteri . Helya de Craufurd et pluribus alijs .

Resignatio Petri de Afkeby super jure quod habuit in Imbryftoun .

222 **S**cient tam posterì quam presentes omnes ad quos presens scriptum venerit quod ego Petrus filius Willelmi de Afkeby anno incarnationis dominice m^o cc^o iij idus Junij scilicet sabbato post festum sancte Trinitatis cum essem in legitima etate et sospitate et potestate mea reddidi ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus totum jus hereditarium quod pater meus et ego vel aliquis heredum meorum habuimus vel habere potuimus in terra de Ingilbristoun eandemque terram cum omni jure nostro et cartam quam pater meus de eisdem canonicis acceperat predictę domui resignavi pro salute mea et pro salute anime patris mei et antecessorum et successorum meorum in liberam et perpetuam elemosinam . acceperam autem

a prefatis canonicis decem marcas argenti quas pater meus eisdem pro jam dicta terra dederat in presenciam domini Hugonis clerici Glasgouensis apud Lyllyfeloue . Testibus hijs ipso domino clerico et Willelmo dapifero ejus . Gamello et Ever' de Lessedewyn et multis alijs . Insuper hec omnia concesseram ore meo et ante roboraveram in synodo apud Rogesburgh . id ipsum etiam feci eorum regis vicecomite de Lanark et ballivis domini regis et coram hijs testibus Waltero clerico domini regis . Ricardo Gern' . Waltero Croc filio Roberti Croc . Hugone filio regis vicecomitis . Willelmo hostiario . Willelmo filio Archibaldi . Waltero filio Rogeri . Willelmo filio Hugonis . Helya de Crauford et multis alijs . Cartam autem reddidi apud Naythanthirn coram domina relictā Willelmi de Morevilla et Johanne de sancto Claro et Willelmo filio ejus et Symone de Naythanthirn et pluribus alijs . Ne etiam in posterum hec concessio mea in irritum aliqua occasione aut machinatione revocari valeat eandem sigilli mei appositione et testimonio bonorum hominum roboravi et tactis sacrosanctis firmiter inperpetuum observandam coram pluribus hominibus juravi . Testibus etc .

Resignatio super Ingilbriftoun .

223 **O**mnibus hoc scriptum etc. Petrus filius Willelmi Affeby salutem . Noverit universitas vestra quod pater meus Willelmus dedit canonicis de Driburgh decem marcas argenti ut ipse et heredes sui terram eorum de Ingilbriftoun possideret per easdem divisas per quas eandem prefati canonici consueverant . Ita ut confirmatio domini regis de hac tenura ei acquiretur et per prefatas divisas terram warrantizarent vel si hoc eos facere non contingeret decem marcas quas acceperant ei vel heredibus suis restituerent . Quod ego Petrus heres ejus videns eos non fecisse scilicet nec confirmationem domini regis adquisivisse nec contra aliorum proclamationes terram per rectas divisas warrantizare posse perpendens etiam ipsam tenuram mihi vel alteri meorum nihil vel parum profecisse aut de cetero proficere posse petij a predictis canonicis ad consilium bonorum hominum decem marcas quas a patre meo acceperant et accepi eas ab illis apud Lillifcloue coram Hugone clerico Glasguensi et Willelmo senescallo et Gamello et Ever' de Liffedewyn et pluribus alijs eandemque terram et cartam quam pater meus de ea acceperat cum omni jure quod vel ipse vel ego vel aliquis nostrorum in predicta tenura habuit vel habere potuit predictæ domni fideliter et gratis resignavi primo apud Naythanthirn coram domina _____ que fuit uxor Willelmi de Morevilla et Johanne de sancto Claro et Willelmo filio ejus et Symone de Naythynthirn et postea in synodo apud Rogesburgh . Id ipsum etiam feci coram regis vicecomite de Lanark et ballivis domini regis et coram hijs testibus Waltero clerico domini regis . et Ricardo Gern' . Waltero Croc . Hugone filio regis vicecomitis . Willelmo hostiario . Willelmo filio Erchenbaldi . Waltero filio Rogeri . Willelmo filio Hugonis . et Helya de Crauford et multis alijs . Hanc resignationem fideliter et firmiter et sine fraude in perpetuum observandam tactis sacrosanctis juravi et etiam postea in manu domini Osberti abbatis de Calkou et in manu domini Johannis decani de

Rogeburgh affidavi anno Dominice incarnationis m° cc° iiij° idus Junij post festum sancte Trinitatis proxime cum essem in legitima etate et sospitate et libera potestate mea . Ut igitur hec resignatio mea de cetero sine aliqua reclamacione rata sit et stabilis eandem sigilli mei appositione confirmavi et me petente bonorum hominum sigillis et testimonijs confirmari feci . Testibus etc . Hoc scriptum feci ego Petrus legi in comitatu de Lanark presente Willelmo de Somervill . Symone Loccard . Thoma de Colbayntoun . Rogero filio Johannis de Croufrod . Roberto filio Roberti . Waltero filio Willelmi . Roberto Logan . Hugone Palmer . Ada Ruffus . Johanne filio Auich' . Radulpho coco . Ricardo de memonere . xvii kalendas Julij feria quinta .

Super duabus bovatis terre in Hetoun .

- 224 Galfridus de Percy omnibus probis hominibus tam posteris quam presentibus salutem . Sciatis me concessisse et dedisse et hac mea carta confirmasse ecclesie sancte Marie de Driburgh et canonicis Deo fervientibus in liberam puram et perpetuam elemosinam duas bovatas terre in Hetona cum omni pastura et omnibus ayliamentis ejusdem wille quantum ad tantum terre pro salute anime mee et omnium antecessorum meorum ita libere quiete et plenarie eis perpetuo tenendas et possidendas sicut aliqua elemosina in regno Scotie liberius quietius et plenius sine omni seculari exactione et servicio et consuetudine potest concedi aut teneri . Testibus etc .

Confirmatio super duabus bovatis terre in Hetoyun .

- 225 Philippus de Colevill omnibus amicis et probis hominibus suis . Sciunt tam posterum quam presentes me concessisse et hac mea carta confirmasse duas

bovatas terre in Hetoun ex dono Galphridi de Percy et Henrici patris fui Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus in perpetuam elemosinam ita libere et quiete sicut aliqua elemosina potest liberior et quietius concedi et teneri . Testibus etc .

Super dimidia carueata terre in territorio de Giffyn et super rectis divisis ejusdem terre .

226 Univerſis ſancte matris etc. Alexander Neu' ſalutem . Noverit univerſitas veſtra me divine pietatis intuitu et pro animabus dominorum meorum Ricardi de Morevilla Willelmi de Morevilla Rollandi de Gaweia Elene de Morevilla et eorum heredum et ſucceſſorum et pro animabus parentum meorum et anteceſſorum Willelmi de Neu' patris mei et Ricardi de Neu' fratris mei et Syrit matris mee et pro ſalute anime mee et ſponſe mee et heredum meorum et ſucceſſorum conceſſiſſe dediſſe et hac preſenti carta mea confirmavi Deo et eccleſie ſancte Marie de Driburgh et canonicis ibidem Deo fervientibus unam dimidiam carueatam terre in territorio de Giffyn illam ſcilicet ſuper quam capella ſancte Brigide ſedet in Triern' ſcilicet per has diviſas que incipiunt in capite unius acre que eſt in terra ejusdem wille de Giffyn que jacet verſus auſtrum a capella predicta ex tranſverſo verſus occidentem uſque in propinquiorem magnam ſicam qui extenditur per medium propinquiorem muſſium verſus occidentem et ſic inde deſcendendo verſus aquilonem per eundem ſicam uſque ad Starwele et ſic inde per rivulum qui deſcendit de Starwele uſque in Triernburn et ſic inde aſcendendo per Triernburn verſus orientem uſque ad quendam ſicam ubi quedam crux poſita eſt et ſic aſcendendo per illum ſicam uſque ad quendam muſſium et ſic inde ex tranſverſo illius muſſi uſque ad propinquiorem ſicam qui eſt inter illum muſſium et terram arabilem et ſic inde per eundem ſicam verſus orientem uſque in quendam rivulum qui deſcendit de

sub fonte beate Brigide et sic ascendendo per illum rivulum usque ad fontem beate Brigide et sic a fonte illo ex transverso sub quadam rupe usque ad predictam acram que est terra ecclesie de Giffyn . Habendam et tenendam in liberam puram et perpetuam elemosinam ita libere quiete et honorifice sicut aliqua elemosina liberius quietius et honorificentius in toto regno Scotie datur vel possidetur cum omni pastura et cum omnibus communibus ayliamentis totius terre mee de Triern' . Et sciendum quod licebit hominibus predictorum canonicorum habitantibus in illa terra ire scalingis simul cum hominibus meis de Triern' si voluerint . Hanc vero predictam dimidiam carucatam terre concessi et dedi predictis canonicis in excambium pro duabus bovatis terre quas Willelmus pater meus eis dedit infra feudum de Giffyn et pro alijs duabus bovatis terre quas Ricardus frater meus eisdem dedit et incartavit et pro incremento terre quod idem Ricardus frater meus eis dedit . Ut autem hec donatio mea perpetuam habeat firmitatem illam presenti scripto et sigilli mei appositione communivi . Testibus etc .

Donatio et confirmatio super dimidia carucata terre in territorio de Giffyn et super rectis divisis ejusdem terre .

227 **O**mnibus Christi etc. Walterus de Mulcaster salutem . Noverit universitas vestra me divine pietatis intuitu et pro animabus omnium antecessorum meorum et pro salute anime mee et uxoris mee et heredum meorum et successorum et benefactorum meorum dedisse concessisse et hac mea carta confirmasse Deo et beate Marie de Driburgh et canonicis ibidem Deo servientibus illam dimidiam carucatam terre in territorio de Giffyn quam Alexander de Neu' eisdem canonicis dedit illam scilicet super quam capella sancte Brigide sedet in Triern' scilicet per has divisas que incipiunt a capite unius acre que est terra ejusdem ville de Giffyn que jacet versus austrum a capella predicta ex transverso versus occidentem usque in propinquiorem

magnum fieuu qui extenditur per medium propinquiorem muſſum verſus occidentem et ſic inde aſcendendo verſus aquilonem per eundem fieuu uſque ad Starwell et ſic inde per rivulum qui deſcendit de Starwell uſque in Triernburn et ſic inde aſcendendo per illum fieuu uſque in quendam muſſum et ſic inde ex tranſverſo illius muſſi uſque ad propinquiorem fieuu qui eſt inter illum muſſum et terram arabilem et ſic inde per eundem fieuu verſus orientem uſque in quendam rivulum qui deſcendit de ſub fonte beate Brigide et ſic inde aſcendendo per illum rivulum uſque in rivulum qui deſcendit de fonte beate Brigide et ſic inde aſcendendo per illum rivulum uſque in fontem beate Brigide et ſic a fonte illo ex tranſverſo ſub quadam rupe uſque ad predictam acram terre que eſt terra eccleſie de Giſſyn . Habendam et tenendam in liberam puram et perpetuam elemoſinam ita libere quiete et honorifice ſicut aliqua elemoſina liberius quietius et honorificentius in toto regno Scotie datur vel poſſidetur cum omni paſtura et cum omnibus aſſiamementis totius terre mee de Triernburn . Et ſciendum quod licebit hominibus predictorum canonicorum habitantibus in illa terra ire ſcalingis ſimul cum hominibus meis de Triern' ſi voluerint . Quare volo et concedo pro me et heredibus meis inperpetuum ut predicti canonici ſupradictam dimidiam carucatam terre pacifice habeant et poſſideant ſine omni ſeculari exactione et conſuetudine per omnia prout in carta prefati Alexandri continetur . ego autem et heredes mei prefatam dimidiam carucatam terre cum ſuis rectis diviſis aſſiamementis et libertatibus contra omnes homines warantizabimus . Ut autem hec mea donatio conceſſio et confirmatio perpetuam habeat firmitatem preſens ſcriptum ſigilli mei appoſitione roboravi . Teſtibus .

Confirmatio Alani filij Rollandi super terra de Giffyn .

228 **A**lanus filius Rollandi Scotie constabularius omnibus has literas etc. salutem . Noveritis nos concessisse et hac presenti carta nostra confirmasse Deo et sancte Marie de Driburgh et canonicis ibidem Deo fervientibus illam dimidiam carucatam terre in territorio de Giffyn quam Alexander de Neuch' illis dedit in puram et perpetuam elemosinam per omnes libertates et divisas quas carta ipsius Alexandri quam de predicta terra habent testatur et proportat . salvo servicio nostro . Et ut hec confirmatio rata et illibata permaneat presentem cartam sigilli mei appositione roboravimus . Testibus etc .

Super dimidia marea pro dimidia carcata terre de Giffyn in mundinis de Rogesburgh nobis solvenda .

229 **U**niversis Christi etc. Thomas Dei gratia dictus abbas de Driburgh et ejusdem loci conventus eternam in Domino salutem . Noverit universitas vestra nos communi consensu et assensu capituli nostri dedisse et concessisse et hac carta nostra confirmasse domino Ricardo capellano domini Alani de Gawithia clerico nostro unam dimidiam carucatam terre quam habuimus in Conygham in territorio de Giffyn illam scilicet quam Alexander de Nenhan nobis dedit in escambium pro illis duabus bovatis terre quas Willelmus de Nenhan pater ejusdem Alexandri nobis dedit et incartavit . Tenendam de nobis inperpetuum sibi et cuicumque illam assignare voluerit et heredibus ipsius [vel] assignatis inperpetuum ita libere et quiete et honorifice sicut carta ipsius Alexandri quam de eadem terra habemus testatur et proportat scilicet in puram et perpetuam elemosinam . Ipse vero Ricardus capellanus [solvet] nobis pro predicta terra in tota vita sua quatuor solidos argenti ad festum

sancti Jacobi in nundinis de Rogesburgh . Assignati autem ipsius Ricardi et heredes eorum pro eadem terra solvent nobis annuatim dimidiam marcam argenti ad prefatum terminum quam ipsi ad domum nostram deferri facient . Ut autem hec nostra donatio inperpetuum rata sit et inconeussa permaneat eam presenti scripto et sigillo nostro communiuimus . Teste capitulo nostro .

Sententia diffinitiva super capella de Glegern matrici ecclesie de Lanark adjudicata .

- 230 **O**mnibus Christi etc. Petrus Dei gratia abbas de Jeddewod et Willelmus decanus de Merfkys salutem in Domino . Mandatum domini Pape in hec verba suscepimus . Honorius episcopus servus servorum Dei dilectis filiis Abbati et Priori de Geddewod et Decano de Merfkys Glasguensis et sancti Andree diocesis salutem et apostolicam benedictionem . Abbas et conventus de Driburgh nobis conquerendo monstrarunt quod Willelmus clericus Glasguensis diocesis capellam de Glegern ad ecclesiam suam de Lanark jure parochiali spectantem contra iusticiam detinet et reddere contradicit ideoque discretionis vestre per apostolica scripta mandamus quatinus partibus convocatis audiatis causam et appellatione remota sine canonico terminetis facientes quod decreveritis per censuram ecclesiasticam firmiter observari . Testes autem qui fuerint nominati si se gratia odio vel timore subtraxerint per censuram eandem appellatione cessante cogatis veritati testimonium perhibere . quod si non omnes hijs exequendis potueritis interesse duo vestrum ea nichilominus exequantur . Datum Lateran ij idus Marcij pontificatus nostri anno primo . Hujus igitur auctoritate mandati conjudice nostro scilicet Priore de Jeddewod ad totam causam se excusante factis citationibus legitimis et partibus in presentia nostra constitutis lite solempniter contestata testibus admisis et diligenter examinatis et dictis testium in scrip-

turam redactis et ad infantiam partium publicatis auditis hinc inde propositis et attestationibus follicite consideratis post renunciationem tam testium quam allegationum juris ordine in omnibus observato cum nobis liquide de intentione abbatis et canonicorum de Driburgh constaret tum ex dictis testium tum ex adverſe partis quibuſdam conceſſionibus communicato virorum prudentium conſilio adjudicamus per ſententiam diffinitivam abbati et conventui de Driburgh capellam de Glegern ſicut pertinentem ad matricem eccleſiam ſancti Kentigerni de Lanark . ipſorum adverſarium Willelmum de Herteford in expenſis decem marcarum in lite factis abbati et conventui condemnamus perpetuum eidem ſuper dicta capella ſilencium imponentes . et ut ſententia a nobis rite lata debitum fortiatur effectum eam executioni curavimus demandare et ad ejus perpetuitatem ſecuram ipſam in preſentem paginam redegimus et ſigillis noſtris munivimus . Perlata eſt autem a nobis predicta ſententia publice in eccleſia ſancti Jacobi apud Rogesburgh anno gracie mille^{mo} cc^o xx^o . vi^o idus Junij in preſencia virorum venerabilium domini Ricardi abbatis de Kelkou et domini G . abbatis de Neuhus et Andree Mannfell vicarij ſancti Jacobi de Rogesburgh etc. preſentibus etiam multis alijs .

Confirmatio judicium ſeu ſententia lata pro capella de Glegern .

231 Omnibus Chriſti etc. magiſter Laurencius archidiaconus ſancti Andree et N . et Ricardus de May et de Dunfermling priores ſalutem . Mandatum domini Pape in hec verba ſuſcepimus . Honorius epiſcopus ſervus ſervorum Dei dilectis filijs archidiaconis ſancti Andree et de May et de Dunfermlyng prioribus ſancti Andree diocęſis ſalutem et apoſtolicam benediſtionem . Dilecti filij abbas et conventus de Driburgh Premonſtratenſis ordinis nobis humiliter ſupplicarunt ut diffinitivam ſententiam quam abbas de Jeddewod ac conjudices ejus pro eis contra Willelmum de Herteford clericum Glaſ-

guenſis dioceſis ſuper capella de Glegern auctoritate noſtra cognitſis cauſe meritis promulgarunt apoſtolico dignaremur munimine roborare . Quocirca diſcretioni veſtre per apoſtolica ſcripta mandamus quatinus ſentenciam ipſam ſicut eſt juſta faciatis per cenſuram eccleſiaſticam appellatione remota firmiter obſervari . quod ſi non omnes hijs exequendis potueritis intereſſe duo veſtrum nihilominus exequantur . Datum Lateran ſeptimo idus Junij pontificatus noſtri anno quinto . Hujus igitur auctoritate mandati exhibitis nobis literis domini Pape ad abbatem de Jeddewod et ſuos conjudices ſuper capella [de] Glegern impetratis viſis etiam actis ipſius negocij atteſtationibus et omnibus alijs ſentenciam diſſinitivam precedentibus diligenter inſpectis attendentes ſentenciam dicti abbatis de Geddewod et ſuorum conjudicum ſummo juris ordine rite fuiſſe perlatam dictam ſentenciam auctoritate domini Pape nobis commiſſa confirmamus apoſtolice ſedis clipeo communimus reſiſtentibus ſi neceſſe fuerit compeſcentes . Ut autem hec noſtra confirmatio perpetuum firmitatis robur optineat eam preſentis ſcripti ſerie et ſignorum noſtrorum appoſitione auctoritate ſupradicta roboravimus .

Super poſſeſſione tam rei fervande pro capella de Glegern .

232 **J** . Dei gratia episcopus Dunkeldensis et de Strivelyn et de Lundors abbates omnibus ſancte matris etc. ſalutem . Univerſitati veſtre ſignificamus quod cum ſummus pontifex cauſam que vertitur inter abbatem et canonicos de Driburgh et C. clericum ſuper capella de Glegern nobis commiſſiſſet terminandam et nos eundem C. ſemel ſecundo et tandem edicto peremptorie vocaviſſemus quia ad diem peremptorium non occurrit [nec] pro ſe reſponſalem miſit predictis canonicis die proximo ante feſtum ſancti Edwardi in quadrageſima anni decemnovenalis cycli primi poſſeſſionem tam rei fervande adjudicavimus et executionem miſſionis in poſſeſſionem domini ſcilicet

archidiaconi Glasguensis auctoritate domini Pape demandavimus . Ad petitionem itaque predictorum canonicorum presenti scripto et sigillorum nostrorum appositione coram nobis acta auctoritate judiciaria testamur . Valete .

Resignatio super advocacione capelle de Glegern .

- 233 **U**niversis Christi etc. Robertus de Caramiceley salutem . Noverit universitas vestra me firmiter credere et publice protestari capellam de Glegern jure parochiali spectare debere ad matricem ecclesiam sancti Kentigerni de Lanark sicut abbas et conventus de Driburgh coram iudicibus a domino Papa delegatis ipsam legitime et sufficienter capellam esse probaverunt et per sententiam diffinitivam ipsa est eis auctoritate apostolica adjudicata . Siqua autem advocatio vel quod jus aliud mihi competijt vel competit ratione dominij quod habeo in territorio de Glegern vel aliqua alia ratione in eadem capella illud pro anima domini mei Philippi de Valonijs et pro salute anime mee et omnium parentum et amicorum meorum concessi et quietum clamavi ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus cum omnibus rectitudinibus et pertinencijs ejusdem capelle . Et ad hujus protestationis et resignationis mee perpetuam firmitatem presenti pagine sigillum meum apposui . Testibus etc .

Confirmatio Legati super omnibus ecclesijs terris et possessionibus .

- 234 **F**rater Jacobus domini Pape penitenciararius et capellanus apostolice sedis legatus dilectis in Christo filijs abbati et canonicis de Driburgh regularem vitam professis salutem in Domino . Justis petentium desiderijs facile debemus prestare assensum et vota que a rationis tramite non discordant effectu tenemur prosequente complere . propter dilecti in Domino filij justis

vestris postulationibus elementer annuimus et partes vestras et locum in quo Domino deservitis et grangias et domos et terras ei adjacentes et proprijs vocabulis expressas ecclesiam de Myrtona ecclesiam de Lessydewyn ecclesiam de Childinchireh ecclesiam [de] Samilstonn ecclesiam de Kylrethny cum omnibus pertinentijs et rectitudinibus que ad predictas ecclesias spectare videntur sicut eas juste adepti estis et ante tempus vel in tempore legationis nostre in Scotia liberius et quietius vel plenius canonice possedistis sub protectione beati Petri apostoli domini Pape et nostra recipimus et in perpetuum confirmantes vos super hoc presentis scripti patrocinio communimus . Ad hoc etiam paupertati vestre compatiētes et paci in posterum pie providere volentes ecclesiam de Sowrby in Galwithia cum omnibus pertinentijs suis et ecclesiam de Lanark cum omnibus ad eandem de jure spectantibus et capellam de Padnynnane cum omnibus pertinentijs suis a dioecesanis episcopis pie et canonice vobis in usus proprios concessas et autenticis eorum scriptis plenarie roboratas statim a decessu clericorum si qui eas nomine vestro possideant vobis possidendas confirmamus non obstante consuetudine que nomine proprio possidentibus primo post decessum anno sub pietatis specie beneficia ecclesiastica indulgere solet . compositionem vero inter vos et canonicos de Jeddewod super ecclesia de Lessydewyn pro bono pacis factam et compositionem inter vos et monachos de Melros super metis terrarum vestrarum et grangie vestre de Caddisley et super alijs quibusdam capitulis mediantibus viris religiosiis et discretis pridem factam et diu habitam sicut in instrumento exinde confecto et sigillis eorum roborato plenius continetur . sententiam quoque per iudices a summo pontifice delegatos pro vobis rite latam super capella de Clegern pertinente ad matricem ecclesiam de Lanark sicut in autentico eorundem iudicum exinde facto et sigillis eorum munito continetur . compositionem inter vos etiam et Willelmum de Vallibus militem ex una parte et moniales de Southberwic ex altera super ecclesia de Golyn in presencia nostra mediantibus viris religiosiis et discretis factam sicut in instrumentis exinde confectis et sigillo nostro sigillisque

utriusque partis roboratis plenius continetur cum omnibus que prenominata sunt beneficijs et libertatibus auctoritate qua fungimur in presenti vobis et posteris vestris inperpetuum communimus et hanc confirmationem nostram ratam de cetero et irrefragabiliter conservandam fore sancimus . Nulli ergo hominum liceat hanc paginam nostre protectionis et confirmationis infringere vel ei ausu temerario aliquatinus contraire . si quis autem hoc attentare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus et domini Pape et nostram se noverit incursum . Datum Driburgh anno sub incarnatione Domini millesimo cc° xxi° papatus domini Honorij quinto ix° kalendas Maij .

Confirmacio episcopi sancti Andree super ecclesijs terris et possessionibus .

235 **R**icardus Dei gratia humilis Scotorum episcopus univertis sancte matris etc. eternam in Domino salutem . Cum ea que ad virorum religionum sustentationem a fidelibus Dei devote collata sunt multorum perversitas non sine gravi peccato minuere auferre vel perturbare impudenter non timeat summo opere ipsos ecclesie pastores deest malorum incursum vigilanter providendo preceavere et si quid crudeliter aut temere in servos Dei presumptum fuerit gladium spiritus cum Petro viriliter et secundum canones fideliter exercere . Quod nobiscum erebro et sollicite pertractantes religiose etiam conversationis fratrum de Driburgh odore provocati ecclesiam sancte Marie et sancti Johannis ewangeliste ibidem sitam et fratres in ea Deo servientes in beati Andree apostoli et nostra protectione fuscipimus et presentis scripti patrocinio communimus . Preterea quascunque possessiones quoscunque redditus quecunque bona in diocesi nostra iuste et canonice in presenti possident vel Deo propitiante in futuro potuerint adipisci eis episcopali auctoritate perpetuo possidenda confirmamus et hec proprijs vocabulis exprimimus . ecclesiam de Myrtoun cum terra adiacente et omnibus

pertinentijs suis ecclesiam de Childinchirch cum terra adjacente et omnibus pertinentijs suis ecclesiam de Saultoun cum terra adjacente et omnibus pertinentijs suis Langelaw per rectas divisas suas piscationes de Berwie decimam molendinorum de Saultoun et de Lauder decimam molte de Newtoun et de Naythenthirn grangiam de Caddisley per rectas divisas suas et metas que in autentico scripto inter eos et monachos de Melros mediantibus viris religiosiis et discretis pro bono pacis facto continetur . ecclesiam de Kilrethny cum omnibus pertinentijs et rectitudinibus suis dimidiam carucatam terre in Petcortyn et unum plenum toftum in Carale . Decernimus ergo et concedendo in presentia synodi nostre eis confirmamus ut prefata beneficia tam libere quiete et plenarie in usus proprios perpetuo teneant et possideant sicut carte eorum confirmant qui eadem beneficia eis pie contulerint . Testibus etc .

Generalis confirmatio episcopi sancti Andree super omnibus et super pace inter metas abbacie concessa .

236 **R**icardus Dei gracia ecclesie sancti Andree in Scotia humilis minister omnibus etc. salutem . Noverit universitas vestra nos ex pia conversatione simul et petitione fratrum canonicorum de Driburgh provocatos domum ipsam et omnes in ea Deo servientes in speciali tutela et protectione beati Andree apostoli et nostra suscepisse et eis gratanter concessisse et hac presenti carta auctoritate episcopali confirmasse omnes elemosinas et beneficia que . . . de Morevilla fundator eorum pro salute anime sue predictae domui contulit scilicet terras et aquas et piscationes et ecclesias terre sue post decessum personarum qui in presenti tenent et omnia alia que ad sustentationem eorum assignavit et dedit ut in carta ejusdem continetur . quoscunque etiam redditus quascunque libertates quecunque bona piorum regum David Malcolmii Willelmi largitate vel ceterorum Dei fidelium collatione iuste et pie in episcopatu nostro vel consecuti sunt vel Deo propitiante in futuro

consequi potuerint presenti scripto omnia communimus et perpetuo usibus et necessitatibus eorum integre et illibate profutura confirmamus ita libere quiete et plenarie eis possidenda sicut aliqua elemosina in diocesi sancti Andree liberius et quietius possidetur salvo jure episcopali . Ad majorem vero predictę domus reverentiam et quietem nos fervorum Dei volentes devotioni satisfacere pacem ecclesiasticam in terris libere elemosine sue firmiter servandam statuimus sub interminacione anathematis inhibentes ne quis ausu temerario infra crucem quam ad orientem metarum suarum erexerunt hominem capere verberare furtum seu rapinam facere ignem apponere vel aliquam violenciam inferre presumat . quod si quis hanc constitutionem [infregerit vel] contra eam temere venire presumpserit indignacionem Dei omnipotentis et beate virginis Marie et sanctorum apostolorum Andree et Johannis se noverit incursum nisi secundo tertiove commonitus reatum suum digne satisfaciendo emendaverit . Cunctis autem prefate domui pacem et sua jura ad integrum servantibus largam Dei et sanctorum ejus benedictionem et nostram devote participamus . Testibus etc .

Confirmatio episcopi sancti Andree super omnibus ecclesijs grangijs decimis molendini scilicet Saultoun Lauder Ulkilston Thirlestian Newtoun Naytheinthirn .

- 237 Vilelmus permissione divina ecclesie sancti Andree minister humilis universis sancte etc. eternam in Domino salutem . Cum ea que ad virorum religioforum sustentationem a fidelibus Dei devote collata sunt multorum perversitas non sine gravi peccato minuere auferre vel perturbare impudenter non timeat summo opere ipsos ecclesie pastores decet malorum incursums vigilanter providendo precavere et si quid crudeliter aut temere in servos Dei presumptum fuerit gladium episcopale cum Petro viriliter et secundum canones fideliter exercere . Quod nobiscum crebro et sollicitè

pertractantes religioſe etiam converſationis fratrum de Driburgh odore provocati eccleſiam ſancte Marie et ſancti Johannis evangeliste ibidem et fratres in ea Deo ſervientes in beati Andree apoſtoli et noſtra protectione ſuſcipimus et preſentis ſcripti patrocinio communimus . Preterea quocunq; redditus quacunq; poſſeſſiones quecunq; bona in dioceſi noſtra juſte et canonice in preſenti poſſident vel Deo propitiante in futuro poterunt adipiſci eis epiſcopali auctoritate poſſidenda confirmamus et hec proprijs vocabulis exprimimus . eccleſiam de Myrtoun cum terra adjacente et omnibus pertinentijs ſuis eccleſiam de Childinchirch cum terra adjacente et omnibus pertinentijs ſuis eccleſiam de Saultoun cum terra adjacente et omnibus pertinentijs ſuis Langelaw per rectas diviſas ſuas piſcationes de Berwie decimas molendinorum de Saultoun et de Lauder et de Ulkiltoun et de Thirleſtan decimam molte de Newtown et de Naythynthirn grangiam de Candefley per rectas diviſas et metas que in autentico ſcripto inter eos et monachos de Melros mediantibus viris religioſis et diſcretis pro bono pacis facto continentur . eccleſiam de Kilrethny cum omnibus pertinentijs rectitudinibus ſuis dimidiam carucatam terre in Petcorthyn et unum plenum toſtum in Karal unam carucatam terre in Smalham duas bovatas terre in Ercildon duas bovatas terre in Bemerfyd cum Threpwod viginti ſolidos in Edinham . Decernimus ergo et concedendo in preſencia noſtre ſynodi eis confirmamus ut preſata beneficia tam libere quiete et plenarie in uſus proprios perpetuo teneant et poſſideant ſicut ea liberius vel plenius hucuſque tenuerint aut in preſenti tenent et ſicut carte eorum confirmant qui eadem beneficia eis pie contulerunt . Ut autem hec conceſſio noſtra robur perpetue firmitatis optineat eam ſigilli noſtri munimine et appoſitione ſigillorum prioris et conventus ſancti Andree et aſſenſu capituli et magiſtri L . et magiſtri J . archidiaconorum ejuſdem eccleſie dignum duximus roborare . Teſtibus etc .

Super viginti marcis pro ecclesijs de Sowrby et de Kirkfolan nobis a Priore Candidecae ad festum Assumptionis inperpetuum solvendis .

238 **O**mnibus Christi etc. Prior et conventus Candidecae salutem in Domino .
 Noveritis quod cum abbas et conventus [de] Driburgh nos procuratores suos perpetuis temporibus constituerint et ordinaverint ad colligendum fructus redditus et obventiones ecclesiarum suarum de Sowrby et Kirkfolan Candidecae diocesis cum terris et omnibus alijs ad eandem pertinentibus prout in quibusdam alijs publicis instrumentis hinc inde confectis plenius continetur . nos fide media promittimus et per omnia bona nostra obligamus nos solvere nomine procuratorio predictis abbati et conventui annuatim in perpetuum viginti marcas bonorum et legalium sterlingorum in festo Assumptionis beate virginis Marie apud Driburgh sine ulteriori dilatione . Quod si contingat quod absit nos in solutione dicte pecunie in dicto termino deficere promittimus fideliter solvere magistro fabrice ecclesie de Driburgh qui pro tempore fuerit per quamlibet quindenam quamdiu predictae viginti marce non fuerint solute dimidiam marcam argenti nomine pene . et ad omnia predicta fideliter observanda subicimus nos et successores nostros jurisdictioni domini episcopi Candidecae vel ejus archidiaconi qui pro tempore fuerint ut eorum alter qui fuerit interpellatus possit nos pro voluntate dictorum abbatis et conventus vel procuratorum eorundem ad solutionem tam viginti marcarum quam dicte pene si fuerit commissa absque strepitu judiciali et cum omni reclamacione compellere . In cujus rei testimonium presenti scripto sigillum nostrum conventuale una cum sigillo capituli apposuimus . Datum apud Candidamecam dominica proxima ante festum sancti Bartholomei apostoli anno gracie m° cc° lxxx° secundo .

Confirmatio regis super omnibus donationibus Hugonis de Morevilla et Beatricis de Bello campo .

- 239 **D**avid rex Scotie episcopis abbatibus comitibus baronibus iusticiarijs vicecomitibus prepositis ministris et omnibus probis hominibus totius terre sue clericis et laicis Francis et Anglicis tam futuris quam presentibus salutem . Sciatis me concessisse et hac mea carta confirmasse ecclesie sancte Marie de Driburgh et fratribus canonicis ibidem Deo servientibus et servituris ipsum locum de Driburgh et omnes donationes et elemosinas quas Hugo de Morevilla et Beatrix de Bello campo uxor ejus ad eorum sustinementum concesserunt in perpetuam elemosinam et eis dederunt scilicet in terris et in aquis in piscationibus et pascuis et in ecclesijs terre sue et in omnibus alijs beneficijs sicut carte eorum testantur et confirmant . Quare volo et precipio ut prenominati fratres has elemosinas ita libere et quiete et plenarie perpetuo teneant et possideant sicut aliqua elemosina in regno Scotie liberius quietius tenetur et sicut carte eorum confirmant . Testibus etc .

Confirmatio regis super omnibus et licencia accipiendi in nemoribus suis necessaria omnia et quietancia tolonei .

- 240 **M**alcolmus rex Scotie episcopis abbatibus comitibus baronibus iusticiarijs vicecomitibus prepositis ministris et omnibus probis hominibus totius terre sue clericis et laicis Francis et Anglicis salutem . Sciant tam posteri quam presentes me concessisse et hac mea carta confirmasse donationes quas Hugo de Morevilla et Beatrix de Bello campo Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo servientibus dederunt et concesserunt scilicet ipsam Driburgh et terras et aquas ei adjacentes et ecclesias terre sue sicut carta eorum testatur et carta avi mei regis David confirmat . Preterea

confirmo eis omnes donationes quas avus meus et pater meus predictę ecclesie in liberam elemosinam dederunt et concesserunt scilicet ecclesiam de Lanerk cum terra et omnibus rebus ei iuste pertinentibus et capellam de Paduynnan et in eadem villa illam terram quam Nycholaus clericus de avo meo tenuit et Syrand' sacerdos ante eum et landam de Caddesley cum pascuis ibi circumquaque in foresta mea quam avus meus eis pro anima patris mei dedit et confirmavit . et ex dono patris mei illud toftum quod fuit Johannis capellani extra murum porte occidentalis de Rogesburgh ita liberum et quietum sicut carta ejus eis confirmat . Confirmo etiam eis donationes quas Beatrix de Bello campo eis fecit de terris suis quas emit de Rogero janitore et de ecclesia de Boffyetha sicut carta ejus testatur et terram juxta Cadesley quam carta Walteri de Lyndefay eis confirmat . Concedo preterea et hac carta eis confirmo licenciam accipiendi in nemoribus meis ea que necessaria eis fuerint usibus suis et edificijs ita ut nullus eos iniuste disturbet et ut liberi sint in omni regno meo de teloneo et omni seculari exactione et consuetudine quantum ad propria catalla sua sicut carta avi mei eis concedit . Volo itaque et precipio ut predicti fratres ita libere et quiete et honorifice possessiones istas et donationes et libertates habeant inperpetuo et teneant sicut aliqua ecclesia in regno meo liberius et melius tenet . Testibus etc .

Confirmatio generalis et super licencia accipiendi in nemoribus regis que necessaria sunt et super quietancia telonei ubique .

- 241 **V**illelmus rex Scotie episcopis abbatibus comitibus baronibus justiciarijs vicecomitibus prepositis ministris et omnibus probis hominibus totius terre sue salutem . Sciant tam posteri quam presentes me concessisse et hac mea carta confirmasse Deo et ecclesie sanctę Marie de Driburgh et canonicis ibidem Deo servientibus omnes donationes et possessiones et libertates que

eis temporibus David regis avi mei et Malcolmi regis fratris mei concessę sunt et confirmate . In primis ex dono David regis avi mei ecclesiam de Lanerk cum terra ad eandem pertinente et capellam de Paduynnan et in eadem villa terram illam quam Nycholaus clericus meus tempore David regis avi mei tenuit hysdem terminis et divisis et landam totam que vocatur Caddifleya sicut nemore accingitur cum pascuis infra forestam meam circumquaque et licenciam accipiendi in nemoribus meis ea que necessaria fuerint usibus suis et edificijs et quietanciam de teloneo quantum ad propria catalla sua per totam terram meam . confirmo etiam eis illud toftum quod fuit Johannis sacerdotis in Rogesburgh . ex dono Malcolmi regis duas marcas in Edinham singulis annis et dimidiam carucatam terre in eadem villa et terram illam que vicina est muro juxta portam occidentalem de Rogesburgh . ex dono Hugonis de Morevilla ecclesiam de Myrtoun et ecclesiam de Childinchireh et piscationes de Berwic et decimam molendinorum de Lauder et de Saultoun . ex dono Beatrice de Bello campo ecclesiam de Bosyet et terram in Rogesburgh quam emit de Rogero janitore et decimam molendini de Nathanthirn . ex dono Ricardi de Morevilla ecclesiam de Saultoun . ex dono R . Bartram decimam molendini de Newthoun . ex dono David Olifard unam plenariam carucatam terre in Smalham . ex dono G. de Percy duas bovas terre in Hetoun . Volo itaque et firmiter precipio ut predicti canonici tenuras predictas et libertates ita libere et quiete et honorifice perpetuo teneant et possideant sicut aliqua [domus] religiosa in tota terra mea liberius et quietius et honorificentius tenet et possidet . Testibus etc .

Generalis confirmatio Alexandri regis super omnibus ecclesijs et alijs terris et possessionibus nostris .

242 **A**lexander rex Scotie episcopis abbatibus comitibus baronibus justiciarijs vicecomitibus prepositis ministris et omnibus probis hominibus totius terre

sue salutem . Sciant tam posterì quam presentes nos concessisse et hae carta nostra confirmasse Deo et ecclesie sancte Marie de Driburgh et canonicis ibidem Deo fervientibus omnes donationes et possessiones et libertates que eis temporibus David regis proavi nostri et Maleolmi regis avunculi nostri et domini Willelmi regis patris nostri concessæ sunt et confirmatæ . in primis ex dono David regis ecclesiam de Lauder [*Lanerck*] eum terris et decimis et omnibus rebus iuste ad illam pertinentibus et capellam de Padyman et in eadem villa terram illam quam Nyeholaus clericus tempore David regis tenuit hujusdem terminis et divisis et landam totam que vocatur Caddesley et quietanciam de telonco quantum ad propria catalla sua per totam terram nostram . confirmamus etiam eis illud toftum quod fuit Johannis sacerdotis in Rogesburgh . ex dono Malcolmi regis duas marcas in Edinham singulis annis et dimidiam carucatam terre in eadem villa et terram illam que vicina est muro juxta portam occidentalem de Rogesburgh . ex dono H . de Morevilla ecclesiam de Myrtoun et ecclesiam de Childinchirch et piseationes de Berwie et decimas molendinorum de Lauder et de Sawltoun . ex dono Beatricis de Bello campo ecclesiam de Boficta et terram in Rogesburgh quam emit de Rogero janitore et decimas molendini de Nathynthirn . ex dono Rogeri Bertram decimam molendini de Neutoun . ex dono David Olyfard unam plenariam carucatam terre in Smalham . ex dono Walteri de Lyndesay terram juxta Caddesley quam carta ejusdem Willelmi eis confirmat . ex dono G. de Percy duas bovatas terre in Hetoun . ex dono domini Willelmi regis patris mei viginti solidos de firma burgi nostri de Rogesburg . ex dono Roberti de Londonijs ecclesiam de Lessedewyn eum pertinentijs suis . ex dono Ade comitis ecclesiam de Kilrethny eum pertinentijs et dimidiam carucatam terre in Petcorthin eum communi pastura et unum plenum toftum in burgo de Karal . ex dono Alexandri de sancto Martino terram que vocatur Langelaw per suas divisas . ex dono Valteri filij Alani landam que vocatur Herdesley . Volumus itaque et precipimus ut predicti canonici predictas donationes possessiones et libertates ita libere quiete ple-

narie et honorifice teneant et possideant sicut carte antecessorum nostrorum regum Scotie et aliorum donatorum eis inde facte iuste testantur et confirmant . salvo servicio nostro si quid nobis de predictis terris debetur . Testibus etc . Apud Jeddeword decimo die Junij anno regni domini regis xvi° .

Quod non solvent pro ecclesia de Golyn episcopo nisi quatuor marcas pro procurationibus et quatuor marcas nomine canonicorum .

- 243 **W**illelmus permissione divina sancti Andree episcopus dilectis sibi in Christo decanis de Merskis et de Hadington salutem cum benedictione divina . Noveritis quod cum religiosi viri abbas et conventus de Driburgh nobis de procurationibus auxilijs et synodalibus ab ecclesijs eorundem in decanatibus vestris existentibus de quibus estis onerati in compotis vestris usque ad consecutionem presentium nobis debitis plenarie satisfecerint et iidem abbas et conventus per cartas eorundem nobis ostenderunt quod ecclesia de Golyn in quatuor marcis nomine procurationis nostre et quatuor marcis nomine canonicorum annuatim nobis tenetur . Quare volo et cuilibet vestrum in virtute obediencie mandamus frmiter injungentes quatinus sequestrum per vos factum ratione promissionis in bonis dictarum ecclesiarum (quod in hijs scriptis relaxamus relaxatum denunciantes) et pecuniam a dictis ecclesijs nobis debitam in qua estis onerati in proximis compotis vestris vobis plenarie faciemus allocare dictos abbatem et conventum in ecclesia de Golyn nomine pensionis ab eadem petite minime gravantes quia eisdem tenore carte ecclesie de Golyn ad recipiendum quatuor marcas nomine procurationis et quatuor marcas nomine canonicorum a dicta ecclesia annuatim debitas concessimus . Quare volumus quod a dicta ecclesia nullam aliam pensionem quam pecuniam predictam de cetero exigatis vel levetis . Datum apud Driburgh in crastino beati Bartholomei apostoli anno gracie millesimo ducentesimo nonagesimo tertio .

Generale privilegium ordini concessum videlicet super protectione ordinis et confirmatione statutorum et regularium institutionum et super pluribus alijs libertatibus .

244 Innocentius episcopus servus servorum Dei dilectis filijs abbati Premonstratenſi et ceteris abbatibus et canonicis Premonſtratenſis ordinis tam preſentibus quam futuris regularem vitam profeſſis . In eminenti ſedis apoſtolice ſpecula licet immeriti diſponente Domino conſtituti pro ſingulorum ſtatu ſoliciti eſſe compellimur et ea ſincere tenemur amplecti que ad incrementum religionis pertinent et ad virtutum ſpectant ornatum quatinus religioſorum quies ab omni ſit perturbatione ſecura et a iugo mundaſe oppreſſionis ſervetur illeſa cum apoſtolica fuerit tuicione munita . attendentes itaque quomodo religio et ordo veſter multa refulgens gloria meritorum et gratia redolens ſanctitatis palmites ſuos a mari uſque ad mare extenderit ipſum ordinem et univerſas domus ejuſdem ordinis apoſtolice protectionis preſidio duximus conſoſendas et preſenti privilegio munientes . eapropter dilecti in Domino filij veſtris juſtis poſtulationibus benignius annuentes ad exemplar ſelicis recordationis Alexandri Lucij Urbani Clementis et Innocentij predeceſſorum noſtrorum Romanorum pontificum univerſas regulares inſtitutiones et diſpoſitiones quas de omnium conſenſu vel majoris et ſenioris partis feciſtis ſient inferius denotantur auctoritate apoſtolica roboramus et preſentis ſcripti privilegio communimus videlicet ut ordo canonicus quemadmodum in Premonſtratenſi eccleſia ſecundum beati Auguſtini regulam et diſpoſitionem recolende memorie Norberti quondam Premonſtratenſis ordinis inſtitutoris et ſucceſſorum ſuorum in candido habitu inſtitutus eſſe dinoscitur et [*per*] omnes ejuſdem ordinis eccleſias perpetuis temporibus inviolabiliter obſervetur et eodem penitus obſervancie hujdem quoque libri qui ad divinum officium pertinent ab omnibus ejuſdem ordinis [*eccleſijs*] uniformiter teneantur nec aliqua eccleſia vel perſona ordinis veſtri adverſus communia

ipſius ordinis inſtituta privilegium aliquod poſtulare vel optentum audeat quomodolibet retinere . Nulla etiam eccleſiarum ei quam genuit quamlibet terreni commodi exactionem imponat ſed tantum Pater Abbas curam de profeſſu tam filij abbatis quam fratrum domus illius habeat et poteſtatem habeat ſecundum ordinem corrigendi que in ea noverit corrigenda et illi ei tanquam patri reverenciam filialem humiliter exhibeant et devote . abbas autem Premonſtratenſis eccleſie que mater eſſe diſoſcitur aliarum non ſolum in hijs eccleſijs quas inſtituit ſed etiam in omnibus alijs ejusdem ordinis et dignitatem et officium patris optineat et ei ab omnibus tam abbatibus quam fratribus debita patri obediencia impendatur . Preterea omnes abbates ordinis veſtri ſingulis annis ad generale capitulum Premonſtratenſe poſtpoſita omni actione [*occafione*] conveniant illis ſolis exceptis quos a labore vie corporis retardaverit infirmitas . qui tamen ydoneum pro ſe delegare debent nuncium per quem neceſſitas et cauſa remotionis ſue capitulo valeant nunciari . Hi autem in remorancioribus [*remotioribus*] partibus habitantes [qui] ſine gravi difficultate ſingulis annis ſe nequiverint capitulo preſentare in eo termino conveniant qui in ipſo eis capitulo fuerit conſtitutus . ſi vero quilibet abbatum vel prepoſitorum per contumaciam veſtrum capitulum frequentare deſierint liceat abbati Premonſtratenſi conſilio ſui capituli eos uſque ad condignam ſatiffactionem ſentencia perecellere regulari et ſentenciam quam prefatus Premonſtratenſis abbas ſive in generali capitulo ſive extra capitulum conſilio [eo]abbatum in prefatos et ſubditos totius ordinis veſtri canonice tulit nulli archiepiſcoporum ſen epiſcoporum niſi forte de mandato Romani pontificis liceat relaxare . In generali igitur veſtro capitulo preſidente abbate Premonſtratenſi ceteriſque confidentibus et in ſpiritu Dei cooperantibus de hijs que ad edificationem animarum ad inſtructionem morum et ad informationem virtutum atque incrementum regularis diſcipline ſpectabunt fermo diligens habeatur . Porro de omnibus queſtionibus et querelis tam ſpiritualibus quam temporalibus que in ipſo capitulo propoſite fuerint illud teneatur irrefragabiliter et ſervetur quod abbas Premonſtratenſis cum hijs qui ſanioris conſilij et magis

ydonei apparuerint iuste ac provide judicabunt . sane si abbas aliquis vestri ordinis infamis vel inutilis aut ordinis sui prevaricator inventus fuerit et prius per Patrem suum abbatem aut per nuncios ejus ammonitus suum corrigere et emendare delictum neglexerit aut cedere si amovendus fuerit sponte noluerit auctoritate generalis capituli deponatur et depositus sine dilacione ad domum unde exivit seu ad aliam ejusdem ordinis quam elegerit sine ulla conditione temporalis commodi revertatur in obediencia abbatis sicut ceteri fratres ipsius domus firmiter permanfurus . Id ipsum etiam alio tempore si necesse fuerit et capitulum sine scandalo vel periculo expectari nequiverit per abbatem Premonstratensem et Patrem abbatem et alios quos vocaverit fieri licebit . Quod si depositus in se date sentencie contumaciter contraire temptaverit tam ipse quam principales ejus qui de ordine vestro fuerint in sua contumacia fautores ab abbate Premonstratensi et ceteris abbatibus censura ecclesiastica donec satisfaciant arceantur . verum cum aliqua ecclesiarum vestrarum abbate proprio fuerit destituta vel cum abbatis electio regulariter [non] fuerit celebrata sub Patris abbatis potestate et dispositione consistat et cum ejusdem consilio qui eligendus fuerit a canonicis eligatur . electo autem fratres ecclesie statim obedienciam promittant . Qui non quasi absolutus a potestate Patris abbatis vel ordinis sui archiepiscopo vel episcopo in cujus diocesi fuerit presentetur plenitudinem ab eo officij percepturus ita tamen quod post factam archiepiscopo vel episcopo suo professionem occasione illa non transgrediatur constitutiones ordinis sui nec in aliquo ejus prevaricator existat . si quis etiam ex vobis canonicè electus in abbatem diocesano episcopo semel et iterum per abbates vestri ordinis presentatus benedictionem ab eo non poterit optinere ne ecclesia ad quam vocatus est destituta consilio periclitetur officio et loco abbatis plenarie secundum ordinem fungatur in ea tam in exterioribus providendis quam in interioribus corrigendis donec aut interventu generalis capituli vestri aut ex precepto Romani pontificis seu metropolitani benedictionem optineat . Porro nulla persona ecclesiastica pro crismate aut consecrationibus et ordinationibus aut

pro sepultura precium aut [pro] benedicendo abbate et deducendo in sedem suam palafritum aut aliquod aliud a vobis exigere nullus etiam vestrum [si] exigatur dare presumat quia et exigentem et dantem nota et periculo fymoniache pravitatis involvit . ceterum si aliqua ecclesiarum vestrarum pastoris solacio destituta inter fratres de substituendo abbate discordia fuerit vel suborta scissura et ipsi facile ad concordiam vel unitatem revocari nequiverint Pater abbas consilio coabbatum suorum eis ydoneam providerit personam et illi etiam eam sine contradictione recipiant in abbatem quam si recipere contempserint sentencie subiaceant quam Pater abbas cum consilio coabbatum suorum in eos duxerit auctoritate ordinis promulgandam . Ad hoc quum et Premonstratensis ecclesia prima mater est omnium ecclesiarum totius ordinis et patrem sub [*super*] se alium non habet sicut ad cautelam et custodiam ordinis statutum est per tres primos abbates Laudunensem Floressiensem et Cusiacensem annua ibidem visitatio fiet et si quid in ipsa domo corrigendum fuerit absque majori per eos audientia corrigatur . Quod si abbas in corrigendo tepidus et fratres sepius moniti incorrigibiles permanferint ad generale capitulum referatur et sicut melius visum fuerit consilio generali emendetur et sententia in hac parte capituli sine retractione aliqua observetur . Quociens vero ecclesia Premonstratensis sine abbate fuerit ad prefatos tres abbates ejus cura respiciat et a canonicis ipsius ecclesie sine [*cum*] eorum consilio persona in abbatem ydonea eligatur ad consilium suum quatuor alijs abbatibus ad eandem ecclesiam pertinentibus pariter advocatis quos ipsi canonici providerint advocandos . liceat quoque unicuique matri ecclesie ordinis vestri cum consilio abbatis Premonstratensis de abbatibus ecclesiarum que ab ea processisse noscuntur sive etiam de alia ejusdem ordinis inferiore ecclesia sibi quemcunque voluerint si tamen ydoneus exstiterit in abbatem assumere personam autem de alio ordine nulla ecclesiarum vestrarum sibi eligat in abbatem nec vestri ordinis aliqua in abbatem monasterij alterius ordinis nisi de auctoritate Romane ecclesie ordinetur . Nulli etiam canonicos vel conversos vestros sine licencia abbatum recipere aut susceptos liceat retinere sane

nulli ecclesie vestri ordinis liceat ad aliquam aliam professionem temeritate qualibet se transferre . si que vero ecclesie canonicorum alterius ordinis ad ordinem vestrum venerint ad ecclesiam vestri ordinis habeant sine refragatione respectum in qua vestrum noscuntur ordinem assumpsisse . Preterea si inter aliquas ecclesias vestri ordinis de temporalibus questio emerferit non extra ordinem ecclesiastica vel secularis audiencia requiratur sed mediante Premonstratensi abbate et ceteris quos vocaverit aut caritative inter eos componatur aut auditis utrinque rationibus eadem contraversia iusto iudicio terminetur . Ad maiorem quoque ordinis vestri pacem conservandam strictius prohibemus ne aliquis prelatorum vel subditorum vestrorum in hijs que ad disciplinam et instituta ordinis spectant audeat prout statutum est in Lateranensi consilio appellare sed et si quisquam appellare temptaverit nihilominus illi quorum interest regularem disciplinam exercere debebunt . de cetero quoniam a strepitu et tumultu secularium remoti quietem et pacem diligitis grangias vestras et curtes sicut et atria ecclesiarum a pravorum incurfu et violentia liberas fore sancimus prohibentes ut nullus ibi hominem capere spoliare verberare seu interficere aut furtum audeat vel rapinam committere . ob evitandas vero secularium virorum frequentias liberum sit vobis salvo jure diocesanorum episcoporum oratoria in grangijs [et] curtibus vestris construere et in ipsis vobis et familie vestre divina officia cum necesse fuerit celebrare et ipsam familiam nisi aliqui sint qui in vicinia habeant propria domicilia ad confessionem communionem et sepulturam cum vestri ordinis suscipere honestate . liceat quoque vobis personas liberas et absolutas e seculo fugientes ad conversionem recipere et eas cum rebus suis absque contradictione aliqua retinere . Infirmos quoque absolutos qui in extrema voluntate ad vos se transferre aut apud vos sepeliri deliberaverint nullus impedire seu res eorum legitimas detinere presumat salva tamen heredum legitima portione et canonica iusticia illarum ecclesiarum a quibus mortuorum corpora assumentur . Ad maiorem etiam ordinis vestri reverenciam et regularis discipline observanciam vobis filij abbates subiectos vestros

ligandi et solvendi plenam concedimus facultatem . Quia vero singula que ad religionis profectum et animarum salutem ordinastis prefenti abbreviacioni nequiverunt annexi nos cum hijs que prescripta sunt consuetudines vestras quas inter vos religionis intuitu regulariter statuistis et deinceps auctore Domino statuetis auctoritate apostolica roboramus et vobis vestrisque successoribus et omnibus qui ordinem vestrum professi fuerint perpetuis temporibus inviolabiliter decernimus observandas nec aliquę literę habeant firmitatem que tacito nomine Premonstratensis ordinis contra libertates vobis ab apostolica sede indultas fuerint impetrate . sane laborum vestrorum de possessionibus habitis ante consilium generale ac etiam novarum que proprijs manibus aut sumptibus colitis de quibus aliquis hactenus non perceperit sive de ortis et virgultis et piscationibus vestris vel de nutrimentis animalium vestrorum nullus a vobis decimas exigere vel extorquere presumat . Interdicimus vero episcopis et alijs ecclesiarum prelatiis nisi servato erectionis numero in Lateranensi consilio constituto in vestris monasterijs hospitari . ad grangias autem vestras et ad curtes hospitandi gracia non nisi in magna necessitate divertant et tunc contenti sint ipsarum mansionum cibarijs consuetis cum honestate atque caritate exhibitis . nulli autem seculari persone vel ecclesiastice in aliqua domorum vestrarum liceat carnibus vesci nisi manifeste egritudinis gratia et hoc in solis monasterijs vestris conventualibus . Prohibemus insuper ne aliqua persona fratres ordinis vestri audeat ad secularia iudicia provocare sed si quis adversus eos aliquod sibi crediderit de jure competere sub ecclesiastici examine iudicij experiendi habeat facultatem . Licetum preterea vobis sit in causis vestris fratres vestros idoneos ad testimonium adducere et eorum testimonio sicut rectum fuerit et propulsare violentiam et iusticiam vindicare . Prohibemus quoque ne cuilibet ecclesiastice vel seculari persone fas sit in ecclesijs vestris contra statuta Lateranensis consilij tallias exercere vel qualque alias vobis ineptas et iniquas exactiones imponere . Interdicimus etiam vobis ne feras aves canes sive cetera huiusmodi curiositatis animalia a quolibet ad nutriendum sive custodiendum in

detractionem vestri ordinis suscipere presumatis . Porro ut quietius Deo servire possitis et discurrendi a vobis necessitas auferatur presenti scripto duximus indulgendum ut si episcopis vestris aut maliciose differentibus vel pro justo impedimento non valentibus ordinationes et cetera ecclesiastica ministeria vobis conferre aliquem episcopum de cujus ordinatione et officio plena sit vobis noticia hospitem vobis habere contigerit liberum sit vobis ab eo et ordinationes et cetera sacramenta suscipere dum tamen prejudicium diocesano episcopo non debeat generare . Preterea postulationi vestre clementius inclinati presenti pagina duximus inhibendum ne quis archiepiscopus vel episcopus aut eorum officiales ecclesias vestras seu regulares personas earum absque manifesta et rationabili causa interdiceret seu suspendere presumat sed si quid in eis fuerit corrigendum ad audienciam generalis capituli Premonstratensis referatur et ibi prout justicie et honestati congruerit emendetur . Porro si qui episcopi aut eorum officiales in personas vestras vel ecclesias sententiam aliquam contra libertatem eisdem a predecessores nostris vel a nobis indultam promulgaverint eandem sententiam tanquam contra apostolice sedis indultam prolatam statuimus irritandam . decernimus igitur ut nulli omnino hominum liceat prefatam ecclesiam temere perturbare aut ejus possessiones auferre vel ablatas retinere minuere seu quibuscumque vexationibus fatigare sed omnia integra conserventur eorum pro quorum gubernatione aut sustentatione concessa sunt usibus omnimodis profutura salva sedis apostolice auctoritate . si qua igitur in futurum ecclesiastica secularive persona hanc nostre constitutionis paginam sciens contra eam temere venire temptaverit secundo tertiove commonita nisi reatum suum digna satisfactione correxerit potestatis honorisque sui careat dignitate reamque se domino judicio exigere [*divino judicio existere*] de perpetrata iniquitate cognoscat et a sacratissimo corpore et sanguine Dei et domini Redemptoris nostri Jesu Christi aliena fiat atque in extremo examine districtè subjaceat ulcioni . Cunctis autem eidem loco sua jura servantibus sit pax Domini nostri Jesu Christi quatinus et hic fructum bone actionis

percipiant et apud districtum iudicem premia eterne pacis invenient .
Datum Lugduni per manum magistri Marini Romane ecclesie vicecancellarij quinto nonas Maij indictionis quarte incarnationis Dominice anno m° cc° xl° vi° pontificatus vero domini Innocentij iiij anno tertio .

Privilegium quod dicitur non absque dolore .

245 **I**nnocencius episcopus servus servorum Dei venerabilibus fratribus episcopis et dilectis filiis abbatibus prioribus archidiaconis decanis et alijs ecclesiarum prelati per regnum Scotie constitutis salutem et apostolicam benedictionem . Non absque dolore cordis et plurima perturbatione didicimus quod ita in plerisque partibus ecclesiastica censura dissolvitur et canonice sentencie severitas enervatur ut viri religiosi et hi maxime qui per sedis apostolice privilegia majori donati sunt libertate passim a malefactoribus suis injurias sustineant et rapinas dum vix invenitur qui congrua illis protectione subveniat et pro fovenda pauperum innocencia se murum defensionis opponat . specialiter autem dilecti filij abbas et fratres sancte Marie et sancti Johannis de Driburgh Premonstratensis ordinis tam de frequentibus injurijs quam de ipso cotidiano defectu justicie conquerentes universitatem vestram literis petierunt apostolicis excitari ut ita videlicet eis in tribulationibus suis contra malefactores eorum prompta debeatis magnanimitate confurgere quod ab angustiis quas sustinent et pressuris vestro possint presidio respirare . ideoque universitati vestre per apostolica scripta mandamus atque precipimus quatinus illos qui possessiones vel res seu domos predicatorum fratrum vel hominum fuorum irreverenter invaserint aut ea injuste detinuerint que predictis fratribus ex testamento decedentium relinquuntur seu in ipsos fratres contra apostolice sedis indulta sentenciam excommunicationis aut interdicti presumpserint promulgare vel decimas laborum seu nutrimentorum ipsorum spretis apostolice sedis privilegijs extorquere monicione premissa si layci fuerint

publice candelis accensis excommunicationis sententia percellatis si vero clerici vel canonici regulares seu monachi fuerint eos appellacione remota ab officio et beneficio suspendatis neutram relaxaturi sententiam donec predictis fratribus plenarie satisfaciant et tam layci quam clerici seculares qui pro violenta manuum injectione anathematis vinculo fuerint innodati cum dioecesani episcopi literis ad sedem apostolicam venientes ab eodem vinculo mereantur absolvi . de monachis vero et canonicis regularibus id fervetur ut si ejusdem claustrum fratres manus in se injecerint violentas per abbatem proprium si vero unius claustrum frater in fratrem alterius claustrum hujusmodi presumpserit violentiam exercere per injuriam passi et inferentis abbates absolutionis beneficium assequantur . etiam si eorum aliqui postquam habitum receperint regularem tale aliquid commiserint propter quod ipso actu excommunicationis sententiam incurriscent nisi excessus ipforum esset difficilis et enormis utpote si esset ad mutilacionem membri vel sanguinis effusionem processum aut violenta manus in episcopum aut abbatem injecta cum excessus tales et similes sine scandalo nequeant preteriri . si vero in clericos seculares manus injecerint pro vitando scandalo mittantur ad sedem apostolicam absolvendi . villas autem in quibus bona predictorum fratrum vel hominum suorum per violentiam detenta fuerint quamdiu ibi sunt interdictionis sententie supponatis . Datum Lateran' ij kalendas Aprilis pontificatus nostri anno septimo .

Quod nullus delegatus vel subdelegatus executor aut etiam conservator in personam abbatis excommunicationis suspensionis vel interdicti sententias promulgare aut interdicere ei ingressum ecclesie valeat .

- 246 **I**nnocentius episcopus servus servorum Dei dilecto filio abbati monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem et apostolicam benedictionem . Apostolice sedis benignitas sincere obsequium

vota fidelium favore benevolo prosequi consuevit et illorum personas quas in sua devotione promptas invenerit et ferventes quibusdam titulis decentius decorare . ut igitur ex speciali devotione quam ad nos et Romanam ecclesiam habere dinosceris favorem apostolicum tibi sentias non modicum accrevisse auctoritate presentium indulgemus ut nullus delegatus vel subdelegatus executor aut etiam conservator auctoritate sedis apostolice vel delegatorum ipsius in personam tuam excommunicationis suspensionis vel interdicti sententias promulgare aut interdicere tibi ingressum ecclesie valeat absque speciali mandato sedis ejusdem faciente de hac indulgentia mentionem . Nulli ergo omnino hominum liceat hanc paginam nostre concessionis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Lugduni xii kalendas Aprilis pontificatus nostri anno tertio .

Quod episcopi et alij ecclesiarum prelati non nisi semel in anno procuracionis causa recipiant . quod procuraciones pecuniarias non teneamur solvere .

247 **I**nnocencius episcopus servus servorum Dei dilectis filiis abbati Premonstratenſi et universis coabbatibus ejus et eorum conventibus Premonstratenſis ordinis salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu prosequente complere . cum igitur sicut ex parte vestra fuit propositum coram nobis nonnulli archiepiscopi et episcopi ac alij ecclesiarum prelati personarum et electionum numero taxato in Lateranenſi consilio non contenti ad vestra monasteria causa procuracionis recipiende in anno non semel sed frequenter accedunt cum multitudo effrenata ac a vobis procuraciones pecuniarias cum personaliter non veniunt exigant et

extorqueant solam super hoc consuetudinem que dicenda est corruptela potius pretendentes . nos devocionis vestre precibus inclinati volentes abusivum hujusmodi penitus amputare ut cum aliquis eorum ad aliquod vestrum monasterium accefferit ipsum non nisi semel in anno cum evictionum et personarum numero in consilio Lateranensi taxato recipere seu procurare nec etiam procuraciones pecuniarias solvere teneamini auctoritate vobis presentium indulgemus . Nulli ergo omnino hominum liceat hanc paginam nostre concessionis refringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignacionem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Lugduni xv kalendas Maij pontificatus nostri anno tertio .

De subsidio alibi non contribuendo quando cum ordine hujusmodi subsidium contribuitur .

- 248 **Innocencius** episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem et apostolicam benedictionem . Devocionis vestre precibus inclinati auctoritate vobis presentium indulgemus ut cum abbatem Premonstratensem pro toto Premonstratensi ordine aliquod subsidium prestare contigerit dummodo contribuatis cum eodem ordine compelli adtribuendum in hujusmodi non possitis absque mandato sedis apostolice speciali faciente plenam de hac indulgentia mentionem . Nulli ergo hominum liceat hanc paginam nostre concessionis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignacionem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Lugduni v kalendas Decembris pontificatus nostri anno sexto .

Generale privilegium super ecclesijs nostris terris pascuis piscationibus et decimis molendinorum et super licencia accipiendi in nemoribus regis necessaria et presentacione canonicorum ad vicarias et super pluribus alijs libertatibus nobis concessis .

- 249 **Lucius** episcopus servus servorum Dei dilectis filijs Gerardo abbati ecclesie sancte Marie de Driburgh et sancti Johannis apostoli et ewangeliste ejusque fratribus tam presentibus quam futuris regularem vitam professis . Quociens a nobis petitur quod religioni et honestati convenire dinoscitur animo nos deest libenti concedere et petentium desiderijs congruum impertire suffragium . eapropter dilecti in Domino filij vestris justis postulacionibus clementer annuimus et prefatam ecclesiam sancte Marie et sancti Johannis apostoli et ewangeliste de Driburgh in qua divino mancipati estis obsequio sub beati Petri et nostra protectione suscipimus et presentis scripti privilegio communimus . In primis siquidem statuentes ut ordo canonicus qui secundum Deum et beati Augustini regulam atque institutionem Premonstratensium fratrum in eadem ecclesia constitutus esse dinoscitur perpetuis ibidem temporibus inviolabiter observetur . preterea quascunque possessiones quecunque bona eadem ecclesia inpresenciarum juste et canonice possidet aut in futurum concessione pontificum largicione regum vel principum seu alijs justis modis prestante Domino poterit adipisci firma vobis vestrisque successoribus et illibata permaneant in quibus hec proprijs duximus exprimenda vocabulis . ex dono Hugonis de Morevilla locum ipsum qui dicitur Driburgh cum terra nemore pascuis et aquis ad eum pertinentibus et piscationes de Berwic ecclesiam de Mertoun cum carucata terre ad eam pertinente ecclesiam de Childinchirch cum terra ad eam pertinente ecclesiam de Saultoun cum carucata terre ecclesiam de Kilrethny decimas molendinorum de Landor de Saultoun et de Naythynthirn et de Nebrun [*Newton*] ecclesiam de Lanerk cum terra ad eam pertinente capellam de Paduynhane ecclesiam de Laf-

fedewyn cum carucata terre ecclesiam de Afkeby cum suis pertinencijs . ex dono bone memorie David regis Scotie saltum qui dicitur Cadesleya cum pascuis ibi in foresta et licenciam accipiendi in nemoribus et forestis per Lander et Tevidaliam que ad edificia construenda et ceteros usus ligna vobis fuerint necessaria . ex dono Ricardi de Morevilla carucatam terre in Langelaw . ex dono David Olifard carucatam terre cum pascuis communibus cum toftis et croftis in Smalham . ex dono Gaufridi de Percy duas bovatas terre in Hetoun . ex dono Willelmi de Wepunt dimidiam carucatam terre in Nebrun [*Neutum*] ex dono Ade comitis dimidiam carucatam terre in Petcorthny cum tofto et crofto in Karal . ex dono Beatriceis de Bello campo terram in burgo de Rogesburgh que fuit Rogeri janitoris duas merceas annuatim nobis solvendas in Edinham redditum terre qui fuit Ormne de burgo de Rogesburgh intra portam terram que fuit Johannis facerdotis in eodem burgo extra portam redditum duarum mercarum et dimidie quem annuatim vobis solvere tenentur canonici ecclesie sancti Jacobi de Norhamton pro pensione ecclesie de Bofeth . sane novalium vestrorum que proprijs manibus aut sumptibus colitis sive de nutrimentis animalium vestrorum nullus a vobis decimas exigere aut extorquere presumat . Liceat quoque vobis clericos vel laycos e seculo fugientes liberos et absolutos ad conversionem recipere et eos absque contradictione aliqua retinere . Prohibemus insuper ut nulli fratrum vestrorum post factam in eodem loco professionem fas sit absque abbatis sui licencia de eodem loco discedere discedentem vero absque communi literarum caucione nullus audeat retinere . Cum autem generale interdictum terre fuerit liceat vobis clausis januis exclusis excommunicatis et interdictis non pulsatis campanis suppressa voce divina officia celebrare . In parochialibus vero ecclesijs quas habetis liceat vobis quatuor vel tres ad minus de canonicis vestris ponere quorum unus diocefano episcopo presentetur ut ei curam animarum committat ita quidem quod ei de spiritualibus vobis autem de temporalibus et de ordinis observancia debeat respondere . Pro criminate vero oleo sancto

consecrationibus ecclesiarum ordinationibus clericorum qui ad sacros ordines fuerint promovendi sive abbate deducendo ad sedem vel quibuscumque alijs ecclesiasticis sacramentis nullus a vobis aut sub optentu consuetudinis aut quolibet alio modo quicquam audeat postulare . Si quis autem contra hoc venire presumpserit porcionem cum Giezi se noverit habiturum cujus factum exactione turpis muneris imitatur . Paci quoque et tranquillitati vestre paterna sollicitudine providere volentes auctoritate apostolica prohibemus ut infra claustras locorum seu grangiarum vestrarum nullus violenciam vel rapinam seu furtum committere ignem apponere hominem capere vel interficere audeat . sepulturam preterea ipsius loci liberam esse decernimus ut eorum devocioni et extreme voluntati qui se illic sepeliri deliberaverint nisi forte excommunicati vel interdicti sint nullus obstat salva tamen iusticia illarum ecclesiarum a quibus mortuorum corpora assumuntur . obeunte vero te nunc ejusdem loci abbate vel tuorum quolibet successorum nullus ibi qualibet fureptionis astucia seu violencia preponatur nisi quem fratres communi consensu vel fratrum pars consilij sanioris secundum Dei timorem et beati Augustini regulam providerint eligendum . Ad hoc auctoritate apostolica prohibemus ut nullus episcopus vel officialis ipsius indebitas vobis vel ecclesijs vestris excommunicationes [*exactiones*] imponat aut in vos vel ecclesias vestras suspensionis excommunicationis aut interdicti sententiam absque manifesta et rationabili causa promulget nec magistris in parochia vestra de Lanerk et alijs parochijs vestris scolarum studia sine prava exactione regere volentibus temere quisquam audeat inhibere . Decernimus ergo ut nulli hominum fas sit prefatam ecclesiam temere perturbare aut ejus possessiones auferre vel ablatas retinere minuere seu quibuscumque vexationibus fatigare sed omnia integra conserventur eorum pro quorum gubernacione ac sustentacione concessa sunt usibus omnimodis profutura salva sedis apostolice auctoritate et dioecesani episcopi canonica iusticia . Si qua igitur in futurum ecclesiastica secularive persona hanc nostre constitucionis paginam sciens contra eam venire temptaverit secundo terciove commonita nisi reatum suum

digna satisfactiōe correxerit potestatis honorisque sui dignitate careat reamque se divino iudicio existere de perpetrata iniquitate cognoscat et a sacratissimo corpore ac sanguine Dei et Domini redemptoris nostri Jesu Christi aliena fiat atque in extremo examine divine ultioni subjaceat . Cunctis autem eidem loco sua jura servantibus sit pax Domini nostri Jesu Christi quatinus et hic fructum bone actionis percipiant et apud districtum judicem premia eterne pacis inveniant . Datum Anagnie per manum Alberti sancte Romane ecclesie presbiteri cardinalis et cancellarij . vi idus Maij indictione secunda incarnationis Dominice anno m° cc° lxxxiii . [m. c. lxxviii.] pontificatus vero domini Lucij pape tercij anno tercio .

Confirmacio super ecclesijs de Lessedewyn Mertoun Childinchirch Saultoun Lanerk Kilrethny Askeby Bofith .

250 Celestinus episcopus servus servorum Dei dilectis filiis Alano abbati et fratribus de Driburgh salutem et apostolicam benedictionem . Justis petitionum desiderijs dignum est nos facilem prebere consensum et vota que a tramite rationis non discordant effectu prosequente complere . Eapropter dilecti filij in Domino vestris justis postulationibus grato concurrentes assensu ecclesiam de Lessedewyn et ecclesiam de Mertoun ecclesiam de Childinchirch ecclesiam de Saultoun ecclesiam de Lanerk ecclesiam de Kilrethny ecclesiam de Askeby ecclesiam de Bofitha grangiam de Cadesleya hospitale de Innerkethyn cum pertinentijs suis ex dono regis Scotorum redditum viginti solidorum in Rogesburgh Langelaw cum pertinentijs terram que dicitur Saltum Delwyn dimidiam earueatam terre in Peteorthlyn duas bovas terre cum pertinentijs suis in Ereildoun toftum unum in Abirlededy toftum unum in Karele toftum unum et croftum unum in Paduenan unam salinam in marisco de Burth' decimas molendinorum de Newtona et de Brokismuth duas bovas terre in Giffyn rationabiliter ecclesie vestre

concessa sicut ea omnia iuste et pacifice possidetis vobis et per vos ecclesie vestre auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nichilominus etiam religionis et devocionis vestre fervore benignius provocati vobis auctoritate apostolica indulgemus ut vobis in eisdem ecclesijs liceat quatuor aut tres de fratribus vestris sine contradictione qualibet instituere quorum unus ceteris preponatur ut de manu diocesani episcopi curam suscipiat animarum sicut haecenus est servatum . Preterea auctoritate presentium inhibemus ne cui liceat vos vel ecclesias vestras absque iusta et manifesta causa gravare . libertates quoque et immunitates legitime ecclesie vestre concessas et haecenus observatas presenti vobis pagina confirmamus et presentis scripti patrocinio communimus . Decernimus ergo ut nulli omnino hominum liceat personas ecclesias et alia bona vestra temere perturbare seu hanc nostre paginam confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum se noverit incursurum . Datum Lateran' idibus Marcij pontificatus nostri anno quinto .

Generalis confirmacio super situ loci et ecclesijs et super terris redditibus et super decimis molendinorum et super libertatibus concessis .

- 251 **G**regorius episcopus servus servorum Dei dilectis filijs Hugoni abbati monasterij sancte Marie et sancti Johannis apostoli de Driburgh ejusque fratribus tam presentibus quam futuris regularem vitam professis . Quociens a nobis petitur quod religioni et honestati convenire dinoscitur animo nos decet libenti concedere ac petentium desiderijs congruum suffragium impertiri . eapropter dilecti in Domino filij vestris iustis postulationibus clementer annuimus et monasterium sancte Dei genitricis Marie et sancti Johannis apostoli et evangeliste de Driburgh in quo divino estis obsequio

mancipati sub beati Petri et nostra protectione suscipimus et presentis scripti privilegio communimus . In primis siquidem statuentes ut ordo canonicus qui secundum Domini et beati Augustini regulam atque institutionem Premonstratensium fratrum in eodem monasterio institutus esse dinoscitur perpetuis ibidem temporibus inviolabiliter observetur . Preterea quascunque possessiones quecunque bona idem monasterium in prefenciarum iuste ac canonice possidet aut in futurum concessione pontificum largitione regum vel principum oblatione fidelium seu alijs iustis modis prestante Domino poterit adipisci firma vobis vestrisque successoribus et illibata permaneant in quibus hec proprijs vocabulis duximus exprimenda . Locum ipsum in quo prefatum monasterium situm est cum omnibus pertinentijs suis de Mertoun de Childinchirch de Saultoun de Kilrethny de Lessedewyn et de Sowrby ecclesias cum omnibus pertinentijs earundem ecclesiam de Lanerk cum capella de Paduenan et Glegern et alijs pertinentijs suis domos terras possessiones et alia que habetis in parochia ejusdem . jus quod habetis in ecclesia de Akeby in Westemria et pertinentijs suis totam terram quam habetis in territorio de Padwynan que fuit Syrandi sacerdotis cum omnibus pertinentijs suis grangiam de Cadesleya cum omnibus pertinentijs suis totam terram quam habetis in villa et in territorio de Smalham cum tosto et alijs pertinentijs suis duas bovatas terre quas habetis in territorio ville de Bemirfid cum tosto ejusdem ville totam terram quam habetis in territorio ville de Ercildoun cum tosto et alijs pertinentijs suis in eadem villa duas bovatas terre in territorio ville de Hetoun cum tosto et alijs pertinentijs suis in eadem villa terram que fuit Rogeri janitoris et terram que fuit Willelmi sacerdotis in burgo de Rogetburgh cum alijs terris et possessionibus quas habetis in eodem burgo terram quam habetis in villa de Kelku que fuit Walteri filij Gilberti terras et possessiones quas habetis in burgo de Berwico cum piscationibus quas habetis in flumine ipsius burgi terram quam Petrus filius Thurebrand in villa de Hadingtoun pia vobis liber[ali]tate donavit totam terram quam habetis in Langelaw cum pertinentijs suis insulam de Elbotyll cum terris pascuis piscationibus et alijs pertinen-

cijs fuis dimidiam carucatam terre in Petcortluny et terram quam habetis ibidem de hospitali de Edinham unum toftum in Karel et cascas quas habetis in Aynifrothir totam terram quam habetis in territorio de Samfonfchellis dimidiam carucatam terre in territorio de Lange Newtoun cum pertinentijs fuis annuum redditum viginti folidorum quem habetis in burgo de Rogefburgh annuum redditum viginti folidorum quem habetis in villa de Edinham annuum redditum trium folidorum quem habetis in villa de Leffedewyn annuum redditum unius marce quem percipitis de portu maris de Pettynwem annuum redditum duarum marcarum quem habetis de molendino de Mertoun in Veftmerya annuum redditum duarum marcarum et dimidie quem habetis de ecclefia de Bofieta decimas quas habetis in molendinis vallis de Lauder de Newton de Naythynthlirn cum pratis terris nemoribus ufuagijs et pascuis in bofeo et plano in aquis et molendinis in vijs et femitis et omnibus alijs libertatibus et immunitatibus fuis . fane novalium veftrorum que proprijs manibus aut fumptibus colitis five de animalium veftrorum nutrimentis nullus a vobis decimas exigere vel extorquere prefumat . Liceat quoque vobis clericos vel laycos liberos vel abfolutos e feculo fugientes ad converfionem recipere ac eos absque contradicitione aliqua retinere . Prohibemus infuper ut nulli fratrum veftrorum poft factam in monafterio veftro profeflionem fas fit fine abbatis fui licencia nifi arcioris religionis optentu de eodem loco difcedere . difcedentem vero absque communium literarum veftrarum cautione nullus audeat retinere . Cum autem generale interdictum terre fuerit liceat vobis claufis jannis exclusis excommunicatis et interdictis non pullatis campanis fuppreffa voce divina officia celebrare . crifma vero oleum sanctum confecrationes altarium feu basilicarum ordinationes clericorum qui ad facros ordines fuerint promovendi a diocefano epifeopo fine pravitate aliqua vobis volumus exhiberi . Prohibemus infuper ut infra fines parochie veftre nullus fine affenfu diocefani epifeopi et veftro capellam feu oratorium de novo conftituere audeat falvis privilegijs pontificum Romanorum . feputuram quoque ipsius loci liberam effe decernimus ut eorum devotioni et extreme voluntati qui fe illic fepehari

deliberaverint nisi forte excommunicati vel nominatim [interdicti] sint aut publice usurarii nullus obstat salva tamen iusticia illarum ecclesiarum a quibus mortuorum corpora assumuntur . Decimas preterea et possessiones ad jus ecclesiarum vestrarum spectantes que a laycis detinentur redimendi et legitime liberandi de manibus eorum et ad ecclesias ad quas pertinent revocandi libera sit vobis de vestra auctoritate facultas . Obeunte vero te nunc ejusdem loci abbate vel tuorum quolibet successorum nullus ibi qualibet surreptionis astucia seu violencia preponatur nisi quem fratres communi consensu vel fratrum major pars consilij sanioris secundum Domini et beati Augustini regulam providerit elegendum . Libertates quoque et immunitates et antiquas et rationabiles consuetudines monasterio vestro concessas et hactenus observatas ratas habemus et eas perpetuis temporibus illibatas permanere sancimus . Paci quoque et tranquillitati vestre paterna in posterum sollicitudine providere volentes auctoritate apostolica prohibemus ut infra clausuras locorum seu grangiarum vestrarum nullus rapinam exercere seu furtum facere audeat . Decernimus ergo ut nulli omnino hominum liceat prefatum monasterium temere perturbare aut ejus possessiones auferre vel ablatas retinere minuere seu quibuscumque vexationibus fatigare sed omnia integra conserventur eorum pro quorum gubernacione ac sustentacione concessa sunt usibus omnimodis profutura salva sedis apostolicę auctoritate et diocesani episcopi canonica iusticia . Siqua igitur in futurum ecclesiastica secularive persona hanc nostre constitutionis paginam sciens contra eam temere venire temptaverit secundo tertiove commonita nisi reatum suum congrua satisfacione correxerit potestatis honorisque sui careat dignitate reamque se divino iudicio existere de perpetrata iniquitate cognoscat et a sacratissimo corpore et sanguine Domini et Dei Redemptoris nostri Jesu Christi aliena fiat atque in extremo examine districtę subiaceat ultioni . Cunctis autem eidem loco sua jura servantibus sit pax Domini nostri Jesu Christi quatinus et hic fructum bone actionis percipiant et apud districtum judicem premia eterne pacis inveniant . amen . Datum Perusij

per manum magistri Martini sancte Romane ecclesie vicecancellarij vidus Junij indiçione secunda incarnationis Dominice anno m^o cc^o xxviii pontificatus vero domini Gregorij pape viiij anno tertio .

Privilegium quod dicitur non absque dolore .

252 **A**lexander episcopus fervus fervorum Dei venerabilibus fratribus sancti Andree et Glasguenfis episcopis et dilectis filijs abbatibus prioribus decanis archidiaconis prepositis archiepiscopis et alijs ecclesiarum prelati per sancti Andree et Glasguenfis civitates et dioces constitutis salutem et apostolicam benediçionem . Non absque dolore cordis et plurima perturbacione didicimus quod ita in plerisque partibus ecclesiastica censura dissolvitur et canonice sententie feveritas enervatur ut viri religiosi et hij maxime qui per sedis apostolico privilegia majori donati sunt libertate passim a malefactoribus suis injurias sustineant et rapinas dum vix invenitur qui congrua vel protectione subveniat et pro fovenda pauperum innocencia se murum defensionis opponat . specialiter nunc dilecti filij abbas et fratres monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis tam de presentibus injurijs quam de ipso quotidiano defectu justitie conquerentes universitatem vestram literis petierunt apostolicis excitari ut ita videlicet eis in tribulationibus suis contra malefactores eorum prompta debeatis magnanimitate confurgere quod ab angustijs quas sustinent et pressuris vestro possint presidio respirare ideo universitati vestre per apostolica scripta mandamus atque precipimus quatinus illos qui possessiones vel res seu domos predictorum fratrum irreverenter invaserunt aut ea injuste detinuerunt que predictis fratribus ex testamento decedentium relinquuntur seu in ipsos fratres vel ipsorum aliquem contra apostolice sedis indulta sententiam excommunicationis aut interdicti presumpserit promulgare vel decimas laborum de terris habitis ante consilium generale ante quod susceperunt Premonstratensis

ordinis instituta quas proprijs manibus aut sumptibus excolunt seu de nutrimentis animalium suorum spiritibus apostolice sedis privilegijs extorquere monicione suppressa [*premissa*] si laycus fuerit publice candelis accensis singuli vestrum in diocesibus et ecclesijs vestris excommunicationis sententia percussis si vero clerici vel canonici regulares seu monachi fuerint eos appellatione remota ab officio et beneficio suspendatis neutram relaxaturi sententiam donec predictis fratribus plenarie satisfaciant et tam layci quam clerici seculares qui pro violenta manuum injectione in fratres eosdem vel ipsorum aliquem anathematis vinculo fuerint innodati eum dioecani episcopi literis ad sedem apostolicam venientes ab eodem vinculo mercantur absolvi . Datum Anagnin xv kalendas Augusti pontificatus nostri anno secundo .

Super ecclesijs de Llesdewyn Bofeth Kilrethny Askeby .

- 253 Alexander episcopus servus servorum Dei dilectis Rogero abbati et fratribus ecclesie sancte Marie de Driburgh salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu sunt prosequente complenda . Eapropter dilecti in Domino filij vestris justis postulationibus grato concurrentes assensu ecclesiam de Llesdewyn ecclesiam de Bosyethia ecclesiam de Kilrethny in Scotia ecclesiam de Askeby in Westmerland cum omnibus earum pertinenijs sicut eas canonice possidetis vobis et per vos ecclesie vestre auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . statuentes ut nulli omnino hominum liceat hanc paginam nostre confirmationis infringere vel ei aliquatenus contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Tusculan' v idus Novembris .

Super ecclesia de Saultoun et una carucata terre in Smalham et dimidia carucata terre in Nebron et decimis molendini ejusdem ville .

- 254 **A**lexander episcopus servus servorum Dei dilectis filiis Rogero et universo capitulo ecclesie de Driburgh salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu sunt prosequente complenda . Eapropter dilecti in Domino filij vestris justis postulationibus grato concurrentes assensu possessiones vobis rationabiliter concessas vobis et per vos ecclesie vestre auctoritate apostolica confirmamus quas proprijs nominibus duximus exprimendas ecclesiam de Saultoun unam carucatam terre in Smalham dimidiam carucatam terre in Nebron et decimam molendini ejusdem ville . Nulli ergo omnino hominum liceat hanc paginam nostre confirmationis infringere vel ei aliquatenus contraire . si quis autem id attemptare presumpserit indignacionem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Senon' iij kalendas Augusti .

Super ecclesia de Childinchirch et decimis molendinorum de Lauder et Saultoun et duabus bovatis terre in Smalham .

- 255 **A**lexander episcopus servus servorum Dei dilectis filiis Rogero abbati et fratribus ecclesie sancte Marie de Driburgh salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu sunt prosequente complenda . Eapropter dilecti in Domino filij vestris justis postulationibus grato concurrentes assensu ecclesiam sancti Cuthberti de Childinchirch decimam molendinorum de Lauder et de Saultoun ex dono David Olifard

duas bovatas terre in Smalham devocioni vestre et per vos ecclesie vestre auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Presenti quoque capitulo sancimus ut quando commune interdictum terre fuerit liceat vobis exclusis excommunicatis et interdictis clausis januis non pulsatis campanis suppressa voce divina officia celebrare . Prohibemus etiam ut infra ambitum domorum grangiarum vestrarum et ecclesie in qua Domino defervitis hominem capere rapinam seu violenciam exercere nullus presumat . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei aliquatinus contraire . si quis autem hoc attemptare presumpserit indignacionem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Turon' viiij kalendas Decembris .

De indulgencia xl dierum visitantibus ecclesiam in die consecrationis annuatim concessa .

256 Innocencius episcopus servus servorum Dei dilectis filijs abbati et conventui monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem et apostolicam benedictionem . Licet hijs de ejus munere venit ut sibi a fidelibus suis digne ac laudabiliter ferviatur de abundancia pietatis sue qui merita supplicum excedit et vota bene fervientibus multo majora retribuatur quam valeat promereri nichilominus tamen desiderantes reddere Domino populum acceptabilem fideles Christi ad complacendum ei quasi quibusdam illectivis muneribus indulgencijs scilicet et remissionibus invitamus ut exinde reddantur divine gracie aptiores . cupientes igitur ut ecclesia vestra congruis honoribus frequentetur omnibus vere penitentibus et confessis qui ecclesiam ipsam in die consecrationis ejusdem venerabiliter visitaverint annuatim de omnipotentis Dei misericordia et beatorum Petri

et Pauli apostolorum ejus auctoritate confilij xl dies de injuncta sibi penitencia misericorditer relaxamus . Datum Lugdon' x kalendas Aprilis pontificatus nostri anno tertio .

Super ecclesijs de Mertoun Childinchirch Saultoun Kilrethny Lanerk Leffedewyn Sowrby et insula de Elbotyll cum pertinencijs suis .

- 257 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Sacrosancta Romana ecclesia devotos et humiles filios ex assuete pietatis officio propensus diligere consuevit et ne pravorum hominum molestijs agitentur eos tanquam pia mater sue protectionis munimine confovere . Eapropter dilecti in Domino filij vestris iustis postulacionibus grato concurrentes assensu personas vestras et locum in quo divino estis obsequio mancipati cum omnibus bonis que inpresenciarum rationabiliter possidetis aut in futurum iustis modis prestante Domino poteritis adipisci sub beati Petri et nostre protectione suscipimus specialiter autem de Mertoun de Childinchirch de Saultoun de Kilrethny de Lanerk de Leffedewyn de Sowrby ecclesias a venerabilibus fratribus nostris scilicet sancti Andree Glasguensis Candidace episcopis capitulorum ipsorum antecedente consensu pia vobis liberalitate concessas . insulam quoque de Elbotyll cum pertinencijs suis necnon terras pascua nemora possessiones et alia bona vestra sicut ea omnia iuste ac pacifice possidetis et in eorundem literis plenius dicitur contineri vobis et per vos ecclesie vestre auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre protectionis et confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indigationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus

se noverit incursum . Datum Parisij vii kalendas Maij pontificatus nostri anno tertio .

Confirmatio privilegiorum et indulgentiarum et super libertatibus et exceptionibus secularium personarum .

258 **I**nnocencius episcopus servus servorum Dei dilectis filiis abbati et conventui monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem apostolicam benedictionem . Solet annuere sedes apostolica pijs votis et honestis petentium precibus favorem benevolum impertiri . Ea- propter dilecti in Domino filij vestris iustis precibus inclinati omnes libertates [et] immunitates a predecessoribus nostris Romanis pontificibus sive per vigilia [*privilegia*] sive per indulgentias ordini seu monasterijs aut locis vestris specialiter concessas necnon libertates et exemptiones secularium exactionum a regibus et principibus vel alijs Christi fidelibus indultas auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Lugdon' iij nonas Aprilis pontificatus nostri [anno] tercio .

Confirmacio super adquisitis et acquirendis et super ecclesijs sancti Andree et Glasguensis diocesis .

259 **I**nnocencius episcopus servus servorum Dei dilectis abbati et conventui sancte Marie de Driburgh Premonstratensis ordinis salutem et apostolicam

benedictionem . Quociens a nobis petitur quod religioni et honestati convenire dinoscitur animo nos decet libenti concedere et juxta petentium desideria favorem benevolunt impertiri . Eapropter dilecti in Domino filij vestris justis precibus annuentes personas vestras cum omnibus que imprefentiarum rationabiliter possidetis aut in futurum justis modis prestante Domino poteritis adipisci sub beati Petri protectione suscipimus specialiter autem ecclesias quas per concessionem venerabilium fratrum nostrorum sancti Andree et Glasguensis episcoporum estis canonice assecuti sicut eas juste ac pacifice possidetis et in eorundem episcoporum et dilecti filij J . titulo sancti Stephani in Celio monte presbiteri cardinalis auctoritate continetur vobis et per vos ecclesie vestre auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre protectionis et confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Lateran' iiij idus Aprilis pontificatus nostri anno septimo .

Super receptionem vel provisionem alicujus in pensionibus auctoritate sedis apostolice vel legatorum ipsius .

260 **I**nnocencius episcopus servus servorum Dei dilectis filiis abbati et conventui monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem et apostolicam benedictionem . Paci et tranquillitati vestre ac monasterij vestri paterna volentes in posterum sollicitudine providere auctoritate vobis presentium indulgemus ut ad receptionem vel provisionem alicujus in pensionibus seu alijs ecclesiasticis beneficijs compelli auctoritate sedis apostolice vel legatorum ipsius minime valeatis absque speciali mandato sedis ejusdem faciente de hac indulgentia mentionem . Nulli ergo hominum

liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursurum . Datum Lugdon' xii kalendas Aprilis pontificatus nostri anno tertio .

De vicarijs delinquentibus in claustrum revocandis et alijs instituendis et quod eidem non obstitant .

261 Innocentius episcopus servus servorum Dei venerabilibus fratribus universis archiepiscopis ad quos littere iste pervenerint salutem et apostolicam benedictionem . Dilecti filij abbas Premonstratensis ac alij abbates ordinis sui coram nobis exponere curaverunt quod cum canonici ejusdem ordinis commorantes in parochialibus ecclesijs ad ipsos spectantibus aliquo casu delinquant ita quod expediret eos ad claustrum suum recepturos disciplinam ordinis revocari quidam vestrum indignum favorem impendentes eisdem ipsos retinere conantur in locis in quibus nequeunt absque scandalo et ecclesiarum ipsarum dispendio commorari . Ad hec cum in eorum aliquos propter suos excessus excommunicationis sententiam promulgatis relaxare non vultis eandem nisi pena pecuniaria precedente . ideoque universitatem vestram rogandam duximus et monendam per apostolica vobis scripta mandamus quatinus cum dicti abbates tales ad claustrum propter scandalum et ecclesiarum dispendium evitandum seu etiam pro disciplina monastica circa delinquentes hujusmodi excercenda duxerint revocandos non obstitatis eisdem nec illis favorem indebitum impendatis sed instituentes prout ad vos pertinet ecclesijs alios vobis presentatos ab ipsis delinquentes revocari ad claustrum libere permittatis disciplinam ordinis recepturos ne aliter faciendo tribuatis eis audienciam detractandi obedientie jugum et ipsorum abbatis potestatem quodammodo enervetis . illud autem districcius inhibemus

ne pro relaxandis excommunicationis sentencijs promulgatis in ipsos penam pecuniariam exigatis cum nec habeant proprium nec illorum culpa debeat in ecclesie sue dispendium redundare . Datum Lugduni x kalendas Aprilis pontificatus nostri anno tertio .

Super ecclesijs de Childinchirch Saultoun Kilrethny in proprios usus confirmatis .

- 262 **G**regorius episcopus servus servorum Dei dilectis filijs abbati et conventui de Driburgh Premoustratensis ordinis salutem et apostolicam benedictionem . Cum a nobis petitur quod iustum est et honestum tam vigor equitatis quam ordo exigit rationis ut id per sollicitudinem officij nostri [ad debitum] perducatur effectum . vobis sane significantibus intelleximus quod venerabilis frater noster episcopus sancti Andree de Childinchirch de Saultoun de Kilrethny ecclesias cum pertinentijs suis prout spectabant ad ipsum vobis in usus proprios de sui capituli assensu pia liberalitate concessit . ordinatis a vobis de predictorum episcopi et capituli consensu in ipsis ecclesijs vicarijs in quibus debeant seculares clerici deservire . Nos ergo vestris iustis precibus inclinati quod super hoc ab eodem episcopo et a vobis pie ac provide factum est sicut in ipsis et memorati capituli literis dicitur plenius contineri auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij vii idus Junij pontificatus nostri anno tertio .

Confirmatio de decimis molendinorum in villa de Lauder .

263 **G**regorius episcopus servus servorum Dei dilectis filijs abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu prosequente complere . Eapropter dilecti in Domino filij vestris justis postulacionibus grato concurrentes assensu decimas molendinorum de valle de Lauder quas de concessione bone memorie Roberti Ricardi et Willelmi episcoporum sancti Andree loci diocesano eorum capituli accedente consensu canonice proponitis vos adeptos sicut eas iuste ac pacifice possidetis et in eorundem literis exinde confectis dicitur plenius contineri vobis et per vos monasterio vestro auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre concessionis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursurum . Datum Parisij iij kalendas Maij pontificatus nostri anno tertio .

Super decimis molendinorum de Neuton et Naythinthirn .

264 **G**regorius episcopus servus servorum Dei dilectis filijs abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu prosequente complere . Eapropter dilecti in Domino filij vestris justis precibus inclinati decimas molendinorum de Newtoun et de Naythanthirn quas de concessione venerabilis fratris nostri Willelmi episcopi sancti Andree loci diocesani capituli

fui accedente consensu canonice proponitis vos adeptos sicut eas iuste ac pacifice possidetis et in eorundem literis exinde confectis dicitur plenius contineri vobis et per vos monasterio vestro auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem Dei omnipotentis et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Parusij iij kalendas Maij pontificatus nostri anno tertio .

Super quibusdam annuis redditibus in parochia de Lander in proprios usus concessis .

265 Gregorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu prosequente complere . Cum itaque sicut asseritis venerabilis frater noster episcopus sancti Andree proventuum vestrorum tenuitatem attendens quosdam annuos redditus in parochia de Lander vobis de capituli sui assensu pia et provida liberalitate concesserit in usus proprios cum vacaverint retinendos prout in literis exinde confectis dicitur plenius contineri nos vestris supplicationibus inclinati quod per eundem episcopum super hijs canonice ac provide actum est auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij v idus Maij pontificatus nostri anno tertio .

Super compositione inter nos et Kilwynnyn de ecclesia de Lawder .

266 **G**regorius episcopus fervus fervorum Dei dilectis filijs abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Ea que iudicio et concordia terminantur firma sunt [*debent*] et illibata persistere et ne in residive contemptionis [*contentionis*] scrupulum relabantur apostolico convenit presidio communiri . Exhibita nobis vestra petitio continebat quod cum inter vos ex una parte et abbatem et monachos de Kilwynnyn Glasguensis diocesis ex altera coram archidiacono sancti Andree et suis conjudicibus super jure patronatus ecclesie de Lauder quibusdam decimis et obvencionibus auctoritate apostolica questio verteretur tandem mediantibus iudicibus ipsis inter partes compositio intervenit quam apostolico petivistis munimine roborari . Nos igitur vestris iustis precibus inclinati compositionem ipsam sicut rite ac sine pravitate provide facta est et ab utraque parte sponte suscepta et haecenus pacifice observata necnon in literis exinde confectis plenius dicitur contineri auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere aut ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij nono kalendas Aprilis pontificatus nostri anno tertio .

Confirmatio super jure patronatus ecclesie de Golyn .

267 **H**onorius episcopus fervus fervorum Dei dilectis filijs abbati et conventui de Driburgh de Scotia Premonstratensis ordinis salutem et apostolicam benedictionem . Cum a nobis petitur quod iustum est et honestum tam vigor equitatis quam ordo exigit rationis ut id per sollicitudinem officij nostri ad

debitum perducatur effectum . Eapropter dilecti in Domino filij vestris iustis postulacionibus grato concurrentes assensu jus patronatus quod in ecclesia de Golyn dioecesis sancti Andree canonice proponitis vos adeptos sicut illud iuste canonice ac pacifice optinetis vobis et per vos monasterio vestro auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Signie vi idus Augusti pontificatus nostri anno octavo .

Confirmatio super ecclesia de Golyn in proprios usus .

- 268 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Religionis vestre promeretur honestas ut vos gratia sedis apostolice frequentes petitionibus vestris quantum cum Deo possumus annuamus . Cum itaque sicut exhibita nobis vestra petitio continebat venerabilis frater noster episcopus sancti Andree dioecesis vester possessionum vestrarum et reddituum tenuitatem attendens ecclesiam de Golyn cum pertinentijs vobis de capituli sui assensu pia et provida liberalitate concesserit in usus proprios cum vacaverit retinendam prout in eorum literis dicitur plenius contineri nos vestris postulationibus inclinati quod per eundem episcopum super hoc canonice ac provide actum est auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij ij kalendas Aprilis pontificatus nostri anno tertio .

Confirmatio compositionis inter nos et moniales de Suthberwic super ecclesia de Golyn .

269 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Ea que iudicio vel concordia terminantur firma debent et illibata consistere et ne in recidive contentionis scrupulum relabantur apostolico convenit presidio communiri . Exhibita nobis vestra petitio continebat quod cum inter vos ex una parte et Priorissam et moniales de Suthberwic sancti Andree diocesis ex altera super jure patronatus ecclesie de Golyn questio verteretur tandem mediante dilecto filio Jacobo capellano nostro tunc apostolice sedis legato amicabile inter partes compositio intervenit quam apostolico petivistis munimine roborari . Eapropter dilecti in Domino filij vestris justis postulacionibus gratum impertientes assensum compositionem ipsam sicut rite et sine pravitate provide facta est et ab utraque parte sponte recepta et in literis inde confectis plenius continetur auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursurum . Datum Perusij iij kalendas Aprilis pontificatus nostri anno tertio .

Confirmatio super sententia diffinitiva quam episcopus sancti Andree contra conventum de Southberwic promulgavit .

270 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui monasterij de Driburgh Premonstratensis ordinis salutem et apostolicam

benedictionem . Justis petentium desiderijs dignum est nos facilem prebere consensum et vota que a rationis tramite non discordant effectu prosequente complere . Eapropter dilecti in Domino filij vestris justis precibus inclinati diffinitivam sententiam quam pro vobis venerabilis pater noster episcopus sancti Andree auctoritate ordinaria contra conventum monasterij monialium de Suthberwie Cisterciensis ordinis super quibusdam decimis piscationibus et rebus alijs cognitis cause meritis prout asseritis promulgavit sicut est justa nec legitima provocatione suspensa auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursurum . Datum Ipolien' [*Spoleti*] iiii nonas Junij pontificatus nostri anno sexto .

Confirmatio super sententia quam abbas de Jeddeworth et conjudices sui contra W . de Hertford et super capella de Glegern promulgaverunt .

- 271 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Ea que judicio vel concordia terminantur firma debent et illibata persistere et ne in recidive contentionis serupulum relabantur apostolico convenit presidio communiri . Eapropter dilecti in Domino filij vestris justis postulationibus grato concurrentes assensu diffinitivam sententiam quam abbas de Jeddeworth et conjudices sui pro vobis contra Willelmum de Herteford clericum Glasguensis diocesis super capella de Glegern cognitis cause meritis auctoritate apostolica promulgaverunt sicut est justa nec legitima provocatione suspensa auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc

attemptare presumpferit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij iiii idus Aprilis pontificatus nostri anno tertio .

Confirmatio super ecclesia de Sowrby .

272 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Cum a nobis petitur quod justum est et honestum tam vigor equitatis quam ordo exigit rationis ut id per sollicitudinem officij nostri ad debitum perducatur effectum . Vobis sane significantibus intelleximus quod venerabilis pater noster episcopus Candidecate ecclesiam de Sowrby cum pertinentijs suis prout spectabat ad ipsum vobis in usus proprios de sui assensu capituli pia liberalitate concessit . ordinata a vobis de episcopi et capituli predicti consensu in ipsa ecclesia vicaria in qua seculares clerici debeant deservire . Nos igitur vestris justis precibus inclinati quod super hoc de eodem episcopo vobis pie ac provide factum est sicut in ipsius et memorati [capituli] literis exinde confectis plenius dicitur contineri auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij ij idus Junij pontificatus nostri anno tertio .

Super compositione inter nos et Jeddeworth de ecclesia de Lefledewyn .

- 273 **G**regorius episcopus servus servorum Dei dilectis filiis abbati et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Ea que iudicio et concordia terminantur firma debent et illibata persistere et ne in recidive contentionis scrupulum relabantur apostolico convenit presidio communire . Eapropter dilecti in Domino filij vestris iustis postulationibus grato concurrentes assensu compositionem que inter vos ex una parte et abbatem et conventum de Jeddeworth Glasguensis diocesis ex [altera] super ecclesia de Lefledewyn mediantibus venerabili fratre nostro episcopo Glasguensi et collegis ipsius amicablem intervenit sicut rite ac sine pravitate provide facta est et ab utraque parte sponte recepta et hactenus conservata auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursum . Datum Perusij iij idus Aprilis pontificatus nostri anno tertio .

Protectio loci et personarum et super omnibus bonis nostris tam acquisitis quam acquirendis .

- 274 **I**nnocencius episcopus servus servorum Dei dilectis filiis abbati et conventui monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem et apostolicam benedictionem . Sacrosancta Romana ecclesia devotos et humiles filios ex assuete pietatis officio propensius diligere consuevit et ne pravorum hominum molestijs agitentur eos tanquam pia mater sue protectionis munimine confovere . Eapropter dilecti in Domino filij

vestris iustis postulacionibus grato concurrentes assensu personas vestras et locum in quo divino estis obsequio mancipati cum omnibus bonis que in prefenciarum rationabiliter possidet[is] aut in futurum iustis modis prestante Domino poterit[is] adipisci sub beati Petri et nostra protectione suscipimus specialiter autem terras redditus possessiones et alia bona vestra sicut ea omnia iuste ac provide [concessa] pacifice possidetis vobis et per vos monasterio vestro auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incursurum . Datum Lugduni idibus Maij pontificatus nostri anno tertio .

Declaratio super decimis novalium seu nutrimentis animalium sive de ortis virgultis et piscationibus non dandis .

275 **G**regorius servus servorum Dei venerabilibus fratribus sancti Andree Glasgouensis et Candidecense episcopis salutem et apostolicam benedictionem . Significantibus dilectis filiis abbate et conventu de Driburgh Premonstratensis ordinis ad majorem noveritis audientiam pervenisse quod eum ipsis a sede apostolica sit indultum ut de novalibus que proprijs manibus aut sumptibus excolunt sive de ortis et virgultis ac piscationibus suis vel de suorum animalium nutrimentis nullus ab eis decimas exigere vel extorquere presumat quidam in vestris diocesibus constituti suo nimis inherentes ingenio nimiumque voluntarij interpretes concilij generalis dum sanctionum sensum legitimum ad sua bona non habent ad commodum superinducunt adulterum intellectum dicentes quod hec non debent nec possunt intelligi nisi de hijs que sunt ante predictum consilium acquisita et super hoc eos multiplicata fatigatione aggravant et molestant . Quare a nobis humiliter postulabatur ut quieti

eorum salubriter providentes vobis qui diocesani molestatorum existitis predictorum literas nostras super hoc dirigere dignemur . Nos igitur premissorum abbatis et fratrum gravaminibus quantum cum Deo et honestate possumus precavere volentes universitati vestre per apostolica scripta mandamus atque precipimus quatinus ipsos super prestatione decimarum de novalibus sive ante sive post idem consilium acquisitis que proprijs manibus aut sumptibus excolunt necnon et ortis et virgultis et piscationibus suis vel de fuorum animalium nutrimentis non permittatis a quoquam ita quod quilibet vestrum in sua diocesi contra indulgentie memorate tenorem indebite molestari . contradictores per censuram ecclesiasticam appellatione postposita compescendo . Datum Perusij vi idus Maij pontificatus nostri anno tertio .

Ut ad receptionem vel provisionem in pensionibus de ecclesiasticis beneficijs minime teneamur .

- 276 Innocencius episcopus servus servorum Dei venerabili fratri episcopo Dunkeldensi et dilectis filijs Abbati de Dunfermling sancti Andree diocesis et Priori sancti Andree salutem et apostolicam benedictionem . Paci et tranquillitati dilectorum filiorum abbatis et conventus monasterij de Driburgh Premonstratensis ordinis sancti Andree diocesis ac eorundem monasterij paterna volentes in posterum sollicitudine providere eis duximus indulgendum ut ad receptionem vel provisionem alicujus in pensionibus ecclesiasticis compelli auctoritate sedis apostolice vel legatorum ipsius minime teneantur absque speciali mandato sedis ejusdem faciente de nostra indulgentia mentionem . ideoque discretioni vestre per apostolica scripta mandamus quatinus dictum abbatem non permittatis super hijs contra concessionis nostre tenorem ab aliquibus indebite molestari molestatores ejusmodi per censuram ecclesiasticam appellatione postposita compescendo . Quod si non omnes hijs exequendis potueritis interesse tu frater Episcope cum eorum altero ea nichilominus

exequaris . Datum Lugduni x kalendas Aprilis pontificatus nostri anno tercio .

Declaratio super benedictione abbatis .

277 **G**regorius episcopus servus servorum Dei dilectis filiis abbati Premonstratensi ejusque coabbatibus et conventibus universis Premonstratensis ordinis salutem et apostolicam benedictionem . Tenorem literarum felicis recordationis Innocencij Pape quarti predecessoris nostri super quadam declaratione confectarum in ipsius registro repertum fecimus sub bulla nostra de verbo in verbum ad vestre supplicationis instanciam annotari qui talis est . Innocentius episcopus servus servorum Dei dilectis filiis abbati Premonstratensi ejusque coabbatibus et conventibus universis Premonstratensis ordinis salutem et apostolicam benedictionem . Virtute perspicuos sacri vestri ordinis professores qui contemplationi celestium serventer invigilant et pie vite studio sine intermissione defudant decet per apostolice suspensionis auxilium sic provide dirigi ac solcite confoveri ut alienjns pretextu calumpnie nullum interne pacis excidium nullum religiosi status perferat detrimentum sed in his robur et vigorem habeant per que circa cultum divini nominis devotis et quietis mentibus invalescant . sane in privilegio sedis apostolice ordinis vestro concessio perspeximus contineri quod cum aliqua ecclesiarum vestrarum abbate proprio fuerit destituta vel cum ibi abbatis electio regulariter non fuerit celebrata sub Patris abbatis potestate ac dispositione consistat et cum ejusdem consilio qui eligendus fuerit a canonicis eligatur . electio autem fratres ecclesie statim obedienciam promittant qui non quasi absolutus a potestate Patris abbatis vel ordinis sui archiepiscopo vel episcopo in ejus diocesi fuerit presentetur plenitudinem ab eo officij percepturus ita tamen quod post factam archiepiscopo vel episcopo suo professionem occasione illa non transgrediatur constitutiones ordinis sui nec in aliquo ejus prevaricator

existat . Si quis etiam ex vobis electus canonice in abbatem dioecesano episcopo semel et iterum per abbates vestri ordinis presentatus benedictionem ab eo non poterit optinere ne ecclesia ad quam vocatus est destituta consilio periclitetur officio et loco abbatis plenarie secundum ordinem fungatur in ea tam in exterioribus providendis quam interioribus corrigendis donec aut [interventu] generalis capituli vestri aut ex precepto Romani pontificis sive metropolitani benedictionem suam optineat . CUM autem super hijs verbis et intellectu ipsorum sicut tu fili Abbas coram nobis et fratribus nostris retulisti humiliter a quibusdam ex vobis mens dubia et eor fluctuans haberetur duxistis propter hoc ad sedis apostolice providenciam recurrendum suppliciter postulantes ut ipsa in hac parte pro quiete conscienciarum vestrarum et tranquillitate ordinis providere vobis per declarationis remedium dignaretur nos ita super hoc dictorum fratrum nostrorum communicato consilio sic duximus declarandum scilicet quod electus in abbatem post prestitam sibi juxta tenorem ipsius privilegij a fratribus obedienciam dioecesano per supradictos presentetur abbates ab ipso [sine] examinatione monasterij curam et benedictionis gratiam libere percepturus in quibus officij plenitudinem [intelligimus] contineri presertim cum de intentione predecessorum nostrorum qui ordini vestro predictum privilegium concesserunt non videatur fuisse quod examinatus a dioecesano presentari sibi deberet electus prout ex eo patet quod si post factam examinationem benedictionem negari contingeret supervacuum videretur obedientiam a fratribus prestitam extitisse ac indecenter sibi fuisse concessum quod benedictione negata plene fungeretur abbatis loco et officio cum per hoc iudex et auctor in causa sua fieri videretur sed si iuste vel injuste dioecanus benedictionem hujusmodi denegaret esset aliquibus hujusmodi cause discussio committenda . per hanc autem declarationem nullum vobis et ordini vestro jus de novo adquiri volumus nec alicui prejudicium generari . Nulli ergo omnino hominum liceat hanc paginam nostre declarationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignacionem omnipotentis Dei

et beatorum Petri et Pauli apostolorum ejus se noverit incurfurum . Datum Lugduni vi idus Octobris pontificatus nostri anno quarto . Per hoc siquidem vobis et eidem ordini nullum novum intendimus jus adquiri . Datum apud urbem veterem idibus Augusti pontificatus nostri anno primo .

Super vicarijs Glasguensis diocesis et ecclesijs de Laffedewyn et Lanark in proprios usus .

278 Gregorius episcopus servus servorum Dei dilectis filijs et conventui de Driburgh Premonstratensis ordinis salutem et apostolicam benedictionem . Cum a nobis petitur quod justum est et honestum tam vigor equitatis quam ordo exigit rationis ut id per sollicitudinem officij nostri ad debitum perducatur effectum . Vobis sane significantibus intelleximus quod venerabilis frater noster Glasguensis episcopus de Laffedewyn et Lanark ecclesias cum pertinentijs suis prout spectabant ad ipsum vobis in usus proprios de sui consensu capituli pia liberalitate concessit ordinatis a vobis de predictorum episcopi et capituli consensu in ipsis ecclesijs vicarijs in quibus seculares clerici debeant deservire . Nos ergo vestris justis precibus inclinati quod super hoc ab eodem episcopo et vobis pie ac provide factum est sicut in ipsius et memorati capituli literis exinde confectis plenius dicitur contineri auctoritate apostolica confirmamus et presentis scripti patrocinio communimus . Nulli ergo omnino hominum liceat hanc paginam nostre confirmationis infringere vel ei ausu temerario contraire . si quis autem hoc attemptare presumpserit indignationem omnipotentis Dei et beatorum Petri et Pauli apostolorum ejus se noverit incurfurum . Datum Perusij viii idus Junij pontificatus nostri anno tercio .

Sententia diffinitiva super capella de Lawdre .

279 **I**n nomine Domini amen . Statera iusticie . . . et pondus non recipit persone vel dignitatis mole non premitur sed cunctos ponderans equalance per illos inclinatur et flectitur qui via regia incedentes dignis cause meritis ponderantur in ipsa . hanc omnis qui iuste iudicat gestat in manibus ut iusto libramine reddat cuilibet quod est suum . ne igitur iudex unde iustificari meruit inde potius condempnaretur cuncta ipsum rimari oportet et ordinem rerum publica inquisitione discutere . Propter quod nos Bernardus miseratione divina Neopolitanus electus notum esse volumus universis quod cum causa que inter abbatem et conventum de Driburgh ex una parte et magistrum Eymericum rectorem de Lawdre ex altera super ipsa ecclesia quibusdam decimis et rebus alijs in modum conventionis et reconventionis coram venerabili patre magistro Martino nunc Mantiano episcopo tunc domini Pape capellano vertebatur idem dominus nobis commisit audiendam actis ejusdem cause habitis coram ipso diligenter inspectis et presentibus partibus frequenter examinatis invenimus in ejusdem capellani presencia libellos tales fuisse porrectos . Coram vobis magistro Martino preposito Parinensi et generali auditore causarum in curia domini Pape proposuit magister Barnardus de Cardella clericus procurator abbatis et conventus de Driburgh nomine eorundem contra magistrum Eymericum qui se dicit esse rectorem ecclesie de Laweder quod dicta ecclesia ad dictum monasterium de jure pertinet et eam idem magister contra iusticiam occupat et detinet occupatam in predictorum abbatis et conventus non modicum et prejudicium et gravamen . Quare petit idem procurator nomine dictorum abbatis et conventus dictum Eymericum a dicta ecclesia amoveri et eam sibi adjudicari et ad restitutionem ipsius cum fructibus inde perceptis quos ducentas marcas estimat ipsum Eymericum sententialiter condempnari . item petit expensas . Et cum Thebaldus de Senonis clericus procurator substitutus a Finato

procuratore dicti magistri Eymerici salvo jure reconventionis litem contestando respondit Nego narrata ut narrantur esse vera dictus [*et dico*] petita fieri non debere . Idem autem Thebaldus porrexerat libellum in hunc modum Coram vobis magister Martine domini Pape capellane dicit et proponit magister Thebaldus procurator magistri Eymerici rectoris ecclesie de Lawdre sancti Andree diocesis contra procuratorem abbatis et conventus de Driburgh Premonstratensis ordinis nomine ipsorum quod cum omnes decime site in parochia dicte ecclesie de Lawdre ad ipsum Eymericum nomine dicte ecclesie de jure communi pertineant predicti abbas et conventus in quibusdam villis sitis in dicta parochia de Laweder videlicet de Pylemor de Treburn de Vittelaw de terra que fuit Wilhelmi de Blendi de Langald de Tolchus de Welpelauc de Aldeniston de Burncastel medietatem omnium decimarum majorum et minorum contra justiciam percipiunt in ipsius Rectoris et dicte ecclesie de Laweder magnum prejudicium et gravamen cum nullum jus habeant in eisdem unde petit dictus Rector dictas decimas sibi nomine ecclesie predictae reddi et restitui vel valorem quas ducentas marcas estimat . petit etiam dictos religiosos prohiberi ne de cetero percipere debeant decimas memoratas et eisdem super predictis decimis perpetuum silentium imponi et predicta petit cum expensis factis et faciendis quas tempore suo declarabit et juris beneficio sibi in omnibus semper salvo . Magister Bernardus de Langardalle procurator substitutus a magistro Wilhelmo de Loudonia litem contestando respondit Nego narrata prout narrantur esse vera et dico petita fieri non debere . Lite igitur coram eo contestata taliter prestito de juris calumpnia juramento factis petitionibus et responsionibus ad eandem testibus et instrumentis hinc inde productis attente audivimus omnia que partes proponere voluerunt et ea domino Pape retulimus diligenter qui nobis tanquam organo sue vocis sententiam proferendam commisit . Nos vero speciali auctoritate apostolica qua fungimur in hac parte ecclesiam de Laweder magistro Wilhelmo de Laudonia nunc procuratori abbatis et conventus dictorum ipsorum nomine et eisdem abbati et con-

ventui sentencialiter adjudicamus ita ut ecclesia de Childinkirk que pleno jure spectat ad ipsos tanquam sue matri ecclesie et ex hoc eisdem et conventui sit subiecta absolventes eisdem super decimis quas pars altera petebat ab ipsis cum nobis confiterit quod predicta ecclesia de Childinkirk matrix et parochialis ecclesia fuerit totius vallis prefate antequam ecclesia de Laweder fundaretur ibidem . nichilominus sentencialiter absolventes prefatum Thebaldum nomine ipsius rectoris ac ipsum rectorem ab impetitione partis adverſe super eo quod petebat ipsum ab ecclesia de Laweder amoveri et a petitione fructuum ecclesie perceptorum cum nobis confiterit ipsum Eymericum per diocesannm episcopum quamvis contradicente parte altera ad presentationem Johannis de Balliolo qui se ejusdem ecclesie dicebat patronum fuisse institutum ibidem nec a parte adverſa iusta contradictionis causa coram nobis offensa fuerat vel probata . In cujus rei testimonium et munimen prefens publicum instrumentum fieri fecimus nostri sigilli impressione munitum . Lata est hec sententia apud Perusium in hospitio ejusdem Electi scilicet in domo domini Guidonis . Presentibus lijs testibus scilicet magistro Richardo de Anania clerico . Hugone de Roſeto clerico . Petro de Salerio etc. et familiaribus ejusdem clerici et Ada de Cuic' clerico . In anno Domini millesimo ducentesimo quinquagesimo secundo die Mercurij x^o kalendas Augusti .

Sententia judicum delegatorum super ecclesia de Lawedre .

280 Anno gracie millesimo ducentesimo quadragesimo octavo die Jovis proximo post inventionem sancte crucis in ecclesia parochiali de sancto Andrea nos Johannes et Johannes de sancto Andrea et de May [priores] et Adam archidiaconus sancti Andree judices a domino Papa delegati in causa que vertitur inter abbatem et conventum de Driburgh ordinis Premonstratensis actores ex una parte et magistrum Emericum dominum rectorem ecclesie de Laweder

reum ex altera literas apostolicas nobis directas in prefencia nostra perlegi fecimus quarum tenor talis est . Innocencius episcopus servus servorum Dei dilectis filiis nostris de sancto Andrea et de May sancti Andree diocesis prioribus et archidiacono sancti Andree salutem et apostolicam benedictionem . Ex parte dilectorum filiorum abbatis et conventus de Driburgh Premonstratensis ordinis nobis oblata est querela quod Emericus clericus sancti Andree diocesis super ecclesia de Laweder ad eorum monasterium de jure spectante ac rebus alijs injuriatur eisdem . ideoque discretioni vestre per apostolica scripta mandamus quatinus partibus convocatis audiat causam et appellatione remota sine debito terminetis facientes quod decreveritis per censuram ecclesiasticam firmiter observari . Testes autem qui fuerint nominati si se gracia odio vel timore subtraxerint per censuram eandem appellatione cessante cogatis veritati testimonium perhibere . et si non omnes hijs exequendis potueritis interesse duo vestrum ea nihilominus exequantur . Datum Lugduni decimo kalendas Aprilis pontificatus nostri anno tercio . AUDITA petitione dictorum abbatis et conventus de Driburgh contra dictum Emericum super petitione ecclesie de Laweder quam ecclesiam dicti abbas et conventus de Driburgh dicebant ad monasterium suum pleno jure pertinere auctoritate apostolica nobis commissa partes ad prefenciam nostram legitime vocavimus quibus in judicio coram subdelegatis nostris sufficienter constitutis cum datus fuisset dies ad litem precise contestandam quia contumaciter se absentavit nos dicti contumacis absenciam divina replente prefencia testes quos dicti abbas et conventus de Driburgh pro se ad intencionem suam probandam produxerunt per viros fidedignos fecimus examinari et eorundem depositiones in judicio publicari diem partibus ad disputandum super attestaciones statucentes . Cum satis nobis constet intencionem dictorum abbatis et conventus de Driburgh legitime esse probatam tam per instrumenta quam per partes [*testes*] omni exceptione majores meritis cause diligenter investigatis solemnitate juris et ordine in omnibus et per omnia observatis habito jurisperitorum consilio nobis

affidencium Deum pre oculis habentes in nomine Patris et Filij et Spiritus Sancti ecclesiam de Lawder cum omnibus ad eandem ecclesiam spectantibus monasterio abbatis et conventus de Driburgh et ejusdem monasterij canonicis sentencialiter adjudicamus et eandem ecclesiam dicto magistro Eymerico abjudicamus et ab eadem decernimus ammovendum eidem super eadem ecclesia perpetuum silencium imponentes et dictum magistrum Eymericum prefatis abbati et conventui de Driburgh pro expensis in lite factis post juramentum a dicto abbate pro se et conventu suo procuratore legitime constituto prestitum et cautionem a nobis factam in centum marcis argenti condemnamus . Testibus et assidentibus magistro Nigello canonico Dunkeldensi . magistro Willelmo de Cunyngham . magistro Alexandro de Edinburgh cum multis alijs .

Potestas abbatis super absolucione percussorum .

281 **G**regorius episcopus servus servorum Dei venerabili fratri episcopo sancti Andree et dilecto filio abbati de Driburgh Premonstratensis ordinis sancti Andree diocesis salutem et apostolicam benedictionem . Ex parte tua fili Abbas fuit propositum coram nobis quod nonnulli monasterij tui fratres pro violenta manuum injectione in seipsos et alias religiosas personas necnon et clericos seculares in canonem inciderunt sententie promulgate . Quidam vero pro detencione proprij super quo se correxerunt postmodum excommunicationis sententiam incurrerunt aliqui etiam simoniacum habuerunt ingressum in monasterio memorato et quidam non obtento absolucionis beneficio ad sacros promoti sunt ordines et celebrarunt postmodum in eisdem . De ipsorum itaque salute sollicitus postulasti ut cum eos venire ad sedem apostolicam oporteret et verendum asseras ne veniendo vagarentur et salutis ejus causa venirent incurrerent detrimentum misericorditer super hoc agere dignaremur . Nos autem plenam de vobis fiduciam obtinentes

diferetioni vestre per apostolica scripta mandamus quatenus hujusmodi manuum injectoribus nisi eorum difficilis fuerit et enormis excessus propter quem merito ad sedem apostolicam sunt mittendi ac alijs juxta formam ecclesie absolutis et injuncto eisdem manuum injectoribus quod ipsis fuerit injungendum cum predictis alijs super eo quod taliter receperunt ordines et ministrarunt in ipsis auctoritate nostra faciatis prout animarum suarum saluti videritis expedire facturi de simoniis prout in [generalis] consilij constitutione continetur . Datum Parusij xii kalendas Octobris pontificatus nostri anno secundo .

Litera domini regis missa camerario suo ad deliberandum nobis annum redditum nostrum xx solidorum in burgo de Rokeburgh et omnes alias elemosinas .

282 **E**dwardus Dei gratia rex Anglie etc. dilecto clerico suo Johanni de Sandall camerario Scocie salutem . Mandamus vobis quatenus omnes elemosinas quas per cartas literas patentes vel clausas quondam regum Scocie computorum quondam camerariorum Scocie seu aliquas alias evidencias vobis legitime constare poterit dilectos nobis in Christo abbatem et conventum de Driburgh de firmis burgorum nostrorum sive de ceteris dominicis nostris Scocie ex concessione quondam regum dicte terre usque ad principium dicte guerre Scocie pacifice percepisse et occasione dicte guerre et non alias inde fuisse impeditos eisdem abbati et conventui ad terminos consuetos solvi faciatis et nos eas in compotis vestris vobis allocare faciemus . Datum etc.

Litera camerarij regis missa ballivis de Rogesburgh ad deliberandum nobis annuum redditum xx solidorum de eodem burgo .

- 283 **J**ohannes de Sandele camerarius Scocie preposito et ballivis ville de Rogesburgh salutem . Quia constat nobis tam per inspectionem cartarum quam rotulorum bone memorie domini Alexandri quondam regis Scotorum quod abbas et conventus sancte Marie de Driburgh habere et percipere debent singulis annis pro luminari ecclesie predictae viginti solidos de exitibus firmarum ville vestre quos ex concessione regum predecessorum domini nostri regis terre sue Scocie retroactis temporibus dictis abbati et conventui de firmis ville predictae haecenus solvi consueverunt vobis ex parte domini nostri regis precipiendo mandamus quatinus eidem abbati et conventui dictos viginti solidos de exitibus firmarum ville vestre predictae solvi annis singulis faciatis terminis statutis et consuetis et nos dictam solutionem annuatim in vestris compotis annuatim allocare faciemus . In cujus rei testimonium literas nostras vobis fieri fecimus has patentes . Datum apud Berwik super Twedam xxix die Januarij anno regni domini nostri regis xxxiii^{to} .

Confirmatio de Snawdon cum pertinentijs suis .

- 284 **O**mnibus sancte matris ecclesie filijs hanc cartam visuris vel audituris Johannes Mautland dominus de Thirlaston filius et heres Roberti Mautland quondam domini ejusdem salutem in Domino sempiternam . Noverit universitas vestra me divine caritatis intuitu et pro salute anime mee et Felicis sponse mee et pro salute animarum patris mei et matris et omnium antecessorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et abbati et canonicis

ibidem Deo fervientibus et inperpetuum servituris Totam terram de Snawdoun infra divisas et merchias subseriptas videlicet Incipiendo sicut Bukklad cadit in rivulum qui vocatur Houbeuchew et sic ascendendo per medium Bukklad versus occidentem usque ad Rauphyfrohd et sic per Rauphyfrohd ex transverso versus borealem inter terras husbandorum de Thirlstane et Clottyside et sic usque ad Hayldford quod jacet ad occidentalem partem de Clottyside et sic de Hayldford ascendendo per le Grynegheat inter Flexwelleyes et Faufyd et sic ascendendo per illud Greynegheat quod ducit versus Egrohp usque ad Staynlaw apud le Halfakyrhevedys et sic ex transverso versus orientem usque ad Knolesfruthyr et sic per Knolesfruthyr usque ad Ryhardheved et sic per Ryhardheved usque ad altam viam que ducit de Egrohp ad Snadown et sic de alta via illa per Houbeuchoufide usque ad Standandstayn et sic descendendo per Houbeuchoufide usque in rivulum de Houbeuchow et sic per illum rivulum de Houbeuchow descendendo usque ad Bukklad ubi cadit in Howbeuchow . Tenendam et habendam dictis abbati et canonicis totam terram predictam de Snawdoun in liberam puram et perpetuam elemosinam libere quiete plenarie pacifice et honorifice inperpetuum absque omni terreno servicio auxilio consuetudine exactiōe demanda in boscis et planis pratis et pascuis in moris et marisijis in petarijs et aquis in stagnis et pasturis et in omnibus communibus ayfiamentis et libertatibus tam nominatis quam non nominatis ad villam meam de Thirlstane pertinentibus . Quare volo et concedo pro me et heredibus ut dicti abbas et canonici et homines sui infra dictas terras manentes teneant et possideant omnes dictas terras de Snawdoun in omnibus et singulis ayfiamentis et libertatibus ut predictum est adeo libere et quiete integre et pacifice sicut aliqui religiosi aliquam elemosinam in regno Seocie liberius aut quietius tenent vel possident aut tenere poterint vel possidere una cum libero introitu et exitu per totam terram meam de Thirlstane cum cariagijs et alijs rebus suis exceptis terris seminatis et pratis non falcatis . Istam

autem elemosinam dedi conceffi et confirmavi dictis abbati et canonicis pro me et heredibus meis in perpetuum libere et quiete absque rei temporalis aliqua exigencia . Et ego Johannes Mantland dominus de Thirlastane et heredes mei dictis abbati et canonicis de Dryburgh totam dictam terram de Snawdown cum omnibus libertatibus assumentis et pertinentijs suis in omnibus et singulis ut predictum est contra omnes homines et feminas warrantizabimus acquietabimus et defendemus imperpetuum . Hujus donationis concessionis et confirmationis ad maiorem securitatem presenti carte mee sigillum meum apposui . Hijs testibus Dominis Roberto de Keith . Johanne filio comitis de Dunbar . Henrico de Haliburton . Adam de Gordon . Edwardo de Letham . Willelmo de Abyrnythy militibus . Johanne de Haga . Johanne de Clapam . Willelmo de Pilmur . Alano de Trebrune . Roberto de Laweder . Willelmo Longo de Lawedyr . Henrico Skorer . Radulpho Monypenny . Archibaldo de Ernyfelucht . Thoma Bell . Alano Bell . Johanna Calfhyrd . Alano Fabro de Thrylstane et alijs .

Confirmacio Patricij comitis Marchie super omnibus donationibus et elemosinis datis et concessis ab omnibus antecessoribus suis comitibus Marchie .

285 **O**mnibus hoc scriptum visuris vel audituris Patricius de Dunbar comes Marchie salutem in Domino sempiternam . Noveritis me pro salute anime mee et sponse mee et omnium antecessorum et successorum meorum concessisse et hoc presenti scripto meo confirmasse Deo et ecclesie beate Marie de Dryburgh et canonicis ibidem Deo fervientibus et imperpetuum servituris omnes donationes et elemosinas ipsis datas et concessas ab antecessoribus meis comitibus Marchie secundum omnes articulos et divisas

in cartis ipſorum contentas . In cujus rei teſtimonium preſenti ſcripto ſigillum meum appoſui . Hijs teſtibus dominis Alexandro fratre quondam patris mei . Henrico de Halyburton . Adam de Gordon militibus . Roberto de Laveder clerico . Alano Purvays de Ercildon et alijs . Datum apud Dunbar die Jovis proxima poſt feſtum ſancti Martini epiſcopi in hieme anno Domini milleſimo tricenteſimo decimo octavo .

Confirmatio ſuper jure patronatus eccleſie de Golyn .

285 **O**mnibus ſanctę matris eccleſie filijs hoc ſcriptum viſuris vel audituris Alexander de Wallibus dominus de Dyrilton eternam in Domino ſalutem . Noverit univerſitas veſtra me divine pietatis intuitu conceſſiſſe et hac preſenti carta mea confirmaffe Deo et eccleſie ſanctę Marie de Driburgh et abbati et canonicis ibidem Deo ſervientibus ordinis Premonſtratenſis jus patronatus eccleſie de Golyn tenendum ſibi inperpetuum et habendum in puram et perpetuam clemofinam pro ſalute anime mee et pro ſalute animarum patris mei et matris mee antecellorum et ſuccellorum meorum ita libere et quiete et plenarie ſicut aliquis patronus in regno Scotie aliquod jus patronatus alieni eccleſie vel viris religioſis liberius quietius et plenius conferre poteſt . Ego vero dictus Alexander et heredes mei predictam donationem meam prefatis abbati et canonicis de Driburgh contra omnes homines et feminas warantizabimus acquietabimus et inperpetuum defendemus . Ut autem hec mea donatio conceſſio voluntas et confirmatio robur optineat perpetue firmitatis preſentem [cartam] ſeribi feci et eam ſigilli mei appoſitione roboravi . Hijs teſtibus domino Roberto de Keith . domino Henrico de ſancto Claro . domino Willelmo de Fenton . domino Johanne de Fenton . domino Alexandro de Seton . domino Thoma de Hay militibus . Waltero de Congilton . Roberto filio Ade de Dyrilton . Willelmo Surthus . Patricio de Hyrmanſton . Nicholaio de May et multis alijs .

Super indempnitate matricis ecclesie de Golyn de capella de Dyrilton .

286 **O**mnibus Christi fidelibus hoc scriptum visuris vel auditoris Alexander de Wallibus salutem in Domino sempiternam . Noveritis quod cum venerabilis in Christo pater David Dei gratia episcopus sancti Andree consencientibus [viris religiosiis abbati et conventui] de Driburgh cantariam capelle a predecessoribus meis fundate in villa de Dirltoun concefferit ego indempnitati matricis ecclesie de Golyn volens in omnibus providere promitto pro me et heredibus meis quod omnes et omnimodas obvenciones ad dictam capellam provenientes inperpetuum faciemus fideliter et integre ad matricem ecclesiam deferri et quicumque in dicta capella ministraverit antequam ministret fidelitatem canonico jurabit qui in dicta ecclesia pro tempore ministrabit . quod si aliquod dampnum per dictam capellam matrieci ecclesie fuerit irrogatum volo quod canonicus qui in eadem ministrabit potestatem habeat dictam capellam suspendendi quoadusque dictum dampnum plenarie refarciatur . In cujus rei testimonium presenti scripto figillum meum apposui . Hijs testibus domino Roberto de Keth . domino Henrico de sancto Claro . domino Willelmo de Fentoun . domino Johanne de Fentoun . domino Alexandro de Setoun militibus . Willelmo de Congiltoun . Roberto filio Ade de Dyriltoun . Willelmo Surthus . Patricio de Hirdmanstoun . Nicholaio de May cum multis alijs .

De petra cere que matrieci ecclesie de Golyn debetur ab heredibus de Dyrilton in recognitionem juris capelle ibidem fundate .

287 **O**mnibus Christi fidelibus hoc scriptum visuris vel auditoris Alexander de Wallibus salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et pro salute animarum

omnium antecessorum et successorum meorum concessisse et hac presenti carta mea confirmasse Deo et beate Marie et matri ecclesie de Golyne unam petram cere de me et heredibus meis perpetuis temporibus annuatim in festo sancti Andree percipiendam in recognitionem juris quod dicta ecclesia habet in capella quam in honorem omnium sanctorum et [in] territorio meo de Dyriltoun predecessores mei fundaverunt . In hujus autem rei robur et testimonium presentem cartam sigilli mei appositione roboravi . Hijs testibus domino Roberto de Keth . domino Henrico de sancto Claro . domino Willelmo de Fentoun . domino Johanne de Fentoun . domino Alexandro de Seton militibus . Waltero de Congilton . Roberto filio Ade de Dirlton . Willelmo Surthus . Patricio de Hirdmanston . Nicholaio de May et multis alijs .

Super donatione insule sancti Nicholaij de Elbottle Stodfald et quibusdam eijs pertinentibus .

288 **O**mnibus sancte matris ecclesie filijs ad quos presentes pervenerint Alexander de Wallibus dominus de Dyrilton salutem in Domino sempiternam . Sciant presentes et futuri me divine pietatis intuitu dedisse concessisse et hac presenti carta mea confirmasse Deo et beate Marie et abbati et canonicis de Driburgh totam insulam sancti Nicholaij de Elbotle et viginti acras terre et dimidiam in territorio de Elbotle sicut perambulata fuit coram probis hominibus scilicet que jacet per orientem et aquilonem proxime veteri castello similiter et ipsum vetus castellum totum cum fossis suis et Stodfaldum et centum pedes terre ex omni parte Stodfaldi infra fossatum et omnes fossas et communem pasturam trecentis ovibus et decem vaccis et duodecim bobus cum omnibus ayfiamenis ville de Elbotle et de Dyrilton et spacium cum libero introitu et exitu ad ovile suum faciendum ubi eijs placuerit inter vetus castellum et locum qui vocatur Vakelaue et focale in petario de

Elbotle vel de Dyrilton ubi eijs placuerit et coopertorium de beneta vel de alio coopertorio ad domos suas ubi eijs placuerit et petram in petrafodina de Golyn ad edificia sua quantum opus habuerint . Concessi etiam predic-
tis abbati et canonicis de Driburgh terram Reginaldi Taylur cum tofto et crofto suo in villa de Dyriltoun in puram et perpetuam elemosinam ita quod idem Reginaldus et heredes ejusdem liberi et quieti ab omni seculari exactione eandem terram de predictis abbate et canonicis teneant . Reddendo eisdem inde annuatim octo solidos argenti ad festum Pentecosten et ad festum beati Martini in hyeme . Concessi etiam canonico Deo fervienti in Stodfald hanc libertatem ut ubique in molendinis meis fit liber a multura et ut proxime molat post eum quem molentem invenerit . Has autem donaciones et has libertates concessi eijs in puram et perpetuam elemosinam ita libere quiete et honorifice sicut aliquae elemosine liberius quietius et honorificentius in regno Scotie ab aliquibus viris religiosis possidentur pro salute anime mee et uxoris mee et pro salute animarum patris mei et matris mee et heredum meorum et antecessorum et successorum meorum . Maledictionem autem Dei et sancte Marie et meam heredibus meis et successoribus meis relinquo qui has donaciones meas et has libertates in irritum ducere temptaverint vel impugnare presumpserint . In cujus rei testimonium presenti carte mee sigillum meum apposui . Hijs testibus domino Roberto de Keth . domino Henrico de sancto Claro . domino Willelmo de Fenton . domino Johanne de Fenton . domino Alexandro de Seton militibus . Waltero de Congilton . Roberto filio Ade [de] Dyrilton . Willelmo Surtheus . Patricio de Hirdmanston . Nicholaio de May et multis alijs .

Remissio cantarie que fieri solebat in insula sancti Nicholaij de Elbotle .

289 **O**mnibus Christi fidelibus has literas visuris vel audituris Alexander de Wallibus dominus de Dyrilton salutem in Domino sempiternam . Noverit universitas vestra quod cum viri religiosi abbas et canonici de Dryburgh quondam tenerentur invenire duos canonicos celebrantes infra insulam sancti Nicolaij de Elbotle ego vero considerans imminencia pericula temporum tam presentium quam futurorum remisi omnino eidem abbati et canonicis caritatis intuitu totam illam cantariam quam solebant in dicta insula facere ita tamen quod inveniant unum canonicum inperpetuum celebrantem apud Stodfald et alium canonicum infra abbaiciam de Dryburgh pro animabus omnium antecessorum et successorum meorum . unde volo et concedo pro me et heredibus meis quod abbas et canonici de Dryburgh inperpetuum sint quieti tam ab edificatione dicte cantarie quam a celebratione divinorum ibidem ita quod nullus heredum vel successorum meorum per se vel per aliquam aliam interpositam personam possit de cetero dictos abbatem et canonicos de Driburgh vel canonicum apud Stodfald commorantem vexare vel compellere ad dictam insulam edificandam vel inhabitandam . Ego autem dictus Alexander et heredes mei atque successores mei quicunque fuerint prescriptam remissionem et concessionem dictis abbati et canonicis de Dryburgh contra omnes homines et feminas warrantizabimus et inperpetuum acquietabimus et defendemus . In cujus rei testimonium presenti scripto sigillum meum apposui . Hijs testibus domino Roberto de Keth . domino Henrico de sancto Claro . domino Willelmo de Fenton . domino Johanne de Fenton . domino Alexandro de Seton militibus . Waltero de Congilton . Roberto filio Ade de Dyriltoun . Willelmo Surthus . Patricio de Hirdmanstoun . Nicholaio de May et multis alijs .

Confirmatio episcopi sancti Andree super terra de Innergelly .

- 290 Univerſis ſancte matris eccleſie filijs preſentes literas viſuris vel auditoris Willelmus de Lambertoun permiſſione divina ſancti Andree episcopus ſalutem in Domino . Noveritis nos literas bone memorie domini Willelmi Freſſer predeceſſoris noſtri non concellatas non abolitas non corruptas nec aliqua fui parte viciatas vidiffe et legiſſe tenorem qui ſequitur continentes . Willelmus Freſſer miſeratione divina episcopus ſancti Andree univerſis ſancte matris eccleſie filijs hoc ſcriptum viſuris vel auditoris ſalutem in Domino . Noveritis quod cum Margareta de Ardroy filia domini Merlſwayn quondam domini de Innergelly de voluntate et conſenſu domini Hugonis de Perithy mariti ſui reſignaret in manus noſtras totam terram que in tenemento de Innergelly ipſam jure hereditario contingit et totum jus hereditarium quod per deceſſum heredum eandem in dicto tenemento contingere poſſet infuturum ad infeodandum monaſterium de Dryburgh et abbatem et conventum ejuſdem loci in dicta terra et in omni jure dictam Margaretam ratione dicte terre contingente . Nos dictorum Hugonis et Margarete precibus inclinati dictam terram et totum jus hereditarium quod per deceſſum heredum eandem contingere poterit in futurum dictis abbati et conventui de Driburgh in liberam puram et perpetuam elemoſinam damus concedimus et episcopali auctoritate confirmamus pro ſalute anime noſtre et pro animabus dictorum Hugonis et Margarete et pro animabus omnium anteceſſorum et ſucceſſorum noſtrorum . Reddendo inde nobis et ſucceſſoribus noſtris pro omni ſervicio et demanda annuum redditum quem predeceſſores noſtri de dicta terra percipere conſueverunt . Nos autem pro ſalute noſtra predeceſſorum et ſucceſſorum noſtrorum dicti predeceſſoris noſtri donacionem et confirmacionem ratas habentes et firmas pro nobis et ſucceſſoribus noſtris eas noſtra episcopali auctoritate tenore preſentium confirmamus . ſalvis nobis et ſucceſſoribus noſtris antiquo cano

debito de eadem terra et secta ad curiam nostram pro parte ipsam contingente . Hijs testibus magistro Willelmo de Eglithame archidiacono Laudonie . magistro Johanne de Kinkell . dominis David de Craufurd . Waltero de Twynham et alijs .

Confirmacio episcopi sancti Andree super omnibus possessionibus in diocesi sancti Andree habitis .

291 **W**illelmus de Lamberton permissione divina ecclesie sancti Andree minister humilis universis sancte matris ecclesie filijs ad quos presentes litere pervenerint eternam in Domino salutem . Cum ea que ad virorum religionum sustentacionem a fidelibus Dei devote collata sunt multorum perversitas non sine gravi peccato minuere auferre vel perturbare impudenter non timeat summo opere ipsos ecclesie pastores decet malorum incursums vigilanter providendo precavere et si quid crudeliter aut temere in servos Dei presumptum fuerit gladium Spiritus cum Petro viriliter et secundum canones fideliter exercere . Quod nobiscum crebro et solícite pertractantes religiose etiam conversacionis canonicorum de Driburgh ordinis Premonstratensis odore provocati ecclesiam sancte Marie et sancti Johannis ewangeliste ibidem factam et fratres in ea Deo servientes in beati Andree apostoli et nostra protectione suscipimus et presentis scripti communimus . Preterea quoscunque redditus quascunque possessiones quecunque bona in diocesi nostra piorum regum Scotie largitate vel predecessorum nostrorum aut ceterorum Dei fidelium collacione iuste et pie in presenti possident vel Deo propiciante in futuro poterint adipisci usibus et necessitatibus eorum integre et illibate perpetuo et profutura et possidenda auctoritate episcopali confirmamus et hec proprijs vocabulis exprimimus . videlicet ecclesiam de Mertoun cum terra adjacente et omnibus pertinencijs suis ecclesiam de Childenkyrk cum terra adjacente et omnibus pertinencijs suis ecclesiam de

Saweltoun cum terra adjacente et omnibus pertinencijs suis ecclesiam de Laweder cum terra adjacente et omnibus pertinentijs suis ecclesiam de Golyne cum terra adjacente et omnibus pertinentijs suis ecclesiam de Kilrethny cum omnibus pertinencijs et rectitudinibus suis dimidiam carucatam terre in Peteorthy et terram de Innergelly unum plenum toftum in Karale tres bothas in Anyftrothir unam marcam de Priore de Petinweme et Stodfald cum terra adjacente et pertinencijs suis et octo solidos in willa de Dyriltoun et octo solidos de monialibus de Suthberwyk et dimidiam marcam in Dunbar et viginti solidos in willa Hadingtoun et Langelawe per rectas divifas fuas et grangiam de Snawdown cum suis rectis divifis et omnibus pertinencijs suis et terram de Sampfonchelis cum prato et omnibus pertinencijs et grangiam de Cadifley per rectas divifas et metas fuas et duas bovatas terre in territorio de Herfildoun et unam aeram terre in territorio de Fawnis cum petarijs et unam aeram terre in territorio de Nathantharin et dimidiam marcam de monialibus de Eeclys pro terra de Hunterode et terra de Brothyrftanys cum pertinencijs suis unam carucatam terre in territorio de Smailham bofeum de Gledyfwode cum terra adjacente et lacum de Mertoun et duas bovatas terre in territorio de Bemirfide cum Threpwode et unam aeram terre in territorio de Newtoun viginti solidos in villa de Edynham dimidiam marcam in villa de Berwyk de terra Jacobi Layng et pifeationes de Berwyk et duo burgagia in villa de Laweder et decimas molendinorum de Sawelton de Auldfton de Wlkeftoun de Thirlftan de Laweder unam marcam de molendino de Byrkynfide et decimas molendinorum de Newtoun et de Naythanthirn et duas marcas de dono domini Willelmi Abirnetlii in molendino de Wlkefton . Volumus autem et concedimus ut prefata beneficia tam ecclefiaftica quam mundana ita libere quiete et plenarie in ufus proprios perpetuo teneant et poffideant ficut aliqua elemofina in regno Scotie ab aliquibus viris religiofis in puram et perpetuam elemofinam plenius et liberius tenetur aut poffidetur falvo jure epifeopali . Ad majorem vero predicte domus reverenciam et quietem nos

fervorum Dei volentes devotioni satisfacere pacem ecclesiasticam in terris libere elemosine sue firmiter servandam statuimus sub interminatione anathematis inhibentes ne quis ausu temerario infra crucem quam ad orientem metarum suarum crexerunt sic ascendendo usque ad vadium de Twed quod vocatur Monkiffurde hominem capere verberare furtum seu rapinam facere ignem apponere vel aliquam violenciam inferre presumat . Quod si quis contra hanc institutionem temere venire presumpserit indignationem Dei omnipotentis et beate Virginis Marie et sanctorum apostolorum Andree et Johannis se noverit incursum nisi secundo tertiove commonitus reatum suum digne satisfaciendo emendaverit . cunctis autem prefate domui pacem et sua jura ad integrum servantibus largam Dei et sanctorum ejus benedictionem et nostram devote participamus . Ut autem hec concessio nostra robur perpetue firmitatis optineat eam sigilli nostri munimine duximus roborandam . Hijs testibus magistro Roberto de Lambertton archidiacono sancti Andree . magistro Willelmo de Eglisbam archidiacono Laudonie . magistro Ada de Moravia . magistro Johanne de Kinkell et multis alijs .

Confirmacio capituli sancti Andree super omnibus terris redditibus five possessionibus in dioecesi sancti Andree existentibus .

292 **U**niversis sancte matris ecclesie filijs ad quos presens scriptum pervenerit Johannes Dei gracia prior sancti Andree et ejusdem loci conventus in Scocia eternam in Domino salutem . Noverit universitas vestra nos divine pietatis intuitu concessisse et auctoritate capituli nostri confirmasse abbati et canonicis de Dryburgh ordinis Premonstratensis omnes ecclesias suas et omnes terras suas et redditus et omnes possessiones suas quas in dioecesi sancti Andree priorum regum Scocie largitate vel episcoporum aut ceterorum Dei fidelium collacione juste et pie in presenti possident vel Deo propiciante

in futuro poterunt adipisci in puram et perpetuam elemosinam integre et illibate perpetuo possidendas et has proprijs vocabulis exprimimus videlicet ecclesiam de Mertona cum terra adjacente et omnibus pertinencijs suis ecclesiam de Chyldenkirke cum terra adjacente et omnibus pertinencijs suis ecclesiam de Laweder cum terra adjacente et omnibus pertinencijs suis ecclesiam de Saweltona cum terra adjacente et omnibus pertinencijs suis ecclesiam de Golyne cum terra adjacente et omnibus pertinencijs suis ecclesiam de Kilrethny cum omnibus pertinencijs et reſtitudinibus suis dimidiam carucatam terre in Peteorthy et terram de Innergelly sicut in carta domini Willelmi Dei gratia episcopi sancti Andree plenius continetur unum plenum toftum in Karale tres bothas in Aynstrother unam maream de Priore de Pettinweine et Stodfald cum terra adjacente et omnibus pertinencijs suis et octo solidos in willa de Dyrhtoun et octo solidos de monialibus [de] Berwic et dimidiam maream in Dunbar et viginti solidos in willa de Hadingtoun et Langlaw per rectas divisas suas et grangiam de Snawdoun cum suis rectis divisis et omnibus pertinencijs suis et terram de Sampsonschelis et [cum] prato et omnibus pertinencijs suis et grangiam de Cadisley per rectas divisas et metas suas et duas bovatas terre in territorio de Hereyldon et unam acram terre in territorio de Fawnys cum petarijs et unam acram terre in territorio de Naythanthorn et dimidiam maream de monialibus de Eccles pro terra de Hunterodys et terram de Brothirftanys cum pertinencijs suis unam carucatam terre in territorio de Smalehame boveum de Gledyswod cum terra adjacente et lacum de Mertona et duas bovatas terre in territorio de Bemirfide cum Threpwood et unam acram terre in territorio de Newton viginti solidos in willa de Edynhame dimidiam maream in willa de Berwyk de terra Jacobi Lang et piscationes de Berwyk et duo burgagia in willa de Lawder et decimas molendinorum de Sawlton et Aldinton de Wkeftoun de Thirlestone de Lawder unam maream in molendino de Byrkynfide et decimas molendinorum de Newton et de Naythentharne et duas marcas de dono domini Willelmi de Abrenythi in molendino de Wkefton . Volumus autem et concedimus ut prefata beneficia tam eccle-

fiastica quam mundana ita libere quiete et plenarie in usus proprios perpetuo teneant et possideant sicut aliqua elemosina in regno Scotie ab aliquibus viris religiosis in puram et perpetuam elemosinam plenius et liberius tenetur aut possidetur salvo jure episcopali . Ad majorem vero predictę domus reverenciam et quietem nos servorum Dei volentes devocioni satisfacere pacem ecclesiasticam in terris libere elemosine sue firmiter observandam statuimus sub interminatione anathematis inhibentes ne quis ausu temerario infra crucem quam ad orientem metarum suarum erexerunt et sic ascendendo usque ad vadum de Twed quod vocatur Monkiffurd hominem capere verberare furtum seu rapinam facere ignem apponere vel aliquam violenciam inferre presumat . si quod [*quis*] contra hanc constitutionem temere presumpserit venire indignationem Dei omnipotentis et beate Virginis Marie et sanctorum apostolorum Andree et Johannis se noverit incursum nisi secundo tertiove commonitus reatum suum digne satisfaciendo emendaverit . cunctis autem prefate domui pacem et sua jura ad integrum servantibus largam Dei et sanctorum ejus benedictionem et nostram devote participamus . Ut autem hec confirmatio nostra robur perpetue firmitatis optineat eam sigillo capituli nostri duximus roborandam . Hijs testibus domino Willelmo Dei gratia sancti Andree episcopo . magistro Roberto de Lambertton archidiacono sancti Andree . magistro Willelmo de Eglisfame archidiacono Laudonie . magistro Ada de Moravia . magistro Johanne de Kynkell et multis alijs .

Confirmatio ordinaria super vicarijs parochialibus infra dioecesem sancti Andree existentibus .

293 Univerſis ſancte matris eccleſie filijs preſentes literas viſuris vel audituris Willelmus de Lambertton permiſſione divina ſancti Andree epiſcopus ſalutem in Domino . Noveritis nos literas bone memorie domini Gamelini

predecessoris nostri vidisse et legisse tenorem qui sequitur continentes una cum plenaria capituli sancti Andree ac domini Willelmi Frefer similiter predecessoris nostri confirmatione . Universis Christi fidelibus presentes literas visuris vel audituris Gamelinus miseratione divina ecclesie sancti Andree minister humilis salutem eternam in Domino . Noverit universitas vestra quod de voluntate et consensu dilectorum filiorum abbatis et conventus de Driburgh ordinis Premonstratensis talis per nos facta est ordinatio vicariarum parochialium ecclesiarum ipsorum abbatis et conventus videlicet quod vicarius secularis qui in ecclesia de Kilrethny ministrabit recipiet annuatim a dictis abbate et conventu decem marcas sterlingorum ad duos anni terminos videlicet medietatem ad Pentecosten et aliam medietatem ad festum sancti Martini in hyeme et istud idem ordinamus et statuimus de vicario qui in ecclesia de Saultoun ministrabit . vicarius vero de Golyn deserviturus recipiet a dictis abbate et conventu duodecim marcas sterlingorum annuas ad duos anni terminos supradictos . vicarius vero qui in ecclesia de Childenkirk ministrabit qui quidem faciet obedienciam tam pro ecclesia de Childenkirk quam pro capella de Lawder recipiet a prefatis abbate et conventu decem libras annuas ad duos anni terminos supradictos et dicti abbas et conventus facient deservire dicte capelle per unum honestum capellanum . Et sciendum est quod dicti abbas et conventus omnia onera ordinaria et extraordinaria ad dictas ecclesias pertinentia sustinebunt a quibus dicti vicarij erunt immunes excepto quod vicarius de Kilrethny pro domibus suis situatis in terra nostra solvet nobis et successoribus nostris annuatim tres solidos medietatem ad Assumptionem beate Marie virginis et aliam medietatem ad Purificationem beate virginis Marie . dicti vero abbas et conventus alijs vicarijs domicilia assignabunt que ipsi vicarij in posterum sustentabunt . Et si forte contingat prefatos abbatem et conventum per predictos vicarios vel per aliquem successorum nostrorum contra istam ordinationem nostram aliquo tempore indebite molestari volumus pro nobis et successoribus nostris ut liceat eisdem abbati et conventui dictis ecclesijs parochialibus per

canonicos suos secundum tenorem indulgenciarum predecessorum nostrorum sibi indultarum sicut prius consueverunt deservire . Hec autem omnia et singula predicta pro nobis et successoribus nostris auctoritate episcopali confirmamus et in robur perpetuum et testimonium presenti scripto sigillum nostrum apponi fecimus . Nos autem super statu dictorum religionum paterna pietate compacientes pro salute nostra predecessorum et successorum nostrorum dictorum predecessorum ordinationem et capituli sancti Andree confirmationem ratam habentes et firmam pro nobis et successoribus nostris sigillum nostrum est appensum . Datum apud Driburgh die sabbati proxima ante festum cathedre sancti Petri anno gracie millesimo tricentesimo decimo octavo . Hiji testibus magistro Roberto de Lamberton archidiacono sancti Andree . magistris Willelmo de Eglisbam archidiacono Laudonie . Alexandro de Rekildoun . domino David de Craufurd et alijs .

Super quatuor marcis pro procuracionibus in ecclesia de Golyn .

- 294 Villelmus de Lamberton permissione divina sancti Andree episcopus decano Christianitatis de Hadynton salutem eum benedictione divina . Mandamus vobis quatenus non exigatis vel levetis annuatim de ecclesia de Golyn nisi quatuor marcas pro procuratoribus [*procuracionibus*] et quatuor marcas pro antiquo cano nobis et successoribus nostris debito de eadem quousque aliud a nobis habueritis in mandatis . Datum apud Driburgh die Sabbati proxima post festum sancti Nicholai anno Domini millesimo trecentesimo sextodecimo .

Super dimidia marca in villa de Bothanis annuatim .

- 295 Univerfis et singulis sancte matris ecclesie filijs hoc prefens scriptum visuris vel auditoris Johannes Gyffard dominus de Yester salutem in Domino

sempiternam . Noverit universitas vestra me divine pietatis intuitu pro salute anime mee ac sponse mee et pro animabus patris mei et matris mee et omnium antecessorum et successorum meorum concessisse et dedisse et hac mea carta confirmasse Deo et ecclesie beate Marie de Dryburgh et canonicis ibidem Deo servientibus et inperpetuum servituris unam dimidiam marcam argenti annui redditus in villa de Bothanis videlicet in illa terra quam Johannes dominus de Leys tenet de me et heredibus meis in dicta villa de Bothanis annuatim ad duos anni terminos scilicet ad festum Penthecosten et ad festum sancti Martini in hieme in puram et perpetuam elemosinam percipiendam ita libere et quiete sicut aliqua elemosina infra regnum Scocie liberius aut quietius aliquibus viris religiosis conceditur aut possidetur . Ego etiam dictus Johannes et heredes mei vel assignati dictam elemosinam dictis religiosis contra omnes homines et feminas warautizabimus acquietabimus et defendemus . Hijs testibus .

Super jure patronatus ecclesie de Maxton et quatuor acris terre in augmentum ecclesiastice terre .

296 **O**mnibus etc. Walterus senescallus Scotie salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et abbati et canonicis ibidem Deo servientibus et inperpetuum servituris ordinis Premonstratensis jus patronatus ecclesie de Maxtoun diocesis Glasguensis tenendum et habendum in puram et perpetuam elemosinam [sibi] et successoribus suis pro salute anime mee et uxoris mee et pro salute animarum patris mei et matris mee et omnium antecessorum et successorum meorum cum terra ecclesiastica ejusdem et in augmentum ecclesiastice terre quatuor acras terre in loco qui dicitur Louecrofte et cum omnibus alijs assumentis et libertatibus aliquo tempore ad eandem pertinentibus vel

quoquomodo pertinere valentibus ita libere quiete et plenarie sicut aliquis patronus in regno Scotie aliquod jus patronatus alieni ecclesie vel viris religiosis aliquibus liberius quicquid aut plenarius conferre potest . Ego vero dictus Walterus et heredes mei predictam donationem meam prefatis abbati et canonicis de Driburgh contra omnes homines et feminas warrantizabimus acquietabimus et defendemus inperpetuum . Ut autem hec mea donatio concessio voluntas et confirmatio robor optineat perpetue firmitatis presentem cartam figilli mei appositione roboravi . Hijs testibus .

Confirmatio episcopi super ecclesia de Maxton .

- 297 Univerſis Chriſti fidelibus ad quos preſentes litere pervenerint Johannes miſeratione divina epiſcopus Glaſguenſis ſalutem in Domino ſempiternam . Quia pium eſt ſuccurrere egenis et operam dare pauperibus nos propter hoc ad combuſtionem monaſterij de Dryburgh et ejus diverſimodas deſtructiones oculos dirigentes caritatis intuitu eccleſiam parochialem de Maxton cujus jus patronatus dominus Walterus ſeneſcallus Seocie abbati et canonicis dicti monaſterij ex mera conceſſit pietate eiſdem abbati et canonicis cum omnibus fruſtibus juribus et obventionibus ad dictam eccleſiam ſpectantibus vel quoquomodo ſpectare valentibus cedente vel decedente domino Johanne de Gowen nunc ejusdem rectore in plenos proprios et perpetuos uſus eorundem pro nobis et ſucceſſoribus noſtris conferimus per preſentes et capituli auctoritate confirmamus . ita tamen quod per ydoneum et ſufficientem vicarium a nobis in dicta eccleſia deputandum laudabiliter deſerviat in divinis cui de ipſius eccleſie proventibus neceſſaria videlicet decem libre ſterlingorum ſecundum ſtatutum concilij Scotici ordinantur . per quem nobis et miniſtris noſtris de omnibus juribus ordinarijs et extraordinarijs reſpondeatur ad plenum . In cujus rei teſtimonium ſigillum noſtrum magnum preſentibus eſt appenſum . Datum Alneerom die

Jovis proxima ante festum sancti Valentini martiris anno graeie millesimo tricentesimo vigesimo sexto . Testibus .

Confirmatio capituli Glasguensis super ecclesia de Maxtoun .

298 **O**mnibus sancte matris ecclesie filijs hoc prefens scriptum visuris vel audituris capitulum Glasguense salutem in Domino sempiternam . Noverit universitas vestra nos inspexisse et intellexisse collacionem et confirmationem venerabilis patris nostri Johannis Dei gratia episcopi nostri Glasguensis super ecclesia de Maxtoun abbati et canonicis de Driburgh Premonstratensis ordinis sancti Andree diocesis in Scotia factam et concessam in hec verba . Universis Christi fidelibus ad quos presentes litere pervenerint Johannes miseratione divina episcopus Glasguensis [*etc. ut supra ad numerum cccxvi.*] Nos igitur super statu dicti monasterij eorditer compatiētes et predictam domini nostri episcopi collationem et confirmationem eisdem abbati et canonicis factam ratam et gratam habentes dictam ecclesiam de Maxtoun eum omnibus suis pertinentijs ut predictum est unanimi et expresso consensu et assensu capituli nostri eisdem inperpetuum confirmamus et hoc prefens scriptum communi sigillo capituli nostri roboramus . Teste eodem capitulo nostro .

Confirmatio super una carneata terre in tenemento de Smallhame .

299 **O**mnibus sancte matris ecclesie filijs hanc cartam visuris vel audituris Andreas de Moravia panetarius Scoeie salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et Cristiane sponse mee et pro salute animarum patris mei et matris mee et omnium antecessorum et successorum meorum dedisse concessisse et hac

presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et abbati et canonicis ibidem Deo servientibus et inperpetuum servituris unam plenariam carucatam terre quam clamabant tenere de antecessoribus meis in tenemento de Smalhame cum tofto et crofto liberam ab omni prestatione multure cum omnibus pascuis ad trescentas oves et cum libero introitu et exitu ad communem pasturam dicti tenementi cum eisdem ovibus . tenendam et habendam dictis abbati et canonicis in liberam puram et perpetuam elemosinam ita libere quiete plenarie pacifice et honorifice inperpetuum absque omni terreno servicio auxilio consuetudine [ex]actione seu demanda sicut aliqui viri religiosi aliquam elemosinam in regno Scotie liberius aut quietius tenent vel possident . Istam autem elemosinam dedi concessi et confirmavi dictis abbati et canonicis pro me et heredibus meis inperpetuum absque alicujus rei temporalis exigentia libere et plenarie . et ego dictus Andreas de Moravia heredes mei seu assignati dictis abbati et canonicis de Dryburgh totam predictam terram [cum] libertate multure communibus pascuis et libero introitu et exitu ad dictas trescentas oves ut predictum est contra omnes homines et feminas warantizabimus acquietabimus et defendemus inperpetuum . Ad majorem hujus donationis et confirmationis securitatem presenti carte sigillum meum apposui . Testibus etc .

Confirmacio comitis de Dunbar super terra de Ersildona .

300 Comes Patricius de Dunbar universis sancte matris ecclesie filijs salutem in Domino . Notum [fit] presentibus et futuris me dedisse et concessisse et hac carta mea confirmasse Deo et beate Marie de Dryburgh et canonicis ibidem Deo servientibus terram que dicitur Clumelley [] et ita sursum sicut haia vadit usque ad Duneden et sic sursum usque ad Refbrygge et inde per Malcolmes Rode sursum usque ad Styrkerden et per Styrkerden

ufque ad Ledre . et preterea dedi eis duas bovatas terre in Erfildon cum tofto et crofto qui eft juxta viam que afcendit ad crucem ex occidentali parte ville cum communi pafcura ad centum oves et duodecim boves et duodecim porcios et duos equos et cum omnibus ayfiamenis que pertinent ad tantam terram . Preter hec et conceffi et dedi eis toftum unum in burgo meo de Dunbar fcilicet quod fuit Hugonis quondam capellani domini Patricij advunculi mei cum domo et cum duabus acris terre et dimidia quas dictus Hugo tenuit in villa et territorio de Dunbar . Tenenda fibi et habenda de me et heredibus meis in liberam puram et perpetuam elemofinam pro animabus patris et matris mee et pro falute anime mee et uxoris mee et liberorum meorum et fuccefforum meorum . Quare volo ut prefati abbas et conventus teneant et habeant fupradictam elemofinam inperpetuum ita libere quiete et plenarie et honorifice fine omni fervicio confuetudine et feculari [ex]actione ficut aliqui viri religiofi in tota terra mea vel in toto regno Scocie quamlibet elemofinam liberius quicquid plenius et honorificencius tenent et poffident . Ut autem hec mea donatio perpetuum firmitatis robur optineat eam prefenti feripto et figilli mei appoficione roboravi . Teftibus etc .

Super una acra terre et quatuor rodefallys in Sawelton .

- 301 **O**mnibus fancte matris ecclefie filijs hanc cartam vifuris vel audituris Henricus Styllle de Saulton falutem in Domino fempiternam . Noverit univerfitas veftra me divine caritatis intuitu et pro falute anime mee et uxoris mee et pro falute animarum patris mei et matris mee et omnium antecelforum et fuccefforum meorum ex licencia domini mei domini Willelmi de Abrenythy dediffe conceffiffe et hac prefenti carta mea confirmaffe Deo et ecclefie fancte Marie de Dryburgh et abbati et canonicis ibidem Deo fervientibus et inperpetuum fervituris totam illam terram

scilicet unam acram et quatuor rodefallys quam habui adjacentem inter illas septem acras terre quas dominus Willelmus de Abrenythi dictis abbati et canonicis de Dryburcht dedit et perpetuo confirmavit · videlicet proximo juxta croftum dictorum religionum ex orientali parte versus viam que ducit apud Hadington · tenendam et habendam dictis abbati et canonicis in liberam puram et perpetuam clemofinam libere quiete plenarie et pacifice absque aliquali terreno servitio auxilio consuetudine seu demanda inperpetuum · Ego vero Henricus et heredes mei seu assignati dictis abbati et canonicis de Dryburgh dictam acram terre cum quatuor rodefallys contra omnes et homines et feminas warrantizabimus acquietabimus et inperpetuum defendemus · Ad majorem hujus donacionis securitatem presenti carte sigillum meum apposui et sigillum Thome de Leys tunc ballivi de Sawlton apponi eidem procuravi · Hijs testibus ·

Carta Henrici domini de Aynestrotther super tribus bothis in dicta villa ·

302 **U**niversis Christi fidelibus hanc cartam visuris vel auditoris Henricus de Aynestrotther dominus ejusdem salutem in Domino sempiternam · Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et Matyldis quondam sponse mee et pro salute animarum patris mei et matris mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie beate Marie de Dryburgh et religiosi viri abbati et canonicis Premonstratensis ordinis ibidem Deo ferventibus et inperpetuum servituris tres bothas in orientali parte dicte ville mee de Aynestrotther quas quidem bothas habuerunt ibidem in donacione et confirmacione Henrici et Willelmi quondam predecessorum meorum ab antiquo · tenendas et habendas dictis viris religiosi de me et heredibus meis seu assignatis in puram et perpetuam clemofinam libere et quiete inperpetuum absque aliquo terreno servitio consuetudine auxilio

exactione seu demanda . Ego igitur dictus Henricus et heredes mei seu assignati dictam donacionem et confirmacionem meam ut predictum est contra omnes homines et feminas warrantizabimus acquietabimus et defendemus inperpetuum . Ut autem hec mea donatio concessio et confirmatio perpetue firmitatis robur obtineat presentem cartam sigilli mei impressione roboravi . Hijs testibus dominis Thoma Rynulphy comite Moravie . David de Wemys domino ejusdem . Willelmo Oliphanti . Willelmo de Dyfflington . Johanne de Dundemore . Alexandro de Fentoun militibus . David domino de Caplawhy . Waltero de Carale . Laurencio de Wynerftoun . Henrico Herwart . Michaele de Kyrkintolawh et multis alijs .

Super uno messuagio cum gardino et una acra terre in dicta villa ex dono ejusdem .

- 303 **O**mnibus sancte matris filijs hanc cartam visuris vel audituris Henricus de Aynstrother dominus ejusdem salutem in Domino sempiternam . Noverit universitas vestra me divine caritatis intuitu et pro salute anime mee et pro salute animarum patris mei et matris mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Dryburch et religiosis viris abbati et canonicis ordinis Premonstratensis ibidem Deo fervientibus et inperpetuum servituris unum messuagium cum gardino et cum una acra terre in dicto tenemento meo de Aynstrother quod messuagium cum gardino et cum dicta acra terre quondam tenuit de me quidam dictus Johannes Thafwynne inter terram quam tenuit Andreas de Aula ex parte occidentali et viridarium de Aynstrother ex parte orientali dicte ville . tenendum et habendum dictis abbati et canonicis de me et heredibus meis seu assignatis in liberam param et perpetuam elemosinam libere et quiete inperpetuum absque aliquo

terreno servicio consuetudine auxilio exactione seu demanda cum omni [*communi*] pastura ad quatuor vaccas cum sequacibus et ad unum equum vel ad viginti quinque oves et cum omnibus assiamendis dicte ville ad tantam terram pertinentibus vel quoquomodo pertinere valentibus . Ego vero dictus Henricus et heredes mei seu assignati dictam donacionem et confirmacionem meam ut predictum est contra omnes homines et feminas warantizabimus acquietabimus et defendemus inperpetuum . Ut autem hec mea donacio concessio et confirmacio robur perpetue firmitatis optineat presentem cartam sigilli mei appositione roboravi . Hijs testibus domino Jacobo episcopo sancti Andree . domino Johanne priore ejusdem . dominis Willelmo Olyfant . Johanne de Dundemore . Patricio de Poulworth militibus . Thoma de Balcasky . Laurencio de Wynmerston . Waltero de Carale . Henrico Herwart et multis alijs .

Super uno messuagio cum bracina in villa de Saultone .

- 304 Omnibus sancte matris ecclesie filijs hanc cartam visuris vel audituris Willelmus de Abrenythie dominus de Saultone salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et sponse mee et pro salute patris mei et matris mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et abbati et canonicis ibidem Deo fervientibus et inperpetuum servituris totum illud messuagium cum bracina quod quondam tenuit Willelmus dictus Wolf in villa de Saulton quod jacet propinquius juxta grangiam dictorum religiosorum ex parte occidentali et septem acras terre arabiles proximo adjacentes crofto eorundem religiosorum ex parte orientali et cum pastura ad octo boves duas vaccas et duos averios cum husbandis meis et cum focali in mora mea quantum sufficit uni husbando . Tenenda et habenda de me et heredibus meis

dictis abbati et canonicis in liberam puram et perpetuam elemosinam et in terram ecclesiasticam libere quiete plenarie pacifice et honorifice in perpetuum cum libero introitu et exitu absque aliquo terreno servitio consuetudine exactiōe seu demanda . Confirmo eciam pro me et heredibus meis dictis religiosi omnes donaciones terrarum quas libere tenent in tenemento de Saultonne et quatuor acras terre ex dono Johannis Burgillonne de Saultonne jacentes inter dictas septem acras terre quas dictis viris religiosi dedi in perpetuum . Volo etiam et concedo pro me et heredibus meis ut dicti abbas et canonici totam terram predictam tam ex dono meo quam aliorum in tenemento meo de Saulton cum messuagio bracia pastura prenotata et focali in mora mea adeo liberam teneant et possideant et absque aliqua prestacione multure in perpetuum sicut aliqui religiosi aliquam elemosinam in regno Scocie liberius aut quietius tenent vel possident . Ego vero Willelmus de Abrenythi et heredes mei dictis abbati et canonicis de Driburgh totam dictam terram cum messuagio et alijs prenomatis in omnibus ut predictum est contra omnes homines et feminas warantizabimus acquietabimus et perpetuo defendemus . Ad majorem hujus donacionis concessiōis et confirmacionis securitatem presenti carte sigillum meum apposui . Hijs testibus .

Preceptum Roberti regis super viginti solidis in villa de Rokisburgh .

305 **R**obertus Dei gratia rex Scotorum camerario suo Scocie salutem . Quia intelleximus quod religiosi viri abbas et canonici de Driburgh viginti solidos sterlingorum ad luminare ecclesie sue de firmis burgi nostri de Rokisburgh annuatim recipere consueverunt prout nobis per cartam bone memorie domini Willelmi regis predecessoris nostri dicti religiosi plenius ostenderunt vobis mandamus quatenus dictis viris religiosi dictos viginti solidos singulis annis de dictis firmis de Rokeburgh videlicet ad festum sancti Martini in hyeme et ad festum Pentecosten ad quascunque manus dicte firme

devenerint deliberari faciatis et vobis in compotis vestris quolibet anno allocari faciemus . Datum etc .

Preceptum camerarij Scocie super eisdem solidis .

306 **A**lexander Frazer camerarius Scocie aldermanno et ceteris ballivis burgi de Rokeburgh salutem in Domino . Noveritis vos recepisse mandatum domini nostri regis in hec verba . Robertus Dei gracia rex Scotorum [*etc. et supra ad numerum ccciv usque ad*] Datum apud Melrose primo die Novembris anno regni nostri vicesimo . Hujus igitur auctoritate mandati vobis mandamus quatinus dictis viris religiosi de Dryburgh viginti solidos de dictis firmis dicti burgi de Rokeburgh singulis annis ut predictum est ad quascunque manus dicte firme pervenerint indilate perfolvi faciatis . In cujus rei etc .

Super dimidia marca in burgagio Huēdredi Pistoris .

307 **U**niversis Christi fidelibus presentes literas visuris vel audituris Robertus de Pebblis camerarius Scocie salutem in Domino . Cum pium sit et meritorium prebere testimonium veritati et precipue in hijs que coram nobis sunt agitata universitati vestre significamus quod die Jovis proxima post festum beati Barnabe apostoli anno Domini millesimo trecentesimo vigesimo nono in pleno itinere nostro tento apud Rogesburgh comparuerunt coram nobis religiosi viri abbas et conventus de Dryburgh petentes ex parte una et Huēdredus Pistor burgenfis de Rogesburgh defendens ex altera parte super uno annuo reddito sex solidorum et sex denariorum exeunte de illo burgagio cum pertinencijs in vico qui dicitur Kingis streyt ex parte boriali vici ejusdem ex opposito ecclesie sancti Sepulcri quod quondam fuit Johannis

Alman jacens inter terram que vocatur le Blachall ex parte orientali et terram Petri de Veteri Rokeſburgh ex parte occidentali . Tandem partes predictę poſuerunt ſe in aſſiſam magno ſacramento interveniente juratam que preſentavit per verediſtum ſuum dictum annuum redditum preſatis religioſis deberi de burgagio predicto . In cujus rei teſtimonium etc .

Super uno meſſuagio cum duabus bovatis terre de terra quondam Alexandri Purways .

308 Univerſis Chriſti fidelibus hanc cartam viſuris vel audituris Alexander Purways filius et heres quondam Alani Purwas de Ereildon ſalutem in Domino ſempiternam . Noverit univerſitas veſtra me divine pietatis intuitu pro ſalute anime mee et animarum patris mei et matris mee et omnium antecęſſorum et ſucceſſorum meorum de conſenſu et aſſenſu domini mei domini Patricij de Dunbar comitis de Marchia dediſſe conceſſiſſe et hac preſenti carta mea confirmari Deo et eccleſie ſancę Marie de Dryburgh et canonicis ibidem Deo ſervientibus et in perpetuum ſervituris illud meſſuagium cum croſto quod quondam tenuit Ricardus Dun in boreali parte dicte ville de Ereildon verſus orientem vicinijs meſſuagijs huſbandorum dicti domini mei cum terra unius huſbandi in territorio predictę ville videlicet unam bovatom in loco qui dicitur Hwytſyld et aliam bovatom in loco qui dicitur Bromfyde ex parte occidentali ejuſdem et in augmentum predictę terre unius huſbandi tres acras in loco qui dicitur Quhytlaw et unam acram prati in Pottermedow juxta la Redfurd cum communi paſtura cum libero introitu et exitu et ceteris communibus aſſiamentis predictę ville quantum pertinet ad tantam terram et cum omnibus pertinencijs et libertatibus ad dictam terram ſpectantibus ſeu quoquomodo ſpectare valentibus . Tenendas et habendas predictis canonicis in liberam puram et perpetuam elemoſinam abſque aliquo retencimento terreno ſervicio exaſtione ſeu demanda libere

pure plene et pacifice inperpetuum . Ego vero dictus Alexander heredes mei et assignati predictam terram cum omnibus suis pertinencijs ut predictum est prefatis canonicis contra omnes homines et feminas warantizabimus acquietabimus et inperpetuum defendemus . In cuius rei testimonium presentem cartam sigilli mei appositione roboravi . Testibus etc .

Confirmacio comitis de Marchia super eandem terram .

309 **O**mnibus hoc scriptum visuris vel audituris Patricius de Dunbar comes Marchie salutem in Domino sempiternam . Noveritis nos diligenter inspexisse audivisse et ad plenum jus intellexisse quendam cartam quondam Alexandri Purways filij et heredis quondam Alani Purways de Ercildon sigillo suo signatam super donacione concessione et confirmacione triginta aerarum terre una cum quodam messuagio et uno crofto cum pertinencijs infra villam nostram et tenementum nostrum de Ereyldon Deo et ecclesie beate Marie virginis de Dryburgh et canonicis ibidem Deo et beate Marie matri sue fervientibus et inperpetuum servituris per eundem Alexandrum factam continentem hec verba . Universis Christi fidelibus hanc cartam visuris vel audituris Alexander Purways [*etc. ut supra ad numerum cccvii .*] Quas quidem donacionem concessione et confirmacionem dictarum triginta aerarum terre una cum messuagio et crofto supradictis cum pertinencijs in omnibus et singulis articulis suis juxta dicte carte tenorem nos pro nobis et heredibus nostris ratificamus approbamus acceptamus et tenore hujus scripti confirmamus inperpetuum . salvis tamen nobis et heredibus nostris omnimodis servicijs nos et heredes nostros inde juste congruentibus ac debitis et consuetis de quibus quidem servicijs quatenus attinet ad nos et heredes nostros volumus et concedimus pro nobis et heredibus nostris quod quicunque terram dicti quondam Alexandri Purways infra dictam villam et tenementum de Ereyldon de nobis et heredibus

nostris ut de feodo tenuerint in capite penitus onerentur et inde nobis et heredibus nostris respondeant inperpetuum . In cujus rei testimonium huic presenti scripto sigillum nostrum fecimus apponi . Apud Ercyldon sexto decimo die Octobris anno Domini millesimo tricentesimo tricesimo tercio .

Super terra de Ercyldon que dicitur Venatoris cum pastura .

- 310 **O**mnibus sancte matris ecclesie filijs hanc cartam visuris vel auditoris Patricius de Dunbar comes Marchie salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et sponse mee et pro salute animarum patris mei et matris mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et fratribus meis abbati et canonicis ibidem Deo fervientibus et inperpetuum servituris totam terram illam que dicitur Venatoris in territorio ville mee de Ercyldon cum omnibus pertinencijs et libertatibus suis proximo adjacentem terre dictorum abbatis et canonicorum ex parte occidentali cum communi pastura ad trescentas oves quatuor boves et quatuor vaccas videlicet ubicunque animalia husbandorum meorum dicte ville de Ercyldon pascuntur . Tenendam et habendam de me et heredibus meis seu assignatis dictis abbati et canonicis in liberam puram et perpetuam elemosinam cum libero introitu et exitu et ceteris communibus aisyamentis predicte ville libere quiete et pacifice inperpetuum absque omni servicio exactione consuetudine seu demanda . Ego vero predictus Patricius heredes mei et assignati predictam terram cum ceteris prenomatis ut predictum est dictis abbati et canonicis contra omnes homines et feminas warantizabimus acquietabimus et defendemus inperpetuum . Ad majorem vero hujus donacionis concessionis et confirmacionis securitatem presenti carte sigillum meum apposui . Testibus etc .

Super una marca annuatim in villa de Byrkynfide .

- 311 **U**niversis Christi fidelibus hanc cartam visuris vel auditoris Johannes de Dunbar filius et heres domini Johannis de Dunbar militis quondam domini de Byrkynfide salutem in Domino sempiternam . Noverit universitas vestra me dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et abbati et canonicis ibidem Deo fervientibus et inperpetuum servituris pro salute anime mee et sponse mee et pro salute animarum patris mei et matris mee et omnium antecessorum et successorum meorum annuatim unam marcam argenti singulis annis de me et heredibus meis inperpetuum percipiendam de firma mea de Byrkynfide ad ipsius ecclesie sustentacionem et emendacionem in liberam puram et perpetuam elemosinam ita libere et quiete sicut aliqua elemosina in regno Scotie ab aliquibus ecclesiasticis tenetur et possidetur medium ad Penthecosten et medium ad festum sancti Martini in hyeme . Canonici vero pre-nominati caritatis intuitu nos scilicet me sponsam meam et liberos nostros receperunt in fraternitatem et participationem missarum oracionum et aliorum beneficiorum dicte ecclesie sue concesserunt . Ego vero dictus Johannes heredes mei et assignati dictam donationem concessione et confirmationem contra omnes homines et feminas warrantizabimus acquiescimus et inperpetuum defendemus . In cujus rei testimonium et robur perpetuum presenti carte sigillum meum apposui . Testibus .

Super donacione molendini de Ulkeston ex dono domini Willelmi de Abrenythe .

- 312 **U**niversis Christi fidelibus hanc cartam visuris vel auditoris Willelmus de Abrenythe miles filius et heres quondam domini Willelmi de Abrenythe

militis salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Driburgh et abbati et canonicis ibidem Deo fervientibus et inperpetuum servituri pro salute anime mee et sponse mee et liberorum meorum et pro animabus patris mei et matris mee et omnium antecessorum et successorum meorum molendinum meum de Ulkeston in valle de Lawder cum multura et singulis fructibus inde provenientibus seu provenire valentibus in liberam puram et perpetuam elemosinam absque aliquo retenemento . tenendum et habendum cum omnibus suis pertinencijs sibi et successoribus suis absque aliquo servicio seculari exactione seu demanda ita libere quiete pure plene et pacifice sicut aliqua elemosina in regno Scocie ab aliquibus viris religiosi liberius tenetur seu possidetur . Prefati vero abbas et canonici me et sponsam meam et heredes meos in fraternitatem capituli sui caritative receperunt et participationem missarum et oracionum ceterorumque beneficiorum dicte ecclesie sue nobis gracie concesserunt . Ego vero dictus Willelmus heredes mei et mei assignati dictam donationem concessionem et confirmationem dictis viris religiosi cum suis pertinentijs ut predictum est contra omnes homines et feminas warantizabimus acquietabimus et inperpetuum defendemus . Ad majorem vero hujus donacionis concessionis et confirmationis securitatem huic presenti carte sigillum meum apposui . Hjs testibus .

Carta Willelmi de Felton super uno burgagio in villa de Roxburgh et decem solidis ibidem annuatim levandis .

- 313 **O**mnibus Christi fidelibus hoc scriptum visuris vel auditoris Thomas de Vigurws burgenfis de Roxburgh filius et heres quondam Agnetis dicte Maunfell salutem in Domino sempiternam . Sciant presentes et futuri quod ego dictus Thomas non vi vel metu coactus sed mea mera et spontanea

voluntate dedi conceffi et prefenti carta mea confirmavi cum bona deliberatione domino Willelmo de Feltoun militi tunc vicecomiti de Roxburgh heredibus fuis feu assignatis quibufeunque unum burgagium in villa de Roxburgh in vico de Kingis ftrete ex parte boreali inter terram quam Hugo dictus Chepman tenuit in feodo ex parte orientali et terram quam Rogerus filius Huthredi Piftoris quondam tenuit in feodo ex parte occidentali et decem folidos annuos de eadem terra dicti Rogeri pro quadam fumma pecunie quam dictus dominus Willelmus michi pre manibus in mea neceffitate plenarie perfolvit . Tenendum et habendum dictum burgagium cum tofto et crofto ac ceteris fingulis libertatibus ayfiamenis et pertinentijs dicto domino Willelmo heredibus fuis feu assignatis quibufeunque inperpetuum libere quiete et pacifice et honorifice falvo ferviceio inde debito et confueto . Ego vero dictus Thomas heredes mei feu assignati dictum burgagium cum fuis pertinencijs ut predictum eft et cum dicto annuo reddito dicto domino Willelmo heredibus fuis feu assignatis quibufeunque warantizabimus acquietabimus et defendemus inperpetuum . Hijs teflibus domino Thoma de Soltre tunc abbate de Melros . domino Johanne tunc abbate de Jeddewod . domino Roberto de Maneris tunc conftabulario caftri de Norham . domino Roberto Colevile militibus . Alano de Myndrum tum aldermanno de Roxburgh . Bridino dicto Candelaue tunc ballivo ejufdem . Willelmo Macone . Willelmo de Bofevile . Rogero filio quondam Huthredi Piftoris . Waldevo Darling . Thoma de Rydell . Henrico carnifice . Thoma Smale . Adam filio Hugonis . Johanne clerico . Johanne Gylruth burgenfe ejufdem ville . Richardo de Routherfurd domino ejufdem . Johanne Burnard domino de Faryngdon . Roberto de Vodford domino ejufdem . Rogero de Aultoun et multis alijs . In cujus rei testimonium huic prefenti carte mee figillum meum eft appenfum una cum figillo communitatis burgi de Roxburgh .

Item Willelmus Feltoun super predictis burgagio et decem solidis annuatim levandis .

- 314 **U**niversis et singulis Christi fidelibus hanc cartam visuris vel audituris Willelmus de Feltoun miles vicecomes de Roxburgh salutem in Domino sempiternam . Noverit universitas vestra me divine pietatis intuitu et pro salute anime mee et uxoris mee et pro animabus patris mei et matris mee et omnium antecessorum et successorum meorum dedisse concessisse et hac presenti carta mea confirmasse Deo et ecclesie sancte Marie de Dryburgh et abbati et canonicis ibidem Deo fervientibus et inperpetuum servituris illud burgagium quod emi a Thoma dicto Vigurus burgense ville de Roxburgh in vico de Kyngistrete ex parte boreali jacens inter terram quam quondam Hugo dictus Chepman tenuit in feodo ex parte orientali et terram quondam Hutredi Pistoris et nunc Rogeri filij sui ex parte occidentali cum tofto et crofto et ceteris alijs assumentis et libertatibus ad dictam terram pertinentibus seu quoquomodo pertinere valentibus una cum decem solidis annuatim de dicta terra propinquius ex occidentali parte solvendis . Tenenda et habenda dictis religiosis viris et successoribus suis in liberam puram et perpetuam elemosinam ita libere quiete et pacifice sicut aliqua elemosina ab aliquibus viris religiosus liberius et quietius potest dari vel concedi . salvo servicio domini nostri regis si quod debetur de eadem . Ego vero dictus Willelmus heredes mei seu assignati dictam terram cum suis pertinentijs ut predictum est contra omnes homines et feminas warrantizabimus acquietabimus et defendemus inperpetuum . Hijs testibus domino Thoma de Soltre tunc abbate de Melroff . domino Johanne tunc abbate de Jeddewod . domino Roberto de Maneris tunc constabulario castri de Norham . domino Adam de Halyburton . domino Roberto Coleville militibus . Willelmo Bofvile tunc aldermanno de Roxburgh . Andrea Homyl tunc ballivo ejusdem . Richardo de Rotherford domino ejusdem . Johanne Burnard domino de Fayringdon .

Roberto de Wodford domino ejusdem • Willelmo dicto Mafon • Alano de Mindrom burgenfi de Roxburgh et multis alijs • Ad majorem vero hujus rei securitatem figilla venerabilium patrum dominorum abbatum de Melros de Jeddewod una cum figillis Willelmi Bofvile predicti et Andree Homyl et presenti carte mee apponi procuravi •

Resignacio Rogeri filij Hutredi Pistoris super predicto burgagio •

315 **O**mnibus hoc scriptum visuris vel audituris Rogerus filius et heres quondam Hutredi Pistoris burgenfis ville de Roxburgh eternam in Domino salutem • Noveritis me remississe relaxasse et omnino de me et heredibus meis inperpetuum quietum clamasse domino Willelmo de Feltoun militi tunc vicecomiti de Roxburgh heredibus suis vel suis assignatis totum jus et clameum quod habui vel quoquomodo de jure habere potui in uno burgagio jacente in predicta villa de Roxburgh in vico de Kingiftrete ex parte boreali inter burgagium quondam Johannis Flechyr ex parte orientali et burgagium Emme Kenilis wife ex parte occidentali • Quod quidem burgagium predictus Hutredus pater meus quondam cepit ad feodofirmam sibi et heredibus suis suisque assignatis de Agnete dicta Maunfell et heredibus suis inperpetuum • ita quod nec ego prefatus Rogerus heredes mei nec aliquis alius per nos seu nomine nostro aliquid juris vel clamei in predicto burgagio nec in suis pertinentijs a die consecutionis presentium exigere seu eciam vendicare poterimus inperpetuum sed per presentes fate-mur nos omnino exclusos • In cujus rei testimonium presentibus sigillum meum apposui • Hijs testibus Alano de Mindrom tunc aldermanno de Roxburgh • Bridino dicto Candelaue • Thoma Vigurus tunc ballivis ejusdem • Willelmo Bofvile • Waldevo Derlinge • Thoma Ridell • Henrico carnifice • Thoma Smale • Adamo filio Hugonis • Johanne clerico burgenfi ejusdem

ville et multis alijs . Datum apud Roxburgh quintodecimo die mensis Aprilis anno Domini millesimo ccc^{mo} tricesimo octavo .

Willelmus de Feltoun super dicta burgagia in villa de Roxburgh .

- 316 **U**niverſis Criſti fidelibus hanc cartam viſuris vel auditoris Willelmus de Feltoun miles vicecomes de Roxburgh ſalutem in Domino ſempiternam . Noverit univerſitas veſtra me divine pietatis intuitu et pro ſalute anime mee et uxoris mee et pro ſalute animarum patris mei et matris mee et omnium anteceſſorum et ſucceſſorum meorum deditſe conceſſiſſe et hac preſenti carta mea confirmaſſe Deo et eccleſie beate Marie de Driburgh et abbati et canonicis ibidem Deo ſervientibus et inperpetuum ſervituris illa duo burgagia que emi a Thoma dicto Vigurus burgenſi ville de Roxburgh quondam filio et herede Agnetis dictę Maunfell jacentia conjunctim in vico de Kingfirete in eadem villa ex parte boreali inter

APPENDIX.

APPENDIX.

PART I.

ORIGINAL CHARTERS, GIFTS, AND TACKS OF TEINDS.

CHARTER of Donation by Richard de Morville, Constable of Scotland, to the Brethren of the Hospital of Louder. Circa 1170.

- I. OMNIBUS sancte matris ecclesie filiis presentibus et futuris clericis et Laicis Ricardus de Moruilla constabularius regni Scottorum SALUTEM Sciatis me dedisse et concessisse et hac mea carta confirmasse deo et beate marie et sancto Leonardo et infirmis fratribus hospitalis de Louueder pro salute anime mee et uxoris mee et heredum meorum et patris mei et matris mee et omnium antecessorum meorum et successorum meorum terram illam ubi domus hospitalis sita est per has diuisas scilicet a loco ubi Merburne cadit in Leder et sursum contra montem per Merburne usque ad vadum regie vie que venit de Louueder et tendit apud Birkenside Et exinde ultra eandem regiam viam uersus occidentem per eandem diuisas et metas per quas Johannes Episcopus glascguensis et ego et Auicia uxor mea et Willelmus de Moruilla filius meus et Herbertus et Galfridus

PART I.

Original
Charters,
Gifts, and
Tacks of
Teinds
continued.

decanus et Adam clericus et Adam Cellerarius de Melros et plures alii perambulauimus inter monachos et infirmos fratres Et deinde iterum in prefatam regiam viam et per eandem regiam viam usque ad vadum de milksideburne et sic per idem milksideburne sursum ad inferiorem viuarium et totum illum inferiorem viuarium et sursum per riuulum illum qui cadit in eodem viuario usque ad capud calchei et deinde per sepem et per fossatum illum deorsum quem domina fecit facere ad diuisas cognoscendas inter Louueder et terram quam eis dederam de territorio de Louueder usque ad prefatum riuulum de Milksideburn et per eundem riuulum deorsum usque ad inferiorem vadum et deinde per regiam viam sursum uersus louueder usque ad viuarium inter Louueder et hospitale et desub viuario usque ad Standenburne et deinde usque Harlaubill summitatem et sic in Leder et per Leder deorsum usque ad merburne cum communi pastura de morlei usque ad morleiheud . Et terram de pilemor cum communi pastura et asiamentis vicinorum suorum de Pilnor et Treuerbrun per eas diuisas per quas ego illam perambulavi . scilicet per veterem fossatum qui est inter infirmos et Pilnor deorsum usque ad fossatum inter infirmos et Treuerbrun et deinde per viam que venit de Louueder et tendit apud Wedale et sic per quandam aliam viam que venit de Wedale et ascendendo tendit usque ad prefatum veterem fossatum . Et preterea do iisdem fratribus omnes decimas prediete terre et hominum illam terram tenentium et seruorum illorum hominum si quid habuerint infra illam terram de quo decima vel decime elici possint et oblationes omnes et singulas et omnia iura ecclesiastica preter sacramentum baptismatis si quos infantes habuerint ad baptisandum propter quod sacramentum predictum hospitale dabit Annuatim ad festum Natiuitatis beate Marie ecclesie de Louueder vnam libram incensi nullo addito volo autem quod sacerdos custos illius domus habeat plenam potestatem puniendi condonandi . expellendi corrigendi familiares suos et fratres et sorores et tenentes suos pro quibuscumque transgressionibus ad sanetam pertinentibus ecclesiam Et nolo quod sacerdos custos predicti hospitalis alicujus persone ecclesiastice aut secularis subiaceat jurisdictioni . sed si contingat ipsum delinquere corrigatur per correctores Patroni vel per eustodes aut magistros hospitalium qui sibi sunt propinquiore et sibi consimiles nichil de bonis hospitalis auferentes sed penam sibi injungentes sicut deest injungere sacerdoti Et preterea do eisdem fratribus decimam omnium victualium et rerum omnium et singularum que pertinent ad terras omnes et ad homines terras suas tenentes que spectant ad hospitale Et tam in cibis quam in potibus qui expenduntur in propriis domibus meis preter Ewingeh' et totam terram et domum hospitalis quietam de omni

decimatione Et concedo eisdem quietos esse de multura ad molendinum meum de Louueder et locum molendi bladum suum proximo loco post bladum meum proprium quotienscunque venerint ad molendinum . si vero aliquis alius preter me bladum suum habeat super molendinum illo blado molito quod est super molendinum molent fratres bladum suum et molito blado suo dabunt molendinario cibum suum vel pro cibo suo duos denarios et pro potu obolum si per totum diem et noctem moluerint quod si non habuerint ad molendum per diem et noctem simul detur iis proportionaliter pro quantitate temporis Et si fratres habuerint familiares suos ad bladum suum levandum et portandum Nichil dabunt garcionibus molendinarii nisi voluerint ex gracia Volo etiam quod faber meus de Louueder fabricet omnia ferra carrucarum suarum et ea que de ferro ad carucas suas pertinent sine omni pretio quod si facere renuerit destringatur per ballivos meos de Louueder ad predicta opera facienda . Et do eisdem fratribus vnam trauiam bladi de qualibet caruca de Valle de Louueder Preterea do eisdem vnam viam ad plaustra sua euntia per medium terre monachorum de melros usque ad petarium de Milkeside adeo latam quod duo plaustra bene possint obviare ubi monachi et nos providimus scilicet de terra infirmorum usque ad le Lidyate et sic per viridem viam versus australem partem de petario . hec omnia supradicta predictis fratribus infirmis seu quibuscunque fratribus aliis in locis infirmorum per lapsum temporis commorantibus do et concedo tenenda eis in puram et perpetuam elemosinam libere et quiete ab omni seculari servitio et exactione . Ita libere et quiete sicut aliqua elemosina liberius et quietius datur et possidetur infra regnum Scottorum . Hiis testibus Willelmo de Moruilla filio meo . Auicia vxore mea . Herberto . Thoma medico . Clemente capellano meo . Alano de Thirleston . Henrico de Sencler . Petro de Haga . Thoma clerico et aliis.

[*Sine sigillo.*]

PART I. CHARTER *by John de Maxwell, Knight, Lord of Carlaverock, to Alexander Mateland, of his lands of Pencateland, in the Sheriffdom of Edinburgh, resigned by Alice de Pencateland, daughter and heir of the deceased John Pencateland, her father. Circa 1330.*

Original
Charters,
Gifts, and
Tacks of
Teinds
continued.

- II. OMNIBUS HANC CARTAM meam Visuris vel audituris Johannes de Maxwel miles Dominus de Carlauerok Salutem in domino . Noueritis me dedisse concessisse et presenti carta mea in perpetuum confirmasse Dilecto meo Alexandro Mateland totam illam terram meam de Pencateland infra vicecomitatum de Edynburgh quam quidem terram cum pertinentiis Alicie de Pencateland filia et heres quondam Johannis de Pencateland patris sui sua mera et spontanea voluntate mihi resignauit et per fustum et baculum pure et simpliciter sursum reddidit pro suo bono consilio et auxilio mihi impenso Tenendam et habendam totam dictam terram meam de Pencateland cum suis pertinentiis dicto Alexandro heredibus suis et assignatis de me heredibus meis et assignatis hereditarie libere quiete pacifice et honorifice per omnes rectas metas suas diuisas et antiquas cum omnibus libertatibus commoditatibus aysiamenis Rectitudinibus et ceteris universis pertinentiis quibuscunque tam sub terra quam supra terram tam non nominatis quam nominatis ad dictam terram cum pertinentiis spectantibus seu quocunque jure titulo vel consuetudine infuturum spectare valentibus . Reddendo inde annuatim dictus Alexander heredes sui et assignati michi heredibus meis et assignatis . vnum denarium argenti in festo pentecostis ad dictam terram de Pencateland nomine albe firme si petatur pro omnibus aliis seruitiis exactionibus et demandis secularibus que de dicta terra cum pertinentiis per me heredes meos et assignatos de dicto Alexandro heredibus suis et assignatis quoquo modo exigi poterint vel requiri . Et ego vero Johannes de Maxwell miles heredes mei et assignati totam illam terram cum pertinentiis contra omnes homines et feminas presentes et futuros dicto Alexandro heredibus suis et assignatis warrandizabimus acquietabimus et in perpetuum defendemus . In cujus Rei testimonium presenti carte mee sigillum meum est appensum . hiis testibus Dominis Willelmo Wans . Waltero de Halyburton . Johanne de Preston . Willelmo Baly . Dauid de Hanand . Johanne Herys et Roberto de Leuyngyston militibus et multis aliis .

CHARTER by *John de Maxwell, son of the deceased Sir John Maxwell of Pencatland, Knight, to the Church of Saint Mary of Dryburgh, of the Patronage of the Church of Pencatland, with the Chapel of Payston. Circa 1343.*

PART I.
Original
Charters,
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continued.

- III. UNIERSIS sancte matris Ecclesie filiis hoc scriptum visuris uel audituris Johannes de Maxwell filius quondam Domini Johannis de Maxwell de Pencatland militis Salutem in Domino sempiternam . NOVERIT vniversitas vestra me divine pietatis intuitu dedisse concessisse et hac presenti carta mea confirmasse . Deo et Ecclesie Sancte Marie de Dryburgh et Abbati et canonicis ibidem deo seruiantibus et in perpetuum seruituris ordinis premonstratensis Sancti Andree dyocesis jus patronatus Ecclesie de Pencatland . Tenendum et habendum in liberam puram et perpetuam elemosinam cum Capella de Payston sibi et successoribus suis pro salute anime mee et vxoris mee et pro salute animarum patris mei et matris mee et omnium antecessorum meorum et successorum meorum cum terra ecclesiastica ejusdem et diete capelle et in augmentum terre ecclesiastice decem acras terre juxta le Sowthsyde et cum omnibus aliis aysyamentis et libertatibus aliquo tempore ad eandem Ecclesiam et dietam capellam pertinentibus vel quoquomodo pertinere valentibus ita libere quiete et plenarie sicut aliquis patronus in Regno Scocie aliquod jus patronatus alieni Ecclesie vel viris Religiosis aliquibus liberius quietius aut plenarius potest conferre . Ego vero dictus Johannes et heredes mei seu assignati predictam donationem meam prefatis Abbati et Canonicis de Dryburgh contra omnes homines et feminas Warrantizabimus acquietabimus et defendemus in perpetuum . Vt autem hec mea donacio concessio voluntas et confirmatio robor optineat perpetue firmitatis presentem Cartam meam sigilli mei appositione roborauimus Et ad maiorem securitatem Sigillum Venerabilis patris Domini Willelmi de Sancto Andrea dei gratia tunc abbatis de Melros presenti carte mee apponi procurauimus . Hiis testibus . Domino Willelmo tunc Abbate de Kelkew . Domino Bartholomeo tunc Abbate Sancte crucis de Edynburgh . Domino Patricio Comite Marchie Domino Roberto de Keth Domino ejusdem Domino Alexandro de Sethon Domino ejusdem . Domino Willelmo de Abyrnythyn militibus . Roberto Mawtaland Domino de Thyrilstane . Alano de Trebrone Domino ejusdem . Ingeramo de Wynton Domino de Fenton . Hugone de Wynton . Thoma de Leys de Sawlton . et multis aliis .

Part I.
Original
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continued.

[Another charter appears to have been given by John de Maxwell, the granter of the last charter, No. III. of the same Patronage of Pencaitland and Paystoun to Dryburgh; and two charters of confirmation followed thereon,—the one by William, Prior of St Andrews, and the other by David II. Of these three charters the following are imperfect notes, by George Craufurd, from the originals “in the Lady Cardross’ hands, Jan. 2, 1721.”]

- IV. 1. “Johannes de Maxwell miles quondam filius domini Johannis de Maxwell et heres domini Eustachii de Maxwell fratris sui . . . *gives to Dryburgh* . . . jus patronatus Ecclesie de Pencaitland cum capella de Paystun cum terra ecclesiastica ejusdem pro salute anime mee, uxoris mee et pro salute patris mei et matris mee et omnium antecessorum et successorum meorum. Testibus Roberto Senescallo Scotie Patricio Comite Marchie Domino Mauricio de Moravia Domino Willelmo de Leuynston Domino Roberto de Erskyn Domino Willelmo de Vallibus militibus Herberto de Maxwell Willelmo Lockhard Adam Lockhard fratre ejusdem Willelmo Sympyll Roberto de . . . Johanne de Nesbythe Johanne Maulyuerer Johanne de Ponte fracto de Lanark et multis aliis.
- V. 2. Willelmus miseratione Divina Prior S. Andree et ejusdem loci capitulum . . . *confirms* . . . Chartam venerabilis patris Willelmi de Lendall D. g. episcopi S. Andree in hec verba: Willelmus miseratione divina ecclesie S. Andree humilis minister salutem et episcopalem benedictionem . . . *confirms* . . . Deo et ecclesie Sancte Marie de Dryburgh ecclesiam parochialem de Pencaitland cum capella de Paystun, cujus jus patronatus Johannes de Maxwell de Pencaitland et dominus Johannes Maxwell miles dominus de Maxwell concesserunt dictis Abbati et conventui. Testibus Domino Willelmo tunc priore S. Andree magistro Roberto de Den tunc senescallo nostro. Patricio de Louer’ rectore de Tynningham Dominis Willelmo de Abirnethy et Roberto de Irskyn militibus Johanne de Sancto Claro Willelmo Loecard et multis aliis. Nos vero predicti Prior . . . predictam donationem et concessionem confirmamus; data die Veneris in crastino beati Vincentini martyris, anno Domini millesimo tricentesimo xliij.
- VI. 3. Confirmation by King David II., 14th of April anno regni nostri septimo decimo. Testibus Thoma de Carnotto cancellario nostro Willelmo et Adam S. Andree et Brechinensis ecclesiarum episcopis.

CHARTER OF DONATION *by Robert de Maxwell, Knight, Lord of Carlaverock, for the welfare of his soul and that of Herbard de Maxwell his son and heir, &c., to the Monastery of Dryburgh, of that land in West Pentecaitland which John Mautalent, Lord of Thyrillystane, held of him. Circa 1400.* PART I.
Original
Charters,
Gifts, and
Tacks of
Teinds,
continued.

- VII. OMNIBUS Sancte matris ecclesie filiis hanc cartam visuris vel auditoris Robertus de Maxwell miles Dominus de Carlaucrok Salutem in Domino sempiternam . Sciatis me divine caritatis intuitu ac pro salute anime mee et salute anime domini Herbardi de Maxwell filii mei et heredis ac pro salute omnium antecessorum et successorum meorum ac animarum omnium fidelium defunctorum dedisse concessisse et hac presenti carta mea confirmasse Deo et beate Marie et Monasterio de Driburgh et canonicis ibidem deo servientibus et in perpetuum servituris totam illam terram eum pertinentiis jacentem in Villa et territorio de Westerpencaitland infra Constabulariam de Hadyntoun quam Johannes Mautalent Dominus de Thrillystane de me tenuit et quam terram idem Johannes non vi aut metu ductus nec errore lapsus sed mera et spontanea voluntate sua michi per fustum et baculum in plurimorum presentia sursum reddidit pureque simpliciter resignavit ac totum jus et clameum que in eisdem terris habuit seu habere potuit pro se et heredibus suis omnino quietum clamavit in perpetuum Tenendam et habendam totam predictam terram predicto Monasterio et Canonicis predictis cum omnibus commoditatibus libertatibus aysiamenis ac justis pertinentiis quibuscunque ad dictam terram spectantibus vel quomodolibet spectare valentibus per omnes rectas metas et diuisas suas in puram et perpetuam elimosinam imperpetuum adeo libere quiete plenarie pacifice integre et honorifice bene et in pace sicut predictus Johannes Mautalent vel antecessores sui predictam terram de me vel antecessoribus meis liberius quietius plenarius pacificentius integrus honorificentius tenuit seu possedit tenerunt vel possederunt aliquo tempore retroacto Reddendo inde annuatim mihi et heredibus meis predicti Abbas et Canonici qui pro tempore fuerint vnum denarium argenti in festo pentecostis nomine albe firme super solum terre si petatur tantum pro omnibus aliis seruitiis secularibus exactionibus et demandis que de predicta terra per me vel heredes meos exigere quovismodo (possunt) vel requiri . Et Ego vero predictus Robertus de Maxwell et heredes mei totam predictam terram predicto monasterio de Driburgh et canonicis predictis contra omnes mortales Warantizabimus acquietabimus et in forma premissa imperpetuum defendemus

PART I.
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continued.

In ejus rei testimonium huic presenti carte mee sigillum meum est appensum hiis testibus venerabilibus in Cristo patribus Dominis Willelmo et Thoma de Sacronemore et Dulcecorde Monasteriorum Abbatibus · Dominis Johanne Herys · Vnfrido Jardyn · Johanne Stenh' · Harbardo de Maxwell de Cullynhath · Henrico Mundewill militibus · Thoma Durant · Gilberto Gresoun · Jacobo de Cunyngham · et multis aliis.

CHARTER by Alexander Purvays, son and heir of the deceased Alan Purvays, of Ersuldun, to the Church of Saint Mary of Dryburgh, of a Messuage of Land in Ersuldun, 1333.

[This charter has been already printed as in the Register (No. 308, page 256,) without the witnesses' names.

An old copy has since been found in the charter-chest of the Earl of Landerdale, which supplies this omission, and the following are the names of the witnesses.]

VIII. · Dominis Roberto de Lawedre tunc Justiciario Laudoneie · Adam de Gordon · Willelmo de Gordon Militibus · Alexandro Ramsaye · Willelmo de Moravia · Willelmo Fullone tunc serjando prediete Ville de Ersaldun et alijs multis."

CHARTER by William de Abernythe, Knight, son and heir of the deceased Sir William de Abernythe, Knight, to the Church of St Mary of Dryburgh, of the Mill of Ulkeston, Circa 1380.

[This charter has been already printed as in the Register (No. 312, p. 259,) without the witnesses' names.

The original charter has since been found in the charter-chest of the Earl of Lauderdale, and the following are the names of the witnesses.]

IX. · Dominis Patricio de Donbar Comite Marchie · Roberto de Keth · Adam de Haliburton · Alexandro de Seton · Roberto de Lowedir militibus · Johanne Mautalente Domino de Thyrlystane · Roberto filio suo · Roberto fratre suo · Alano Domino de Trebroune · Henrico de Haga domino de Bemersyde · Hugone Hayde de Merton · Johanne filio suo · Willelmo filio Walteri de Vlkylyston · Roberto fratre suo · Adam Milneknane de Carfrae et multis aliis ·"

CONFIRMATION *by the Chapter of Glasgow of a Gift by John Bishop of Glasgow, of the church of Maxton, to the Abbot and Convent of Dryburgh, 1326.* PART I.

Original
Charters,
Gifts, and
Tacks of
Teinds,
continued.

- X. OMNIBUS Sancte Matris ecclesie filijs hoc scriptum visuris vel audituris Capitulum Glasguense . Salutem in domino sempiternam Noverit universitas vestra nos in-
spexisse et intellexisse collacionem et confirmacionem Venerabilis Patris Nostri Domini Joannis dei Gratia Episcopi nostri Glasguensis super ecclesiam de Maxton Abbati et Canonicis de Dryburgh premonstratensis ordinis Sancti Andree diocesis in Scotia factam et concessam in hec verba : Universis Christi fidelibus ad quos presentes litere pervenerint Joannes miscratione divina Episcopus Glasguensis Salutem in domino sempiternam quia pium est succurrere egenis et operam dare pauperibus nos propter hoc ad combustionem Monasterij de Dryburgh et ejus diversimodas destructiones oculos dirigentes caritatis intuitu ecclesiam parochialem de Maxton cujus jus patronatus dominus Walterus Senescallus Scocie Abbati et Canonicis ex mera concessit pietate eisdem Abbati et Canonicis cum omnibus fructibus Juribus et obventionibus ad dictam ecclesiam spectantibus vel quoquo modo spectare valentibus cedente vel decedente domino Joanne de Gowane nunc ejusdem rectore in plenos proprios et perpetuos usus eorundem pro nobis et successoribus nostris conferimus per presentes et Episcopali auctoritate confirmamus ita tamen quod per ydoneum et sufficientem vicarium a nobis in dictam ecclesiam deputandum Laudabiliter deserviat in divinis cui de ipsius ecclesie proventibus necessaria videlicet decem libre Sterlingorum secundum statutum Concilij Scotieam ordinentur per quem Vicarium nobis et ministris nostris de omnibus Juribus ordinarijs et extraordinarijs respondeatur ad plenum . In cujus rei testimonium sigillum nostrum magnum presentibus est appensum datum apud Alynchom die Jovis proxima ante festum Sancti Valentini Martyris Anno gratie Millesimo trecentesimo vicesimo sexto His testibus Domino Willelmo Abbate de Melrosse Domino Roberto Abbate de Jeddworth Magistro Willelmo de Yetham Archidiacono Tewydale Domino Joanne Wyshart Archidiacono Glasguensi Domino Roberto Oliver Domino Gilberto de Beton Rectore Ecclesie de Alynchom domino Joanne rectore de Lyliseyff et alijs . Nos igitur super statu dicti Monasterij corditer compacientes et predictam Domini nostri Episcopi collacionem et confirmacionem eisdem Abbati et Canonicis factam ratam et gratam habentes dictam Ecclesiam de Maxton cum omnibus suis pertinentijs ut predictum est unanimi et expresse consensu

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capituli nostri eisdem in perpetuum confirmamus et hoc presens scriptum communi sigillo capituli nostri roboramus teste eodem capitulo nostro.

INSTRUMENT OF PERAMBULATION *and Division of Marches betwixt Ridpeth and Bemersyde. Dated 16th November 1425.*

Nomina virorum qui deviserunt marchias inter Ridpeth et Bymersyde et eorum perambulatio et divisio limitum viz.

- XI. Jacobus Rutherfuird de Rutherfuird Joannes de Rentoun Jacobus de Ormstoun Alexander de Murray Joannes de Liddell Georgius de Hoppringill Alexander de Hoppringill Joannes de Elphinstoun Gullielmus Turnbull Joannes Thomsoun de Mersintoun Joannes de Rutherfuird Patricius Hoge et Gilbertus Hoge armigeri et alij diversi hic non nominati qui omnes Jurati dixerunt illas esse veras divisas et Rectas Marchias inter terras de Ridpeth et de Bymersyde videlicet a Clydwell superius usque ad medium de Threiploche vsque the standandstaine et a stante petra deorsum the syke vsque ad medium vadi de helden et a medio vadi de helden deorsum per medium torrentis circum eundo fossatum seu dyke quod fossatum sive dyke quondam habuit quandam portam clausam et seratam ad carriandum per ibi Lignum pro edificio abbacie de Dryburt vsque ad hakkerstane crose . Hec perambulatio facta fuit sexto decimo die mensis Novembris anno domini Millesimo quadringentesimo vigesimo quinto.

The names of the men that devydit the Merches betwixt Ridpeth and Bymersyde and ther perambulatioun and divisioune of the Merches. To witt

James of Rutherfuird Johnne of Rentoun James of Ormestoun Allexander of Murray Johnne of Liddell George of Hoppringill Alexander of Hoppringill Johnne of Elphinstoun William Turnbull Johnne Thomsoun of Mersintoun Johnne of Rutherfuird Patrick Hoge and Gilbert Hoge Squyris and vthris diverse nocht heare mentionnate quho all having sworne said these to be the right and trew merches betuixt the Landis of Ridpeth and Bymersyde To witt fra the Clydwell abone to the middle of the Threiploche and therfra to the standand staine dounwarde the syke to the mides of helden-fuird and

fra helden-fuirde doun be the midburne goeing about the fowsie or dyke quhilk dyke sumtyme had a certane yett steikit and lockit for the carreying therby of tymber for the building of the Abbacie of Dryburgh to the hakkerstane crose. This perambulation was doone the sextine day of November the yeire of God 1425.

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This is the trew coppie of the principall dowbled over be me Adame Broune notar publict as witness my signe and suberiptioun mannuall.

A. Broune notarius publicus.

DECLARATION by Adam Abbot of Kilwinning and convent thereof of their acceptance of Thomas Prior of Whithorn and convent thereof as Debtors in a pension of twelve Merks due by the Abbot and Convent of Dryburgh from the Church of Lauder. Dated 16th June 1426.

Pateat vniuersis per presentes nos Adam permissione divina Abbatem Monasterij XII. de Kylwenyng et eiusdem loci conuentum pro nobis et successoribus nostris recepissee venerabilem in Christo patrem ac dominum dominum Thomam eadem permissione divina ecclesie Cathedralis candide case priorem et eiusdem loci conuentum nec non et eorundem successores nobis veros atque perpetuos debitores pro quadam annuali pensione duodecim marcarum nobis debita annuatim per Abbatem et conuentum Monasterij de Driburgh de ecclesia de Lawader Sancti Andree diocesis de qua quidem annuali pensione predicta diete ecclesie de Lawader Abbatem et conuentum predictos de Dryburgh et eorum successores pro nobis et successoribus nostris quietos imperpetuum clamamus per presentes Ita quod nos dicti abbas et conuentus de Kylwenyng et successores nostri a predictis Abbate et conuentu Monasterij de Driburgh et eorum successoribus de predicta ecclesia de Lawader aliquod jus vel clameum nullatenus imperpetuum exigere poterimus vel requirere sed ab omni jure vel clameo p[re]dictae ecclesie de Laweder sinus exclusi imperpetuum per presentes . In quorum omnium et singulorum fidem adhibendam et testimonium sigillum nostrum Commune presentibus est appensum . Apud Monasterium nostrum de Kilwennynge decimo sexto die mensis Junij Anno Domini Millesimo cccc^{mo} vicesimo sexto .

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TACK by Walter Abbot of Dryburgh to a worshipful squear William Haliburtoun of Mertoun and Jonet his spouse, of the Plew Land of Butchercoits. Dated at Dryburgh, 16th November 1465.

Be it kend till all men be thir present letteris Ws Walter be the permissioun of
XIII. god Abbot of the Abbay of Dryburgh till have sett and to maile lattin and be thir
our present letters setts and to maile lattis til a worschipfull squear William Halibur-
tone of Mertoun and to Jonet his spouse and to the langar levar of thame All and
Haile our plew of land of the Boucheccoitis with thair pertinentis liand within the lord-
schip of Smailhame within the Sheriffdome of tevidale bondand betuex blaikburne
and the stanand stane with comon pastur of iij hundreth schip gangand within the
said lordschip with free ischae and entre for all the dais and termes of thare liffis and
the langar levar of thame twa Enterand to the said takkis of the boucheccoitis at
the feist of Witsonday next to cum efter the date of thir our present lettris and
safurth broukand and joseand all the said dais and termes of thar liffis or the langar
levar of thame twa To be haldin and to be had All and Haile the take and sett of the
said land of the boucheccoitis with thare pertinentis to hym and hys wife and thare
subtenendis for all the dais and termes of thar liffis Be all Richtwiss merkiis and
diuisis as thai ly in lenth and in breid with all and sindry fredomes profitis com-
moditis asiamentis and Richtwiss pertinentis quhatsumever als weill nocht nemmit as
nemmit to the said landis pertenant or may Richtwisly pertene in tyme to cum with
comon pastur fre Ischae and entre frely quietly weill and in peiss withoutyne ony
Impediment Revocacioun or obstakill quhatsumever Payand thairfor yerly the said
William his wiffe thar assignais or subtenaudis to us and oure assignais the soume
of fourti schillyngis of gud and vsuale money of Scotland at twa termes in the yer
that is to say witsonday and martymess in vyutere be evinly porcoines alanerly for
all vthir charges or exactione that may be askit or Requirit of the said land And we
fforsuth the forsaid Walter All and hale the tak and sett of the said landis of the
boucheccoitis with thair pertinentis to the said William his wiffe thair assigneis and
subtenandis als frely quietly in all things as said is Aganis all deidly We sall war-
rand endurand the said termiss of thar liffis or the langar levar of them acquiet and
defend In Wituess of the quhilk thing we the said Walter with the consent of our

conuent to thir our present lettres has hungyne to our common seill at Driburgh the xvi PART I.
 day of Nouember the yer of our Lord a thousande four hundreth thre score & five yers Original
 Befor thir Witnesses Den William Merton vicar of the saunyne Den Johne of Carnes Charters,
 vicar of Maxtoun den Thomas Stoup vicar of smailhame den William Stodart Den George Tacks of
 Gray Walter of Lermouth Dauide Haig and Thomas Hunter with wthir diuerss. Teinds, continued.

INSTRUMENT OF DECLARATION *by James Stewart Abbot of Dryburgh in favor of Walter Haliburtoun and Agnes Stewart his spouse, relative to the lands of Nether Shielfield. Dated 27th June 1537.*

XIV. IN DEI NOMINE AMEN.—Per hoc presens publicum instrumentum cunctis pateat euidenter quod anno Incarnationis dominice 1537 mensis vero Junii die 27 indictione decima pontificatus sanctissimi in Christo patris et domini nostri domini Pauli diuina providencia pape tertii anno tertio in mei notarii publici et testium subscriptorum presencia personaliter comparuerunt religiosi et discreti viri prior et conuentus abbacie monasterij de Driburgh in capitulo eiusdem capitulariter congregati et ibidem dicti prior et conuentus a presencia venerabilis in Christo patris Jacobi permissione diuina abbatis dicti monasterii declarauerunt et exposuerunt quomodo et qualiter dictus venerabilis pater et ipsi prior et conuentus nunc de nouo unanimi consensu et assensu per cartam et sasinam honorabili viro Waltero Haliburtoune et Agneti Stewart sue sponse ac eorum alteri diutius viuenti in coniuncta infeodatione et heredibus inter ipsos legitime procreatis seu procreandis quibus deficientibus legitimis et propinquiorebus heredibus seu assignatis dicti Walteri quibuscumque pro sua singulari vtilitate et dicti monasterii commodo assedarunt Totas et integras terras de Nethir Scheilfeld cum suis pertinencijs iacentes infra vicecomitatum de Berwik in feodifirma imperpetuum Quequidem locatio diete feodifirme sic ut premittitur facta in augmentationem et ampliacionem dicti monasterii rentalis annuatim videlicet ad summam sex solidorum et octo denariorum plusquam antea quisquam pro dictis terris vnquam persoluerit Ad quod dicti conuentus non fuisse compulsos quouismodo aut coactos sese vnanimiter confessi sunt sed omnia et singula prescripta ex sua libera et spontanea voluntate fecisse confirmasse et ratificasse pro se et suis successoribus declarauerunt sine reuocatione aut contradictione quacumque Non obstantibus iuribus privilegijs exemptionibus aut consuetudinibus in contrarium proponendis quibuscumque In quorum omnium et singulorum

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testimonium et evidenciam premissorum prefati conuentus vnanimi consensu et assensu dictam cartam dicte feodifirme et huiusmodi preceptum sasine prefatarum terrarum sub communi sigillo capituli dicti monasterii sigillata et cum huiusmodi domini abbatis et conuentus manibus subscripta prefatis Waltero et Agneti sue sponse vna cum eorum benedictione deliberarunt Super quibus omnibus et singulis dictus Walterus a me notario publico subscripto sibi fieri petiit hoc presens publicum instrumentum seu publica instrumenta vnum vel plura Acta erant hec in capitulo dicti monasterii hora novena ante meridiem vel eocirca sub anno mense die indictione et pontificatu quibus supra Presentibus ibidem honorabilibus viris videlicet domino Johanne Wilsoune capellano Georgio Wilsoune Georgio Bruce Thoma Mowate Roberto Watsoune et domino Johanne Bull capellano testibus ad premissa vocatis specialiter et rogatis.

Et Ego Johannes Bull, Presbyter, &c.

TACK by James Abbot of Dryburgh in favour of Thomas Myll and Isobel Haig his Spouse, of two Merks of Land in Mertoun. Dated 1537.

XV. Be It Kend till all men be thir present letters ws James be the permissiōe of God Abbot of the Abbay of Dryburgh with consent and assent of the convent of the samyn beyng chepturlic gadderit the vtilite and proffit of ws and ovr abbay diligentlie considerit witht traitat mynd and deliberatioun precedeit as efferis to haiff set and for maill laityne And be the tenor off thyr presentis settis and for maill laittis to ovr louit seruand Thomas Myll Isobell Haig his spoviss thair airs executouris and assignais beand of na hear degre nor yame self All and Haill our twa merks wortht of land lyand within the towne of mertonne quhilks twa merks wortht of land the said Thomas occupies now at the makyne of this present writ for all and haill the space of nyneteyne yers nixt and Immediate followand the dait of thyr presentis the entre of the saidis Thomas Issobell thair airs executouris and assignaiss salbe at vitsonday precedand the dait heiroff thairto to be brukit and Josit be thame Indureing the said space of nyneteyne yers as thai ly in lentht and breid with hoviss biggyins toftis croftis common pastur fre Ische and Entre and witht all and sindry otheris fredomes proffettis and commoditeis pertenant or Rychtuslie salbe knavin to perteyne to the saidis twa merkis wortht of Land frelie quhietlie weill and in peace but ony reuocacion obstakill Impedi-

ment or ganecallyng quhatsumener the saids Thomas Issabell thair airs executouris and assignais payand to ws ovr successowris or factowris yeirlye during the saidis nyneteyne yeiris the sorm of twa merkis vsuall money of Scotland at twa termes in the yeire at Is to say Vitsonday and Mertimes be equell porcionis togider with thre kayne follis in the yeir with all wisis Dew service as vyiss and wont was of befoyr And we forsuythit the saids Abbot and conuent and ovr successowris sal warand acquiet and defend to the saidis Thomas Isabell thair airs executouris and assignais the [twa merks] worthit of Land with ther pertinentis Induring the said space of nyneteyne yeiris in all and be all thyngis as is above expremitt aganis all deidlie as law will but frawyd or gyle or ony Revocatioun In witness of the quhilkis thyngis to thir ovr letteris of tak subscriuit with our subscription manuale ovr commoun selle of our cheptowr off our said Abbay Is to hungin at Dryburght the day off the yeir of God ane thowsand fywe hundretht thretty and sevin yeiris before thir witnes

James Abbot of Dryburght

Andreas Conelson supprior	Johannes Balcaske
Andreas Purvas	Georgius Paterson
Georgius Halyburton	Johannes Turnbull
Patricius Purwass	Stephanus Billentyne
Johannes Ruderfurd	Kentigenus Vilson
Andreas Crosnop	Johannes Symson
Johannes Chatto	Robertus Myll
Wilelmus Wylsoun	Jacobus Jameson.

CHARTER *by James Abbot of Dryburgh to John Robsone and others of the Lands of Gladswood. Dated 1st November 1537.*

XVI. TILL ALL AND SINDRIE quham it effeires to quhais knowledge this present chartor sall come, James, be the permissione of God, Abbott of the monasterie of Dryburt, and primat of the order of the convent of that place within the Dioce of Sanct-androis . Greitting in god everlasting Forsameikle as sindrie kinges of the kingdome of Scotland In thair parliamentis halden with the thrie Estaittes of the kingdome, animadverting mutuallie upon the weill of the comon wealth thairoff haue decreed

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be divers statutis and actis of parliament quhilkis are to be observit be ws in this kindome as lawes that are expedient To lett out in few ferme and heretage all landes properlie belonging to the king and vtheris prelatiss temporall Lordes Erles Barrones and the landis possesst be other men heretable without diminutione of thair rentall and commoditie for the better setteling of thaim with the tennentis thair of thinking thair by that thair redoundes na small benefite to the king and the countrie . And that it proffittis meikle to the preservatioun of the common wealth such as policies fair buildingis manuring of barren landis planting of trees and fisches in fresch waters and stankes building of Doweattis grein orchyairdis and cunyngares and enrichting of the possessors and tennentis of thes lands being lettin out in few ferme and heretage and provisone of armour and martiall furniture for defence of King and countrie againes old enemies and vtheris quhatsomever that wald Invade the same Quhilkis will remaine perpetuallie with the tennentis thair off and will be enjoyed be thaim and thair aires Letteris out of the samen We thairfor Revereneeing the opionones statuttis and lawes of the saidis princes and kinges and of our auld predicesoris And knowing assuredlie the samen to be maist profitable to this hail kingdome and inhabitantis thair of and preassing to Imitat thame and ye holic canones quha permittes kirklandis to be sett out in perpetuall few ferme and heretage Haue Deceid (being perswadit of the premisses) to sett out certane Landes of ours in few ferme WIT YE ws thairfor with ane consent and assent being chapterlie convenit for that effect the weill and commoditie of our said Monasterie and our successors being on evrie syd forseene and considerit be diligent entreatie and mature deliberatioun and for preservecing of polieie within the kindome and augmentatioun of our rentall yeirlic in the sowme of threttene schillings four pennies vsuall money of this realme of Scotland, sex capones and sex pultrie foulles mair nor ever the landes vnderwrittin payit to ws or our prediceors of befor As also for certane sowmes of money payit to ws be our lovitt Johne Robsone in Gladiswood for reparatioun of our said monasterie and for the said Johne his good service and uthors gratitudes bestowit be him vpon ws and our forsaid monasterie TO HAUE SETT in assedatioun and in few ferme and heretage heretable dimittit and be this our present chartour confirmit Lykeas we be the tennour of thir presentis settis in assedatioun and in few ferme and heretage gives and heretable dimittis and be this our present chartour confirmes to the said Johne Robsone and Marjorie Lidderdail his spous the Langest Livar of yaim twa in frank tenement and Lyfrent Dureing all the tyme

of thair lyves and to Adame Robsone Brother Germane to the said Johne and Elizabeth Dewar his spous and the langest Livar of thame twa in conjunct fie And to thair aires maill vnderwritten heretablie All and haill our Laudes of Gladiswood quhilkis are presentlie at the making of this our present chartour possesst be the said Johne with the haill pertinentis thairroff Lyand within the Shireffdome of berwick Haueand and haldand all and haill the fornait laudes of Gladiswood with the haill pertinentis thairroff Be the saidis Johne Robsone and Marjorie Liddelrdaill his spous, the Langest livar of thame twa in franktenement and Lyfrent Dureing the haill tyme and space of thair Lyffes and be the saidis Adame Robsone and Elizabeth Dewar his spous the Langest Livar of thame twa in conjunct fie and to the aires maill lauffullie procreat or to be procreat betuixt thame Quhilks failzieing to the narrest and lauffull aires maill of the said Adame quhatsomevir Off ws and our successoriss quhilkis sall happin to be for the tyme in few ferme and heretage heretablie for ever Be all richt merches thairroff auld and Deyyssit as the samen lyes in lenth and bread In housses bigginges yairdes plaines mures marresses wayes hyeways wateris stankes riveris parkes pastures pasturages halkinges huntinges fischinges peitt mosses turff mosses coil henches cunynges, cunynghares, Doves Doweattes wright housses smiddies brewerofes and broonies parkes wodes schawes trees quarrellis of stane and lyme with courtes and wlawes thairroff amerciamentis heregeldis bloodwyttis and merehiattes of women with common pasturage frie ische and entrie And with all and sindrie vtheris liberties commodities profiteitis and priviledges and richteous pertinentis thairroff quhatsomever als weill not namit as namit vnder and abone the earth far and neir to the forsaidis Landis of Gladiswood with the pertinentis belonging and quich richteouslie can belong and pertene thairto be quhatsomevir maner of way in tyme comeing frilie quyetlie fullie haillie honorablie weill and in peace without any impediment revocatione contradictione or obstacle quhatsomever PAYAND yeirlic the said Johne Robsone and Marjorie his spous the Langest livar of thame twa and thair aires maill forsaidis To ws and our successoris for the tyme the soume of Twentie sex schillinges aucht pennies gude and vsuall money fairsaid as the ferme and dewtie vsait and wont to be payit for the samen landis befor this present Infetment Togidder with the sowme of Threttene schillinges foure pennies money fairsaid as for the augmentation of this present Infetment extending in the haill to the soume of flourtie schillinges at twa termes in the yeir vizt Witsunday and Mertimes in winter be equall portiones Togidder with sex capones sex pultrie foulles at yuille Togidder with ser-

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vices at our thrie heid courtis to be haldin at our place of Dryburt And sicklyk pay- and to Johne Pringill of Gallaschellis his aires and assigneis the sowme of fourtie schillinges money forsaid at the termes abowewritten and be equall portiones in name of yeirle few ferme dewtie Mairover the aires maill of the said Adame Doubleand the said few ferme dewtie the first yer of yair entrie to the forsaidis Landis as vse is of few ferme onlie for all uther burding exactione questione demand or secular service quhilkis in any maner of way may be justlie exactit or requyrit of the saidis Landes of Gladiswood with the haill pertinentis thairoff be ony persone or persones quhatsumever And we forsuith the said Abbott and Convent of the Monastrie abowewritten that sall happin to be for the tyme sall warrand acuyet and perpetuallie defend All and Haill the fornamit Landis of Gladiswood with the haill pertinentis thairoff to the saidis Johne Robsone and Marjorie Liddelrdaill his spous the langest livar of thame twa in franktenement and lyfrent during the haill tyme of thair lyves And to the saidis Adame Robsone and Elizabeth Dewar his spous the langest livar of thame twa in conjunct fie and the aires maill lauffullie procreat or to be procreat betuixt thame Quhilkis failzieing to the narrest and lawfull aires maill of the said Adame quhatsumever als frielie and quyetlie in all and be all thinges in forme and maner as is above exprimed IN WITNES of the quhilk thing the common seall of the chapter of our said Monastrie is appendit to this our present chartor Togidder with our subscriptiones manuall Att our said Monastrie the first day of November the yer of God 1^m v^e threttie sewin yeires Befor thir witnesses to witt Walter Halyburtoune Thomas Halyburtoune James Halyburtoune sones of David Halyburtoune of Dryburt George Wilsone George Bruce Thomas Inglis serjand Sir Johne Wilsone Chapleane and Sir Jon Rowane Chapleane and nottar publict with divers vthers

Jacobus abbas de Drybrut

Willielmus Wilsone	Joannes Chatto
Andreas Wilsone	Joannes Balcaske
Andreas Campbellson Supprior	Georgius Patersone
Stephannus Bellendene	Kentigernus Wilsone
Andreas Purves	Joannes Symsonne
George Halyburtoune	Robertus Mylne
Patricius Purves	Jacobus Jamesone
Joannes Ruderfurd	Joannes Turnbull.
Andreas Crosnop	

CHARTER by James Abbot of Dryburgh in favour of Walter Haliburtoun of Mertoun, of the lands of Butchercoit. Dated 3d September 1538. PART I.

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- XVII. Omnibus hanc Cartam visuris vel auditoris Jacobus permissione diuina Abbas Monasterij de Dryburgh et ejusdem loci conventus ordinis premonstratensis Sancti Andree diocesis Salutem in Domino sempiternam Quia regni Scotie retroprincipes diversi in parliamentis suis cum tribus regni sui statibus super republica ejusdem mutuo disceptantes terras et Regis et aliorum prelatorum dominorum temporalium comitum baronum ceterorumque hominum terras hereditarie possidentium in emphiteosim seu feodifirmam absque suorum rentalium et commoditatum diminutione ut cum tenentibus convenire poterunt per diversa parliamentorum statuta et acta que nobis Scotis pro legibus observanda sunt assedandas fore decreverunt opinantes perinde commoda non modica ut policia honesta edificia terrarum novas culturas sterilium meliorationes arborum plantationes piscium in aquis recentibus et per stagna nutritiones columbariorum ortorum viridariorum cuniculariorum constructiones ac tenentium possessorum hujusmodi terrarum sic in Emphiteosim seu feodifirmam locatarum in rebus mobilibus ditationes ac armorum et rerum bellicarum provisiones ac pro Regis et Regni contra veteres hostes seu alios quoscunque invasores defensione ex firma spe remanendi Cum tenementis suis et illis per se et heredes suos perpetuo gaudendi Regi et regno provenire rei publice pro salute apprime proficere Nos igitur opiniones statuta et leges prescriptorum principum et regum veterumque majorum nostrorum opinantes et firmiter scientes toti regno et ejusdem incolis esse maxime perutiles easdem nedum sui de terris Ecclesie perpetuam Emphiteosim permittunt insequentes certas nostras suadentibus premissis in feodifirmam locare statuimus Noveritis igitur Nos unanimi consensu et assensu in capitulo nostro ad hoc capitulariter congregatos utilitate et commodo monasterij nostri et successorum nostrorum undique provisus et consideratis diligenti tractatu et matura deliberatione prehabitis ac pro policia in regno habenda et nostri rentalis augmentatione annuatim ad summam sex solidorum et octo denariorum usualis monete regni Scotie plusquam unquam terre subscripte prius nobis aut predecessoribus nostris persoluerunt ac pro quadam certa summa pecunie prefate usualis monete nobis per nobilem virum et potentem armigerum Valterum Haliburton de Mertoun in pecunia numerata persoluta ad sustentationem et reparationem dicti nostri monasterij et solutione generalis taxe supreni domini nostri Regis a sede apostolica concessa assedasse arrendasse locasse et ad feodifirmam seu emphy-

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teosim hereditarie dimisisse et hac presenti Carta nostra pro perpetuo confirmasse neenon presentium tenore assedare arrendare locare et ad feodifirmam seu emphithyosim hereditarie dimittere et hac presenti carta nostra pro perpetuo confirmare prefato Valtero Halyburton et heredibus suis quibuscunque licitis scilicet Andree Halyburton filio naturali et apparenti heredi et heredibus suis procreatis seu procreandis quibus quod absit deficientibus ejus heredibus propinquieribus et licitis quibuscunque Omnes et singulas nostras terras ecclesiasticas de Buscheourcoit cum suis pertinentijs jacentes infra vicecomitatum Tewedalie tendentes ad terras et oras de Smalhame infra lye blakburn et standandstane TENENDAS et habendas &c. REDDENDO inde annuatim dictus Valterus et sui heredes ut prefertur nobis et successoribus nostris qui pro tempore fuerint pro predictis terris cum suis pertinentijs que ante in rentali nostro extendebant ad summam quadraginta solidorum usualis monete scotie annuatim summam quadraginta sex solidorum et octo denariorum prefate usualis monete ad duos anni terminos consuetos penthecostes viz^t et Sancti Martini in hyeme per equales portiones nomine feodifirme tantum [scilicet pro] augmentando dictum nostrum rental annuatim ad summam sex solidorum et octo denariorum plusquam unquam terre suprascripte prius nobis aut predecessoribus nostris persolverunt Et nos vero prefatus Jacobus Abbas monasterij de Dryburgh et successores nostri totas et integras prenominate terras de Buscheourcoit cum suis pertinentijs Prefato Valtero Halyburton de Mertoun et ejus heredibus licitis quibuscunque adeo libere et quiete in omnibus et per omnia forma pariter et effectu ut premissum est contra omnes mortales varantizabimus acqietabimus et imperpetuum defendemus In cujus rei testimonium sigillum commune capituli dieti nostri monasterij huic presenti carte nostre est appensum unacum nostris subscriptionibus manualibus apud dictum monasterium tertio die mensis Septembris anno Domini millesimo quingentesimo trigesimo octavo coram hiis testibus

Jacobus Abbas de Dryburgh

Andreas Conelson Supprior	Johannes Balcaske
Andreas Purvas	Georgius Paterson
Georgius Halyburtoun	Wilelmus Vilson
Patricius Purwas	Stephanus Billentyne
Johannes Ruderfurd	Kentigernus Wylson
Andreas Crosnop	Johannes Symson
Johannes Trumbill	Robertus Myll
Johannes Chatto	Jacobus Jamesoun

GRANT by Thomas Commendator of Dryburgh in favour of Mr Andrew Hume, of the Teinds of the parish of Lauder. Dated 18th February 1546.

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XVIII. UNIERSIS et singulis sanete matris ecclesie filiis ad quorum noticias presentes litere peruenerint Thomas permissione diuina commendatarius perpetuus monasterii beate Marie de Dryburgh et eiusdem loci conuentus ordinis Premonstratensis Sancti Andree diocesis salutem in domino sempiternam . Quia alias venerabilis vir magister Andreas Hume clericus dicte Sancti Andree vel alterius diocesis asserens se in abbatem dicti nostri monasterii de Dryburgh ordinis et diocesis predictorum tunc certo modo vacantis per religiosos viros illius conuentum postulatum fuisse ad euitandum litium amfractus qui tunc inter ipsum et venerabilem patrem Jacobum Steward tunc in humanis agentem et dicte monasterii abbatem et nostrum predecessorem immediatum et conuentum prefatos occasione postulationis huiusmodi et aliarum rerum eiusdem monasterii oriebantur ac dissidias et ciuiles contentiones armorum prouocationem et alia inconuenientia que inter ipsum et Jacobum abbatem et conuentum antedictos occasione litium huiusmodi que tunc oriri formidabantur a prosecutione postulationis huiusmodi penitus destiterit ac prefatum Jacobum abbatem tunc in humanis agentem in possessione seu quasi regiminis et administrationis omnium bonorum dicti monasterii in qua extiterat quantum in ipso erat pacifica dimiserat Et propterea sanctissimus in Christo pater et dominus noster dominus Paulus diuina prouidentia papa tertius ne prefatus Andreas nimium dispendium patiat de alicuius subuencionis auxilio prouidere ac meritorum suorum intuitu Etiam consideratione serenissimi quondam principis nostri domini Jacobi Dei gracia huius nominis quinti Scotorum regis inelutissimi tunc in humanis agentis prefato sanctissimo domino nostro pape super hoc humiliter supplicantis specialem gratiam facere volens sibi Andree omnes et singulas decimas garbales nuncupatas parrochiales ecclesie de Lauder dicte diocesis eidem monasterio nostro perpetuo unite exceptis tamen decimis garbalibus quarte partis ipsius parrochialis ecclesie et illius parrochie quas tunc Jacobus Lausoun filius quondam Richardi Lausoun de Humby laicus et Joneta Ker eius mater in arrendam seu locationem habuerant ad dictum monasterium legitime pertinentes per ipsum Andream quoad uiueret etiam dicti Jacobi successorum eiusdem monasterii abbatum pro tempore existentium temporibus vel alium seu alios suo nomine propria auctoritate percipiendas exigendas et leuandas ac in suos vsus et utilitatem conuertendas necnon tenendas possidendas et vsufructuandas loco pensionis annue

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ipsius Jacobi tunc abbatis ad hoc per discretum virum Jacobum Salmond clericum Glasguensem procuratorem suum ad hoc ab eo specialiter constitutum expresso accedente consensu apostolica auctoritate per suas literas plumbatas in forma graciosae expeditas de data Rome apud Sanctum Petrum anno incarnationis dominice 1535 tertio Kalendas Junii pontificatus sui anno primo reservauerat concesserat et assignauerat prout in dictis literis apostolicis plenius continetur Et huiusmodi reservationis concessionis et assignationis vigore prefatus Andreas in pacifica possessione et perceptione dicte pensionis annue a dicto tempore citra et vsque in presentem diem continue existit Et Andreas ipse considerans et attendens prefatum monasterium nostrum per Anglos veteres inimicos pro maiori parte combustum direptum et dirutum fuisse et esse Et propterea pre deuotionis zelo motus vt monasterium ipsum de nouo eo melius et citius suo auxilio subuentione et largitione in pristinam formam restitui et reedificari possit et valeat dicte annue pensioni sibi vt premittitur apostolica auctoritate reseruata concessae et assignata ad effectum quod sibi locatio et arrendatio omnium et singularum decimarum garbaliū predictarum exceptis supra exceptis per nos et conuentum prefatos quoad uixerit idem Andreas et eius uita duntaxat durante per literas nostras autenticas manibus nostris subscriptis sub sigillo communi dicti nostri monasterii concedantur et desuper conficiantur hac tamen condicione adiecta quod locationem decimarum garbaliū prefatarum quoad uixerit libere et absque omni exactione seu annui census aut canonis solutione preterquam summe centum marcharum vsualis monete regni Scotie annuatim ad vsus fabricae dicti monasterii applicande habeat et possideat et locatio huiusmodi apostolica auctoritate dicti magistri Andree sumptibus de nostro expresso consensu in confirmationem eiusdem exnunc expresse consentiente confirmetur et approbetur et non alias aliter nec alio modo pure et simpliciter renunciavit Et ne Andreas ipse ex renunciatione huiusmodi nimium damnum vel dispendium pati valeat noueritis propterea nos unanimi consensu et assensu propter hoc capitulariter congregatos matura deliberatione et longo desuper tractatu prehabitis in euidentem utilitatem dicti nostri monasterii in solutione annua dicte summe centum marcharum pro illius annua reparatione vt premittitur ubi prius omnes et singulas decimas garbales prenomintas prefatus Andreas quoad uiueret in vim reservationis apostolice sibi ut premittitur facte libere absque cuiusuis annui census solutione possederat Et propter diuersas alias causas rationabiles animos nostros ad hoc mouentes locasse arrendasse et ad firmam dimisisse ac presentium tenore pro nobis et successoribus nostris locare arrendare et ad firmam dimittere prefato magistro Andree Hume pro toto tempore vite sue omnes et

singulas prenomintas decimas garbales totius parrochialis ecclesie et parochie nostre de PART I.
 Lauder diete Sancti Andree diocesis exceptis duntaxat prius exceptis cum singulis earum- Original
 dem pertinentiis Termino vero introitus dicti magistri Andree in et ad locationem et Charters,
 arrandacionem omnium et singularum decimarum garbalium predictarum cum pertinen- Gifts, and
 tiis die date presentium incipiente et sic deinceps duraturo pro toto tempore vite dicti Tacks of
 magistri Andree cum omnibus et singulis suis libertatibus commoditatibus asiamentis et Teinds,
 iustis suis pertinentiis quibuscunque ad singulas prenomintas decimas garbales spectan- continued.
 tibus seu iuste spectare valentibus quomodolibet infuturum libere quiete plenarie integre
 honorifice bene et in pace sine aliquo retinemento reuocatione contradictione aut ob-
 staculo aliquali Reddendo et soluendo propterea inde annuatim dictus magister Andreas
 Hume quoad uixerit magistro fabrice dicti nostri monasterii qui pro tempore fuerit
 dietam summam centum marcharum diete monete tantum applicandam fabrice dicti
 nostri monasterii pro eiusdem noua reparatione facienda ad duos anni terminos vsuales
 festa videlicet Penthecostes et sancti Martini in hieme per equales medias portiones
 tantum pro omni alio onere exactione questione seruicio seculari seu domanda que de
 singulis prenomintis decimis garbalibus cum pertinentiis exceptis prius exceptis per
 quoscunque iuste exigi poterunt quomodolibet vel requiri Et nos vero Thomas com-
 mendatarius et conuentus prefati et successores nostri abbates seu commendatarii et
 conuentus dicti nostri monasterii pro tempore existentes dictam nostram locationem et
 arrendacionem de singulis prenomintis decimis garbalibus totius parrochialis ecclesie
 et parochie nostre de Lauder cum pertinentiis exceptis duntaxat prius exceptis prefato
 magistro Andree quoad uixerit vt premittitur factam in omnibus et per omnia vt pre-
 missum est varantizabimus acquietabimus et durante vita dicti magistri Andree contra
 omnes mortales defendemus . In cuius rei testimonium presentibus manibus nostris
 subscriptis sigillum commune dicti nostri monasterii est appensum Apud jandictum
 monasterium nostrum de Dryburgh die decimo octavo mensis Februarii Anno Domini
 M.D.XLVI.

T. Commendatarius de Driburgh

Georgius Haliburtoun supprior	Wilelmus Wilsoun
Andreas Purwas	Kentigernus Vylsoun
Patricius Purwas	Johannes Symson
Johannes Ruderfurd	Robertus Myll
Andreas Crosnop	Jacobus Jameson
Joannes Balcaske	Johannes Bull.

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XIX.

TACK *by John Commendator of Dryburgh to David Oswald and his spouse of several acres of Land. Dated 14th March 1554.*

BE IT KEND TILL ALL MEN be thir present lettres ws JOHNNE be the permissioun of God commendator of the Abbay of Dryburgh and conwent of the samyn cheptourlie gadderit with ane consent and assent and for the vtilitie and proffet of ws and our said abbey alwayis preuidit and considerit and mature deliberatioun had thairupone to haif sett and for maill lattin and be the tennour heirof settis to our louitt Dauid Oswald Alisoun Todryk his spous and to ane air gottin betuix thaim or to be gottin and to the langar lewand of thaim twa all and haill our twa onsettis and twa aikaris of land ane aikar quhilk pertenit to omquhile Johnne Todryk fader to the said Alisoun Todryk wyf to Dauid oswald and the wther akir quhilk the said Dauid brukis now as it standis betuix the onset of Dauid Clerk on the west part and Thomas Greinfeld on the est part and the wther onset as it standis betuix the myll yett and Andro Dewar yard on the est syd with ane yard and akir of land lyand on the Birkhewch betuix the wicar of cheindilkirkis akir and Robert Bethats and the yard thairof betuix the est yett and of Robert Bethat lytill yard and the wther akir lyand in the west hawch betuix the Landis of Walter Halliburton on the west syd and Jonet Greinfeld on the est syd quhilks the said Dauid and Alisoun occupiis now with twa horss gerss and fowr sowmes to pasture and gang in wod and feld quhair ony guid of the towne is pasturit and fed with all thair aisiamentis and pertinentis for all the dayis and yeiris of the saidis Dauid and Alisoun lyiftymes and of the langar lewand of thaim and ane air efter thaim with full powar to big alse mony howsses as thai pleiss and to baik and brew tax and sell ony lawchfull thingis and to mak subtenentis ane or mai in the howsses And als All and Haill ovr twa akiris of ferme landis lyand rynrig throcht the feld of the towne of Dryburght quhilkis the saidis Dauid now occupyis and hes occupiit before all the dayis and termes of nyntene yeiris nixt and immediatlie to follow thair entrie thairto &c. . . . PAYAND yeirlie to ws during thair thre lyiftymes for the saidis housses onsettis yard and akiris of Land forsaid to ws and our successouris chammerlanis and factoris for the tyme the sowme of thretty thre schillingis foure pennis vsuale money of Scotland at twa vsuale termes in the yeir Witsunday and Mertymes in wynter be ewin portions togidder with sax kane fowlis with dew seruice

vsit and wount and for the saidis twa akiris of ferme landis with thair pertinentis yeirle during the said space of nyntene yeiris sax furlettis beir at the feistis of sanctandrew and purificatioun of our Lady callit Candilmes be ewin portionis togidder with thre stukkis of stray allanerlie &c. . . . In witnes of the quhilke to thir our present lettres of assedatioun subschriuit with owr handis the commoun sele of our said abbay is to hungin at the samyn the fowrtene daye of merehe The yeir of god ane thowsand fyif hundredth fyifty and foure yeiris.

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Jhone commendator of Drybrwgh

Den Robart Anderson Supprior	Dein Wilgem Wilson
Deyne Andro Purwass	Dein Mungo Vylson
Deyne Patryk Purwass	Dein Jhone Symson
Deyne Jhone Ruderfurd	Dein Robert Mylne
Deyne Andro Corsnop	Dene James Jameson.
Dein Jhon Chatto	

TACK *by John Commendator of Dryburgh in favour of Thomas Myll and Walter Myll his son of two Merks of Land in Mertoun. Dated 20th March 1554.*

XX. BE IT KEND TILL ALL MEN be thir present lettres ws JOUNNE be the permissioun off god Commendator off the Abbaye of Dryburght with consent and assent of the conwent of the samyn being cheptourlie gadderit the vtilite and profet of ws and our said abbay diligentlie considerit and forsene to haif set and for maill lattyn and be the tenor of thir presentis settis and for maill lattis to our louit seruandis Thomas Myll and Walter Myll his son and aperand air the langar lewand of thame thair airis executouris and assignais All and Haill our twa merkis worth of land lyand within the town of mertoun quhilkis twa merkis of land the said Thomas occupyis now at the makin of this present wryt for all and haill the space of nyntene yeires nixt and Imediate fallowand the dait of thir presentis thair Entre beand in and to the saidis Thomas and Walter thair airis executors and assignais salbe at the witsonday following the dait heirof and thairefter to be brukit and joisit be thame Induring the said space of nyntene yeiris as thai ly in lenthit and breid with howssis biggynnis toiftis eroiftis

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comone pasture fre Ische and entre and with all wther and syndre wtheris fredomis profetis and commoditeis pertenant or ryetnisch salbe knawyn to pertene to the saidis twa merkis worth of land freilie quietlie weill and In peas but ony reuocatioun obstakill Impediment or gane calling quhatsaier the saidis Thomas and Walter thair airis excecutoiris and assignais PAYAND to ws our successuoris or factouris yeirlie during the saidis nyntene yeris ye soumbe of twa merkis vsuale money of Scotlant at twa termes in the yeir witsonday and mertymies in wynter be equale portionis togidder with thre kanefowllis in the yeir with all wther deu seruiice vse and wount of before AND we forsuth the said Johnne Commendator and conuent and owre successoris sall warrand acquiet and defend the saidis Thomas Walter thair airis excecutoiris and assignais the tua merkis worth of land with the pertinentis Induring the said space of nyntene yeris in all and be all thingis as is abone expremitt aganis all deidlie as law will but fraud or gyle or ony reuocatioun : IN WITNESS of the quhilkis thyngis to thir oure lettres of tak subscriyuit with our subscripsiounis manuell oure commoun Sele of our Cheptour of our said abbay is to hungin at Dryburght the twenty daye of marche the yeir of god ane thowsand fyf hundredth fyefty and foure yeris befor ther witnes Thomas Haliburtoun George Wilson Robert Watsons Waltere Grenfeld wth wtheris diuers

John Commendator of Drybrwgh

Den Robart Anderson supprior

Kentigernus Vylson

Den Andro Purwass

Den Jhone Symson

Patricius Purwass

Den Robert Myll

Johannes Ruderfwrđ

Dene James Jamesone

Den Anddro Corsnop

Dein Jhone Chatto.

Den William Wilsonn

CHARTER by David Erskyne Commendator of Dryburgh, in favour of Alexander Erskine and Elizabeth Haliburtoun his spouse, of Six Merk Land in Mertoun.
Dated 27th September 1559.

XXI. OMNIBUS HANC CARTAM visuris vel audituris DAVID permissione Diuina Commendatarius Monasterij de Dryburcht ac conuentus ejusdem Salutem in Domino Sempit-

ternam Quia quum regni Scotie retro principes Diuersis in parliamentis suis cum
tribus regni Statibus (super) republica mutuo Disceptantes Terras regias et aliorum
prelatorum Dominorum temporalium Comitum baronum ceterorumque hominum
terras hereditarie possidentium In feodifirmam seu emphyteosim vt cum tenentibus
couenire poterunt per diuersa parliamentorum Statuta et acta que nobis Scotis pro
legibus obseruanda sunt assedandas fore decreuerunt opinantes perinde commoda
non modica vt politia honesta edificia terrarum novas culturas steriliū meliora-
tiones arborum plantationes piscium in aquis recentibus et per stagna introitones
columbariorum hortorum viridariorum cuniculariorum constructiones ac tenentium
possessorum huiusmodi terrarum sic in feodifirmam seu emphyteosim locatarum
in rebus mobilibus Ditaciones ac armorum et rerum bellicarum provisiones pro
regis et regni contra veteres hostes seu alios quosunque Invasores Defensione
ex firma spe remanendi cum tenentibus suis et illis per se et heredes suos
perpetuo gaudendi regi et regine provenire reipublice saluti apprime proficere
Nos igitur opiniones statuta et leges prescriptorum principum regum veterorumque
maiorum nostrorum opinantes et firmiter toti regno et eiusdem incolis esse maxime
perutiles certas terras nostras suadentibus premissis rationibus quibus supra Nec non
pro certis pecuniarum summis nobis per honorabilem virum Alexandrum Erskin et
Elizabetham Halyburton eius sponsam concessis ac pro aliis gratitudinibus et bene me-
ritis per eos nobis multiplieiter impensis Nec non pro augmentatione nostri rentalis pre-
fatarum terrarum plusquam eodem prius nobis persoluerunt extendenti ad triginta
solidos monete Scotie Noueritis igitur nos dedisse concessisse assedasse arrendasse lo-
casse et ad feodifirmam seu emphyteosim perpetuam hereditarie dimisisse et hac presenti
Carta nostra confirmasse Nec non tenore presentium dare concedere assedare arrendare
locare et ad feodifirmam seu emphyteosim perpetuam hereditarie dimittere et hac pre-
senti carta nostra confirmare predictis Alexandro Erskin et Elizabethæ Halyburton
eius coniugi eorumque alteri diutius viuenti in coniuncta infeodatione et heredibus
inter ipsos legitime procreatis seu procreandis quibus deficientibus legitimis et propin-
quioribus heredibus seu assignatis dicti Alexandri quibuscunque Totas et Integras illas
nostras sex mercatas terrarum cum singulis suis pertinentiis quas Andreas Jordane
Walterus Mylis et Joneta Mylis nunc occupant Jacentes in Villa et territorio de Mertoun
infra Vicecomitatum de Bernik : TENENDAS ET HABENDAS Totas et Integras predictas sex
mercatas terrarum cum singulis suis pertinentiis vt predictur nunc occupatas et jacentes

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prefatis Alexandro Erskin et Elizabeth Halieburton eius coniugi eorumque alteri diutius viventi in conjuncta infeodatione et heredibus suis seu assignatis supra scriptis De nobis et successoribus nostris In feodifirma seu emphiteosi et hereditate Imperpetuum per omnes rectas metas suas antiquas et diuisas prout jaent in longitudine et latitudine In domibus edificiis boscis planis moris marresiis viis semitis aquis stagnis riuulis pratis pascuis et pasturis molendinis multuris et eorum sequelis aucupationibus &c. REDDENDO inde annuatim dicti Alexander Erskin et Elizabeth Halieburton eius coniux eorumque alter diutius vivens in conjuncta infeodatione et heredes sui seu assignati prescripti Nobis et successoribus nostris summam sex mercarum vsualis monete regni Seotie et novem lie Cane foullis tanquam firmam feodifirme pro predictis terris prius solui debitam et consuetam vna cum tredecim solidis et quatuor denariis monete predictae in augmentationem nostri rentalis prefatarum terrarum Extendentem in Integrum ad summam septem mercarum eiusdem monete ad duos anni terminos consuetos festa viz! penthcostes et sancti Martini in hyeme per equales medias portiones nec non heredes dicti Alexandri Duplicando Dictam feodifirmam primo anno eorum introitus ad predictas terras tantum pro omni alio onere exactione questione demanda seu sermitio seculari que de dictis sex mercatis terrarum cum pertinentiis per quoscunque juste exigi poterint quomodolibet vel requiri Et NOS VERO et successores nostri totas et integras predictas nostras sex mercatas terrarum cum singulis suis pertinentiis nunc occupatas et jacentes ut predictur prenominais Alexandro Erskin et Elizabeth Halieburton eius coniugi eorumque alteri diutius viventi in conjuncta infeodatione et heredibus suis seu assignatis supra scriptis In Omnibus et per omnia forma pariter et effectu vt premissum est contra omnes mortales varantizabimus acquietabimus et Imperpetuum Defendemus INSUPER Dilectis nostris Marco Haliburton de Myrtoun Ae vestrum cuilibet coniunctim et diuisim balliuis nostris in hac parte specialiter constitutis Salutem Vobis precipimus et firmiter mandamus quatenus visis presentibus indilate statum Saisinam hereditariam et possessionem corporalem actualem et realem predictis Alexandro Erskin et Elizabeth Halieburton eius coniugi eorumque alteri diutius viventi in conjuncta infeodatione vel eorum certis attornatis latoribus presentium Totarum et integrarum prefatarum sex mercatarum terrarum cum singulis suis pertinentiis nunc occupatarum et jacentium vt premittitur per terre et lapidis fundi earundem vt moris est traditionem secundum tenorem Diete nostre Carte quam de nobis inde habent iuste haberi faciatis et deliberetis et hoc nullo modo omittatis Ad quod faciendum

vobis et vestrum cuilibet coniunctim et diuisim balliuis nostris in hac parte antedictis
nostram plenariam et irrevocabilem tenore presentium committimus potestatem: In
cuius rei testimonium huic presenti carte nostre manibus nostris subscripte Sigillum
Commune Capituli dicti nostri Monasterij est appensum Apud Dryburgh vigesimo
septimo die Mensis Septembris Anno Domini Millesimo quingentesimo quinquagesimo
Nono Coram hiis testibus Joanne Lescheman burgensi de Stirling Alexandro Erskin
Magistro Joanne Dempstair

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Teinds,
continued.

David Erskyn Commendatarius de Drybruch

Robertus Anderson Supprior	Kentigernus Vylsoun
Patricius Pwrwass	Johannes Symson
Johannes Ruderfurd	Robertus Myll
Johannes Chatto	Jacobus Jameson
Andreas Corsnop	Wilelmus Wilsone.

CHARTER, by Sir Andrew Hagye, vicar of Mertoun, with consent of David Erskyn,
Perpetual Commendator of Dryburgh, in favor of Mark Haliburtoun of Mertoun,
of the Kirklands of Mertoun. Dated 24th March 1559.

XXII. OMNIBUS hanc Cartam visuris vel audituris Dominus Andreas Hagie Vicarius de
Mertoun Salutem in omni saluatore Quum ex vtriusque iuris sanctione et Sere-
nissimorum Scotie principum Statutis in reipublice et regni commodum editis cautum
existit et terras et possessiones tam ecclesiasticorum quam secularium eiusdem in feudi-
firmam seu emphiteosim hereditarie concedendas et loandas fore quo per prudentum
virorum curam sedulitatem et laborem colantur meliorentur et ad vberiore fertilitatis
cultum producantur NOUERITIS igitur me cum expressis consensu et assensu venera-
bilis in Christo patris Domini Daudis permissione Dinina Commendatarij perpetui
Monasterij de Dryburgh et conuentus ejusdem patronorum indubitatorum Diete mee
vicarie Dedisse Concessisse assedasse arrendasse locasse et ad feudifirmam seu emphite-
osim hereditarie Dimisisse et hac presenti Carta mea confirmasse nec non dare concedere
assedare arrendare locare et ad feudifirmam seu emphiteosim hereditarie dimittere et hac
presenti carta mea confirmare predilecto meo Marco Haheburtoun de Mertoun heredibus
suis et assignatis Totas et Integra terras meas ecclesiasticas Diete mee vicarie de Mertoun

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vulgo Kirklandis nuncupatas Cum gleba earundem et omnibus suis pertinentiis Jacentes infra Vicecomitatum de Roxburgh, Extendentes annuatim meo in rentali ad summam quinquaginta solidorum vsualis monete regni scotie **TEXENDAS** et habendas Totas et Integras predictas terras ecclesiasticas dicte vicarie vulgo Kirklandis nuncupatas cum gleba earundem et omnibus suis pertinentiis dicto Marco heredibus suis et assignatis de me et successoribus meis In feudifirma seu emphiteosi et hereditate imperpetuum per omnes rectas metas suas antiquas et diuisas prout Jacent in longitudine et latitudine In domibus edificiis boscis planis moris maresiis viis semitis aquis stagnis rivulis pratis paseuis et pasturis molendinis multuris et eorum sequelis aucupationibus venationibus piscationibus petarijs turbariis carbonibus carbonariis cuniculis cuniculariis columbis columbariis pomis pomeriis fabrilibus brasinis brueriis et genestis siluis nemoribus et virgultis lignis lapideis lapide et calce cum curiis et earum exitibus herejeldis et mulierum merchetis cum communi pastura libero introitu et exitu ac cum omnibus aliis et singulis libertatibus commoditatibus proficuis aisamentis ac justis suis pertinentiis quibuscunque tam non nominatis quam nominatis tam subtus terra quam supra terram procul et prope ad predictas terras cum pertinentiis spectantibus seu juste spectare valentibus quomodolibet in futurum libere quiete plenarie integre honorifice bene et in pace sine aliquo impedimento reuocatione contradictione aut obstaculo quocunque **REDDENDO** inde annuatim dictus Marcus heredes sui et assignati mihi et successoribus meis Summam trium librarum sex solidorum et octo denariorum vsualis monete regni scotie ad duos anni terminos penthecostes et Sancti Martini in hyeme per equales portiones in augmentationem rentalis mei annuatim ad summam sexdecim solidorum et octo denariorum monete predictae Nec non heredes dicti Marci Duplicando dictam feudifirmam primo anno eorum introitus ad predictas terras cum pertinentiis prout vsus est feudifirme Et similiter si contigerit dictum Marcum heredes suos aut assignatos deficere in solutione dictarum firmarum feudifirme per spacium trium terminorum sic quod tres termini in vnum current insoluti Tunc et in eo casu hoc presens infeofamentum nullius erit roboris valoris efficacie nec effectus Sed deinceps licitum erit mihi et successoribus meis super predictis terris ad nostre libitum voluntatis disponere Et Ego **UERO** et successores mei Totas et Integras predictas terras ecclesiasticas Dicte vicarie mee de Mertoun vulgo Kirklandis nuncupatas cum gleba earundem et omnibus suis pertinentiis dicto Marco heredibus suis et assignatis In omnibus et per omnia forma pariter et effectum ut premissum est contra omnes mortales warantizabimus acquietabi-

mus et imperpetuum defendemus Insuper Dilectis meis Georgio Wilson . . . Et eorum cuilibet conjunctim et diuim balliuis meis in hac parte specialiter constitutis Salutem vobis et vestrum cuilibet coniunctim et diuim firmiter precipio et mando quatenus visis presentibus indilate Statum Saisinam hereditariam pariter et possessionem corporalem actualem et realem totarum et integrarum predictarum terrarum Ecclesiasticarum dictæ mee vicarie de Mertoun vulgo Kirklandis nuncupatarum cum gleba earundem et omnibus suis pertinentiis dicto Marco vel suo certo actornato latori presentium secundum tenorem predictæ Carte mee sibi desuper confectæ juste haberi faciatis et deliberetis Et hoc nullo modo omittatis Ad quod faciendum Vobis et vestrum cuilibet coniunctim et diuim meam plenariam et irrevocabilem tenore presentium committo potestatem In Cuius rei testimonium sigillum meum vna cum mea subscriptione manuali necnon sigillum commune Capituli Dicti monasterij de Dryburgh ac subscriptionibus manualibus dictorum Commendatarij et conventus In signum eorum consensus et assensus ad premissa presentibus sunt appensa apud Edinburgum vicesimo quarto die mensis martij Anno Domini millesimo quingentesimo quinquagesimo Nono Coram hiis testibus Thoma Reidpeth burgensi de Edinburgh Dompno Wilhelmo Wilson Joanne Haliebartoun Jacobo Erskin et Magistro Georgio Frier Notario Publico Jacobo Schaw.

Dominus Andreas Hagye vicarius de Mertoun

David Erskyn Commendatarius de Drybruch

Robertus Anderson Supprior

Willielmus Wilson

Patricius Purwass

Johannes Symson

Johannes Ruderfurd

Robertus Myll

Andreas Corsnop

Kentigernus Willsoun

Johannes Chatto

Jacobus Jamesone.

PRECEPT OF CLARE CONSTAT *by David Erskine, Commendator of Dryburgh for infetling Alexander Home of Manderstoun in the Kirklands of Lauder, &c. 24th February 1562.*

XXIII. DAVID permissione divina abbas monasterij de Dryburgh et ejusdem loci conventus ordinis premonstratensis Sancti Andree diocesis unanimi consensu et assensu capituli

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lariter congregati dilectis nostris Willelmo Mur in Hathsyde . . . ac vestrum euilibet conjunctim et divisim balliuis nostris in hac parte specialiter constitutis Salutem Quia Nobis per sasinas et alia antentica documenta ostensa et coram nobis producta clare constat et est notum Quod quondam Willelmus Home filius naturalis magistri Andree Home fratris germani quondam Davidis Home de Wedirbarne obiit ultimo vestitus et sasitus ut de feodo ad fidem et pacem supreme Domine nostre Regine de omnibus et singulis terris nostris ecclesiasticis ecclesie nostre de Lawder viz. terris de Spittale Snawdoun terris nostris jacentibus prope burgum de Lawder et terris de Newbigging cum singulis earundem pertinentiis jacentibus infra regalitatem de Lauderdale et Vicecomitatum de Bernik Et quod Alexander Home nunc de Manderstoun filius et heres quondam Alexandri Home de Manderstoun est legitimus et propinquior heres dicti quondam Willelmi Home de prefatis terris cum pertinentiis ratione tallie seu provisionis in carta infra specificata mentionate Et quod defecerunt seu non existerunt heredes masculi ex corpore dicti quondam Willelmi procreati Et quod est legitime etatis Et quod terre suprascripte cum suis pertinentiis de Nobis et successoribus nostris abbatibus seu commendatarijs et conventibus dicti nostri loci in feudifirma et hereditate in capite tenentur pro annua solutione nobis et successoribus nostris pro tempore summe triginta duarum mercarum monete regni Scotie ad duos anni terminos penthecostes et sancti Martini in hieme per equales portiones Unacum viginti quinque cauponibus et viginti quinque lie pultre foulis nomine feudifirme tantum prout in carta feudifirme seu emphyteosis omnium et singularum predictarum terrarum dicto magistro Andree Home in vitali reddito pro toto tempore vite sue et dicto Willelmo Home suo filio naturali et heredibus suis masculis de corpore suo legitime procreandis Quibus deficientibus prefato quondam Alexandro Home de Manderstoun fratri germano dicti magistri Andree et heredibus suis masculis Quibus deficientibus certis alijs personis et eorum heredibus masculis successive in dicta carta contentis per quondam predecessores nostrum Jacobum dicti nostri loci abbatem et conventus ejusdem pro tempore desuper facta et concessa de data apud dictum nostrum monasterium octavo die mensis Maij anno Domini millesimo quingentesimo trigesimo sexto in nostro registro registrata Et in Carta Confirmationis quondam supremi domini nostri Jacobi quinti Scotorum Regis concessa inserta plenius continetur Vobis igitur stricte precipimus et mandamus quatenus visis presentibus indilate statum sasinarum hereditariam et possessionem corporalem actuaalem omnium et singularum prefatarum ecclesiasticarum terrarum predice

ecclesie de Lawder viz. terrarum de Spittale Snawdoun terrarum jacentium prope dictum burgum de Lauder et terrarum de Nevbigging cum singulis earundem pertinentiis dicto Alexandro Home nunc de Manderstoun filio et heredi dicti quondam Alexandri Home de Manderstoun sui patris tanquam legitimo et propinquiore heredi masculo ratione prefate tallie seu provisionis dicti quondam Willelmi Home vel suo certo actornato latori presentium per terre et lapidis fundi earundem ut moris est traditionem juste tradatis et deliberetis Et hoc nullo modo omitatis Ad quod faciendum Vobis et vestrum cuilibet conjunctim et diuisim ballivis nostris in hac parte antedictis nostram plenariam et irrevocabilem tenore presentium committimus potestatem Salvo nihilominus et reservato libero tenemento seu vitali redditu omnium et singularum prefatarum terrarum antedictis cum suis pertinentiis dicto magistro Andree Home pro omnibus sue vite diebus secundum tenorem prefate carte et antiqui infocamenti feudi firme earundem antediete In ejus rei testimonium huic presenti precepto nostro manibus nostris subscripto sigillum commune dicti capituli nostri est appensum apud dictum monasterium nostrum de Dryburgh xxiiij^{to} die mensis Februarij anno Domini millesimo quingentesimo sexagesimo secundo coram hiis testibus.

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David Commendatarius de Drybruch.

Robertus Andersone Supprior	Kentigernus Vylson
Patricius Purwass	Johannes Symson
Johannes Ruderfuid	Robertus Myll
Andreas Crosnop	Jacobus Jameson.
Willelmus Wilson	

CHARTER by David Commendator of Dryburgh in favour of Elizabeth Penny in liferent, and George Haliburtonne in fee, of the Mill and Multure of Dryburgh.
Dated 24th March 1562.

XXIV. OMNIBUS, &c.—David permissione diuina commendatarius monasterii de Dryburgh et conventus eiusdem ordinis sancti Augustini Sancti Andree diocesis salutem in eo qui est indeficiens omnium salus. Quum ex vtriusque iuris sanctione et serenissimorum huius regni Scotie principum statutis in reipublice et regni commodum editis tantum

existit et terras et possessiones tam ecclesiasticorum quam secularium eiusdem terras hereditarie possidentium in emphiteosim perpetuam seu feudifirmam absque tamen rentalium diminutione assedandas et locandas fore quo per prudentum virorum curam et laborem collantur meliorentur et ad vberiolem fertilitatis cultum producantur Et nos firmiter scientes prelibatas leges et principum statuta reipublice regno et eiusdem incolis maxime esse perutiles Easdem nedom sed et sacros canones que de terris et redditibus ecclesie perpetuam permittunt emphiteosim insequentes terras nostras molendinum et decimas subscriptas (suadentibus premissis) in feudifirma locare statuimus Noveritis nos igitur vnanimi consensu et assensu pro arborum plantatione edificiis condendis et alia polecia iuxta parlamentaria acta desuper edita in regno habenda neenon pro nonnullis pecuniarum summis nobis per dilectos nostros Elizabeth Penny relictam quondam Thome Halyburtoun et Georgium Halyburtoun eorum filium et heredem in nostra magna et vrgenti necessitate pre manibus persolutis que in vtilitatem et commodum nostri et dieti nostri monasterii conuerse et conuertende sunt Dedissee concessisse assedasse arrendasse locasse et ad feudifirmam seu emphiteosim perpetuam dimisisse et hac presenti carta nostra confirmasse neenon dare concedere assedare arrendare locare et ad feudifirmam seu emphiteosim perpetuam dimittere Et hac presenti carta nostra confirmare prefate Elizabeth Penny in vitali redditu pro omnibus sue vite diebus et dicto Georgio Halyburtoun et Agneti Halyburtoun eius sponse ac eorum alteri diucius viuenti in coniuncta infeodatione heredibusque suis subscriptis et assignatis hereditarie omnes et singulas nostras terras acras terrarum molendinum et alia respectiue subscripta videlicet totum et integrum nostrum molendinum granorum et domum molendinariam de Dryburgh cum vna aera terre vocata lie mylne aker et vna aera vocata lie Forestaris aker et lie malthous wallis sine villo jure clameo aut intromissione silue nostre de Dryburgh aut custodie eiusdem lie forestarschip cum omnibus multuris et diuoriis dieti molendini et signanter cum multuris omnium terrarum et decimarum parrochie de Mirtoun nobis et dicto nostro monasterio pertinentibus ac eciam cum multuris decimarum garbaliu et parrochie de Lasiddoun eidem nostro monasterio pertinentibus Totas et integras terras nostras vocatas lie ferme landis ville et terrarum de Dryburt quas dieti Elizabeth Penny et Georgius Halyburtoun eius filius nunc occupant et pro quibus nobis et dicto nostro monasterio viginti vnam bollas ordeï persoluunt ac eciam Totas et integras nostras quinque mereatas terrarum jacentes in villa et territorio de Myretoun et infra vicecomitatum de Berwik Neenon totas et

integras quatuor acras terrarum cum domibus lie onsettis earundem jacentes in villa et territorio de Dryburgh et infra vicecomitatum antedictum quas dicti Elizabeth et Georgius eius filius per se et suos subtenentes eorum nominibus nunc occupant cum singulis suis pendiculis et pertinenciis extendentes annuatim in rentali nostro in omnibus proficiis ipsis insimul computatis ad pecuniarum et victualium summas respectue subscriptas videlicet dictum molendinum granorum cum domo molendinaria lie mylne aker forestaris aker et malthous wallis ad summam viginti mercarum vsualis monete regni Scotie cum duabus duodenis pultrearum diete quinque mercate terrarum in Myrtoun ad summam quinque mercarum monete predictae cum sex pultreis et dictis eisdem incumbentibus prefate terre vocatae lie ferme landis de Dryburgh ad summam viginti vnus bollarum ordeï cum viginti vno lie thravis pabuli Et diete quatuor acre terrarum cum domibus lie onsettis earundem jacentes in villa et territorio de Dryburgh ad summam quinque mercarum eiusdem monete cum duodecim pultreis et in integro ad summam triginta mercarum vsualis monete prescripte viginti vnus bollarum ordeï viginti vnus lie thravis pabuli et trium duodenarum et sex pultriarum. Tenendas Reddendo annuatim dicta Elizabeth Penny durante vita sua et deinde prefati Georgius Halyburton et Agnes eius sponsa eorum alter diucius viuens heredesque suprascripti et assignati nobis et successoribus nostris antedictis pro dictis molendino domo molendinaria cum aera terra vocata lie mylne aker alia aera terre nuncupata lie forestaris aker et lie malthouse wallis cum omnibus multuris et diuoriis dicti molendini superius specificatis dictam summam viginti mercarum cum duabus duodenis pultrearum pro dictis quinque mercatis terrarum in Myrtoun dictam summam quinque mercarum cum sex pultreis et dictis eisdem incumbentibus pro prefatis terris vocatis ye ferme landis de Dryburgh summam tresdecim solidorum et quatuor denariorum monete predictae pro qualibet bolla dictarum viginti vnus bollarum ordeï cum viginti vno lie thravis pabuli Et pro dictis quatuor aeris terrarum cum domibus lie onsettis earundem in villa et territorio de Dryburgh prefatam summam quinque mercarum cum duodecim pultreis extendentes in integro ad summam quinquaginta vnus mercarum monete predictae viginti vnus lie thravis pabuli trium duodenarum et sex pultrearum tanquam firmas et diuorias prius solui solitas et consuetas Necnon summam decem solidorum eiusdem monete in augmentationem annuam dicti nostri rentalis videlicet dietas summas pecunie ad duos anni terminos festa videlicet Penthecostes et sancti Martini in hieme per equales portiones et alias diuorias prescriptas in terminis solitis et consuetis nomine feudifirme ac etiam heredes dicti Georgii et Agnetis predictae ac

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assignati duplicando dictam feudifirmam pecunie primo anno eorum introitus ad prefatas terras acras et molendinum prout vsus est feudifirme . Tenebunturque dicta Elizabeth Penny durante eius vita ac deinde prefati Georgius et Agnes eius sponsa heredesque sui suprascripti ac assignati omni tempore affuturo nostra propria victualia dicti nostri monasterii apud dictum molendinum libere sine solutione alicuius multure et eciam lie rowm free molere prout vsus fuit temporibus retroactis Et si contigerit prefatam Elizabetham durante vita sua aut deinde dictos Georgium et Agnetem eius coniugem eorum alterum diutius viuentem suosque heredes prescriptos ac assignatos deficere in solutione summe monete et diuoriarum suprascriptarum annuatim et terminatim in terminis superius specificatis sic quod duo termini currunt in tertium insoluti culpa ipsorum Elizabeth Georgii Agnetis aut heredum suorum antedictorum seu assignatorum Tune et in eo casu presens infeodatio nostra cum omnibus que inde sequi poterint nullius erit roboris valoris et efficacie Prouiso eciam quod dicti Georgius et Agnes eius sponsa heredesque sui suprascripti ac assignati taliter se habebunt nobis nostrisque factoribus et seruatoribus et specialiter Alexandro Erskine et domino Willelmo Wilsoun in Dryburght quod eos nullo modo ledunt aut eis molestiam vel iniuriam facient sub pena eciam amissionis presentis nostre infeodationis quo facto eorum culpa volumus eandem nostram infeodationem de cetero et in futurum annullari et nullius valoris fore Et quod ipsa Elizabeth durante eius vita et deinde prefati Georgius et Agnes heredesque sui suprascripti ac assignati nullas innouationes vel exactiones super tenentibus nostris et specialiter ville de Dryburgh penes dictum nostrum molendinum imputabunt aut exigent sed multuras et alias diuorias vsitatas et consuetas tantum recipient Et nos &c. Insuper dilectis nostris Georgio Wilsoun &c. In cuius rei testimonium huic presenti carte nostre preceptum sasine in se continenti manibus nostris subscripte sigillum commune capituli dicti nostri monasterii est appensum apud Idem nostrum monasterium vigesimo quarto die mensis Marcij Anno Domini millesimo quingentesimo sexagesimo secundo.

David Commendatarius de Drybruch

Robertus Anderson supprior
Patricius Purwass
Johannes Ruderfuyrd
Andreas Corsnop
Kentigenus Vylsoun

Willelmus Vilsone
Johannes Symson
Robertus Mylne
Jacobus Jamesone
Johannes Trumbill

CHARTER *by David, Commendator of Dryburgh, to Walter Halyburtoun, Burgess of Dundee, of the four Merk Land of Mertoun. Dated 17th July 1567.* PART I.

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XXV. OMNIBUS hanc Cartam visuris vel audituris David permissione divina Commendatarius perpetuus Monasterij de Dryburgh et eiusdem loci Conventus Salutem in Domino Sempiternam Quia &c. Dedisse concessisse &c. Waltero Halyburtoun burgensi burgi de Dundee et heredibus suis masculis de corpore suo legitime procreatis seu procreandis Quibus deficientibus heredibus masculis et assignatis dicti Walteri quibuscunque Totas et Integras nostras quatuor mercatas terrarum antiqui extentus cum suis pertinentijs jacentes infra Villam et territorium de Myrtoun et vicecomitatum de Berwick per dictum Walterum et eius subtenentes nunc occupatas Tenendas &c. Reddendo summam Quatuor Mercarum monete regni Scotie cum sex pultreis et duodecim solidos monete predictae in Rentalis Augmentationem. Datum apud Dryburgh 17th Julij 1567.

PRECEPT OF CLARE CONSTAT *by David Commendator of Dryburgh for infesting Henry Haliburtoun of Mertoun, as Heir of Walter Haliburtoun of Mertoun. Dated 30th and 31st December 1574.*

XXVI. DATUM permissione Divina Commendatarius perpetuus Monasterij de Dryburt ac eiusdem loci conventus dilectis nostris Thome Robsoun ac eorum cuilibet &c. Quia nobis clare Constat et est notum per autentica documenta nobis ostensa et perfecta quod quondam Walterns Halyburtoun de Martoun ataus Henrici Halyburtoun nunc de Martoun latoris presentium obiit ultimo vestitus et Sasitus vt de feodo ad pacem et fidem Supremi Domini nostri regis De Totis et Integris terris nostris ecclesiasticis de Boutschorecott cum pertinentiis Jacentibus infra Vicecomitatum de Roxburgh tendentibus ad terras et oras de Smailhame lie Blakburne et Standandstane Et quod dictus Henricus Halyburtoun est legitimus et propinquior heres eiusdem quondam Walteri Halyburtoun sui atavi de totis et integris predictis terris de Boutschorecot cum pertinentijs Et quod est legitime etatis Et quod diete terre cum pertinentiis de nobis et successoribus nostris Abbatibus seu Commendatariis dicti nostri monasterij pro summa quadraginta et sex solidorum et octo denariorum vsualis monete regni Scotie ad duos

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anni terminos consuetos festa viz^t penthecostes et sancti Martini in hyeme per equales portiones annuatim inde reddenda tenentur in capite IDEO Dedimus &c. dicto Henrico Halyburtoun tanquam legitimo et propinquiore heredi ejusdem quondam Walteri sui atavi et Enphanie Wauchop eius future sponse eorumque alteri diutius viventi in conjuncta infeodatione Totas et integras predictas &c. In cuius rei testimonium presentibus manibus nostris subscriptis Sigillum nostrum commune dicti nostri monasterij est appensum Apud dictum nostrum Monasterium et Striuling penultimo et ultimo diebus mensis Decembris Anno Domini Millesimo quingentesimo septuagesimo quarto Coram his testibus Dauide Home Alexandro Erskin in Driburcht Thoma Sowdoun et Nicolaio Hog cum diuersis aliis.

David Commendatarius de Drybruch

Kentigernus Wilsoun

Robertus Myll

Jacobus Jameson.

CHARTER OF CONFIRMATION *by David, Commendator of Dryburgh, in favour of William Dowglas and Mariote Dowglas his spouse, of the Lands of Ivilie. Dated 1st January 1577.*

XXVII. OMNIBUS HANC CARTAM visuris vel audituris David permissione divina Commendatarius perpetuus monasterij de Dryburgh et ejusdem loci conventus Superiores terrarum subscriptarum Salutem in Domino sempiternam Noveritis Nos quandam Cartam alienationis preceptum sasine in se continentem factam per Henricum Wod in Flass nostrum tenentem feudifirmarium terrarum subscriptarum dilectis nostris Wilhelmo Dowglas in Colbranspeth et Mariote Dowglas ejus sponse ac eorum alteri diutius viventi in conjuncta infeodatione et heredibus inter ipsos legitime procreatis seu procreandis Quibus deficientibus legitimis et propinquiore heredibus dicti Wilhelmi Dowglas quibuscunque seu assignatis de totis et integris terris de Ivilie eum omnibus suis pertinentiis jacentibus infra Vicecomitatum de Berwik Tenendis de Nobis et successoribus nostris in feudifirma et hereditate per Nos visam lectam inspectam et diligenter examinatum sanam integram non rasam non cancellatam aut viciatam nec in aliqua sui parte suspectam sed omni prorsus vitio et suspicione earentem ad plenum intellexisse sub hac forma OMNIBUS hanc Cartam visuris vel audituris Henricus Wod in Flass Salutem in Domino sempiter-

nam Noveritis me cum expressis consensu et assensu Davidis Wod mei filij et heredis apparentis pro perimptione et observatione unius mee partis ejusdam contractus inter honorabilem virum Willelmum Dowglas in Colbrandspeth pro se et onus super se acceptantem pro Mariota Dowglas ejus sponsa ab una Et me cum expressis consensu et assensu dicti mei filij et heredis apparentis partibus ab altera initi et confecti de data vigesimo tertio die mensis Augusti instantis Vendidisso tituloque pure venditionis alienasse et hac presenti carta mea confirmasse nec non vendere alienare et hac presenti Carta mea confirmare prefatis Willelmo Dowglas et Mariote Dowglas ejus sponse ac eorum alteri diutius viventi in conjuncta infeodatione et heredibus suis subscriptis ac assignatis Totas et integras terras meas de Ivelie cum omnibus suis pertinentijs jacentes infra Vicecomitatum de Berwik pro quadam certa summa pecunie mihi in mea magna cognita et urgenti necessitate pre manibus per dictum Willelmum gratuito et integre persoluta in pecunia numerata et in usum meum totaliter conuersa De quaquidem summa pecunie tenco me bene contentum ac plenarie et integre persolutum dictosque Willelmum Dowglas et Mariotam Dowglas ejus sponsam heredes suos et executores pro me meisque heredibus et executoribus et assignatis de eadem quittos inde clamo et exonero tenore presentis carte mee imperpetuum Tenendas et habendas Totas et integras prenomintas terras de Ivelie cum omnibus suis pertinentijs prefatis Willelmo Dowglas et Mariote Dowglas ejus sponse ac eorum alteri diutius viventi in conjuncta infeodatione et heredibus inter ipsos legitime procreatis seu procreandis quibus deficientibus legitimis et propinquioribus heredibus dicti Willelmi quibuscunque seu assignatis a me et heredibus meis de Abbate seu Commendatario et conuentu monasterij de Dryburch et successoribus suis in feudifirma et hereditate imperpetuum per omnes rectas metas suas &c. Reddendo inde annuatim prefati Willelmus Dowglas et Mariota Dowglas ejus sponsa ac eorum alter diutius vivens heredes sui suprascripti ac assignati dictis Abbati seu Commendatario et Conuentui dicti monasterij de Dryburch et successoribus suis summam sex librarum usualis monete regni Scotie ad duos anni terminos consuetos festa viz^t penthecostes et Sancti Martini in hieme per equales portiones Necnon heredes dictorum Willelmi et Mariote antedicti et assignati duplum dictę feudifirme primo anno eorum introitus ad dictas terras cum pertinentijs persolvere tenebuntur prout usus est nomine feudifirme tantum pro omni alio onere exactione questione demanda seu servitio seculari que de predictis terris cum omnibus suis pertinentiis per quoscunque juste exigi poterint quomodolibet vel requiri ET EGO VERO dictus Henricus

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Wod et heredes mei cum expressis consensu et assensu prefati Davidis Wod mei filij et heredis apparentis Totas et integras prefatas terras de Ivelie cum omnibus suis pertinentiis dictis Willelmo Dowglas et Mariote Dowglas ejus sponse ac eorum alteri diutius viventi in conjuncta infeodatione et hereditibus suis suprascriptis ac assignatis adeo libere et quiete in omnibus et per omnia forma pariter et effectu ut premissum est Necnon ab omnibus firmis feudifirme dictarum terrarum cum pertinentiis de aliquibus annis et terminis preteritis debitis annuis redditibus conjunctis infeodationibus dominarum tertius vitalibus redditibus alijs infeodationibus publicis aut privatis sasinis et alijs juribus et titulis quibuscunque elapsis et futuris contra omnes mortales warrantizabimus acquietabimus et imperpetuum defendemus INSUPER dilectis meis Patricio Jaksoun . . . ac vestrum cuilibet conjunctim et divisim balliis meis in hac parte specialiter constitutis salutem Vobis precipio et firmiter mando quatenus statum sasinam hereditariam pariter et possessionem corporalem actualem et realem Totarum et integrarum prenominarum terrarum de Ivelie cum omnibus suis pertinentiis prefatis Willelmo Dowglas ac Mariote Dowglas ejus sponse ac eorum alteri diutius viventi in conjuncta infeodatione vel suis certis actornatis latoribus presentium secundum tenorem prescripte Carte mee quam de me inde habent juste haberi faciatis et deliberetis sine dilatione Et hoc nullo modo omittatis Ad quod faciendum Vobis et vestrum cuilibet conjunctim et divisim balliis meis antedictis meam plenariam et irrevocabilem tenore presentium committo potestatem In cujus rei testimonium huic presenti Carte mee preceptum sasine in se continenti manu mea manuque dicti mei filij et heredis apparentis in signum sui consensus et assensus ad premissa modo sequente subscripte sigilla nostra sunt appensa Apud Edinburcht vicesimo quarto die mensis Augusti anno Domini Millesimo quingentesimo septuagesimo sexto Coram huius testibus Patricio Stratoun in Forefoarland Jacobo Tarbert Davide Money et Jacobo Millar notario cum diversis alijs : QUAMQUIDEM Cartam alienationis ac Venditionem et alienationem in eadem contentas unacum predicto precepto sasine in omnibus suis punctis et articulis conditionibus et modis ac circumstancijs suis quibuscunque in omnibus et per omnia forma pariter et effectu ut premissum est Ratificamus approbamus ac pro nobis et successoribus nostris pro perpetuo Confirmamus Salvis Nobis et successoribus nostris juribus et scrutijs ac firmis feudifirme dictarum terrarum cum suis pertinentiis ante presentem nostram confirmationem nobis debitis et consuetis Insuper Volumus et concedimus ac pro nobis et successoribus nostris decernimus et ordinamus quod hec presens nostra confirmatio

tanti erit roboris valoris et efficacie dictis Willelmo Dowglas et Mariote Dowglas ejus conjugi ac eorum alteri diutius viventi in conjuncta infeodatione heredibus suis superscriptis ac assignatis ac si eadem per nos in debita et competenti forma ante sasnam per ipsos de dictis terris cum pertinentiis captam data et concessa fuisset non obstante sasina per dictum Willelmum et Mariotam de dictis terris cum pertinentiis ante presentem nostram confirmationem suscepta penes quam cum eis suis heredibus antedictis ac assignatis tenore presentium dispensamus imperpetuum In ejus rei testimonium huic presenti carte nostre confirmationis manibus nostris subscripte sigillum nostrum commune est appensum Apud ideam monasterium de Dryburch primo die mensis Januarij Anno Domini Millesimo quingentesimo septuagesimo septimo Coram hijs testibus Georgio Halliburtoun Nicholao Halliburtoun Nicholao Hoig et Thoma Ynglis cum diversis alijs.

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David Commendatarius de Drybruch.

Kentigernus Vilsoun
Robertus Myll
Jacobus Jamesoun.

Tack by David Commendator of Dryburgh in favour of Alexander Home, son and apparent heir of John Home of Carrolsyde of the Teinds of Broderstains. Dated 2d and 15th July 1579.

XXVIII. BE IT KEND till all men be thir present letteres ws Dauid Commendatar of the Abbay of Dryburgh with consent and assent of the convent thair of The vtilitie and proffeit of ws and oure said Abbay being foirsene and considerit to haif set and to firme lattin and be thir present letteres settis and to firme lattis To oure louit Alexander Home sone and apperand air to John Home of Carrelsyde his airis and assignayis ane or ma All and Sindry oure teind schawis of all and hale oure toun and landis of Broderstains with the pertinentis lyand within the territorie of Lawderdail and Sheriffdome of Berwik for all the dayis space and termis of nyntene yeiris nixt and Immediatlie following thair interie thairto Quhilk sal be and begyn at the feist of Lambmes nixtocum in the yeir of god ane thowsand fyve hundreth thre scoir nyntene years and thaireftir to indure ay and quhile the saidis nyntene yeiris be full and togidder compleit and out runnin To be peaceable

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bruikit possessit intromettit with gadderit led vsit and Disponit vpoun be the said Alexander his airis and assignayis foirsaidis at thair plesur with fre Ische and Intere and with all and sundry commodities fredomes easmentis and richtewons pertinentis quhatsumeuer pertening or that richtewouslie may pertene thairto during the said space frelie quietlie weill and in peace But ony reuocation obstacle impediment or agane calling quhatsumeuer WITH POWER to the said Alexander his airis and assignayis foirsaidis To call and conuene the tennentis and occupiaris of the toun and landis foirsaidis and vthiris quhome it efferis for the saidis teind schawis and to vse inhibitionis vpoun thame to that effect THE SAID ALEXANDER HOME his airis and assignayis foirsaidis payand thairfoir yeirlie to ws oure successoris chalmerlains assignayis or factouris during the saidis nyntene yeiris betuix Sanctandrois day and the feist of candilmes aucht bollis beir and aucht bollis meill of Lauderdaill met conforme to the auld vse of oure said abbay allanerlie AND WE FORSUITH the saidis Commendator and convent and oure successoris sall warrand &c. IN WITNESS of the quhilk thing to thair presentis Subscriuit be ws the saidis Commendatar and convent The commoun seill of the cheptour of the said abbay is hungin at Cardrois and Dryburcht respectiue the secund and fyftene dayis of July the yeir of god ane thowsand fyve hundreth thre scoir and nyntene theiris Befoir thir witnesses Jhone Setoun of Gargunnok Robert Fowlis.

David Commendator off Drybruch.

Mungo Wilson
Robert Myll
James Jamesone.

CHARTER *by David Commendator of Dryburgh to Thomas Wilson, son of the deceased Thomas Wilson in Dryburgh, of Lands &c. at Dryburgh.*

Dated 18th August 1579.

XXIX. OMNIBUS &c. David Commendarius de Drybruche ac ejusdem loci Conuentus Salutem &c. Noveritis &c. Dedisse &c. prefato Thome Wilson [filio quondam Johannis Wilson in Drybruche] hereditibus suis et assignatis Totam et integram nostram sextam partem unacum quarta parte unius sexte partis terrarum nostrarum firmariarum ville

nostre de Drybruche unacum decimis garbalibus earundem invicem inclusis que nunquam a solo separate fuerunt Ac etiam illas duas acras terrarum diete ville nostre de Drybruche cum hortis domibus et edificijs super eisdem edificatis cum suis pertinentiis quas idem Thomas per se et suos tenentes nunc occupat et que quondam Georgius Wilson ejus avus alijque eorum predecessores de Nobis et predecessoribus nostris in assedatione habuerunt et possidebant Ac etiam illos duos hortos subscriptos nunc per dictum Thomam possessos et occupatos viz. unum eorum jacentem inter terram Alexandri Erskyne ex boreali et hortum domini Jacobi Jamesoun ex australi partibus et alterum eorundem hortorum jacentem inter aqueductum vocatum lie myln dam ville de Drybruch ex boreali et terras vocatas lie North-head ex australi partibus ab una et alijs cum domibus et edificijs super eisdem hortis edificatis jacentibus in parochia de Myrtoun ballivatu de Lauder infra Vicecomitatum de Beruick Tenendas et habendas totam et integram dictam sextam partem et quartam partem unius sexte partis dictarum terrarum firmarum ville nostre de Drybruch cum decimis garbalibus earundem invicem inclusis ac dictis duabus acris terrarum diete ville nostre de Drybruch cum domibus &c. de Nobis et successoribus nostris in feodo seu emphyteosi imperpetuum &c. &c. Reddendo annuatim dictus Thomas Wilson et heredes sui et assignati nobis et successoribus nostris Commendatarijs dicti Monasterij nostrisue Camerarijs seu factoribus nostro nomine pro prefatis sexta parte et quarta parte unius sexte partis terrarum prescriptarum cum decimis garbalibus earundem invicem inclusis Quindecim bollas ordeï boni et sufficientis merchemonij inter festa natalis Domini et purificationis beate Marie Virginis vel summam tredecim solidorum quatuor denariorum usualis monete Scotie pro qualibet bolla dictarum quindecim bollarum ordeï ac tres pultreas vel sex denarics pro qualibet pecia earundem Quindecim le thraiffis straminis vel quatuor denarios pro qualibet lie thraif earundem in optione soluentis Ac etiam pro duabus acris terrarum cum hortis domibus et edificijs earundem desuper edificatis triginta tres solidos et quatuor denarios nec non pro prefatis duobus hortis et domibus prescriptis summam sex solidorum et octo denariorum monete predictæ Ac etiam summam trium solidorum quatuor denariorum ejusdem monete in augmentationem nostri rentalis plusquam unquam prefate terre cum acris hortis domibus edificijs cum pertinentiis prescriptis nobis seu predecessoribus nostris ante persolverunt Extendentes summe pecuniarie antedictæ in integro ad summam duodecim librarum et decem solidorum ad duos anni terminos festa viz. Penthecostes et Sancti Martini in hieme per equales portiones in nomine albe firme Ac etiam dictus

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Thomas heredes sui et assignati prestando tres sectas ad tria placita capitabla apud dictum nostrum monasterium de Drybruch annuatim tenenda tantum pro omni alio onere exactione questione demanda seu seruitio seculari que de predictis terris ac decimis garbalibus cum aeris hortis domibus edificijs et suis pertinentiis per quoscunque juste exigi poterint quomodolibet vel requiri Proviso quod si dictus Thomas heredes sui et assignati defecerint in solutione feudifirme antedictae et quod si duo termini concurrant in tertium terminum solutione ejusdem feudifirme minime facta tunc et in eo casu hec presens infeodatio expirabit et nullius erit roboris efficacie aut effectus absque aliquo juris processu Proviso tamen quod dictus Thomas heredes sui et assignati apportabunt grana sua super prefatas terras crescentia ad molendinum nostrum de Drybruch et soluent multuras pro eisdem debitas et consuetas Et ego vero &c. warantizabimus Insuper dilectis nostris Rodulpho Erskin In cujus rei testimonium &c. Apud Streveling decimo octavo die mensis Augusti anno Dominj millesimo quingentesimo septuagesimo nono Coram hijs testibus Roberto Haddan of Baweil Michaelae Elphingstoun Davide Home of Argatie et Magistro Ricardo Haddan Subdene of Dunkeld.

David Commendatarius de Drybruch.

Kentigernus Wilsoun

Robertus Myll

Jacobus Jamesone.

PRECEPT OF CLARE CONSTAT *by David Commendator of Dryburgh for infefting Ralph Erskyne as heir of Alexander Erskyne his father. Dated 20th January 1580.*

XXX. DAVID Commendatarius Monasterij de Dryburght ac Dominus Superior terrarum subscriptarum ac eiusdem loci conventus dilectis nostris Thome Wylsoun in Dryburght . . Ac vestrum cuilibet conjunctim et divisim Balliuis nostris in hac parte specialiter constitutis Salutem QUIA nobis clare constat et est notum per autentica documenta nobis ostensa et perfecta quod quondam Alexander Erskyne in Dryburght pater Rodolphi Erskyne latoris presentium obiit ultimo vestitus et sasitus ut de feodo ad pacem et fidem supremi Domini nostri Regis De Totis et Integris terris subscriptis videlicet De totis et

Integris Illis sex marcatis terrarum jacentibus in Villa et territorio de Mertoun infra vicecomitatum de Berwik cum singulis suis pertinentiis Nec non de Totis et Integris quatuor acris terrarum cum lie outsettis hortis earundem et suis pertinentiis cum nouo pomerio limitato terris vocatis Mylnhaught Nec non vna acra terre vocata terra seriandie jacente inter terras de Locheflatt et Bemersyde ac vna domo cum lie outseitt et una acra terre et crofta fullonum vocata Valkaris croft vna alia crofta vocata lie hill vno horto vocato vuluartt yaird cum horto vocato James Wallis ac duobus hortis granariis Nec non de illa parte terrarum vocata lie Kersmyre cum terris de Nethir Scheilfeld limitantibus cum omnibus et singulis earundem pertinenciis jacentibus in Villa et territorio de Dryburght infra Vicecomitatum de Berwik Nec non de totis et integris Illis quinque Marcatis terrarum Jacentibus in villa et territorio de Mertoun infra vicecomitatum antedictum Ac etiam de totis et integris terris de Nether Schielfeild cum omnibus et singulis suis pertinentiis jacentibus in Dominio de Lauderdale infra dictum Vicecomitatum de Berwik RESERVATO tamen libero tenemento seu vsu vitali omnium et singularum suprascriptarum terrarum Domorum hortorum et aliorum suprascriptorum Elizabeth Haliburtoun relictæ dieti quondam Alexandri pro toto tempore vite sue saltem Et quod dictus Rodolphus est legitimus et propinquior heres eiusdem quondam Alexandri Erskyne sui patris de totis et integris prenominatis terris &c. IN CUIUS REI testimonium presentibus manibus nostris subscriptis Sigillum Commune Capituli dicti Nostri Monasterij est appensum Apud Streveling die vicesimo Mensis Januarij Anno Domini Millesimo quingentesimo octuagesimo Coram his testibus.

David Commendatarius de Drybruch.

Kentigernus Wilsoun

Robertus Myll

Jacobus Jamesone.

CHARTER by David Commendator of Dryburgh to Ninian Bruce, of Thirty-eight acres of Land, Gardens, &c., in Dryburgh. Dated 24th February 1580.

XXXI. OMNIBUS &c. David Abbas seu Commendatarius perpetuus monasterij de Dryburgh et ejusdem loci conventus Salutem &c. Noveritis Nos &c. Dedisse &c. Niniano

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Bruce [fratri germano Archibaldi Bruce de Poufouls] heredibus suis et assignatis Totas et integras nostras triginta octo acras ville et terrarum nostrarum de Dryburgh per personas respective infrascriptas occupatas viz: sexdecem acras earundem terrarum nunc per Thomam Inglis incolam diete ville Tres acras cum dimidia acra earundem per Jonetam Ballenden relictam quondam Nicholai Hoig occupatas Dimidiam acram earundem per Franciscum Halyburtoun de presenti occupatam Quatuor acras earundem per Hectorem Bichet occupatas Duas acras earundem per Helenam Todrick relictam quondam Davidis Osuald occupatas Alias quatuor [acras] earundem nunc per Joannem Greinfeild occupatas Alias quatuor acras prefatarum acrarum per Elizabeth Davidson relictam quondam Joannis Grenefeild occupatas ac duas acras earundem per Andream Grenefeild occupatas Nec non duas acras earundem per Hugonem Muter occupatas cum singulis suis pertinentiis unacum decimis garbalibus earundem insimul inclusis jacentes in dieta villa et territorio nostro de Dryburgh infra Vicecomitatum de Bervik et ballivatum de Lauderdaill ac etiam viginti unam acras terrarum in dieta nostra Villa et territorio de Dryburgh jacentes cum suis pertinentiis per personas respective infrascriptas occupatas viz: tres earundem per Hugonem Muter alias duas earundem per dictum Thomam Inglis alias duas per dictam Helenam Todrick necnon alias duas acras per Margaretam Scott et reliquas duodecim prescriptarum terrarum per prefatos Hectorem Bichet Joannem Greinfeild alias Blakjok Joannem Clerk Thomam Park Jonetam Ballinden Helenam Todrick Elizabeth Davidsoun ac Georgium Penny Katherinam Wilkesoun Thomam Diksoun et Jacobum Glenquhoum prefate ville nostre incolas respective occupatas unacum domibus edificijs et hortis ejusdem pertinentiis ac cum pastura debita et consueta in silva nostra de Dryburgh et Howdownhauch et aliis locis consuetis extendente ad tres pasturas annuatim vulgo thre sowmes gress univique dictarum acrarum pertinentes unacum decimis garbalibus prescriptarum acrarum eisdem insimul inclusis Necnon unam domum edificatam in lie Byregrene de Dryburgh et cum horto eidem pertinente per Kentigernum Stoaan occupatam ac aliam domum cum horto eidem spectante jacentem ex orientali parte diete nostre ville inter domum dicti Thome Inglis et molendinum fullonum ibidem per Helenam Inglis occupatam et aliam domum cum pertinentiis apud diete ville erucem forealem per Johannem Scott occupatam ac insuper illos quinque hortos subscriptos dicti nostri monasterij de Dryburgh viz. Unum eorundem jacentem ex australi parte porte vulgo vocate lie ladye yett et alium eorundem hortorum jacentem apud murum

vulgo lie mantill wall novi horti ex occidente a ruinosis parietibus pistrine et bruarij dicti nostri monasterij ad domum per Georgium Penneye occupatam ex orientali et aqueductum vulgo vocatum Mylne-dam ville nostre de Dryburgh ex boreali partibus per dominum Robertum Mylne dicti monasterij canonicum nunc occupatum et alium dictorum hortorum jacentem ex australi parte horti domini Kintigerni Vilsoun canonici et predicti aqueductus per dictum Jacobum Jamesoun canonicum occupatum et alium eorundem hortorum vulgo vocatum euncinyaird et alium eorum hortorum unacum tribus lie voltis in eodem edificatis ex occidentali parte muri claustralis dicti monasterij cum singulis eorum pertinentiis ac etiam cymbam itineris passagium et remigium cymbæ trajecti nostre ville de Dryburgh vulgo ferrye boit nuncupate cum libertate sola utendi dicta cymba transportando vel transuehendo homines jumenta aut quecumque alia necessaria in nostra aqua twede a parte vocata monkfurde descendendo ad orientalem partem Howdounhauch unacum piscatione in dicta cymba in dicta aqua twede inter dietas partes et bondas ejusdem viz! Monkfurde et Holdounhauch ubicunque commodè videbitur cum omni alia piscatione salmonum aliorumue piscium inter dietas bondas in dicta aqua siue id fiat reticulis aut modo vulgo vocato vastering aut alio quocunque modo prius ibidem solito et consueto Tenendas &c. de Nobis et successoribus nostris in feudifirma seu emphyteosi et hereditate imperpetuum &c. Reddendo annuatim prefatus Ninianus Bruce heredes sui et assignati nobis et successoribus nostris nostrisque camerarijs seu factoribus pro tempore existentibus pro prefatis triginta octo acris terrarum antedictis cum decimis garbalibus eisdem insimul inclusis viginti octo bollas cum dimidia bolla ordeï boni et sufficientis marcionij inter festa natiuitatis Domini et purificationis Marie Virginis vel soluendo summam tredecem solidorum et quatuor denariorum monete regni Scotie pro qualibet bolla carundem Ac etiam solvendo quinquaginta tres pultreas vel quatuor denarios pro qualibet pultrea in optione solventis pro prefatis viginti una acris prefatarum terrarum cum decimis garbalibus eisdem insimul inclusis septemdecem libras undecem solidos et octo denarios monete predictæ ac summam trium solidorum et quatuor denariorum ejusdem monete predictæ in augmentationem nostri rentalis pro totis et integris prefatis acris terrarum plusquam unquam prenominate terre et alie prescripte nobis et predecessoribus nostris antea persoluerunt Ac pro prefatis tribus domibus cum quinque hortis prescriptis occupatis ut supra summam tredecem solidorum et quatuor

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denariorum monete predictæ Ac pro prenominata cymba et ejus usu neenon piscatione suprascripta summam viginti sex solidorum et octo denariorum monete predictæ Et sic computando precia victualium prescriptorum cum lie pultreis et firmis monete ac augmentatione ut prescribitur in integro in se extendentibus ad summam quadraginta librarum monete predictæ ad duos anni terminos consuetos festa viz^t penthecostes et Sancti Martini in hyeme per equales portiones nomine feudifirme Neenon heredes dicti Niniani duplicando dictam feudifirmam monete predictæ unius anni primo eorum introitu ad prefatas terras cum hortis domibus et reliquis suprascriptis prout usus est feudifirme Ac etiam dictus Niniaus heredes sui et assignati prestando tres setas ad tria nostra placita capitalia apud dictum nostrum monasterium de Dryburgh tenenda tantum pro omni alio onere exactione questione demanda seu servitio seculari que de predictis terris hortis domibus edificijs eymba piscatione et suis pertinentiis per quoscunque juste exigi poterint quomodolibet vel requiri Et Nos vero warantizabimus . . . Insuper &c. In ejus rei testimonium huic presenti carte nostre manibus nostris Subscripte Sigillum nostrum commune dicti nostri monasterij presentibus est appensum apud Streueling vicesimo quarto die mensis Februarij anno Domini Millesimo quingentesimo octuagesimo Coram his testibus Dauide Home Roberto Foullis Gilberto Grahame et Willelmo Douglas meis servitoribus.

David Commendatarius de Drybruch.

Kentigernus Wilsoun
Robertus Myll
Jacobus Jamesone.

CHARTER by David Commendator of Dryburgh to John Rutherford in Smailholm. of the half Husband-Land called Flatt. Dated 20th March 1581.

XXXII. OMNIBUS HANC CARTAM visuris vel auditoris David Erskin permissione divina Commendatarius monasterij de Dryburgh et ejusdem loci conuentus Salutem Quum ex utriusque juris sanctione et serenissimorum Scotie principum statutis in reipublice et regni commodum editis liceat et terras et possessiones tam ecclesiasticorum quam secularium ejusdem in feudifirma seu empheteosi perpetua locare atque concedere quo

per prudentum virorum curam sedulitatem et laborem colantur meliorentur et ad uberiozem fertilitatis cultum producantur NOVERITIS igitur Nos unanimi consensu et assensu ad hoc capitulariter congregatos diligentius tractatibus et maturis deliberationibus prehibitis in evidentem utilitatem dieti nostri monasterij in augmentationem annui rentalis ejusdem nec non pro certa summa pecunie nobis per dilectum Johannem Ruderfurde in Smallholme gratanter et integre persoluta ac in usum nostrum totaliter conversa dedisse concessisse assedasse arrendasse locasse et ad feudifirmam seu emphiteosim dimisisse et hac presenti carta nostra confirmasse neenon dare concedere assedare arrendare locare et ad feudifirmam seu emphiteosim dimittere et hac presenti carta nostra confirmare memorato Johanni Ruderfurde heredibus suis et assignatis totam et integram nostram dimidietatem unius terre husbandie nuncupate ly Flat cum suis pertinentiis tempore confectionis presentium per dietum Johannem occupatam habentem terras Andree Hoppingill de Smallholme ex australibus et occidentalibus partibus et domini de Coldenknovis ex orientalibus et borealibus partibus cum tenemento et horto jacentibus in dicta villa habentem terras Johannis Hoppingill ex occidentali parte et terras dieti Andree Hoppingill ex orientali parte jacentes in territorio de Smallholme et Vicecomitatum de Roxburgh TENENDAM et HABENDAM totam et integram predictam dimidietatem terre husbandie cum tenemento et horto et singulis suis pertinentiis jacentibus ut supra dicto Johanni heredibus suis et assignatis de Nobis et successoribus in feudifirma seu emphiteosi et hereditate imperpetuum per omnes rectas metas suas antiquas et diuisas prout jacent in longitudine et latitudine cum domibus REDDENDO inde annuatim dietus Johannes Ruderfurde heredes et assignati nobis et successoribus nostris commendatarijs nostrisue Camerarijs seu seruitoribus pro tempore existentibus septem solidos sex denarios ac in augmentationem rentalis ejusdem sex denarios usualis monete regni Scotie ad duos anni terminos consuetos festa viz! penthecostes et Sancti Martini in hieme per equales portiones cum seruitio debito et consueto cum duobus lie kane fowls ac prestando tres sectas curie ad tria nostra placita capitalia apud dictum nostrum monasterium annuatim tenenda tantum pro omni alio onere exactione questione demanda seu seruitio seculari que de eisdem per quoseunque juste exigi poterint quomodolibet vel requiri Et nos vero et successores nostri omnes et singulas supranominatas terras cum suis pertinentiis limitatas ut predictur memorato Johanni Ruderfurde heredibus suis et assignatis in omnibus et per omnia forma pariter et effectum ut premissum est contra omnes mortales Varrantizabimus

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acquietabimus et imperpetuum defendemus **INSUPER** dilectis nostris Thome . . . ac eorum cuilibet conjunctim et diuisim balliuis nostris in hac parte specialiter constitutis Salutem Vobis Precipimus et firmiter Mandamus quatenus visis presentibus indilate statum sasinam hereditariam pariter et possessionem corporalem actualem et realem totius et integre dimidietatis terre husbandie cum manerio et horto ac singulis suis pertinentiis suprascriptis jacentibus ut prefertur memorato Johanni Ruderfurde vel ejus certo aetornato latori presentium et hoc secundum tenorem suprascripte Carte nostre per terre et lapidis fundi dictarum terrarum traditionem ut moris est juste haberi faciatis et deliberetis et hoc nullo modo omittatis ad quod faciendum Vobis et vestrum cuilibet conjunctim et diuisim balliuis nostris in hac parte antedictis nostram plenariam et irrevocabilem tenore presentium committimus potestatem **IN** cujus rei testimonium presentibus manibus nostris subscriptis sigillum nostri Capituli dicti nostri monasterij est appensum Apud Edinburgum vigesimo die mensis Martij anno Domini Millesimo quingentesimo octuagesimo primo coram hijs testibus Johanne Murray de Polmeise Niniano Bruce Gilberto Grahame Dauide . . . Roberto Freland, et Johanne Morisone nostris seruitoribus domesticis.

David Commendatarius de Dribbruch.

Kentigernus Wilsoun

Robertus Myll

Jacobus Jameson.

TACK by David Commendator of Dryburgh in favour of Raulff Erskine in Dryburgh, of the Teinds of Mains of Mertoun. Dated 10th June 1600.

XXXIII. BE IT KEND till all men be thir present letteres ws Dauid commendator of Drybruch all the convent thair of now being decessit The vtilitie and proffitt of ws and our Abbay and successouris foirsein and considerit with matur deliberatioun had thairvpoun and for certain sowmes of money payit to ws at the making thair of be ovr Lowit Raulph Erskyne in Drybruch To haiff sett and for maill lattin Lykas be thir presenttis settis and for maill lattis To the said Raulph Erskyne for all the dayis space yeiris and termes of his lyf tyme All and Syndry the teyndsheiffis of the toune and Mainis of Mertoun with owtsettis partis and pendicillis thair of lyand within the sheriffdome of Berwick and baillarie of Lauderdaill, and after his deceiss to Johne Erskyne his sone and apperand

air his airis and assignais quhatsumever All and sindry the foirnamit teyndshaffis of the town and Maynis of Mertoun with the pertinentis lyand as said is for all the space and termes of nyntein yeiris nixt and immediatlie following the deceiss of the said Rawlph Erskyne his father the said Rawlph his entrie thairto to be and begin at the Ishe and owtrypping of ane former tak grantit be ws with consent of the convent of the said abbay of the daitt at Drybruch the first day of Februar the yeir of god I^m v^e and fourseoir yeiris to his vmqwhile father Alexander Erskyne in Drybruch Sua that the said Rawlph's entrie thairto sal be at the feist of Lambes Anno I^m vj^e yeiris And fra thyne furth to indeure and to be peccabillie bruiket joysit set vsit intronettit with teyndit led and vptakin and disponit vpon be the said personis at thair plesour the said Rawlph during all the space of his lyftyme And the said Johne Erskyne his sone and apperand air his airis and assignais foirsaidis during all the space and termes of nyntein yers weill and in peace but ony reuocatioun impediment obstacle or agane calling quhatsumever Reserwand always the teindsheffis of the peis and beins of the said toun and maynes of Mertoun Payand thairfoir yeirlic the said Rawlph his airis and assignais foirsaidis To ws our successoris chahnerlannis or faetouris in our name the sown of fourtie aucht pundis guid and vsuall money of this realme at tua vsuall termes in the yeir Vitsonday and Mertimes in vinter be equal portiounis alanerlie And we forsuith the said David Commendatar foirsaid and our successours this present tak and assedatioun to the saidis Rawlph his airis and assignais foirsaidis induring the space and yeris abone rehersat of the saidis teyndsheffis of the toun and mains of Mertoun reservand befor reseruit in all and be all thingis as is abone expremit Aganis all deidlie as law will sall warrand acqyett and defend In WITNES of the quhilk thing to this present tak and assedatioun (the bodie quhair of is vrettin be William Fargy my servitor) Subseryuit with our hand The commoun seill of our said Abbay is to hungin AT CARDRUSS the tent day of Junij the yeir of God I^m sex hundreth yearis Before thir witnessis Robert Haldane Waltir Ritchersone William Sterling and ye said William Fargy my servitouris with withers dyverss.

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David Commendator off Drybruch.

Walter Richartsone vitnes

Robert Haldane vitnes

Villiam Fargy vitnes

Wellen Sterleng vetnas.

PART I.
Original
Charters,
Gifts, and
Tacks of
Teinds,
continued.

TACK *by David Commendator of Dryburgh in favour of James Ker, son natural of umquhile Sir Andrew Ker of Hirsell, Knight, and Margaret Charteris his spouse.*
Dated 5th March 1604.

BE IT KEND till all men be thir present lettres Me DAVID be the permissioun of God
XXXIV. Commendator of Dryburght with advyce and consent of the convent thair of To haif sett and for maill latten and be the tennor heirof settis and for maill latis To my weillbelouittis James Ker sone naturall to Vmquhile Sir Andro Ker of Hirsell Knyt and Margaret Charteris his spous the Langest Levand of thame Tua thair airis and assignais All aud sindrie the teind peiss and benis of the townis and Landis of Rutherford Maxtoun and Littildene perteing to my said Abbacie as ane pairt of the patrimonie thair of for all the space yeiris and termes of nyntene yeiris nixt and Immediatlie following thair entrie thairto Quhilk entrie was and began at the feist of Lambes last bypast And fra thyne furthe to indure and to be peceablie bruikit and joisit be thame vnto the full ische and compleit end of the saidis nyntene yeiris and quhile the samyn be fullilie outworn &c. PAYAND thairfor eirlie during the said space the said James Ker and Margaret Charteris his spous the langest levand of thame tua thair airis and assignais to me and my foirsaidis Commendateris of the said Abbacie and convent thair of The soume of thre pundis money of this realme of Scotland at tua termes in the yeir witsonday and mertimes in wynter be evin porcionis of maill allainerlie &c. In Witness quhair of I To-gidder with the said Convent in taikin of thair consent and assent to the premisses hes subseruit this present assedatioun with our handis quhilk is written be Johne Bannatyne Seruitor to Mr. Patrik Bannatyne wyter our cowmon seill is hungin heirto At Carduruss the fyfte day of Merch the yeir of god 1^m sax hundreth and four yeiris Befoir thir witnessis William Fargy Robert Haldan Walter Richertsone and Alexander Vil-sone my servitoris.

David Commendator off Drybruch.

William Fargy Vitnes

Alex^r Wilsoun Vitnes

Walt. Richartsone Vitnes.

TACK *by David Commendator of Dryburgh in favour of Mr Robert Home of Carrolsyde of the Teinds of Broderstaines. Dated 30th May 1608.*

PART I
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continued.

XXXV. BE IT KEND till all men be thir present lettres ws Dauid Commendater of the Abbay of Drybrugh with consent and assent of the convent thair of The vilitie and profite of ws and our said Abbay being foirsene and considerit to hawe set and to ferme lattin and be thir present lettres settis and to ferme lattis to our louit Maister Robert Home of Carrelsyde his airis and assignayes ane or ma All and sindrie our teind schewis of all and haill our toun and landis of Broderstanis with the pertinentis lyand within the terriorie of Lauderdaill and sheriffdome of berwick for all the dayes space and termes of nyntene yeires nixt and immediatlie following thair entrie thairto Quhich sall be and begin at the feist of Lambes nixt to cum In this instant yeir of god 1608 yeiris &c. In Witness of the quhilk thing to thir presentis (written be Robert Nicolsoune Servitour to Robert Fortoun wrytter) Subscryuit be ws the saides Commendater and convent the comoun seill of the cheptour of the said Abbay is hungin at the place of Cardross the penult day of May the yeir of god Iⁿ sex hundreth and aucht yeiris Befoir thir witnesses Maister William Striuling Minister at Port Ninian Bruce Chalmerlan of Drybruch William Fergy and Walter Richartsone Messenger our seruitoris.

Dauid Commendator off Drybruch.

Maister William Striuling witness

Niniane Bruce witness

William Fairgy witness

Walt. Richartsone Messenger Witness.

PART I. "ANE NOIT" or ABSTRACT of "The TAKKIS of the TEYNDIS of the KIRKIS
 Original " of the ABBACIE of DRYBURGH *Alsweill whilkis payis money as vittuall.*
 Charters, [Circa 1620.]
 Gifts, and
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 Teinds,
continued.

MAXTOUN.

XXXVI. Imprimis ane Letter of Tak of the dait 18th Julij 1604 sett to Sir Johnne Ker of Hirsell Knycht of the teynd schaves of the Landis of Rutherfurde half of the Landis of Maxtoun, the Landis of Cammestoun and Tempill Landis of Sanet Boswellis for Nyn-tene yeiris, Entrie at Lambes eftir the dait foirsaid: Payand yeirlie for the teynd schaves of the Landis of Rutherfurde and half Landis of Maxtoun sex Chalderis vittuall vizt. Thrie Chalderis Meill Twa Chalderis beir and ane Chalder quheit and for the teynd schaves of the saidis Landis of Cammestoun and Tempill Landis of St. Boiswellis four bollis meill and four bollis beir suffieient stuiff in the girnell of Dryburght at Candilmes and Beltane be equal portiounes.

Item ane vther Letter of Tak of the dait 25th August 1602 Sett to Johnne Halyburtoun of Mertoun of the just ane half of the teynd schaves of the toun of Maxtoun and Maynes of Littildene for nyntene yeiris Entre at Lambes than last by past Payand yeirlie Twentie sex bollis straitkit Meill sextene bollis beir and four bollis quheit guid and sufficient stuff Tiviotdaill mett within the place of Dryburgh betuix the feistis of Yuill and Candilmes.

Item the Guidman of Murhouslaw hes the teynd-schaves thairof quhilk wer neur sett in tak Bot payis the rentallet bollis vizt. twentie bollis Meill and four bollis beir.

Item ane Letter of Tak of the dait 5th Marche 1604 Set to James Ker in Newbotle and Margaret Charteris his spous off the teynd peis and beanes of the tounes and Landis of Rutherfurde Maxtoun and Littildene For nyntene yeiris Entrie at Lambes 1603 Payand yeirlie iij lib. at Witsunday and Mertymes.

LESSUDDEN.

PART 1.

Original
Charters,
Gifts, and
Tacks of
Teinds,
continued.

Item ane Letter of Tak of the dait 21st August 1603 sett to the Lord of Buccleuch off the teynd schaves of the Toun and Landis of Lessudden for nyntene yeiris Entrie at Lambes 1603 Payand yeirlie thrie chalderis aucht bollis strakit meill Twa chalderis beir and aucht bollis quheit guid and sufficient stuiff Betuix Sanet Androis day and Candilmes Togidder with ane hundreth thraves of stra.

Item ane Letter of Tak of the dait 1603 sett to Vmquhile Sir Mark Ker of Littildene off the teynd peis and beanes of the town and Landis of Lessudden for nyntene yeiris Entrie at Lambes in the said yeir Payand yeirlie iij lib. at Witsunday and Mertymes.

Item ane Letter of Tak of the dait first May 1594 sett to Sir Andro Ker of Hietoun Knyght of the teyndschaves of the Toun and Landis of Eleistoun for nyntene yeiris Entrie at Lambes nixt eftir the dait fairsaid Payand yeirlie ane chalder strakit meill aucht bollis beir guid and sufficient mercat stuiff of the Commoun mett of the burt of Jedburt And xx thraves of stra at Sanet androis day and Candilmes.

Item ane Letter of Tak of the dait the last of Majj 1601 sett to Agnes Haitlie and Johnne Hoppringill hir sone of the teyndschaves of Newtoun and Maxpoffill for nyntene yeiris Entrie at Witsunday 1601 Payand yerlie Twa chalderis aittis sufficient stuiff at the termes vsit and wont Togidder with xx hors turs of stray.

Item ane Letter of Tak sett to Niniane Bruce and his sone of the teyndschaves of the peis and beanes of the tounes and Landis of Eleistoun Cammestoun Maxpoffill and Southsyde of Newtoun for Nyntene yeiris Entrie at Lambes nixt eftir the dait thair of quhilk is 20 Junij 1599 Payand yeirlie xxvj s. viij d. betuix the feistis of Yuill and Candilmes.¹

¹ Tack by John Earl of Mar, Lord Erskine Garioche and Cardross &c. Heritable proprietor of the teind scheaves and husband land eftirmentonat . . . in favour of Gilbert Ker fear of Greinhead and his aires assignayes or subtenentis quhatsumever of All and Sindrie our teind Scheaves of the Toun and Landis

MERTOUN.

PART I.

Original
Charters,
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Tacks of
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continued.

Item ane Letter of Tak sett to Ralff Erskene daittit 10 Junij 1600 off the teynd schaves of the Toun and Maynes of Mertoun for the said Ralffis Lyfytyme And eftir his deceis to Johne Erskene his sone and appeirand air for the space of Nyntene yeiris Entrie at the Ischie of ane former tak daittit first Februar 1580 Payand yeirlic xlvij lib. at Witsonday and Mertymes Albeit the Rentall thairof of auld is thrie chalderis twelf bollis Meill Twa Chalderis beir and four bollis quheit.

Item ane Letter of Tak of the dait 15th December 1603 sett to Andro Ker sone and appeirand air to Raulf Ker of Dalcoiff off the teynd schaves of the Toun and Landis of Dalcoiff for the space of Nyntene yeiris Entrie at Lambes 1604 . Payand yeirlic thrie Chalderis victuall viz^t xxiiij bollis strakit aitt Meill and xxiiij bollis vncheretit beir guid and sufficient stuiff of the nett and measur of Lawder at St Androis day and Candilmes.

Item ane Letter of Tak of the dait 21st December 1602 sett to Thomas Halyburtoun in Mertoun off the teynd peis and beanes of the Landis of the toun and maynes of

of Elistoun with the pertinentis lyand within the parochin of Lessuddane and Sherifdome of Roxburgh (Excepaund All and Haill the teind peis and beinis thairof) Together with All and Haill ane Husband Land callit Doggerflat lyand betuixt the Hietoune and Maxwellshewch within the Sherifdom above written For the space of nyntene yeires from Lambes last bypast 1617 Together with houses &c. &c. Payand therefor yeirlic the said Gilbert and his foresaids for the said Teind scheawes ane Chalder of streikit Meill aucht bollis beir guid and sufficient mercat stuff of the commoun met of the burgh of Jedburgh Twentie thraves of Stray at our place of Dryburghe at Sanet androis and Candilmes And for the fairsaid husband land with the pertinentis yeirlic Twentie schillingis Scots at Witsonday and Mertimes Dated at Halierudhouse the 7th day of Februar 1618. Witneses Johne Lewingstoun of Dwnnpeace Mr Alexander Seyttoun of Gargunnoch Thomas Ewing and Harie Dow our Seruitoris.

MAR.

Donypace Vitnes
Mr Alex^r Setone Vitnes
Thomas Lewingsteun witues
H. Dow witnes

(Original in the possession of David Erskine, Esq. of Cardross.)

Mertoun for Nynetene yeiris Entrie at the Ischie of an formar tak quhilk is of the dait 24 May 1587 Payand yeirle iij lib. betuix Candilmes and Fasterinsevin.

PART I

Original
Charters,
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Teinds,
continued.

Item the Guidman of Gloddisswod hes the teyndschaves thairof without ony title The Rentall thairof of auld is iij bollis Meill and twa bollis beir.

Item ane Letter of Tak of the dait 4 August 1604 sett to James Haig of Bemersyde off the teynd schaves of the Toun and Landis of Bemersyde for xix yeiris . Entrie at Lambes in the samyn yeir Payand yeirle xxij bollis beir and fifty bollis aittis or ellis aitt Meill effeirand thairto vizt ane Chalder Meill for ilk xxiiij bollis aittis guid and sufficient stuff to be layed in the girnell The one haif at St. Androis day and the vther half at Candilmes Togidder with thresein thraves stra.

Item ane Letter of Tak of the dait 15th December 1607 sett to James Haig of Bemersyde off the teyndschaves of the peis and beanes of the Toun and Landis and Maynes of Bemersyde and Landis of thrid for nynetene yeiris Entrie at Lambes eftir the dait abonewrittin Payand yeirle xxx s. at Vitsunday and Mertymes.

Item ane Letter of Tak the dait 24th August 1602 sett to Sir James Home of Qulitrig Knycht off the teynd Schaves thairof for nynetene yeiris Entrie at Lambes in the samyn yeir Payand yeirle iij lib. at Candilmes and Lambes Albeit the samyn payit yeirle of befor conforme to the auld rental vj bollis Meill and twa bollis beir.

Item Johnne Halyburtonn of Mertoun hes the teynd schaves of Boucheoreoit and Lochflatt whair of thair was nevyr tak Payand yeirle viij bollis aittis.

Item ane Letter of Tak of the dait the penult of May 1608 set to Mr Robert Home of Carrolsyde off the teyndschaves of the Toun and Landis of Brodirstanis for the space of Nynetene yeiris Entrie at Lambes thairfur Payand yeirle viij bo. beir and viij bo. straukit aitt meill of Lawderdaill mett conforme to the auld vse of the Abbay betuix Yuill and Candilmes . Albeit the auld Rental beiris viij bollis beir and xiij bollis meill The Commissar of Lawder hes presentlie richt to the said Tak .

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continued.

Item the teynd schaves of the toun and Landis of Dryburt sa far as I have seine yit ar set with the Landis and payis money for bayt.

SMAILHOLME.

Item ane Letter of Tak of the dait 28 November 1594 sett to Sir James Home of Qubitrig Knycht of the teyndschaves of the parochin and paroche Kirk of Smailholme (except the teyndschaives of Wrangholme) for xix yeiris Entrie at Lambes preceeding Payand yeirlic twelf chalderis Vittuall vizt. four chalderis beir sevin chalderis strakit meill and ane chalder aittis The ane half at Candilmes and the vther half at our Ladyday in Lentrone To be delynerit in the ginnell with the meassur of Launder The Laird of Coldenknowis acclames vj chalder of the said vittuall to pertene to him for his baillie fie as heretable baillie of the Lordschip of Dryburgh.

Item ane vther Tak of the samyn daitt sett to the said Sir James of the foirnammet teynd schaves for the space foirsaid Entrie as in the vther Payand yeirlic ane hundredth merkis at Candilmes and Lambes.

Item ane Letter of Tak sett to George Hoppringill of Wrangholme of the teynd schaves thair of for nyntene yeiris Entrie at Lambes eftir the dait thair of quhilk is 13 July 1603 Payand yeirlic xiiij bollis aittis and four bollis beir guid and sufficient stuiff of the met of Jedburgh with aucht thraves of stra at the place of Dryburgh at Sanct androis day and Candilmes.

LAWDER.

Item ane Tak of the teyndschaves of the paroche Kirk of Lawder off the dait sett to Vmquhile Johnne Lord Thirlstane and Vmquhile Flemyng his spous during thair lyftymes and to ane air for xix yeiris Payand yeirlic

Item ane Letter of Tak of the dait the last day of September 1605 sett to Lawsons of Humberie of the personage and vicearage of certane Landis within the

parochin of Lawder For nyntene yeiris at Lambes 1607—Payand yeirlie 2 merkis money.

Original
Charters,
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Tacks of
Teinds,
continued.

Item ane Letter of Tak of the dait 13th July 1602 sett to Thomas Cranstoun of the vicarrage teyndis of the parochie Kirk of Lawder for nyntene yeiris Entrie at the dait thairof fonsaid quhairin the guidman of Humbies Tak is reseruit Payand yeirlie fyftie merkis at Witsonday and Mertymes.

The Lord Thiristane purpoiss to tak the haill teyndis personage and viccarage of Lawder and dewtie thairof fra the Abbay of Dryburgh be his richt of patronage And hes presentit the minister persoun quha hes sett bak takis of the saidis haill teyndis to ane mediat persoun.¹

CHINGILKIRK.

Item ane Letter of Tak of the dait the sett to Thomas Lothiane of Lylstoun off the half teynd schaves teynd woll and teynd lamb of the personage and viccarage of Chingilkirk for nyntene yeiris Entrie at the Ischie of ane vther nyntene

¹ Tack by David Commendator of Dryburgh, with consent of the Convent, and of Maister Andro Hovme, Pensioner of Lauder, to Andro Hovme and Margaret Hovme sone and dochter naturall to the said Maister Andro Hovme equalie betwixt thame the langar levand of thame tua thair assignayis and subfermeraris ane or ma All and Haill the Teind schewis of the Landis and Towne of Lauder the Teind schewis of the Forrest of Lauder, Ouer Wodheid Myrcleuch the Teind schewis of Sanct Johanis Chaippell the Teind schewis of the Towne and Landis of Cadislie the Teind scheuis of Sanct Leonardis Chappell the Teind scheuis of the Lands and Tovne of Trabroun the teind scheuis of the Landis of Pilmor Blakchester Muirhous Halkerland the teind scheuis of the lands of Lyelstoun Rogerislaw Burne Grange Quhitlaw Blyth Eruscleuch Egrop Snodone Lammachie Wautonwallis Thiristane Lady partis Gairmuir The Over Scheilfieldis the Nather Scheilfieldis the Heuche the West Mains the Eist Mains the Landis of Weddirlie the Burnecastell Armetage and All aud Haill the teind scheuis that the said Maister Andro hes in pensoun of the Abbay of Dryburgh—for the space of nyneten yeiris after Lambes then next—Payand therefor twa hundreth merkis Scots yeirlie at Lambes and Candelmes—Dated at Dryburgh 29 June 1560. Witnesses Maister Adam Erskin Chancellor of Glasgow Sir Andro Haigy Wiccar of Faw Kirk Alexander Erskin Maister Alexander Drysdail and Charliss Howme.—(*Original in the possession of David Erskine, Esq. of Cardross.*)

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yeir tak sett to Elizabeth Forman quhilk is of the dait the 20th Marche 1589 Payand yeirlie fyftie merkis at Candilmes and Lambes.

Item ane Letter of Tak of the dait the 15 May 1582 yeiris sett to Johnne Cranstoun of Morestoun for all the dayes of his lyftyme and efter his deceis to Mr Thomas Cranstoun during all the dayes of his lyfetyne And efter his deceis to the said Mr Thomas air for the space of 19 yeiris off the vther half of the saidis teyndis personage and viccarage of the said paroeche Kirk Entrie at the dait thair of Payand yeirlie fyftie merkis at Candilmes and Lambes.

PENCAITLANE.

Item ane Letter of Tak of the dait the said 15th of May 1582 yeiris Sett to the saidis John and Mr Thomas Cranstounes the Langest lever of thame twa during thair lyftymes and to the said Mr Thomas air for 19 yeiris off the half teyndschaves of the said parioche kirk and paroechin of Pencaitlane Entrie at the dait thair of fairsaid Payand yeirlie fyftie merkis at Witsunday and Mertymes.

Item ane Letter of Tak of the dait the said 15th of May 1582 yeiris sett to the said Johnne Cranstoun of Morestoun his airis maill and assigneis off the vther half of the saidis teyndschaves quhilkis pertenit to umquhile Sir Johnne Castellaw and umquhile Thomas Castellaw for 19 yeiris Entrie at the Ischie of ane former tak thair of alledgit grantit to the saidis umquhile Sir Johnne and Thomas Castellawis daitit 22 of Junij 1567 yeiris containing certane provisiounes in favours of the relict and dochter of the said umquhille Thomas Castellaw Payand yeirlie fyftie merkis at Witsunday and Mertymes.

Item ane vther Tak of the samyn half teynd schaves sett to the said John Cranstoun and his airis off the dait of the former for 19 yeris Entrie at the Ischie of the other 19 yeiris Tak thereof set to him of the samyn Payand the lyke dewtie.

SALTOUN.

Item ane Letter of Tak of the dait the 20 of August 1599 yeiris set to Sir James

Crichtoun of Ruthvenis Knyt off the teynd schaves of the paroche Kirk of Saltoun for 19 yeiris—Entrie at Lambes 1603 quhilk is the Ischie of ane former Tak sett to Marie Crichtoun relict of vmquhile Mr George Crichtoun Payand £66 : 13 : 4 at Candilmes and Lambes.

PART I.
Original
Charters,
Gifts, and
Tacks of
Teinds,
continued.

GULANE.

Item ane Tak of the dait the set to my Lord off the teyndschaves of the Toun and Landis of Dirltoun &c. for 19 yeiris Entrie at Lambes one thousand five hundred four scoir yeiris Payand £100.

Item ane Letter of Tak of the dait the 8th and 12th dayes of May 1581 yeiris sett to Thomas Marjoribankis of Ratho and Marioun Dowglas his spous for thair lyftymes and efter thair deceiss to Johnne Marjoribankis their eldest sone for 19 yeiris off the teynd schaves of the tonn and Landis of Kingistoun within the said parochin Entrie at the dait thair of foirsaid Payand yeirlie 20 merkis at Witsonday and Mertymes.

Item my Lord President hes the teyndis of Fentoun Barnes for payment of quhat dewtie I knaw not.

KILRENNIE.

Item ane Letter of Tak sett to William Barclay of Innergellie of the dait the 11th of November 1591 yeiris off the teynd schaves of the said paroche Kirk and parochin of Kilrenny ffor all the dayes of his lyftyme and to ane air efter him during the said airis lyftyme and efter the saidis airis deceiss to the said airis air for 19 yeiris Entrie at the dait thair of Payand viijth lib. at Witsonday and Mertymes.

LANERK.

Item ane Letter of Tak of the dait the 8th Marche 1585 yeiris sett to Archibald Earl of Angus &c. off the teynd schaves of the Toun Landis Territorie and Boundis of

PART I.
Original
Charters,
Gifts, and
Tacks of
Teinds,
continued.

the burght of Lanerk callit the inteyndis of Lanerk for 19 yeiris Entrie at Lambes in the samyn yeir Payand £40.

Item ane Letter of Tak of the dait the 21 of Junij 1601 yeiris sett to James Hamiltoun of Libbertoun of the teynd schaves of the out parochin of Lanerk for 19 yeiris Entrie at the dait thair of foresaid Payand yeirlie £40 at Witsunday and Mertymes.

PETTINANE.

Item ane Letter of Tak of the dait the 13th day of July 1588 yeiris sett be David Commendator of Dryburgh to Johnne Carmichael of Meddowflatt and Johnne Carmichael Younger his sone and his airis Maill &c. off All and Haill the teynd schaves of the Kirk of Pettinane lyand within the Diocie of Glasgow and sherefdom of Lanerk For the space of 19 yeiris nixt efter his entrie thereto quhilk wes at the feist of Witsunday 1588 yeiris foirsaid Payand yeirlie £20 money at Witsunday and Mertymes in Dryburgh or Edinburght Togidder also with all ordinar charges and coistes in ministratioun of the Sacramentis and upholding of the Kirk in thak 2 glasin windois and wattertight during the said space.¹

¹ Tak by Shir Johne Twedy Vicare of Pettynane, with consent of the Commendator and Convent of Dryburgh in favour of William Weir his airis assignays and subtennentis ane or ma All and Haill the Gleib of Kirkland, Manse and yard pertening to the Vicarage of Pettynane extending to tua aeres of land or thereby occupyt be the said William lyand within the Sherifflome of Lanark for nynteen yeiris from Beltain 1562 Payand therefor yeirlie ten schillingis Scots at Mertimes and Witsunday Dated at Peblis the 26th day of April 1562 before Witnesses Johne Weir in Inglisberry grange Schir Johne Bull Thomas Twedy Adam Dike burgess of Peblis and Johne Peblis.

Schyr Johonn Twedy

Wecar of Pathenan with my hand.

(*Original in the Possession of David Erskine, Esq. of Cardross.*)

APPENDIX.

PART II.

RENTALS OF DRYBURGH.

No. XXXVII.

TAXATION OF THE ABBEY OF DRYBURGH *by the Abbot of Coldingham, as Collector under the grant made by the Pope to Henry III. and Edward I. of England, of the Tithes of Scotch Benefices, in aid of the Holy Land. (Circa 1290.)*

DRYBURGE.

Redditus ejusdem in denarijs	.	.	.	xviiij l. xiiii s. iiij d.
Cultura sex carucatarum terre	.	.	.	xiiij l. vjs. viij d.
Exitus vaccarum et ovium,	.	.	.	vi l. xviijs.
Lana et agni,	.	.	.	xiiij l. xiiii s. ij d.
Mertone cum vicaria ejusdem	.	.	.	xxxviij l.
Ecclesia de Lonweder	.	.	.	lxviij l. xiiij s.
Childenechirche	.	.	.	xxx l.
Ecclesia de Golyne cum terris et vicaria ejusdem	.	.	.	xlviij l.
Ecclesia de Saultone cum vicaria	.	.	.	xxxix l. vij s. x d.
Summa	.	.	.	cclxxvij l. ii s. ij d.
Decima	.	.	.	xxvii l. xiiij s. iij d. ob.

The Abbey was taxed by the General Chapter of the Premonstratensians for the use of the order, at three florins yearly. LE PAIGE, *Bibliotheca*.

No. XXXVIII.

RENTALE DE DRYBURGH.

[Circa 1535.]

THE MALLIS OF THE LANDIS PERTEYNING TO THE PLACE OF DRIBURGH.

PART II. RENTALS, <i>continued.</i>	Item In primis the toun of Driburght wyth the Corne	
	Myll and Walkmyll thairof	xlviij lib.
	Item Gleddiswood	xl s.
	Item Broderstains	iiij lib.
	Item Ersildowne	xxij s.
	Item Bangswallis	xlvi s. viij d.
	Item Fowldane	xl s.
	Item Doggarflatt	xx s.
	Item Smalem-toune	xv s.
	Item Sanct Jhonnis Caippell	vij li.
	Item Caiddislle	xxiiij lib.
	Item the Landis of Lawder be Maister Andro Home and of that x li. to the Wicare.	xxj lib. vj s. viij d.

Item Wgstowne	.	.	.	.	xl s.
Item Nether Schilfeild	.	.	.	.	iiij li. vj s. viij d.
Item Banglaw	.	.	.	.	vij li.
Item the Barnis	.	.	.	.	vj li.
Item Elbottyll	.	.	.	.	iiij li. vj s. viij d.
Item Inglysberrye Grange	.	.	.	.	xliij li.
Item Yflye	.	.	.	.	vj li.
Summa in Syluer					

THE ANNUALLIS PERTEINYNG TO THE ABBAY OF DRYBURGH.

Item in primis Dalcoif	.	.	.	.	xiiij s. iiij d.
Item Lessudene	.	.	.	.	vj s. viij d.
Item Flemingtoun	.	.	.	.	vj s. viij d.
Item Hwntrodland	.	.	.	.	vj s. viij d.
Item Byrkinsyid	.	.	.	.	xiiij s. iiij d.
Item Aldestowne	.	.	.	.	xl s.
Item The Carsmyir	.	.	.	.	vj s. viij d.
Item Hathingtoun	.	.	.	.	xiiij s. iiij d.
Item Dwnbar	.	.	.	.	xxvj s. viij d.
Item The Bothanis	.	.	.	.	vj s. viij d.
Item Quhytterne	.	.	.	.	xl s.
Item Edynburgh	.	.	.	.	xxx s.
Item The Blackbarronye	.	.	.	.	xx s.
Item Ednahame	.	.	.	.	xx s.

Summa in Syluer xii li. vi s. iiij d.

PART II.
RENTALS,
continued.

THE KYRKIS THAT PAYIS SYLVER TO THE ABBAY OF DRYBURGH.

THE KYRK OF LAUDER.

Item In primis the Kyrk of Lauder be Maister James Cranstowne and Johnne Fowress .	lx li.
Item the gleib thair of be James Lausone of Hwmbie	xxxiiij li. vj s. viij d.

THE KYRK OF CHYNDYLKYRK.

Item be Cudbart Cranstone and Maister Robert Formane	lxvj li. xiiij s. iiij d.
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THE KYRK OF SALTONE.

Item be Maister Abraham Crychtone and Schir Johnne Cambyll	lxvj li. xiiij s. iiij d.
Item the Kirkland thair of	xj markis.

THE KYRK OF PENCATLAND.

Item be Richart Cranstone and Sir Johnne Castil- law with the Kirkland thair of	lxviij li. xiiij s. iiij d.
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THE KYRK OF KYLRENNY.

Item be Wyllyem Barklye and hys ayris	j ^l x li.
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THE KYRK OF LAYNARK.

PART II.

RENTALS,
continued.

Item be my Lord of Angws . . .	lxxxli.
And thair of gyfyng to three caiplandis .	xxx li.
Item be James Hamyltone . . .	

THE KYRK OF PETTYNANE.

Item be the Capitane of Crawford . . .	xx li.
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THE KYRK OF GULENE.

Item the towne of Gulene wyth the pertinentis be Sir Johnne Wilsoun and Wylyem Muyrheid	Twa bol queit xij bo. beyr vij bo. aitis.
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THE TOWNE OF DYRILTOWNE.

Item the towne of Dyriltowne be my Lord Reyfyne	Twa ch. queit twa ch. beyr and ij ch. aitis.
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THE MAYNIS THAIROF.

Item the Maynis thairof . . .	forty bols queit xl bo. beyr v ch. aitis.
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CONGYLTOWNE.

Item Congyltone be the Tutor thairof . . .	x bol queit x bol beyr xx bo. aitis.
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PART II.

RENTALS,
continued.

THE BARNIS.

Item the Barnis be the Lard of Fayrneherst	iiij bol quiet iiij bol beyr and viij bol aitis.
Item West Fentone	xxiiij bol queit xxiiij beyr and ane chal. aitis.
Item the Saltcotis be Mr Patryk Home	Thre bol quiet iij bol beyr and vi bol aitis.
Item Est fentone be Gawyng Borthyk	xx li.

THE SCHEWIS OF WYCTUALIS OF DRYBURGH ONE THIS SYID OF SOLTRA.

THE KYRK OF MAXTOWNE.

Item be Mark Ker for Ruthirfuyrd and the ta half of Maxtone	Thre chalder meill twa chal- ders beyr and ane chal- der queit.
Item be the Laird of Mertone for the Twther half of Maxtowne	xxvi bol miell ane chalder beyr and iiij bo. queit.

THE KYRK OF LESSUDDENE.

Item the town of Lessudene	in meill five chalder in beir ij chal. viij bo. in queit viij bo.
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THE TOWNE OF ELESTOWNE.

PART II.

RENTALS,
continued.

Item the towne of Elestowne	in meill ane chal. in beyr vij bo.
Item Camestowne and the Temylland	in meill iiij bol. In beyr iiij bol.

THE MUIRHOWSLAW.

Item the Muirhowslaw	in meill xx bol and iiij bo. beyr.
Gleddiswod	iiij bol meill and ij bol beyr.
Item the Laird of Bemersyid for the Teind thairof	xxij bol beyr the meill in my lordis wyll quheddir meill or aitis.
Summa in aitis	fifty bol.

DALCOIF.

Item Dalcoif	in meil xxiij bol in beyr xxiiij bol.
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THE TOWNE OF MERTOWNE.

Item be Walter Halyburtone for the towne thairof	Thre chal. meill and xii bol. meill in beyr twa chal. in queit iiij. bol.
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SMALEME.

Item Smaleme	in meill vij chald. in beyr iiij chald. in aitis ane chal.
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PART II.

QUHYTRYG.

RENTALS,
continued.

Item Quhytryg	in meill vj bol in beyr twa bol.
Item Wranghame	in beyr iij bol in aitixiij bol.
Item Dryburgh wyth the new orchard teindis fermers all togydder	five chaldyr and xii bol beyr all beyr.

BRODERSTANIS.

Item Broderstanis	in beyr viij bol in meill xij bol.
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THE NEWTOWNE.

Item the Newtowne	in aitixiij bol.
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THE KANE FOWLLIS PERTENYNG TO THE ABBAY OF DRYBURGH.

The towne of Dryburgh	vij dowssene powltre.
The Corne Myll of the samyne	twa dowssene powltre.
The Landis of Mertowne for Walter Halyburtonis payrt	vj powltre.
Item for Thome Halyburtonis payrt	vj powltre.
Item Margret Dowglass for hyr part	vj powltre.
Item Andro Jordane For his part	ij powltre.
Item Thome of Myll for his part	ij powltre.
Item Thome Greinfeild for hys part	ij powltre.

THE TENANDIS OF SMALEME PERTEINYNG TO THE ABBAY OF DRYBURGH.

PART II.

RENTALS,
continued.

Item in primis Thome Rycharsone and Thome	
Rudderfwyrd	iiij powltre.
Item James Lydderdayll for Yrsiltoune	iiij powltre.
Item Maister Andro Home for the Landis of	
Laudderdayll	xxv caponis and xxv powl-
	tre.
Item Jhone Robsone and Adame Robsone for the	
Landis of Gled dyswod	vi caponis and vi powltre.
Item Thome Home for Bangswallis	vi caponis.
Item George Oppryngyll for Caidislye and Sanct	
Jhonnis Chapell	v doissene powltre and ca-
	ponis.
Item Rychart Calclewch	iiij caponis and vi powltre
Item Walter Halyburtone for Nethirscheilfeild .	vj caponis and xij powltre
Item the Landis of Banglaw	xij caponis.
Summa in caponis	
Summa in Powltric	

No. XXXIX.

RENTALE DE DRYBURGH.

[Circa 1540.]

SMALAHAME KIRK.

PART II. RENTALS, <i>continued.</i>	In ye first the toun of Smalahame sett to the	
	Larde of Coldenknowis paying yeirle .	vii chalderis mele iiij ch. beir and ane chalder aitis.
	Item the Guidwife of Smalahame-Craigis for	
	Wranghame	iiij bo. beir xiiij bo. aitis.

THE KIRK OF MERTOUN.

Item Watt Haliburtoun for the toun of Mertoun	iiij ch. xij bo. mele ij ch. beir and iiij bo. quheit.
Item the Lard of the Schaw for Daleoif .	xxiiij bo. mele xiiij bo. beir.
Item the Lard of Coldenknowis for Quhitrig .	vj bo. mele and tua bo. beir.
Item the Lard of Bemirside	ij ch. mele j ch. vj bo. beir and tua bo. aitis.
Item Johnne Robsoun for Gleddiswod . .	iiij bo. mele ij bo. beir.
Item Alex ^r Homys wife for Broderstanis .	xij bo. mele viij bo. beir.
Item the toun of Driburght wyth the new orchard and the teind thairof	v ch. xij bo. beir.

THE KIRK OF MAXTOUN.

PART II.

RENTALS,
continued.

In the first Mark [Ker] for Rnthirfuird and that ane half of Maxtoun	iiij ch. mele ij ch. beir and ane ch. quheit.
Item the Lard of Mertoun for that ane half of Maxtoun	j ch. x bo. mele j ch. beir and iiij bo. quheit.
Item Johnne Haliburtoun for Muirhonslaw	j ch. iiij bo. mele and iiij bo. beir.
Item Mark Ker for Camnestoun and the Tempill land	iiij bo. mele iiij bo. beir.

THE KIRK OF LESSUDEN.

In the first the toun of Lessudden	iiij ch. viij bo. mele ij ch. beir viij bo. quheit.
Item the Lard of Greinheid for Elistoun	j ch. mele viij bo. beir.
Item Johnne Hoppringill for the Newtown	ij ch. aitis.
Summa in mele	
Summa in beir	
Summa in quheit	
Summa in aittis	

The Males of the Landis perteing to the Abbay of Driburght in the hail yeir,—

In the first the toun of Driburght wyth the Milnis thair of	xlüij lib.
Gleddiswood	xl s.
Brodirstains	iiij lib.
The Landis of Ersiltoun	xxij s.
Doggarflatt	xx s.

PART II.	Sanct Johnis Chapell and Cadislic . . .	xxxij li.
RENTALS	The Landis of Lawder be Maister Andro Home	xxj li. vj s. viij d.
<i>continued.</i>	Nethir Scheilfeld	iiij li. vj s. viij d.
	Vgstoun	xl s.
	Banglaw	viiij li.
	The Bernys	vj li.
	Elbottill	iiij li. vj s. viij d.
	Ingisberry Grange with the teynd thair of be my	
	Lord Symmervell	xliij li.
	The landis of Itlic	vj li.
	Fouldane	xl s.
	Banguswallis	xlvj s. viij d.
	Smalahame Landis	xv s.
	Smalahame Spittall	xiiij li. vj s. viij d.

THE ANNUALLIS.

In the first Dalcoif	xiiij s. iiij d.
Lessuden	iiij s.
Flemingtoun	vj s. viij d.
Huntrodland	vj s. viij d.
Birkingside	xiiij s. iiij d.
Aldestoun	xl s.
The Kersmyre	vj s. viij d.
Hathingtoun	xiiij s. iiij d.
Dunbar	xxvj s. viij d.
The Bothanis	vj s. viij d.
Edinburgh	xxx s.
Qulithorne	xl s.
The Blakbarronie	xx s.
Edname	xx s.
Summa	

THE KIRKIS THAT PAYS MONEY.

PART II.

RENTALS.
continued.

LAWDER.

In the first the Kirk of Lawder be Maister James	
Cranstoun and Johnne Forrouss	lx li.
Item the gleib thairof be James Lawsoun	xxxiiij li. vj s. viij d.

CHEINDILKIRK.

Item Cudbert Cranstoun and Maister Robert For-	
mane for the Kirk of Cheindilkirk	lxvj li. xiiij s. iiij d.

SALTOUN.

Item Maister Abram Creichtoun and Schir Johnne	
Cambell for the Kirk of Saltoun	lxvj li. xiiij s. iiij d.
Item the Kirkland thairof	xj markis.

PENCATLAND

Item Richard Cranstoun and Sir Johnne Castellaw	
for the Kirk of Pencatland with the Kirk-	
land thairof	lxviiij li. xiiij s. iiij d.

KILRENNYE.

Item William Barelay and his airis for the Kirk	
of Kilrennye	j ^c lx li.

LANERK.

Item the Kirk of Lanerk In the first be my Lord Anguss	lxxx li
And thairof payit to thre chapelkains	xxx li.
Item be James Hamiltoun	

PART II.

PETTYNANE.

RENTALS,

continued.

Item the Capitane of Craufuird for the Kirk of Petty-
 nane xx li.

GULEN KIRK.

Item the toun of Gulen wyth the pertinentis thair of
 be Sir Johnne Wilsoun and William Muyrheid . ij bo. quheit xij bo. beir viij bo.
 aitis.

Item the toun of Dyriltoun be my Lord Ruthven . ij ch. quheit ij ch. beir and ij.
 aitis.

Item the Manyss thair of xl bo. quheit xl bo. beir and
 v ch. aitis.

Item Congiltoun be the Tutor thair of x bo. quheit x bo. beir xx bo.
 aitis.

Item the Bernis be the Lard of Pharniherst iiij bo. quheit iiij bo. beir and
 viij bo. aitis.

Item West Fentoun xxiiij. bo. quheit xxiiij bo. beir
 j ch. aitis.

Item the Saltcotis be Maister Patrik Home iij bo. quheit iij bo. beir and
 vi bo. aitis.

Item Est fentoun be Johne Quhitlaw xx li.

Item the teind of Kingstoun be Maister Thomas Mar-
 joribankis xiiij li. vj s. viij d.

Item the Landes of Kingstoun be Adame Hebburne . xi lib. and that to the preist
 of Sanct Katherines Chapell
 in Dirltoun.

No. XL.

RENTALE DE DRYBURGH.

[Circa 1545.]

SMALAHAME IN WICTUALLIS.

SMALAHAME KIRK.

Item in the first, the Larde of Coldenknowis payis

for the toun of Smalahame vij chalderis mele iij ch. beir
and ane chalder aittis.

PART II.

RENTALS,
continued

The Guidwyfe of Smalahame Craigis for Wranghame iij bo. beir xiiij bo. aittis.

MERTOUN KIRK.

Item Wat Halliburton for the toun of Mertoun . iiii ch. xij bo. mele ij ch beir
and iiii bo. quheit.

Item the Lard of the Schaw for the teind of Dalcoiff xxiiij bo. mele xxiiij bo. beir.

Item the Lard of Coldenknowis for Qulitrikvj bo. mele and ij bo. beir.

Item the Lard of Bemirside ij ch. mele j ch. vj bo. beir and
ij bo. aittis.

Item Johnne Robsoun for Gleddiswod iij bo. mele ij bo. beir.

Item Alex^r Homes wyffe for Broderstanis . . . viij bo. mele viij bo. beir.

Item the Town of Driburght wyth the new orchard
and teind of the aikeris feu ferme and teind . . . v ch. xij bo. beir.

xxiij bollis thairof sett in few for xxiij m^{ks}

PART II.

MAXTOUN KIRK.

RENTALS,
continued.

Item Mark Ker for Ruthirfurd and that ane half of the Toun of Maxtoun	ij ch. mele ij ch. beir and j ch. quheit.
Item the Lard of Mertoun for that ane half of the Toun of Maxtoun	j ch. x bo. mele j ch. beir and iiij bo. quheit.
Item Johnne Halliburton for the teind of Muir- houslaw	j ch. iiij bo. mele and iiij bo. beir.
Item Mark Ker for Camnestoun and the Temple-land	iiij bo. mele iiij bo. beir.

LESSEDOUN KIRK.

Item the toun of Lessedoun	iiij ch. viij bo. mele ij ch. beir viij bo. quheit.
Item Elastoun be the Lard of Grenheid	j ch. mele viij bo. beir.
Item the Newtown be Johnne Hoppringill	ij ch. aittis.
Summa in mele	xxvj ch. iiij bo. <i>ferine</i> .
Summa in beir	xxi ch. x bo. <i>ordei</i> .
Summa in quheit	ij ch. <i>frumenti</i> .
Summa in aittis	iiij ch. <i>avenarum</i> .

The Maillis of the Landis perteinand to the Abbey of Driburght in the haill yeir.—

In the first the toun of Driburght wyth the Milnis thairof xli lib.

Wast thairof the walkmylne x merkis

Item the Landis of Gleddiswood	xl s.
Item the Landis of Brodirstains (Coldenknowis)	iiij lib.
Item the Landis of Ersiltoun	xxij s.
Item Doggarflatt	xx s.

Item Sanet Johnis Chapell and Caidislie	xxxij li.
Item the Kirklandis of Lawder be Maister Andro Home	xxj li. vj s. viij d.
Item Nethir Scheilfeild	iiij li. vj s. viij d.
Item the Landis of Vgstoun	xl s.
Item the Landis of Banglaw	vij li.
Item the Bernes	vj li.
Item Elbottill	iiij li. vj s. viij d.
Item the Landis of Inglisberry Grange with the teynd thairof Lord Sommervell	xlj li.
Item the landis of Yiffle	vj li.
Item the landis of Fouldane	xl s.
Item Banghouswallis (Coldenknowis)	xlvj s. viij. d.
Item Smalahame Landis	xv s.
Item Smalahame Spittell (Coldenknowis)	xiiij li. vj s. viij d.

Summa hujus particule *j^c iiij^{xx} xv lib. x s. iiij d.*

THE ANNUALLIS.

Item in the first Dalcoif,	xiiij s. iiij d.
Lessedoun	iiij s.
Flemingtoun	vj s. viij d.
Huntrodland	vj s. viij d.
Birkinsyde	xiiij s. iiij d.
Aldestoun	xl s.
The Kersmyre	vj s. viij d.
Haddingtoun	xiiij s. iii d.
Dunbar	xxvj s. viij d.
The Bothanis	vj s. viij d.
Edinburcht	xxx s.
Qulhitterne	xl s.
Blakbarronie	xx s.
Edname	xx s.

"Write and wa payment."

Summa hujus particule *xij li. vj s. viij d.*

THE KIRKS THAT PAYIS MONEY.

LAWDER.

PART II. RENTALS, continued.	In ye first Maister James Cranstoun and Johnne	
	Forrouss for the Vicariage of Lauder	lx li.
	“ <i>Diminuit thair of yeir lie sen reformation—</i> æe lib.	
	<i>The rest na payment.”</i>	
	Item the glebe thair of Robert Lawsoun	xxxiiij li. vj s. viij d.

CHIEINDILKIRK.

Item be Cudbert Cranstoun and Maister Formane	lxvi li. xiiij s. iiij d.
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SALTOUN.

Item Maister Abraham Creichtoun and Schir	
Johnne Cambell for the Kirk of Saltoun	lxxj li. xiiij s. iiij d.
Item the Kirkland thair of	vij lib. vj s. viij d.

PENCAITLAND.

Item Rychart Cranstoun and Sir Johnne Castellaw	
for the Kirk of Pencaitland	lxvi li. xiiij s. iiij d.
Item the said Sir Johnne for the Kirkland yair of	xl s.

KILRENNYE.

William Barclay is airis for the Kirk of Kil-	
rennye	ij li.

LANARK.

PART II.
RENTALS,
continued.

Item My Lord Anguss and Sir James Hamiltoun .	
for the Kirk of Lanrik	lxxx li.
And thair of payit to thrie chapellains	xxx li.

PETTYNANE.

Item the Capitaue of Craufuird for the Kirk of Petty-	
nane	xx li.

No. XLI.

RENTALL OFF DRYBURGH.

[*Circa 1555.*]

SMALHAME KIRK.

In the first, the toun of Smalahame pays be the Larde	
of Coldenknowis	vij chalderis meill ij ch. beir
	and ane chalder aitir.
Wranghame	iiij bo. beir xiiij bo. aitir.

MERTOUN KIRK.

PART II. RENTALS, <i>continued.</i>	The toun of Mertoun	2	6	.	.	xlviij lib.
	olim vi ch. victualls.					
	The toun of Dalcoiff	.	.	.	.	xxiiij bo. mele xxiiij bo. beir.
	Qulhitrig	.	.	.	.	vj bo. mele and tua bo. beir.
	Bemirside	.	.	.	.	ij ch. mele j ch. vj bo. beir and ij bo. aitis.
	Gleddiswod	.	.	.	.	iiij bo. mele ij bo. beir.
	Brothirstanis	.	.	.	.	vij bo. mele vij bo. beir.
	The Toun of Driburght with the new orchard and teind of the aikeris baith for ferme and teind .					v ch. xij bo. beir.
	And thair of sett in feu for xxiiii markis xxiiij bo. beir. Restis .	.	.	.	.	iiij ch. iiij bo. beir.

MAXTOUN KIRK.

Mark Ker for Ruthirfuird and that ane half of Max- toun .	.	.	.	.	.	iiij ch. mele ij ch. beir and j ch. quheit.
The Lard of Mertoun for that ane vthir half of Maxtoun .	.	.	.	.	.	j ch. x bo. mele j ch. beir and iiij bo. quheit.
The Muirhouslaw .	.	.	.	.	.	j ch. iiij bo. mele and iiij bo. beir.
Canestoun and Temple-land .	.	.	.	.	.	iiij bo. mele iiij bo. beir

LESSUDEN KIRK.

The Toun of Lessudden .	.	.	.	.	.	iiij ch. vij bo. mele i ch. beir vij bo. quheit.
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Elistoun	j ch. mele viij bo. beir.	PART II.
The Eest syde of Newtoun	ij ch. aitiss.	RENTALS, <i>continued.</i>
Summa in mele	xxi ch. iij bo.	
Summa in beir	xvij ch. ij bo.	
Summa in quheit	i ch. xvj. bo.	
Summa in aittis	iiij ch.	

The Malis of the Landis pertaining to the Abbay of Driburght in the haill yeir—

In ye first the toun of Driburght with the Milnis thair of olim xli lib. and thair of the walk mylne waist extending yeirlic to x markis. Restis .	xxxiiij lib. vi s. viij d.
Gleddiswood	xl s.
Brodirstains	iiij lib.
Ersiltoun	xxij s.
Doggarflatt	xx s.
Sanet Johnnis Chapell and Caidislie	xxxij li.
The Kirkland of Lawder	xxj li. vj s. viij d.
Nethir Scheilfeild	iiij li. vj s. viij d.
The Landis in Vgstoun	xl s.
Banglaw	vij li.
The Bernis	vj li.
Elbottill	iiij li. vj s. viij d.
Inglisherry Grange with the teynd of the same	xliij li.
Idlie	vj li.
Fouldane	xl s.
Banghouswallis	xlvj s. viij d.
The Landis in Smalhame	xv s.
Smalhame Spittell	xiiij li. vj s. viij d.

Summa ƿ lxxxv lib. xviij s.

THE ANNUALLIS.

PART II.	Dalcoif	xij s. iij d.
RENTALS,	Lessudden	ij s.
<i>continued.</i>	Birkiniside	xij s. iij d.
	Dunbar	xxvj s. viij d.
	Fleningtoun	vj s. viij d.
	Huntrodland	vj s. viij d.
	Aldestoun	xl s.
	The Kersmyre	vj s. viij d.
	Hathingtoun	xij s. iij d.
	The Bothanis	vj s. viij d.
	Edinburgh	xxx s.
	Qulitterne	xl s.
	Blakbarronie	xx s.
	Edname	xxs.

"Wart and out of use of payment."

Summa of the Annuallis that ar in vse of payment is lviij s. iij d.

THE KIRKIS THAT PAYIS MONEY.

LAUDER.

In the first the Vicarege of Lauder payit sumtyme	lx libs.
And thairof Defalcate yeirlie sen the reformatioun of the religioun	xx libs.
And the rest vacand and na payment.	
The gleib thairof	xxxij li. vj s. viij d.

CHEINDILKIRK.

The Kirk of Cheindilkirk	lxvi li. xij s. iij d.
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SAULTOUN.

The Kirk of Saultoun	lxxvj li. xiiij s. iiij d.
The Kirkland thair of	vij lib. vj s. viij d.
In pensioun yairof to Andrew Hagie	xl lib.

PART II
 RENTALS,
continued.

PENCAITLAND.

The Kirk of Pencaitland	lxxvj li. xii s. iiij d.
The Kirkland thair of	xl s.

KILRENNIE.

The Kirk of Kilrennye	j ^r lx li.
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LANERIK.

The Kirk of Lanerik	lxxx li.
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PETTYNANE.

The Kirk of Pettynane	xx li.
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GULEN.

The Kirk of Gulen	
Eist fentoun be Johnne Qulitlaw	xx lib.
and that in pensioun to Maister David Macgill	
The teind of Kingstoun	xiiij lib. vi s. viij d.
The Landis of Kingstoun	xi lib.
and that in pensioun to George Arnott.	

Summa of the money of the Kirkis Kirklandis
 and teindis abonementionat.

No. XLII.

RENTALE DE DRYBURGH.

[Circa 1560.]

PART II RENTALS, <i>continued.</i>	The Sombe of the haill money of the Abbacie of Dryburght coinforme to the auld rental	extendis yeirlie to	vii ^e xiiii lib. xvj s. viij d.
	The thrid part thair of extends to	ij ^e lxxj lib. xii s. ij $\frac{1}{2}$ d.	
	Restis of the tua part	v xliij lib. iij s. v $\frac{1}{2}$ d.	
	And heirof to be deducit to sax portioneris yeirlie		
	Ilk ane of thame takand in the yeir xiiij lib. extending in the haill to	iiij ^{xx} iij lib.	
	Item in pensioun to Sr. Andro Hagy	xl lib.	
	Item to Mr David M'Gill in pensioun	xx lib.	
	Item to James Schaw in pensioun	xx lib.	
	Item to Sr. George Arnnott	xj lib.	
	To the officiaris fee in Dryburght	xl s.	
	Item Defalcate of the vicarage of Lander of the sombe contenit in the auld rental yeirlie	xxvj lib. xiii s. iij d.	
	Item waist of the walkmyll of Dryburght	liij s. iij d.	
	Item of waist annuellis owt of vse of payment yeirlie	ix lib.	
	The Sombe of money to be deducit of the ij part is	}	
	And swa restis thair of,		

The haill quheit of the Rentale of Dryburght extendis yeirlie to	ij ch.
The thrid part thairof is x bo. And the thrid part of ij bo	
Sua rests of the tua part i ch. iiij bo. And tua part of ii bo.	
And thairof to be deducit yeirlie to vj portionaris	
Ilk ane takand iij bos., extending in the haill to	i ch. ij bo.
Item in Sande Erskin handis yeirlie of the teind of Mertoun	iiij bolls.
The haill beir of the Rentale of Dryburght extends yeirlie to	xxj ch. x bo.
The thrid part yairof is	vij ch. iij bolls thrid pairt bolls
And sua restis of the tua part	xiiij ch. vj bo. ij pt. bo.
And thairof to be deducit yeirlie to vj portionaris	
Ilk ane of thame takand in the yeir xij bolls iij fs. or extending in the haill to	iiij ch. xij bo. ij fs.
Item to the Officiar of Dryburt for his fee ane boll	
Item of the teind of Sualahame and Qulhitrik yeirlie in Excambioun or comptis betuix my Lord and the Lard of Coldenknowis yeirlie	iiij ch. ij bo.
Item in Sande Erskin hand of the teind of Mertoun yeirlie	ij ch.
Item wythhalding yeirlie of the teind of Lasse-doun sen the Lard of Bucclewth's Intromissioun thairwyth	vij bo.
Item of the fermes of Dryburght set in few for i mk. the boll yeirlie	j ch. viij bo. beir.
The Sombe of beir to be deducit of the tua part	
And sua restis thairof	

PART II.	The haille meill of the Rentale of Dryburght extendis	
RENTALS,	yeirlie to	xxvi ch. iiii b.
<i>continued.</i>	The thrid part thair of is	viii ch. xij bo.
	Restis of the tua part	xvij ch. viij bo.
	And thair of to be deducit yeirlie to vj portionaris ilk ane of thame takand in the yeir iij bo. extending in the haille to	i ch. ij bo.
	Item in possessioun to Johnne Lowdown	xij bo.
	To Georde Penny	ij bo.
	Item of the teind of Smalahame and Qulhittrik that cumis not into the place be excambioun maid be my Lord yeirlie	vij ch. vj bo. mele.
	Item of ye teind of Mertoun set for money to Sande Erskin yeirlie	ij ch xij bo. mele.
	Item of the teind of Broderstanes contenit in the Rental yeirlie mair nor Johnne Home and his Moder payis	iiij bo. mele.
	The Sowmbe of mele deducit of the tua part is	

No. XLIII.

RENTALE DE DRYBURGHT.

[Circa 1560—70.]

THE KIRKIS SET FOR VICTUALLIS.

SMALAHAME KIRK.

In the first the Laird of Cowdounknowis sould pay for the town of Smalahame	vij ch. meill iiijch. beir jch. aites.
And dedneit therof for his fee yeirlie	j ch. meill j ch. beir.

Item the Guidman of Smalahame-craigis for the
teynd of Wrangholme

iii bo. beir xiiij bo. aites. PART II.
RENTALS,
continued.

MERTOUN KIRK.

Walter Halyburtoun for the toun of Mertoun

iiij ch. xij b. meill ij ch. beir
iiij b. quheit.

The Lady of Dalcoif for the toun of Dalcoif

xxiiij b. meill xxiiij b. beir.

The Laird of Coudenknowis for Qulitrig

vj b. meill ij b. beir.

The Laird of Bemysyd

ij ch. meill j ch. vj bo. beir
ij b. aites.

Jon Robsoun of Gleddiswod

iiij b. meill ij b. beir.

Alex^r Home's wyff for Brotherstanis

viiij ch. meill vj b. beir.

The town of Dryburcht with the new orchard and
teynd of the aikers for the ferme and teynd

v ch. xij b. beir.

KIRK MAXTOUN.

Item Mark Ker for Rutherfurd and that ane half
of the toun of Maxtoun

iiij ch. meill ij ch. beir
j ch. quheit.

The Laird of Mertoun for that vthir half of the toun
of Maxtoun

i ch. x b. meill i ch. beir
iiij b. quheit.

Johnne Halyburtoun for the Muirhouslaw

i ch. iiij b. meill iiij b. beir.

Mark Ker for Camestoun and Tempiland

iiij b. meill iiij b. beir.

KIRK LESSUDDEN.

The toun of Lessudden

iiij ch. viij b. meill ij ch. beir
viij b. quheit.

PART II.	Elistoun	i ch. meill viij b. beir.
RENTALS,	The Newtown	ij ch. aites.
<i>continued.</i>	<i>Summa farine</i>	<i>xxv ch. xij b.</i>
	<i>ordei</i>	<i>xxvj ch. viij b.</i>
	<i>frumenti</i>	<i>ii ch.</i>
	<i>avenarum</i>	<i>iiij ch.</i>

THE MAILLES OF THE LANDIS PERTENYNG TO DRYBURGHT IN THE YEIR.

Imprimis the toun of Dryburgh with the mylne	xlj li. vj s. viij d.
Gleddiswod	xl s.
Brotherstanes	iiij li.
The landis in Ersiltoun	xxij s.
Doggarflat	xx s.
St Jones Chapell and Cadislie	xxij li.
The Kirkland of Launder be Mr Andro Home	xxj li. vj s. viij d.
Nather Sheilfield	iiij li. vj s. viij d.
The landis of Vgstoun	xl s.
The landis of Banglaw	viij li.
The Bernis	vj li.
Elbottill	iiij li. vj s. viij d.
The landis of Englisberry Grange with the teyndis of the samin be my Lord Sommerwell	xlj li.
The landis of Iflie	vj li.
Fouldaine	xl s.
Banghouswallis	xlvj s. viij d.
Smalahame landis	xl s.
Smalahame Spittell	xiij li. vj s. viij d.
<i>Summa hujus particule</i>	<i>j c. lxxxij li. xviij. s.</i>

THE ANNUELLIS.

Dalcoiff	xiiij s. iiij d.
Lessnden	iiij s.
Flemyngtoun	vj s.
Huntrodland	vj s. viij d.
Birkinsyd	xi s. iiij d.
Aldestoun	xl s.
Kersmyre	vj s. viij d.
Haddingtoun	xiiij s. iiij d.
Dunbar	xxvj s. viij d.
The Bothanes	vj s. viij d.
Edinburgh	xxx s.
Qulhitterne	xl s.
Blackbarone	xx s.
Ednam	xx s.

PART II.
RENTALS,
continued.

Summa hujus particule xij li. vj s. viij d.

THE KIRKES SET FOR MONEY.

LAUDER.

Mr James Cranstoun and Jon Farrous for the vicarege of Lauder	lxj li.
The gleib thereof	xxxiiij li. vj s. viij d.

CHEINDILKIRK.

Cudbert Cranstoun and Sir Robert Formane for the Kirk of Chenidilkirk	lxxvj li. xiiij s. iiij d.
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SALTOUN.

PART II. RENTALS, <i>continued.</i>	The Kirk of Saltoun assedata pro	lxxj li. xij s. iiij d.
	The Kirkland therof	vij li. vj s. viij d.

PENCAITLAND.

The Kirk of Pencaitland assedata for	lxxj li. xij s. iiij d.
The Kirkland therof	xl s
This Kirkland payis to Den Jon Shaw.	

KILRENNIE.

The Kirk of Kilrennie assedata for	j ^c lx li.
and it payit to the pensionare of Inchmahomo	

LANARK.

The Kirk of Lanark assedata to my Lord Angus	
and Sir James Hamiltoun for	lxxx li.
and thereof payit to the priestis of the chapell	

PETTINANE.

The Capitane of Craufurd for Pettinane	xx li.
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GULEN.

The Kirk of Gulen in assedatioun for	i ^c li.
Item Eist Fentoun	xx li.
The teynd of Kingstoun assedata for	xij li. vj s. viij d.
The landis of Kingstoun	xj li.
and it payit to the preist of St Catherines chapell in Dirltoun	

Summa of money for the kirkis and teynd aboue mentionat vij^c viij li.

Mem.—The parsonage of Lauder is in the handis of the persoun be assignation be provisioun of pensioun.

Mem.—Assignit and payit to ten channones and certan vithirs pensioners of the dewteis of this rental within writtin ij ch. quhet, x ch. vj b. meill, xj ch. xij b. beir.

Item in money to the saidis channones pensionares and factoris that collectis the ferm iij^e lxxv li. vj s. viij d.

Item to the priestis of Lauder and Saint Catherine's chapell xxj li. vj s. viij d.

Item payit of the dewteis of the Kirk of Lanark be Sir James Hammiltoun to thrie priestis there xl li.

Item payit therof to the pensionare of Inchmahomo i^e lx li.

Item the annuellis wast and out of vse of payment xij li.

Item inlaking of the payment of the mailles of the vicarege of Lauder be ressoun of non-payment of the corspresentis vpmost claithes and pasche ofrandis

Mem.—The haill teynd shevis of the Kirk of Lauder in the handis of M^r Androw Home pensionar therof.

THE ASSIGNATIOUN OF THE THIRD OF THE ABAY OF DRYBURGH.

Thrid therof viij ch. x b. ij f. ij part half part 3 therof.

Tak fra Mark Ker for Rutherfuid and half toun of Maxtoun iij ch. meill.

The toun of Lessuden iij ch. viij b. meill.

The Laird of Mertoun for the vthir half of Maxtoun i ch. x b.

PART II.	Elistoun	i ch. meill.
RENTALS, <i>continued.</i>	Gis in viij b. i f. i part and tua part of half part.	
	Beir	vij ch. ij b. ij f. ij part half part.
	And third thereof	
	The Lady Daleoif for the toun thereof	xxiij b beir.
	The Toun of Lessuden	ij ch.
	The Laird of Mertoun for the half of Maxtoun	i ch.
	Mark Ker for Rutherfuird aud half Maxtoun	ij ch.
	The Toun of Elistoun	vij b.
	Mark Ker of Cammestoun and Tempilland	iiij b.
	Gis in j b. i f. i part 2 part half part.	
	Aittes	i ch. v b. i 1 p ^t 3 part p ^t .
	Tak thir aites out of the Newtoun gevend	ij ch.
	Quheit	x b. ij f. p ^t half p ^t 3 thereof.
	Tak this quheit fra Mark Ker for Rutherfuird and half Maxtoun, gevand	i ch. quheit.
	Money thrid	iiij e. iiij li. i s. i d. 3 d.
	Tak the gleib of Lauder for	xxxiiij li. vj s. viij d.
	The Kirk of Saltoun for	lxxvj li. xiiij s. iiij d.
	The Kirkland thereof for	vij li. vj s. viij d.
	And Pettynane in the Captain of Craufuirdis handis	xx li.

THE MAILLES OF THE LANDIS PERTAINYNG TO DRYBURGHT IN THE YEIR.

The toun of Dryburgh with the mylne	xlj li. vj s. viij d.
Gleddiswod	xl s.
Brotherstanes	iiij li.
The landis of Erseltoun	xxij s
Doggarflat	xx s.
St Jones Chapell and Caldslic	xxxij li.

The Kirkland of Lauder be Mr Andro Home	xxi li. vj s. viij d.	PART II.
Nather Sheilfeild	iiij li. vj s. viij d.	RENTALS, <i>continued.</i>
The landis in Vgstonn	xl s.	
The landis in Banglaw	vij li.	
The Bernis	vi li.	
Elbottill	iiij li. vj s. viij d.	
The landis of Inglisberry Grange with the teyndis of the samin be my Lord Somervell	xliij li.	
The landis of Iflie	vj li.	
Fouldene	xl s.	
Banghouswallis	xlvj s. viij d.	
Smalahame landis	xv s.	
Smalahame Spittell	xiiij li. vj s. viij d.	
gis in xvj li. ij s. vj d and 2 part.		

Nota.—The parsonage of Lauder omittit and therfor mak inhibitioun of the haill
with capones pultrie grassumes &c.

No. XLIV.

RENTAL OF DRYBURGH.

[Circa 1580.]

The RENTALL of the ABASEIE OF DRYBRUCH OF THE KYRKS SET FOR MONY :

AND OF THE KYRKS THAT PAYIS WITTOUALL :

AND SYKLYK OF THE MALIS OF THE FEUE LANDIS AND ANVALIS.

IN THE FIRST THE KYRKIS SET FOR MONY.

KYL RANY KYRK.

Item sett to Williame Barklayis airis for the pay-
ment of

vij scot lib.

2 z

PART II.

LANERK KYRK.

RENTALS,

continued.

Item sett to My Lord of Angous the ane half and to
 S^t James Hamiltounne the other half for the
 payment of iiij scor lib.

PETTEINANE KYRK.

Item set to the Captane of Crauford for xx lib.

GOULANE KYRK.

Item set to My Lord of Mar for v scor libs.

Item Kyngstounne teind within the same parysone set
 to Tomas Margorybanks of Rattlio for xiii libs, vj s, viij d.

SALTOUNE KYRK.

Item set to Mr Gorg Crychtonne of Clouny for iiij scor vj libs, xiii s, iii d.

PYNCATLAND KYRK.

Item set to the Gudman of Theirlstane manes for iiij scor vj libs, xiii s, iii d.

CHEINGILL KYRK.

Item set the ane half to the Gudman of Theirlstane-
 manes and the vther half to Forman Lyounne
 Harra for the payment of iiij scor vj libs, xiii s, iii d.

LAUDER KYRK.

PART II.

RENTALS,
continued.

Item set to My Lord Home for payment of	vj seor xiii lbs. vj s. viij d.
Item the Wiccarech of the same kyrk set to the Comeser of Lander Sr. Williame Cranstoune for the payment of	xxxij libs. vj s. viij d.
Item the teindis of the glib landis of Lauder with the small teindis of the same set to the Goudman of Houmbie for the payment of	xxiii libs. vi s. viij d.
Item the toune of Mertoune the teind thair of set to Raulf Erskyng in Dryburgh for the payment of	xlviij libs.
Item the teindis of Gladiswid set to the gudmanis self for	iiij lib.
Summa of the hall kyrkis and teindis set for mony extendis to	viij hondreth xxv libs. vj s. viij d.

KYRKIS THAT PAYIS WITTOUALS.

MERTONE KYRK.

Item set to the Lard of Schaune the teindis of the toune of Daleowe for	i ch. viij bo. beir and ane ch. viij b. mell.
Item sett to the Laird of Bemersyd the teinds of the toun of Bemersyd for	i ch. vj bo. beir ij ch. meill and ij bo. aits.
Item sett to John Home of Carralsyd the teind of Broderstanis for	viij bo. beir viij bo. meill.
Item payit for the teind of Quhytrig be the auld Lady of Coldinknowis	ij bo. beir vj bo. meill.

PART II.

SMALLAME KYRK.

RENTALS,
continued.

Item sett to the Laird of Coldinknows the teind of
the toun of Smalhame for

iiij ch. beir vij ch. meill
i ch. aits.

i ch. beir dedussit to him
and i ch. meill heirin for his bailie fie.

MAXTOUN KIRK.

Item the teind of the toun of Rudderfurd, half of
the toun of Maxtoun, half of the teind of Litil-
denemanis Camestoun and Tempilhous sett to
the Laird of Litildene payis thairfoir

ij ch. iiij bo. beir.
iiij ch. iiij bos. meill.
i ch. quheit.

Item the Laird of Mertoun payis for the one half of
Maxtoun and half of Litildene manis

i ch. x bo. meill.
i ch. beir iiij bo. quheit.

Item the Guidman of the Mmirhousslaw payis for
the teind of the toun thairof

iiij bos. beir xx bols. meill.

LESSUDDEN KIRK.

Item sett to the Laird of Buccelouch the teind scheifis
of the toun of Lessudden for

ij ch. beir iiij ch. viij bo.
meill viij bo. quheit.
viij bo. beir i ch. meill.

Item Elistoun be the Laird of Greinheid payis

Item the Newtown sett to Adame Hoppingell's vyf
and hir tua sonis for the payment of

ij ch. aits.

Item the teind scheuis of Bowchacoitts and Loch-	
flatt	viij bollis aitis.
Summa of the haill beir of the kirkis that payis wittualls extends to xiiij ch.	
xii bo. and sielyk of meill of the foirsaid kirks extends to xxii ch. and of	
quleit i ch. xij bo. And of aits iij ch. viij bollis.	

THE FEWE LANDS PERTEINING TO YE ABBASIE OF DRYBURT.

Item the landis of Inglisberrie Grang be my Lord	
Somerwell	xliij lib.
Item the feu landis of Banglaw	viij lib.
Item the Barnes	vj lib.
Item Elbottill	iiij lib. vj s. viij d.
Item the few Lands of lily	vj lib.
Item the feu lands of Fuldene	xl s.
Item the lands of Banghouswayis	xlvj s. viij d.
Item Buchacoit be the Laird of Mertoun	xlvj s. viij d.
Item the few mails of the Kirk Land of Saltoun	vij lib.
Item the few mails of the Kirk land of Pencatland	xl s.
Item the lands of Smalhame Spettell be the Laird of	
Coldinknowis	xiiij lib. vj and viiij d.
Item the few mails of Broderstains be the Laird of	
Coldinknowis	iiij lib.
Item the fewe lands of Ersiltoun be the occupyar	
thairof	xxij s.
Item the few lands of Smalhame payis	xxv s.
Item the few lands of Gleddiswoid	xl s. and his victual convertit
	in silver iiij lib. iij s.
Item the feu mailis of Dryburght and myll yairof	
occupyit be George Haliburtoun for his awin	
part and sicklyk his lands of Mertoun fer his	
part thairof payis	xxxiiij lib.
Item the fewe mailis of that part of Dryburght and	
Mertoun and Nether Schielfield Kars-myr pre-	
sentlie set to Raulf Erskin payis	xxij lib. iij s. iiii d.

PART II.	Item Thomas Uilson payis for his few mails	.	.	.	.	xiiij lib.
RENEWALS,	Item Niniane Bruce payis for his few lands	.	.	.	.	xl lib.
<i>continued.</i>	Item William Hog payis for his few mails	.	.	.	.	iiij lib. iiij s.
	Item Johne Sudden payis for his few Lands	.	.	.	.	xl s.
	Item the few mails of Caidislie	.	.	.	.	xxiiij lib.
	Item the few Lands of Sanct Johnes Chappell	.	.	.	.	viiij lib.
	Item the few Lands of Sanct Leonards and the rest of the fewe Lands sett to Alex. Howme of Man- derstoun payis	.	.	.	.	xviiij lib. xiiij s. iiiij d.
	Item the fewe Lands of Vgstoun be John Cauld- cleuch payis	.	.	.	.	xl s.
	Item the few Lands of Snawdown	.	.	.	.	lāij s. iiij d.
	Item Over Shielfeild	.	.	.	.	liij s. iiij d.

THE ANEWALLES OUT OF OUS OF PAYMENT.

Item Edinburght	.	.	.	.	.	xxx s.
Item Quleithorne	.	.	.	.	.	xl s.
Item Aldinstoun	.	.	.	.	.	xl s.
Item Dunbare	.	.	.	.	.	xxvj s and viij d.
Item Blakbarrony	.	.	.	.	.	xx s.
Item Birkinsyd	.	.	.	.	.	xiiij s. and iiij d.
Item Dalcoiff	.	.	.	.	.	xiiij s. and iiij d.
Item Lessudden	.	.	.	.	.	iiij s. and iiij d.
Item Hontrod Land	.	.	.	.	.	vi s. and viij d.
Item Flemintoun	.	.	.	.	.	vj s. viij d.
Item ye Bottanis	.	.	.	.	.	vj s. viij d.
Item Ednem	.	.	.	.	.	xxs.
Item Doggirflet	.	.	.	.	.	xx s.

Summa of the few mailis and anewallis extends to xiiij sceir vj libs. xvj s. viij d.

Summa of the kirkis and teindis set for money and fewe mailis and anewallis
extends to the soume of of xi hondreth viij lib. iiij s. iiij d.

No. XLV.

THE RENTALL OF THE LORDSHIP OF DRYBURGH

TEMPORALITIE AND SPIRITUALITIE THEREOF.

[Circa 1620.]

THE FEW MAIL OF TEMPORAL LANDIS.

Inprimis the Landis in Dryburght, Mertoun Nether Scheilfield Carsmyre perteing to Ralf Erskein of Nether Scheilfield	xvij lb. xix s. viij d.
The Landis and utheris in Dryburght perteing to the airs of Unaquhille Nimian Bruce	xl lib.
The Landis and utheris in Dryburght and Mertoun perteing to the airs of Unaquhille James Haliburtoun	xxxvij lib. xvi s. viij d.
The Landis in Dryburght perteing to Thomas Wilsone	xij lib. x s.
The Landis in Dryburght perteing to William Hog The Tenements and Yairdis in Dryburght perteing to Johne Suddane	iiij lib. xj s. xlv s. iiij d.
The four merk Land in Murtoune perteing to the airs of Vmquhille Andro Haliburtoune	lvij s. iiij d.
The Landis of Doggerflat (L. Greinheid)	xx s.

PART II.
 ———
 RENTALS.
continued

PART II. RENTALS, <i>continued.</i>	The Landis of Brotherstains pertening to the Laird of Cowdinknows	ij lib.
	The Landis of Gladiswood	xl s.
	The husband land in Smelhame	xvi s.
	The Landis of Smelhame Spittell	xij lib. vi s. viii d.
	The Landis of Bangishawes	xlvi s. viij d.
	The Landis in Foulden callet Nunland	xliij s. iij d.
	The husband land lyand at the west end of the toun of Ersiltounne pertening to Cuthbert Lid- derdail	xxiiij s.
	The Landis of St John's chapell	vij lib.
	The Landis of Caidislic and Hagus	xxiiij lib.
	The Landis of Ladderdall pertening to the Good- man of Manderstoun	xxxij merkis.
	The Landis in Vgstoune	xliij s. iij d.
	The Awght aikeris of land in Dirltounne	vij s.
	The Tenement of land in Gullane	xij s. iij d.
	The Landis of Elbotill	iiij lib. vi s. viij d.
	The Landis of Banglaw	vij lib.
	The Landis of Barnes	vj lib.
	The Landis of Kingstounne	xj lib.
	The Landis of Ivelie	vj lib.
	The Croft and annualrents in Dumbar	xxx s.
	The twa pairt Landis of Pitarthie Wester and fourt pairt Landis of Innergellie	xvj lib xiii s. 4 d.
	The Tenements and aikers in Anstrwther	xl s.
	The Awght pund Land of auld extent of English- berrie Grange paying of few dewtie yeirlie	xlij lib.
	The twa Merkland in the tounheid of Englishberrie Grange being in vse to pay of fewdewtie yeirlie	xxvij s. viii d.
	The Landis of Tiarane	vi s. viii d.
	Summa	ijc lxxxxix lib. vi s. vii d.

THE ANNUELS MORTIFIED TO THE ABBAY OF DRYBURGH.

PART II.

RENTALS.
continued.

Imprimis out of Lessuddane	.	.	.	vj s. viii d.
Out of Dalecove	.	.	.	xiiij s. iii d.
Out of Flemingtoun	.	.	.	vi s. viii d.
Out of Huntroddland	.	.	.	vj s. viii d.
Out of Birkinsyd	.	.	.	xiiij s. iii d.
Out of Auldinstoun	.	.	.	xl s.
Out of Carsmyre	.	.	.	vi s. viii d.
Out of Hadingtoun	.	.	.	xiiij s. iii d.
Out of Dumbar	.	.	.	xxvi s. viii d.
Out of Bothanes	.	.	.	vi s. viii d.
Out of Edinburgh	.	.	.	xxx s.
Out of Quhythorne	.	.	.	xl s.
Out of Blakbarronie	.	.	.	xx s.
Out of Ednem	.	.	.	xx s.
Summa	.	.	xij lib. x s.	

THE TEYNDS AND TEYND PEIS SET FOR MONEY.

Imprimis the teynd schewis of the parosh Kirk of Lawder possesst be my Lord Thirlstaine	.	vi ^{xx} xiiij lib. vi. s. viii d.
The viccarage teyndis of the said paroshin of Law- der set to Umquhille Thomas Cranstoun	.	xxxii lib. vi s. viii d.
The personage and viccarage tyndes of certane Landis lyand within the said parochin of Lauder set to the Gudman of Humbie	.	xxxiii lib. vi s. viij d.
The half parsonage and viccarage teyndis of Ching- ilkirk set to the Goodman of Moristoun	.	xxxiiij lib. vi s. viij d.
The vther half personage and viccarage teyndis of		

PART II.	the said parosh kirk set to Umquhille Thomas	
RENTALS.	Lowtheane	xxxiiij lib. vj s. viij d.
<i>continued.</i>	The Teynd schewes of the parosh Kirk of Peneait- land, set to the Goodman of Moristoun	lxvi lib. xiii s. iiii d.
	The Teynd schewes of the parosh Kirk of Saltoun set to the Laird of Rewthven	lxxvi lib. xiii s. iiii d
	The Teynd shewes of the parosh Kirk of Gullane except the Lands of Kingstoun set to my Lord of Mar	i ^c lib.
	The Teynd shewes of the saids Lands of Kingstoun set to the Goodman of Ratho	xiii lib. vi s. viii d.
	The Teynds of the Inkirk of Lanerk set to the Erle of Angus	xl lib.
	The Teynd schewes of the Outkirk of Lanerk set to Umquhile James Hamiltoun of Libbertoun	xl lib.
	The Teynd schewes of the Kirk of Pettinane set to Umquhile James Carmichael of Medowflatt	xx lib.
	The Teynd schewes of the parosche Kirk of Kil- rynnie set to William Barclay of Innergellie	i ^c lx lib.
	The teynd peis and beannes of Rutherfurd Littil- deane and Maxtoun to James Ker in New- bottil	iiij lib.
	The teynd peise and beanes of the toune and lands of Lassudden set to vmquhile Sir Mark Ker	iiij lib.
	The Teynd peis and beanes of Eleistoun Camues- toun Maxpeffle and Sowthsyd of Newtoun set to Umquhile Ninian Bruce	xxvi s. viii d.
	The teind peis and beins of the toune and lands of Mirtoun set to Thomas Hallyburtoun	iiij lib.
	The teynd peise and beanes of the toune and lands of Bimersyd set to James Haig in Bimersyd	xxx s.
	Summa	vij ^c lxxxv lib. iiij s. iiii d.

THE TEYNDIS SET FOR VICTUALL.

PART II.

RENTALS.
continued

Imprimis the teynd schewes of the lands of Rutherford and half Lands of Maxtoun set to Sir Johne Ker of Jedburgh	iiij ch. meill ij ch. beir quheit
The vther half lands of Maxtoun and Littildain set to the Laird of Mertoun	j ch. iiij b. meill iiij b. beir iiij ch. quheit
The Teynd shewes of the Lands of Murislaw pertaining to the Goodman of Murislaw	j ch. iiij b. meill iiij b. beir.
The Teynd shewes of the toune and lands of Lassudoun set to the Lord of Balewche	iiij ch. viij b. meill ij ch. beir viij b. quheit
The Teynd shewes of the Lands of Camestoun and Tempillands of Lassuden set to the said Sir Johne Ker	iiij b. meill iiij b. beir
The Teynd Shewes of the Toune and Lands of Eileistoun set to the Laird of Greinheid	i ch. meill viij b. beir.
The Teynd Shewes of the Lands on the Sowthsyd of Newtoun and Maxpoffwell set to Johne Pringill in Fawnis	ij ch. aittis.
The Teynd shews of the Toune and Lands of Mertoun set to Ralf Erskine	iiij ch. xij b. meill ij b. beir iiij b. quheit.
The Teynd shewes of the Lands of Bowehereoit pertaining to the Laird of Mertoun	viij b. aittis.

PART II.
RENTALS,
continued

The Teynd shewes of the Toune and Lands of
Bemirsyd set to the Laird of Bemirsyd .

xxij b. beir x b. aitis or ells
aitmeill affirand thereto
vizt: j ch. ait meill for ilk
xxiiij b. aittis extending
to ij ch. meill ij b. aittes.

The Teindschewes of the toune and lands of Bro-
therstanis set to the Gudman of Carrilsyd .

vijj b. meill vijj b. beir.

The teynd schewes of the Lands of Gledswood per-
taining to the Goodman of Gledswood .

iiij b. meill ij b. beir.

The Teyndschewes of the parosh Kirk of Smailhum
except the teinds of the Wranghame set to the
Laird of Coldunknowes

vij ch. meill iiij ch. beir j ch.
aittes.

The teynd schewes of the saids Lands of Wrangum
set to the Gudman of Wrangum

xxiiij b. aittes iiij b. beir.

The Teynd Shewes of the lands of Qulhitrige set to
Laird of Coldonknows

vi b. meil lj b. beir.

The Teind shewes of the toune and Lands of Dalcofe
set to the Laird of Schaw

j ch. vijj b. meill j ch. vijj b.
beir.

RENTALL OF THE CANEFOWLLS IN VSE OF PAYMENT.

Inprimis Ralf Erskain for his Lands

xxxix pultrie.

The airs of Vmquhill Ninian Bruce

liij pultrie.

The airs of Vmquhill James Halyburtoun

iiij dussone vi pultrie.

Thomas Wilson in Drybruch

iiij pultrie.

William Hog thair

vj pultrie.

Johne Suddane thair

iiij pultrie.

The Gudman of Nether Mains for Bangiswalls

xij capons.

Johne Richartsone and Johne Rutherford in Smal-	
home for thair husband land there	iiij Cain fowles.
The Goodman of Glaidswood for his Lands thair of .	vj capons.
Mair be him	vj pultrie.
Cuthbert Lidderdaill for his lands in Eilistoun .	iiij Cain fowles.
For the Lands of St Johnes chapell Caidislie and	
Haggis	xxx capons.
Mair	xxx pultrie.
The Goodman of Manderstoun for his Kirklands	
besyd Lawder	xxv capones.
Mair be him	xxv pultrie.
For the Lands of Banglaw	xij eapones.
Item Mair	vj pultrie.
Johne Caldelewch for his lands in Vgstoune .	iiij capones.
Summa of Capones	vij dussone.
Summa of Pultrie	xviiij dussone vij pultrie.
Summa totalis	xxvj dussone fowls.

THE TEYND STREY.

Imprimis for the teynds of the toune and Lands of	
Lassudden	j ^c Thraves.
For the teind of the Toune and Lands off Elenstoun	xx thraves.
For the tein shewes of the Lands vpon the Sowthsyd	
of Newtown and Maxpoffall	xx hors turse to xl thraves.
The airs of Umquhile James Habiburton in Dryburgh	xx Thraves.
Thomas Wilsone thair	xv Thraves.
The Laird of Bimersyd for his teynds of Bimersyd	lx thraves.
The Gudman of Wrangum for his teynds thair of .	vij thraves.
Summa	xiiij ^{xx} iiij thraves.

RENTAL OF THE CONVERTIT VICTUALL IN MONEY.

PART II.

RENTALS,
continued.

Item be the Laird of Coldenknows for the teinds of	
Smailhame	iiij ^{ss} vj lib. xiiij s. iiij d.
Item Mair for the teyndis of Qulhitrig	iiij lib.
Item Ralf Erskine for the teind Schewes of Mertoun	xlviij lib.
The Goodman of Gledswood for his teyndis of Gleds-	
wood	iiij lib.
Summa of money	j ^c xxij lib. xiiij s. iiij d.

No. XLVI.

TAXT ROLL

OF

THE ABBACY OF DRYBURGH.

13th October 1630.¹

AT THE TOWN OF DRYBURGH the threttene day of October the year of God j^m vj^r threttie yeares in ane Judiciall court haldin within the Abbots hall therof be

baillie depute to ane noble and potent Lord James Erle of Home heritable baillie of the lordship of Dryburgh Comperit personallie John Erskine indueller in Dryburgh and producit ane letter of procuratorie of the date at Alloway the eight day of October the year of God foirsaid made and subscryuit be ane noble and potent Lord John Erle of Mar Lord Erskine and Garroche lord of the erectionn of the late abbacie

¹ Another Taxt Roll, dated 13th August 1634, has been communicated by David Erskine, Esq. of Cardross; and the changes of possession, as shown by that Roll, will be found in Notes appended to the present.

of Dryburgh giveand full power and commissioun to the said John Erskin in his name to compeir in the said court for setting doun of ane stent roll of the said late abbacie of Dryburgh and that for the said noble Erle his releif of the taxatioun imposit upon the said abbacie in the taxatioun grantit to his majestie in the moneth of Julij last bypast As likewyse the said John Erskin producit the act of conventioun made and grantit for releif of Prelattis Lords of Ereccionns and otheris beneficed persones thair partis of the fairsaid taxatioun contening the forme of setting doun of the said taxt rollis of releif together with ane certificat vnder the hand and subscripcioun of James Prymrois clerk of his majestie's privie counsell testeifeing that the said abbacy of Dryburgh in every ane of the four termes pament of the same taxatioun is taxt to six hundreth foir scoir eight pundis seventeen schillings nine pennies money Vpon production of which writtis befor writtin the said John Erskin took instruments therewith the said baillie-depute being welle advysit causit call by name and surname vpon the haill fewaris vassallis takismen and pensioneris of the said abbacie off the whilk nomber the personis vnderwrittin only comperit They ar to say John Halyburtoun of Mertoun Raulph Erskin portioner of Dryburgh Thomas Halyburtoun portioner ther Thomas Watson portioner ther and William Hog portioner ther and eftir laifull tyme of day bidden and the rest of the fewaris vassallis taksmen and pensioners of the said abbacie being oftymes callit and not compeirand the said John Erskin procurator fairsaid protestit that it might be laifull for him with the personis befor writtin compeirand to sett doun the said taxt roll according to the warand grantit vnto them be the act of the fairsaid conventioun quhilk protestatioun the said baillie-depute admittit And thairvpon the said John Erskin with the fairsaidis personis compeirand Have all with ane consent and assent made and sett doun this present taxt roll and have ordanit that every pund of frie rent aither in landis teindis or pensionis als weell pertening to the said noble Erle as to the fewaris vassallis takkismen and pensioners of the said abbacie shall in every ane of the four termes payment of the same taxatioun be taxt to the sowme of sex pennies ane farthing half-farthing And accordinglie they have sett doun this present taxt roll for the first termes pament of the same taxatioun and ordainis the same to stand in full force and effect for the other thrie terms thairof and in token thairof the said John Erskin with the personis befor writtin compeirand together with the baillie and clerk of the said court haue subscriuit the same with thair handis day year and place fairsaid.

PART II.

RENTALS,
continued.

TEMPORAL LANDS.

Dame Margret Bannatyne¹ for the convent yairds confest be

John Erskin hir procuratour to be worth of frie rent yearlie

twentie pundis Taxt to x s. viij d. ij f.

John Erle of Mar for his landis of Inglisberrie Grange confest be

his said procuratour to be worth of frie rent yearly tua hun-

dreth tuentie foir pundis Taxt to v li. xix s.

Dame Margret Bannatyne² for the frie rent paid be the fewarris

of landis and takismen of teinds of the said lordship of Dry-

burgh confest be her said procuratour to be worth of rent

yearlie off wheat ane chalder tuelf bollis off bear nyne chalder

eight bollis off meall xij chalder eight bollis off aittis thrie

chalders eight bollis whair of defeasit for the ministeris stipends

off bear three chalders off meall sex chalders sua restis of frie

viactuall off wheit i ch. xij b. off bear vj ch. viij b. off meall vij

ch. viij b. and of aittis ij ch. viij b. Estimat over head at

lxxx li. the chalder extending in money to ane thousand

fyve hundreth fourtie pundis whair of defeasit for the king's

majestie's blanche dewtie i ch. l li. and of contributioun

paid to the lordis of session xxxix li. x s. sua restis of frie

rent ane thousand thrie hundreth and fyftie pundis x s.

Taxt to xxxv li. xvij s. vj d.

John Halyburtoun of Mertoun for his kirk lands of Mertoun with

the teinds includit and lands of Boutshacoitt confest be him-

self to be worth of rent yearlie (his dewtie paid to my Lord

Dryburgh defeasit) four hundreth thrie scoir sex pundis xij s.

iiij d. Taxt to xij li. vij. s. xj d.

John Halyburtoun younger of Mertoun for his ane husband land

¹ "Ballenden," in Roll 1634.

² *Ibid.*

in Mertoun confest be his said father to be worth of frie rent yearlie thrie scoir pundis Taxt to	xxxj s. x d 2 f.
Johnne Erskin in Dryburgh for his lands of Dryburgh and Nether Sheilfeild confest be himself to be worth of frie rent yearlie tua hundreth pundis Taxt to	v li. vj s. iij d.
Thomas Halyburtoun in Dryburgh for his landis and myln of Dryburgh confest be himself to be worth of frie rent yearlie foir hundreth thrie scoir sex pundis xij s. iij d. Taxt to	xij li. vij s. xi d.
Thomas Wilsoun in Dryburgh for his aikers and yairdis in Dry- burgh confest be himself to be worth of frie rent yearlie anc hundreth thrie scoir sex pundis xij s. iij d. Taxt to	iiij li. viijs. vjd. 2 f.
Andro Home in Reidpeth Alex ^r Kirktoun Provest of Jedburght Alex ^r Ker Thomas Alisoun in Jedburght Thomas Haliburtoun in Dryburgh Rebecca Bruce for vmquhile Niniane Bruce ¹ his landis in Dryburgh with the cobill and fishing vpon the water of Tweyde estimat in regaird to thair absence to be worth of frie rent yearlie iij ch. lxxvj li. xiiij s. iij d. Taxt to	xij li. vij s. xj d.
William Hoge in Dryburgh ² for his aikers and yairdis in Dry- burgh confest be himself to be worth of frie rent yearlie thrie scoir sex pundis xij s. iij d. Taxt to	xxxv s. v d.
Thomas Halyburtoun in Merton for the taxt of his landis in Merton estimat in his absence to be worth of frie rent yearlie ffourtie pundis Taxt to	xxj s. iij d.
Alexander Lockie wester thair for his landis in Mertoun estimat in his absens to be worth of frie rent yearlie ffourtie pundis Taxt to	xxj s. iij d.
Alexander Lockie easter in Mertoun his landis in Mertoun estimat	

¹ In Roll of 1634, "John Erskine Thomas Swintoun Johnne Hog in Drybruch Andro Home in Ridpeth Margaret Bruce Relict of Umquhill Alexander Ker sometyne of Newhall," are taxed for these lands and fishings.

² "And Johnne Hog his sone," added in 1634.

PART II.
RENTALS,
continued.

in his absens to be worth of frie rent yearlie threttie pundis	
Tax to	xv s. xi d. i f.
Robert ¹ Myln thair for his landis in Mertoun estimat in his	
absens to be worth of frie rent yearlie xxx li. Tax to	xv s. xj d. i f.
Thomas ² Grenefeild thair for his landis in Mertoun estimat in his	
absens to be worth of frie rent yearlie xiiij li. xiiij s. iiij d.	
Tax to	vij s. ix d. ij f.
Walter Glaidstanes and John Rutherford in Smailhome for thair	
ane husband land in Smailhome estimat in thair absens to be	
worth of frie rent yearlie fourtie sex pundis xiiij s. iiij d.	
Tax to	xxiiij s. ix d. ij f.
James Burne in Erslingtoun for the landis of vmquhile James	
Lidderdail his ane husband land in Ersiltoun estimat in his	
absens to be worth of frie rent yearlie tucntie pundis Tax to	x s. vij d. ij f.
Mr Robert Hart aduocat for his landis of St Johnis chappell	
estimat in regaird of his absens to be worth of frie rent	
yearlie ffour hundredth pundis Tax to	x li. vij s. vj d.
Mr Robert Hart for the quarter of his landis of Caidslie estimat	
in his absens to be worth of frie rent yearlie ffour seoir pundis	
Tax to	xliij s. vj d.
Walter Riddell for his landis in Hugstoun estimat in his absens	
to be worth of frie rent yearlie thrie seoir sex pundis xiiij s.	
iiij d. Tax to	xxxv s. v d.
James Wright in Glaidswood for his landis of Glaidswood estimat	
in his absens to be worth of frie rent yearlie thrie hundreth	
threttie thrie pundis vj s. viij d. Tax to	vij li. xvij s. i f.
John Suddane in Dryburgh his aikers and yairdis in Dryburgh	
estimat in his absens to be worth of frie rent yearly tucntie	
pundis Tax to	x s. vij d. ij f.
Mr Alexander Home of St Leonardis, Francis Wilkesoun in	

¹ "Johne Milne," is substituted in 1634.

² "Andro Greinfeld," is substituted in 1634.

Lauder, Gilbert Murray, John Wood, George Pringill thair kirklandis in Lauder estimat in thair absens to be worth of frie rent yearlie ffour hundreth pundis	Tax to	x li. xij s. vj d.
Thomas Erle of Hadingtoun his landis of Banglaw estimat in his absens to be worth of frie rent yearlie all few dewties tane of Ane hundreth four scoir nyne pundis	xvij s. vj d.	
Tax to	v li. x d.	
Margaret Home and John Elphingston hir spous for their landis of Brangiswalles estimat in thair absens to be worth of frie rent yearlie ane hundreth four scoir ten pundis	Tax to	vj li. xj d. ii f.
James Nasmyth ¹ his landis of Broderstanes and Constable Medow estimat in his absens to be worth of frie rent yearlie thrie scoir sex pundis	xij s. iiij d. Tax to	xxxv s. v d.
Laurence ² Cairneroe of Cumislie for his landis of Smailhome Spittell estimat in his absens to be worth of frie rent yearlie thrie hundreth threttie thrie pundis	vj s. viij d. Tax to	vij li. xvij s. i d.
Elizabeth Ker Lady Grencheid ³ her coniunet fie landis of Doggerflatt estimat in her absens to be worth of frie rent yearlie lxxvj li. xij s. iiij d.	Tax to	xxxv s. v d.
..... Douglas of Evelie ⁴ his landis of Evelie estimat in his absens to be worth of frie rent yearlie thrie hundreth pundis	Tax to	vij li. xix s. iiij d. ij f.
William Ramsay of Nunland his landis of Nunland estimat in his absens to be worth of frie rent yearlie lxxvj li. xij s. iiij d.	Tax to	xxxv s. v d.
John Hardy ⁵ John Davidson and David for the tua quarter landis of Caidslie and Haggis estimat in thair absens to be worth of frie rent yearlie ane hundreth thrie scoir pundis	Tax to	iiij li. v s.

¹ "Sir Thomas Hope," is taxed for Brotherstanes in 1634. "James," in 1634.² "Ker Laird of Greinhied," in 1634. ³ "Robert Douglas of Blakerstoun," for Ifflye in 1634.⁴ "Andro Hardie his sone," added in 1634.

PART II. Alexander Cranston of Moreston for the taxt of his ane quarter of

RENTALS.
continued.

the landis of Caidslie and Hags estimat in his absens to be worth of rent yearlie flour scoir pundis Taxt to	xlij s. vj d.
John Home in Edinburgh his landis of Over Scheifeild estimat in his absens to be worth of frie rent yearlie lxxj li. xij s. iij d. Taxt to	xxxv s. v d.
Adame Bothwell ¹ in the Cannongait for his Kirkland of Lessudden with the teinds includit estimat in his absens to be worth of frie rent yearlie tua hundreth pundis Taxt to	v li. vj s. iij d.
Hew ² Riddell of St Boswell his pairt of the Kirklands of Lessudden estimat in his absens to be worth of frie rent yearlie ane hundreth pundis Taxt to	liij s. i d. ij f.
David Maister of Cardros (or) Margret Charterhons for hir pairt of the said Kirk of Lessudden estimat in his absens to be worth of rent yearlie fourtie pundis Taxt to	xxj s. iij d.
David Maister Cardros for his Kirkland of Maxtoun with the teinds includit estimat in his absens to be worth of frie rent yearlie ane hundreth threttie thrie pundis vj s. viij d. Taxt to	ij li. x s. x d.
David Maister Cardros for his pairte of the Kirkland of Maxtoun whilk pertinit of befoir to George Riddell estimat to be worth of frie rent yearlie fyftie thrie pundis vj s. viij d. Taxt to	xxviij s. iij d.
Hew Tod Writter his eight aikers of land in Dirleton callit Wool-lersbourne ³ estimat in his absens to be worth of frie rent yearlie lxxvj li. xij s. iij d. Taxt to	xxxv s. vj d.
Adame Hepburne in Kingstoun his landis in Kingstoun estimat in his absens to be worth of frie rent yearlie tua hundreth thrie scoir sex pundis xij s. iij d. Taxt to	vij li. i s. viij d.
George Home in ⁴ Gulane for his vicar landis in Gulane estimat in his absens to be worth of frie rent yearlie ane chalder viutuall at lxxx li. Taxt to	xlij s. vj d.

¹ The "*Airs of Umquhill* Adame Bothwell," in 1634.

² "Patrick," in 1634.

³ "Wallerstoun," in 1634.

⁴ "of," in 1634.

- Alexander Congiltoun in Dirletoun for his ane aiker of land and
hous thair estimat in his absens to be worth of frie rent
yearlie twa bollis victuall extending to ten pundis Taxt to v s. iij d. iij f.
- . . . Home of Law for his landis of Elbotle estimat in his
absens to be worth of frie rent yearlie ane hundreth pundis
Taxt to liij s. i d. ij f.
- The airis of Sir Michell Preston of Fenton Barnis for his landis of
Fenton Barnis estimat in his absence to be worth of frie rent
yearlie fyve chalders ten bollis victuall extending at v li. per
boll to ffour hundreth fyftie pundis Taxt to xj li. xix s. iij f.
- Sir John Scott of Scottistavett for his tua pairt landis of Pit-
corthie estimat in his absence to be worth of frie rent
yearlie tua chalders v b. ii pairt boll victuall extending in
money at v li. the boll to ane hundreth fourseoir eight
pundis vj s. viij d. Taxt to v li. ij f. ij m.
- Sir John Prestoun of Ardris for his fourt pairt landis of Inner-
gellie estimat in his absens to be worth of frie rent yearlie
fyve chalders victuall extending in money at lxxx li. the
chalder to iijj li. Taxt to x li. xij s. vj d.
- . . . Lindsay of Covington his tua merk landis in the tounhead
of Inglisberrie estimat in his absens to be worth of frie rent
yearlie ffourtie pundis Taxt to xxi s. iij d.
- James Traill in Anstruther for thrie aikers of land in Anstruther
estimat in his absens to be worth of frie rent yearlie ffourtie
pundis Taxt to xxi s. iij d.
- Mr Robert¹ Lawson of Humble for his Kirkland in Chengilkirk
estimat in his absens to be worth of frie rent yearlie ane
hundreth threttie thrie pundis vj s. viij d. Taxt to iij li. x s. x d.

¹ "Mr Robert," inserted from Roll 1634.

PART II.

KIRKS AND TEYNDs.

RENTALS,
continued.

- Sir James Lockert of Lye for his teindis of his landis of Lie
 estimat in his absens to be worth of frie rent yearlie fyve
 chalder thrie bollis victuall at v li. the boll extendis to flour
 hundreth fyfteine pundis Taxt to xj li. xix s. iii f.
- John Erle of Mar for his pairt of the teindis of the Outkirk of
 Lanerk by and attouer the teindis of Lie confest be his said
 procuratour to be worth of frie rent yearlie the Ministers
 stipend defeasit fyve chalders nyne bollis iij f. i pt victuall
 extending at v li. the boll to iij^c xlix li. i s. iii d. Taxt to xi li. xvij s. vj d.
- Gavin Blair for his teinds of his landis of Bruxfeild being a
 parte of the said Outkirk of Lanerk estimat in his absens
 to be worth of frie rent yearlie xv b. victuall extending in
 money to lxxv li. Taxt to xxxix s. x d. ii f.
- Robert Kennedy his teind sheaves of the landis of Auchinglen
 being a pairt of the said Outkirk estimat in his absens to be
 worth of frie rent yearlie ten bollis victuall extending in
 money to fyftie pundis Taxt to xxvj s. vj d.
- Thomas Lockert his teind sheaves of ane xxv s. land of West
 Nemphelar being a pairte of the same Outkirk of Lanerk
 estimat in his absens to be worth of frie rent yearlie sex
 bollis ij f. extending in money at lxxx li. the chalder to
 xxxij li. x s. Taxt to xvij s. iij d.
- Robert Allane his teind sheaves of ane other xxv s. land of
 Wester Nemphelar and ane merk land of Corsfoord estimat
 in his absens to be worth of frie rent yearlie nyne bollis
 3 frs. 1 pt. victuall extending in money to flourty nyne
 pundis 1 s. Taxt to xxvj s. i d.
- William Cunnynghame of Cunnynghamehead takisman of the
 teind sheaves of the ten pund land of Eist Nemphlar estimat
 in his absens to be worth of frie rent yearlie thrie chalders

four bollis 1 fr. victuall extending in money to tua hundreth thrie scoir ane pundis v s. Taxt to	vj li. xix s. iiij d.
James Carmichell ¹ of Wester Raw his teind sheaves of the landis of Bethouses Beathousmyln Beathauche Over Corsfoord Brekhill and Byrehill estimat in his absens to be worth of frie rent yearlie tua chalders ane boll ij frs. ij p ^{ts} victuall extending in money at lxxx lib. the chalder to ane hundreth thrie scoir eight pundis vij s. vj d. Taxt to	iiij li. ix s. v d.
William Dick ² his teind sheves of ane l s. land in Wester Nempllear estimat in his absence to be worth of frie rent yearlie to threttene bollis victuall extending in money to thrie scoir fyve pundis Taxt to	xxxiiij s. vij d.
William Erle of Angus ³ for his teindis of the Inkirk of Lanerk (the Ministers stipend for his parte being defeasit) estimat in his absens to be worth of frie rent yearlie eight chalderis victuall extending in money to sex hundreth fourtie pundis Taxt to	xvij li.
. . . . Cockburne of Ormeston for his teind sheaves of his landis of Paistoun estimat in his absens to be worth of frie rent yearlie (the Minister's stipend defeasit) sex chalders victuall extending in money at v li. the boll to iiij ^e lxxx li. Taxt to	xij li. xv s.
. . . . M-Gill of Cranston Riddell for his teind sheaves of his landis of Nisbitt estimat in his absens to be worth of frie rent yearlie thrie chalders victuall extending in money at v li. the boll to 2 c. xl li. Taxt to	vj li. vij s. vj d.
John Sinclar Merchand in Edinburgh for his teindis of Wester Penceaitland estimat in his absence to be worth of frie rent yearlie (the Ministers stipend defeasit) sex chalders victuall extending at v li. per boll to iiij ^e lxxx li. Taxt to	xij li. xv s.
John Belshes of that ilk for his teindis of Belshes estimat in his	

¹ He is styled "*Sir James Carmichell*," in 1634.² "*Sir James Lockard of Lie*," in 1634.³ The "*Marquis of Douglas*," in 1634.

PART II.
RENTALS,
continued.

absence to be worth of frie rent yearlie (the Ministers stipend defeasit) tuelf bollis victuall extending in money to lx li.	
Tax to	xxxj s. x d.
Robert Richertson of Pencaitland for his teindis of Pencaitland estimat in his absens to be worth of frie rent yearlie (the Ministers stipend being defeasit) sex chalders victuall at v li. the boll is iiij ^e lxxx li. Tax to	xij li. xv s.
. . . Forbes of Cragyvar ¹ for his teindis of the hail Kirk of Saltoun estimat to be worth of rent yearlie (the Ministers stipend defeasit) to threttie chalders victuall extending in money at lxxx li. the chalder to tua thousand four hundreth pundis Tax to	lxiiij li. xv s.
Robert Pringill ² Writer for the Kirk landis of Pencaitland estimat to be worth yearlie (the Ministers stipend defeasit) tuelf bollis victuall extending to lx li. Tax to	xxxj s. x d.
James Maxwell ³ one of his Majesties Bedchalmer for the teyndis of the hail Kirk of Gulane comprehending thairin the vmquhile Lady Carmichell her teyndis of nyne husband landis in Midlefentoun; Congiltoun of that ilk his teindis of Congiltoun; Sir Michell Prestoun his teindis of Eist Fentoun (excepting that pairt callit the Maynes) and his teindis of Barnis; and Marioriebankis his teindis of the landis of Kingtoun, estimat in his absens to be worth of rent yearlie (the Ministeris stipend defeasit) flourtie chalders victuall extending in money at lxxx li. the chalder to thrie thousand tua hundreth pundis Tax to	lxxxv li.
Thomas Erle of Hadingtoun for his teind sheaves of Lessudden estimat in his absens to be worth yearlie no frie rent at all, becaus his tak dewtie doeth equall the worth of these teindis	

¹ "William Gray Burgess in Edinburgh," in 1634. ² "Johne Sinkler Barges in Edinburgh," in 1634.

³ Designed of "Enderwick," in 1634.

John Erle of Lauderdaill his personage teindis of the haill Kirk of
Lauder estimat in his absens to be worth of frie rent yearlie
thrie thousand thrie hundreth merks Taxt to lxiiij li. viij s. ix d.

Dauid Maister of Cardross for his vicarage teindis of the haill Kirk
of Lauder estimat to be worth of frie rent yearlie sevin hun-
dreth thrie scoir sex pundis xiiij s. iiij d. Taxt to xx li. vij s. iij d.

"Thrie pairts of this vicarage belongs to the Erle of Lauderdaill extending to xv li. v s. ij d.

"AL. OGILVIE."

Sir John Prestoun of Ardree for his teindis of the haill Kirk of
Kilrynn timer estimat in his absens to be worth of rent yearlie
ffourtie thrie chalders victuall extending in money at lxxx li.
the chalder to thrie thousand four hundreth fourtie pundis
whair of defeasit pait be him to the Ministers in stipends iiij^c li.
ffor his gleib ane hundreth merks and for elements to the
communion xx li. Sua restis of frie rent tua thousand nyne
hundreth fyftie thrie pundis vj s. viij d. Taxt to lxxxviij li. ix s.

Mr John Cheislie for his teindis of the Kirk of Pitinane estimat
in his absens to be worth of frie rent yearlie ffour chalders
victuall extending in money at lxxx li. the chalder to thrie
hundreth tuentie pundis Taxt to viij li. x s.

Alexander Cranston of Morestoun for his teindis of the half of
Chingillkirk estimat in his absens to be worth of frie rent
yearlie fyve hundreth pundis Taxt to xiiij li. v s. viij d.

"29th Jan. 1634. And in respect of his death John Lord Cranstoun is to be chargit.

"AL. OGILVIE."

John Erle of Mar for his teindis of the other half of the Kirk of
Chingillkirk confest be his said procurator to be worth of frie
rent yearlie sex hundreth threttie thrie pundis vj s. viij d.
Taxt to xvj li. xvj s. vj d.

Lord of Traquair for his teind sheaves of Rutherford estimat
in his absens to be worth of frie rent yearlie (tak dewtie and
vantage bollis reckned and converted in money) fyve hundreth
threttie thrie pundis vj s. viij d. Taxt to xiiij li. iij s. iiij d.

PART II.
RENTALS,
continued.

- Dame Margret Bannatyne¹ for the teind sheaves of Maxtonn and
Litledane qnhilk pertemit of befor to Sir John Ker of Jed-
burght estimat to be worth of frie rent yearlie flour chalders
victuall extending in money as said is to thrie hundreth
tuentie pundis Taxt to viij li. x s.
- Thomas Erle of Hadingtoun for his teind sheaves of Beanistoun
and Tempillandis of Lessudden estimat in his absens to be
worth of frie rent yearlie lxxvj li. xij s. iij d. Taxt to xxxv s. v d.
- The Laird of Greinheid and Elizabeth Ker Lady Greinheid for
the teind sheaves of the landis of Iliestoun estimat in thair
absens to be worth of frie rent yearlie ane hundreth pundis
Taxt to liij s. i d.
- John Pringill of Fauns for his teyndis of the southside of Newtoun
estimat in his absens to be worth of frie rent yearlie fourtie
pundis Taxt to xxj s. iij d.
- John Erle of Mar and Raulph Ker of Dalcove for his teind
sheaves of Dalcove estimat in his absens to be worth of frie
rent yearlie ane hundreth threttie thrie pundis vj s. viij d.
Taxt to iij li. x s. x d.
- John Erle of Mar M^r Williame Haig and Elizabeth M^ddowell Lady
Bemersyde for the teind sheaves of Bemersyde estimat in
thair absens to be worth of frie rent yearlie ane hundreth
pundis Taxt to liij s. i d.
- The Erle of Mar and Andro Ker of Siddes for the teind sheves
of Broderstanes estimat in thair absens to be worth of frie
rent yearlie ane hundreth pundis Taxt to liij s. i d.
- Abrahame Home of Hirsell and Alexander Michelsonn of Blak-
hauche for thair teind sheaves of the landis of Smailhome
possest of befor be Sir George Home of Manderstoun estimat
in his absens to be worth of frie rent yearlie sex hundreth
three scoir sex pundis xij s. iij d. Taxt to xvij li. xiiij s. ij d.

¹ "Ballenden," in Roll 1634.

- Alexander Hunter for his teindis of Wrangholme estimat in his
absens to be worth of frie rent yearlie ffourtie pundis Taxt to xxi s. iij d.
- Thomas Erle of Hadintoun for his teind peas and beanis of
Lessudden estimat in his absens to be worth of frie rent
yearlie ane hundreth pundis Taxt to liij s. id.
- Dame Margret Bannatyne¹ for the teind peas and beanis of Max-
toun Litledane and Rutherfoord quhilk pertenit of befor to
Margret Charterhous ar worth of frie rent yearlie ane hun-
dredth three seoir sex pundis xij s. iij d. Taxt to iij li. viij s. vj d.
- John Erle of Mar and Thomas Halyburtoun in Mertoun for the
teind peas and beans in Mertoun quhilk pertenit to the said
Thomas worth of frie rent yearlie liij li. vj s. viij d. Taxt to xxviij s. iij d.
- John Erle of Mar and James Haig in Bemerside for his teind peas
and beanis in Bemerside ar worth of frie rent yearlie four
bollis victuall extending in money to xx li. Taxt to x s. vij d.
- John Erskin in Dryburgh for his teind sheaves of Mertoun confest
be himself to be worth of frie rent yearlie flour hundreth
pundis Taxt to x li. xij s. vj d.
- James Nasmyth of Posso for his teind sheaves of the landis of
Whitrig estimat in his absens to be worth of frie rent yearlie
tuentie sex pundis xij s. iij d. Taxt to xiiij s. ij d.
- Andro Home in Reidpeth and vthers the aires of vmquhile Niniane
Bruce in Dryburgh for thair teind peas and beanis of Elistoun
Cammestoun Mospople and Southside of Newtoun estimat to
be worth of frie rent yearlie ffourtie eight pundis Taxt to xxv s. vj d.

J. Home	Johne Erskin procuter for the Erle of Mar
Alex ^r Wilkesone	J. Haliburtoun
notarius publiens	Raulff Erskin
communis scriba	T. Halyburtoun
predicte curie.	Williame Hog

¹ "Ballenden," in Roll 1634.

No. XLVII.

PART II.

RENTALS,
continued.

INFORMATIOUN and RENTALL off the LANDIS perteing to the Abbacie of
Dryebruche and off the Fewmeallis and Dewetis thairoff as thei wer sett in Few
be the Abbottis now Erectit in ane Temporall Lordschipe to the Richt Honorabill
Johne Erl of Marr &c. callit the LORDSCHIFE OFF CARDROSS.

[30 January 1634.]

All the Temporal Landis and Few deweties perteing to this Abbacie as disponit be
 the said Nobill Erll to Umquhile Harie Erskin his sone and his airis And he hes
 Infestment thairoff holding off the Kingis Majestic.

In the first The Fewmeallis off certain Landis in

Dryebruche and Mertoun and the Landis off
 Nether Scheillfield and Kersmyre Fewit to Raff
 Erskin extendis yeirlic to

xxiiij lib.

The Landis in Dryebruche Fewit to Umquhile
 Niniane Bruce and now perteing to his airis

xl lib.

The Landis and Mylne in Dryebrucht and in Mer-
 toun perteing to Thomas Halieburtonn

xxxvij lib. xvi s. viij d.

The Landis in Dryebruche perteing to Thomas
 Wilsone

xij lib. x s.

The Landis in Dryebruche perteing to William
 Hog

iiij lib. vj s.

The tenementis and yardis in Dryebruche perteing
 to Johne Suddane

xl s. iiij d.

The Lande in Mertoun perteing to umquhile
 Andro Halieburtonn

lxvij s. iiij d.

The Landis off Doggirflate perteing to the Larde
 of Greinhead

xx s.

The Landis in Brodirestanis perteing to the
 Larde of Coldenknowis

iiij lib.

The Landis of Gleddiswood pertening to James Wrichte	xl s.
And off caponnis	vi caponnis.
And off pultrie	vi pultrie.
The hwsband Land in Smeallhame pertening to Johne Ruderfoorde and Alexander Huntare .	xvj s.
And of pultrie	iiij pultrie.
The Landis of Smeallhame Spittell pertening to James Carnecorse	xiiij lib. vj s. viii d.
The Landis of Bangiswallis pertening to Alexander Bruntfield	xlvj s. viij d.
And off Caponnis	j Dussoun Caponnis.
The Landis in Fwlden callit Nwneland pertening to William Ramsaye	xliij s. iiij d.
The hwsband Land in Ersiltoun pertening to James Burn	xxiiij s.
And off pultrie	iiij pultrie.
The Landis off St' Johnis Chapell pertening to Mr Robert Harte	viiij lib.
And off caponnis	i Dussoun caponnis.
The landis off Caiddislie and Haggis pertening to Thomas Huntare Alexander Cranstoun of Morestoun and Mr Robert Harte	xxiiij lib.
And of pultrie out off St' Johnis Chapell Caideslie and Haggis	iiij Dussounis pultrie.
The Kirklandis beside Lawder pertening to Sir George Hwme of Manderstoun	xxj lib. vj s. viij d.
And off Caponnis	ij Dussounnis i caponn.
And off Pultrie	ij Dussounnis i pultrie.
The Landis of Snawdoun pertening to the Erll of Lawderdeall	liij s. iiij d.
	vi caponnis.
	vi pultrie.

PART II.

RENTALS,
continued.

The Landis in Wgstoun perteing to Walter Riddell	xliij s. iiij d. vj pultrie. caponnis.
The Landis off Banglaw perteing to My Lord off Haddingtoun	vij lib.
And off Caponnis	i Dussoun Caponnis.
The Crofte of Land in Dunbare perteing to Kellie	xxx s.
The Landis of Iwilye perteing to Robert Dowglass	vj lib.
The tua parte Landis off Pitcorthie Westire per- teing to Sir Johne Scott	v lib. xvi s. viij d.
And fourte parte Landis off Inuergellie perteing Sir Johne Prestoun	x lib. xvi s. viij d.
The tenement and aickeris in Anstruther perteing to James Traill and Thomas Martone	xl s.
The Landis off Inglisberrie Grange perteing to Johne Erll off Marr in lyffrent and to James Erll of Buchane in fie	xliij lib.
The Landis off Trearne perteing to in Gallowaye	vj s. viij d.
The Landis off Owire Scheillfeild perteing to John Hwme	liij s. iiij d.
And off pultrie	vj pultrie.
The Landis of Butcheacoite and wther Fewlandis in Mertoun perteing to the Larde off Mertoun .	vj lib. x s.
The Kirklandis of Cheinillkirk perteing to the Guidman of Hombie	x lib.
The Kirklandis off Pincatelane quhilkis perteing to unquhile Robert Porteous	
Summa off the Silver Meallis foirsaidis .	
Summa off Capponies	
Summa off Pultrie	

The aucht aiekeris off Land in Dirrltoun the tenement off Land in Gwllane The Landis off Elbottill The Landis of Barnis and the Landis of Kingstoun all lyand within the parochine of Gwllane The superioritie thairoff is disponit to my Lord off Kellie to be haldin of the Kings Majestic and now is disponit to James Maxwell The ffevwmeallis thairoff is yeirlie xxvj lib. viij s. and suld releiff the Erll off Marr Lord off the Ereectioun and his airis off suamekill off the blenche dewtie yeirlie at the checkare.

PART II.
RENTALS,
continued.

ANNUALL RENTIS MORTIFEIT OF AULD TO THE ABBAYE AND CONTENIT IN THE
INFETMENT OFF ERECTIOUN BOT ALTOGIDDER OUT OF WSE OF PAYMENT.

Out of the Brucht of Edinbureht ane annualrent of	xxx s.
Out off the Priorie off Whitehorne . . .	xl s.
Out of Aldingstoun to be payed be the Larde of Craigmillare	xl s.
Out off the Brucht of Dumbare	xxvj s. viij d.
Out off the Landis off Blakbarronie	xx s.
Out off S ^t Johnis Chapell for Birkinsyde	xiiij s. iiij d.
Out off Ednem be the Larde of Edmestoun	xx s.
Out off Dalcoiff be the Larde of Schaw	xiiij s. iiij d.
Out of Bothanis be My Lord Yesther	vj s. viij d.
Out off Haddingtoun	xiiij s. iiij d.
Out of Huntrodlene	vj s. viij d.
Out off Flemingtoun	vj s. viij d.

Summa of Mortifeit annualrentes xi lib. xvj s. viij d.

The Monasterie and Precinet off the Abbaye off Dryburcht.

Subscuryit be the said Nobill Erll Lord off the said Ereectioun At Striuling the
Threttie day off Januare the yeir of God 1634 yeiris.

MAR.

APPENDIX.

PART III.

ACCOUNT OF THE CHAMBERLAIN OF DRYBURGH.

19th December 1567.

No. XLVII.

COMPUTUM *Andree Hog Camerarii de Driburgh Reddītum per eundem apud* PART III.
Edinburght decimo nono die mensis Decembris anno domini i^m v^e sexagesimo CHAMBERLAIN'S
septimo de omnibus suis receptis et expensis per firmas decimas gubulium ac ACCOUNT.
annuos Redditus dieti domini de terminis sancti martini et purificationis beate 1567.
marie anno domini i^m v^e lxxvj pentecostes et petri ad vincula anno domini etc.
lxxvj^o Et sic de vno anno integro infra hoc computum AUDITORIBUS Domino
Commendatorio et Andrea Hagie.

ONERATIO.

In primis computans onerat se de viii^c xiiij lib. xvj s. viiij d. for
the malis annuallis and kirkis sett for money of the termes
within this compt conforme to the Rentall.

PART III.
CHAMBERLAIN'S
ACCOUNT,
continued.

Item de xix lib. ressaunt fra Johne Kerris wife for the entres of
anc tak and byrun malis of the teind peise of the toun of
Lessudden.

Item de iij lib. ressaunt fra William Haigis wife for byrun malis of
the teind peise of the toun of Bemirside

Summa huius oneris viij^e xxxvj lib.
xvj s. viij d.

Item computans onerat se de xxvj ch. iij bo. farrine per decimas
ecclesiarum de Sinalahame Mertoun Maxtoun et Lessudden
de croppa infra hoc computum conforme to the Rentall.

Item de viij ch. vj bo. ij fr. ij p. farrine dependentis de croppa
anni domini i^m v^e sexagesimi quinti immediate precedentis vt
patet in computo eiusdem.

Summa huius oneris xxxiij ch. x bo. ij fr.
ij pk.

Item computans onerat se de xxj ch. x bo. ordeï of the teindis of
the kirkis foirsaidis and fermes of the toun of Driburght of
the crop within this compt.

Item de iij ch. viij bo. iij fr. dependentis de croppa anno domini etc.
lxv^o immediate precedentis vt patet in computo eiusdem.

Summa huius oneris xxvj ch. ij bo. iij fr.
ordeï.

Item computans onerat se de ij ch. frumenti of the teindis of the
kirkis foirsaidis and crop within this compt conforme to the
Rentall.

Item de iij bo. frumenti dependentis de croppa etc. lxv^o vt patet
in computo eiusdem.

Summa huius oneris ij ch. iij bo. fru-
menti.

Item computans onerat se de vj bollis pisarum per decimas ville de
Newtoun de croppa infra hoc computum.

Summa huius oneris patet.

Item computans onerat se de iiij^{or} eeldris avenarum of the teindis
of the kirkis and crop within this compt.

Item de viij bo. ij fr. avenarum that grew in the tua yairdis of the
said crop.

Item de j ch. auenarum dependente de croppa anno etc. lxxv^o vt
patet in computo eiusdem.

Summa huius oneris	.	.	.	.	v ch. viij bo. ij fr.
					avenarum.

EXONERATIO FARRINE.

Item computans onerat se de xxxiiij ch. x bo. ij fr. ij p. farrine
superius oneratis.

Summa patet.

De quibus Allowit to the comptar be payment maid to the Convent
of Driburgh with the Comptare George Home and Johnne
Leischman for thair portionis conforme to thair assignatioun
the four vacand portionis and seruandis feis being deducit
thairfra extendentibus in anno computi to

Item to Hewie Frenche for his portour fee	.	.	iiij ch. farrine.
Item to Johnne Cowttis for his pensioum	.	.	x bo. mele.
Item to Williame Alexander for his pensiou	.	.	xij bo. mele.
Item to Georde Penny Garner	.	.	xij bo. mele.
Item to Blak Jok	.	.	iiij bo. mele.
Item to the seruand that mettis furth the mele	.	.	j bo. mele.
Item to the seruand that mettis furth the mele	.	.	j bo. ij fr.
Item allowit for breid to the inbringaris of the victualis	.	.	j bo. mele.
Item spendit in Dawith to My Lordis hors in anno computi	.	.	j bo. j fr. mele.
Item to Jok the Lutar at My Lordis command	.	.	j bo. mele.

PART III.

CHAMBERLAIN'S
ACCO^UNT,
continued.

PART III. CHAMBERLAIN'S ACCOUNT, <i>continued.</i>	Item spendit to My Lordis furnishing at his diettis being in Driburgh for sindry tymes in anno computi as the comptis therof beris	viiij bo. j fr. mele.
	Item to Martyne Elliott per preceptum Domini Commendatarii	j ch. mele.
	Item to George Home per preceptum	viiij bo. mele.
	Item spent to the Lauberaris of My Lordis tua yairdis in breid	ij fr. mele.
	Item to the bigging of the buttis in the hauch	j bo. mele.
	Item defaleate of the teind of Smalahame for the Larde of Coldenknowis fee	j ch. mele.
R. computans pro j ^c lib. xij s.	Item saulde be the comptare xij ch. ij bo. ij fr. mele, price of ilk boll xvj s. Inde Summa j ^c lv lib. xij s. pro quibus respondebit computans.	
	Item allowit to the comptare for his garnell feis	xiiij bo. mele.
	Summa huius expense	xxj ch. ix bo. mele.
	Et sic restat super computantem	xij ch. j bo. ij fr. ij pc. mele.
	De qua Resta dependand in the Guidwife of Carrelsdis handis of the croppis within the computaris charge	j ch. mele.
	Item in the Larde of Coldenknowis handis of the samin croppis	iiij ch. iiij bo. ij fr. ij pc. mele.
	Item in Sande Erskynis handis of the croppis foirsaidis	vij ch. viij bo. mele.
	Item in the Larde of Bemirsidis handis	vj bo. mele.
	Summa dependens	xij ch. j bo. ij fr. ij pc.

ORDEUM.

Item computans onerat se de xxvj ch. ij bo. iiij fr. ordeis superius oneratis.

Summa patet.

DE QUIBUS Allowit to the comptare be payment maid to the

PART III.
CHAMBERLAIN'S
ACCOUNT,
continued.

convent and portionaris forsaidis in anno computi conforne to thair assignationis the four vacand portionis as said is being abstracit thairfra	vij ch. beir.
Item to Hewie French for his portour fee	x bo. beir.
Item allowit for drink to the inbringaris of the victualis	j bo. beir.
Item spendit in malt to My Lordis hors in Driburgh in anno computi	j fr. beir.
Item to the keching at My Lordis dicttis in Driburgh	ij fr. beir.
Item to Martyne Elliott per preceptum Domini Commendatarii	j ch. j bo. beir.
Item defalcate of the teind of Smalahame for Coldenknowis fee	j ch. beir.
Item defalcate of the fermes of the toun of Driburgh quhilkis ar sett in few to George Haliburtoun and his Moder for money, viz. for ane merk the boll	j ch. v bo. beir.
Inde pecunia xiiij lib. pro quibus respondebit computans.	
Item sauld be the comptare v ch. xj bo. ij fr. beir price of ilk boll	xix s.
Inde Summa	iiij ^{xx} xj lib. x s. pro quibus R. computans.
Item allowit for cheritie to the sauld beir fairsaid	v bo. ij fr. beir.
Item for the comptaris garnell feis	vi bo. beir.
Summa huius expense	xvij ch. . . . bo. beir.
Et sic restat super computantem	vij ch. fr. beir.
DE QUA Resta dependand in the Guidwife of Carrelsidsis handis of the croppis within the comptaris charge	vij bo. beir.
Item in the Lard of Coldenknowis handis of the said croppis beir.	j ch. j bo. ij fr. ij pc.
Item in Sande Erskynis handis of the saidis croppis	v ch. vj bo. beir.
Item in the Lard of Bemirsidsis handis	vij bo. beir.
Item in George Haliburtoun and his moderis handis	j ch. ij bo. ij. pc.
Summa dependen.	vij ch. ix bo. ij fr. beir.

R. computans
pro xiiij lib.
R. computans
pro iiij^{xx} xj lib.
x s.

PART III.

FRUMENTUM.

CHAMBERLAIN'S
ACCOUNT.
continued.

Item computans onerat se de ij ch. iiij bo. frumenti superius oneratis.

Summa patet.

De quibus allowit to the comptare be payment maid to the
convent of Driburgh and portionaris foirsaidis in anno com-
puti conforme to thair assignatioun the four foirsaidis vacand
portionis being deducit thairfra j ch. iiij bo. quheit.

Item spendit at My Lordis seuerall diettis being in Driburgh four
sindry tymes in anno computi as the diet comptis thereof
beris iiij bo. iij fr. quheit.

Item allowit to the comptar that was superexposit in the fute of his
last compt of the quheit j bo. j fr. ij pc.
quheit.

Item saulde be the comptare j bo. iij fr. quheit price of ilk boll

R. computans xxiiij s. Inde summa xlij s. pro quibus R. computans.

Item for eheritie to the sauld quheit ij pc.

Summa huius expense j ch. xij bo. quheit.

Et sic restat super computantem viij bo. quheit.

And the samen dependand in Sande Erskynis handis for the teind
of the toun of Mertoun off the croppis within this charge.

Summa dependens patet.

PISE.

Item computans onerat se de vj bollis pisarum superius oneratis.

Summa patet.

De quibus sawin vpoun the ground of my Lordis tua yairdis j bo. iij fr.
 Item maid in breid to My Lord sulycart gray hors in Driburgh ij fr.
 Item sauld be the comptare iij bo. iij fr. price of ilk boll xiiij s. Inde
 Summa lij s. vj d. pro quibus R. computans.

PART III.
 CHAMBERLAIN'S
 ACCOUNT.
continued.

Summa huius expense vj bo. Et eque.

R. computans
 pro lij s. vj d.

AUENE.

Item computans onerat se de v. ch. viij bo. ij fr. auenarum superius
 oneratis.

Summa patet.

De quibus allowit to the comptare that war spendit to Arthure
 Ersking and his wife with thair cumpanie cummand to
 Driburgh vpoun the ix day of October 1566 and remanand
 tua nychtis at thair passing to Jedburgh to the Quenis grace
 being in companie ix hors j bo. iij fr. aitis.
 Item spendit to My Lordis hors accompaneit with the persoun of
 Lauder his guidsonne thair seruandis and vtheris freindis and
 strangeairis reparand to him cummand to Driburgh vpoun the
 xxv day of october foirsaid and remanand vntill the tent day
 of Nonember as the particuler compt thereof beris j ch. j bo. j pc. aitis.
 Item send to Jedburgh to Robene Frissall de mandato Domini j bo. aitis.
 Item to Hewie Frenche remanand in Driburgh seik after my
 Lordis departing ij fr. aitis.
 Item spendit to my Lordis hors and his cumpanie cummand to
 Driburgh vpoun the first day of februar and remanand vntill
 the ferd day of the samyn that he dyuit ij bo. ij fr. aitis.
 Item spendit to my Lordis broun bassonit naig left in Driburgh
 vpoun the x day of Nouember and tariant vntill the xix day
 of merche in anno computi ilk nycht half ane pek aitis
 extenden to iiij bo. j. pc. aitis.

PART III. CHAMBERLAIN'S ACCOUNT, <i>continued.</i>	Item allowit to My Lordis staig left in Driburgh vpoun the ferd day of februar in anno computi and tariand their vntill the first day of June nixt thereftir ilk nyecht half ane pek aitis extenden to	iij bo. ij fr. iij pe. aitis.
	Item allowit to gray dog Michael Elphistonis hors being in Driburgh fra the ferd of februar foirsaid vntill the xix day of marche nixt thereftir ilk day ane pek aitis extenden to	ij bo. iij fr. aitis.
	Item spendit to My Lordis gray sulyear hors cumand to Driburgh vpoun the xiiij day of merche foirsaid and tariand thair vntill the ferd day of Maii nixt thereftir ilk nyecht ane pek aitis extenden to	iij bo. iij pe. aitis.
	Item deliuerit to Thom Sowdoun and the stabill childer cumand to Driburgh with My Lordis hors and all his houshold seruandis vpoun the xxviij day of merche foirsaid and tariand vntill the ferd day of Maii nixt thereftir as the tailye stik beris	j ch. j bo. aitis.
	Item spendit at My Lordis cuming to Driburgh vpoun the xxvj day of August last bipast and remanand tua nychtis having four hors at hard meitt viz thre of his (Lo) awin and ane of Robene Homys	iij fr. aitis.
	Item allowit to the comptaris hors corne in anno computi	x bo. i fr.
	Summa huius expense	iiij ch. ij fr. aitis.
	Et sic Restat super computantem	j ch. viij bo. aitis.

And the samin dependand in the Larde of Coldenknowis handis of the croppis within the comptares charge.

Summa dependens patet.

PECUNIA.

PART III.

CHAMBERLAIN'S
ACCOUNT,
continued.

Item computans onerat se de viij^e xxxvj lib. xiiij s. viij d. superius oneratis.

Et de j^e lv lib. xij s. per venditionem farrine vt supra.

Et de j^e v lib. x s. per venditionem ordeï vt supra.

Et de xliij s. per venditionem frumenti vt supra.

Et de liij s. vj d. per venditionem pisarum vt supra.

Summa totalis operationis pecunie . . . j^m j^e ij lib. xiiij s. ij d.

EXPENSE eiusdem In primis allowit to the comptar that he was
superexposit in the fute of his last comptis of the yeir
immediate lie precedand as the fute thair of beris . . . xj lib. xvj s. vj d.

Item allowit to him be payment maid to the convent of Driburgh
and portionaris foirsaidis for thair portionis in anno computi
conforme to thair assignationis the money for the four saidis
vacand portionis being deducit thairfra extenden to . . . j^e xlvj lib.

Item to Schir Andro Hagie for his pensioun . . . xl. lib.

Item to Maister David Macgill for his pensioun . . . xx lib.

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Item to the Vicare pensionare of Lauder . . . x lib.

Item to the Priest of the Chapell at Dirltoun . . . xj lib.

Item to the Officiare of Driburgh for his fee . . . xl s.

Item to James Langlandis pursivant for his expensis and laboris
in pointing execting of letteres and serving inhibitionis in
anno computi . . . iiij lib.

Item deliueritt to My Lordis parse at sindry tymes in anno com-
puti as his (Lo) tickettis of ressait thair of beris . . . j^e lxxxvj lib. xiiij s.
iiij d.

Item payit in wagis to ane passand in Liddisdaill vpoun the viij

PART III.
CHAMBERLAIN'S
ACCOUNT,
continued.

day of merche last bipast with my Lady of Marris writingis and remanand thair sex days vpoun the answer of the samin	x s.
Item payit to Thom Sowdown for his ordinair wagis cumand to Driburgh with my Lordis hors vpoun the xxviij day of merche in anno computi and remanand vntill the ferd day of Maii extending to the space of xxxvij days takand ilk day	ii s. Inde summa
Item to Johnne Duncane and Jok and na mair being in Driburgh wyth thair maisteris hors that samin space ilkane of thame takand on the day xij d. extending in the haill to	iiij lib. xiiij s. iiij lib. xiiij s.
Item payit for schoing My Lordis hors and his seruandis the samin tyme in Driburgh	ix s.
Item for schoing of the staig	ij s.
Item for shoing of My Lordis bassonit naig and vthir hors being in Driburgh with My Lord in the moneth of August last bipast	iiij s. iiij d.
Item payit for ane quhite bridill to the said naig	v s.
Item for seruandis expensis careand stray in anno computi	xvj s.
Item for candill to the stabillis in anno computi	vj s.
Item the first day of June payit to Johnne Lekkie to beir his expensis passand to Striveling with my Lordis staig	xiiij s.
Item for bigging of the kirk yaird dyikis mawing and wynning the hay thairoff in anno computi	viiij s.
Item for expensis maid in teling sawin harrowing wading schering and leding of the eornis of the tua yairdis and bigging the dyikis thairof in anno computi	xx s.
Item spendit at My Lordis diettis being in Driburgh vpoun the third day of Maii in anno computi as the particulare compt therof beris	iiij lib. vj s. viiiij d.
Item gevin to the Priores and Madynnys that samin tyme in Driburgh at my Lordis command	xx s.
Item gevin to ane Nakit Lawd to help him to ane coitt	v s.

Item the ferd day of Maii geven at My Lordis command to ane fuill in Thirlstane manys	. . . s.
Item that sam tyme gevin to Dwn having ane sair leg to maik his expensis being behind my Lord	toru.
Item to tua childeris wages rynnand to Neisbett and the manys with my Lordis writingis	ij s.
Item for the Larde of Coldenknowis expenssis cumand to Dri- burgh sindry tymes in anno computi	xxj s.
Item payit at my Lordis command to Thomas Ridpeth in Edin- burgh for veluet and silkis fornissit be him to James Erskynis douchter quhen scho was mareit	lxij lib.
Item payit to Robert Winyett be my Lordis precept	x lib.
Item gevin to Jamie Wilsoun for his expenssis cumand to Edin- burgh at my Lordis command vpoun the xij day Junii last bipast and remanand thair sex dayis	xvij s.
Item the xvij day of June fairsaid payit in Edinburgh for three arrowis to my Lord	vj s.
Item to ane seruand carcand the money to Edinburgh that was gottin fra Cuthbert Cranstoun for renewing the tak of Pent- catland	v s.
Item for ane sclateris expenssis mendand and pointand my Lordis chalmer in Driburgh the gallorie and trance the space of sex days	xxiiij s.
Item for ane seruandis expenssis servand him the said space	xij s.
Item for x bollis lyme coft thairto	xx s.
Item for inhibitionis rasing of the vacand teindis in anno computi	vij s.
Item spendit at My Lordis diettis cumand to Driburgh vpoun the xxvj day of August last bipast as the particulare compt therof beris	iiij lib. xvij s. x d.
Item that samin tyme to David Haig rynnand on the nycht to Horslyhill with My Lordis writingis	ij s.
Item to Johnne Lekkie passand to Striveling with the anser of the samin writingis	x s.

PART III. CHAMBERLAIN'S ACCOUNT, <i>continued.</i>	Item the vij day of September to ane seruand rynnand to Martyne Elliot with my Lord of Marris writingis and to ane vthir that brought agane the anser thairof	vij s.
	Item payit for ehilderis wagis passand to Neisbet Syntoun and Qulhitslaid with my Lord of Marris writingis at sundry tymes in anno computi	vj s.
	Item for expenssis maid in gaddering and leding the teind peise of the Newtoun in anno computi	xiiij s.
	Item the xx day of September last bipast payit to Michaelle Elphistoun in money and expenssis to him and his man being in Driburgh and Lauder at my Lordis to await vpoun the teinding	l s.
	Item coft aucht faddom of corde to be ane bell string	iiij s.
	Item spendit at My Lordis diettis cumand to Driburgh vpoun the xxv day of September last bipast and remanand vntill the viij day of October as the particular compt beris	xxxix lib. xviiij s. iiij d.
	Item for ane coitt and hoise to Georde Penny at my Lordis command	l s.
	Item defalcate to the comptare of the kirkis of Cheindilkirk and Peneatland being geving in pensioun to my Lord of Mar extenden in anno computi to	j ^e xxxiiij lib. vj s. viiij d.
	Item intromettit and vptaking be My Lord Commendatour the haill malis of Kilrenny kirk extenden in anno computi to	j ^e lx lib.
	Item taking wp be my said Lord Commendatour the malis of the landis and teindis of Inglisberry grange extenden to	xliij lib.
	Item taking wp be his (Lo) of the malis of Kirk of Saultoun in anno computi	xxvj lib. xiijs. iiij d.
	Item intromettit and taking wp be my Lord Commendatour the haill malis of the kirk of Lanerik extenden in anno to	lxxx lib.
	Item waist of the walk myll of Driburgh	liij s. iiij d.
	Item payit to Robene Wedderate for rasing of ane instrument to	

PART III.

CHAMBERLAIN'S
ACCOUNT,
continued.

my Lord of the persoun of Lauderis renuneatioun of all his takkis	v s.
Item payit to Schir Andro Hagie de mandato Domini Com- mendatarii	xl lib.
Item allowit for the compt drink	xl s.
Summa harum expensarum	j ^m lxxix lib. ix s.
Et sic restat super computantem	xxiij lib. iij s. ij d.

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Signatures of James Stewart, Abbot, and the Convent of Dryburgh,
1538 & 1554

James abbot off Dryburgh

der abbot andson für für

derne ande p'wach

derne abbot andson

derne p'wach p'wach

derne abbot andson

derne ande andson

derne abbot andson

derne ande andson

derne abbot andson

derne ande andson

derne abbot andson

PLATE III

Signatures of the Four last Commendators of Dryburgh
of the Erskine Family, 1516 - 1628

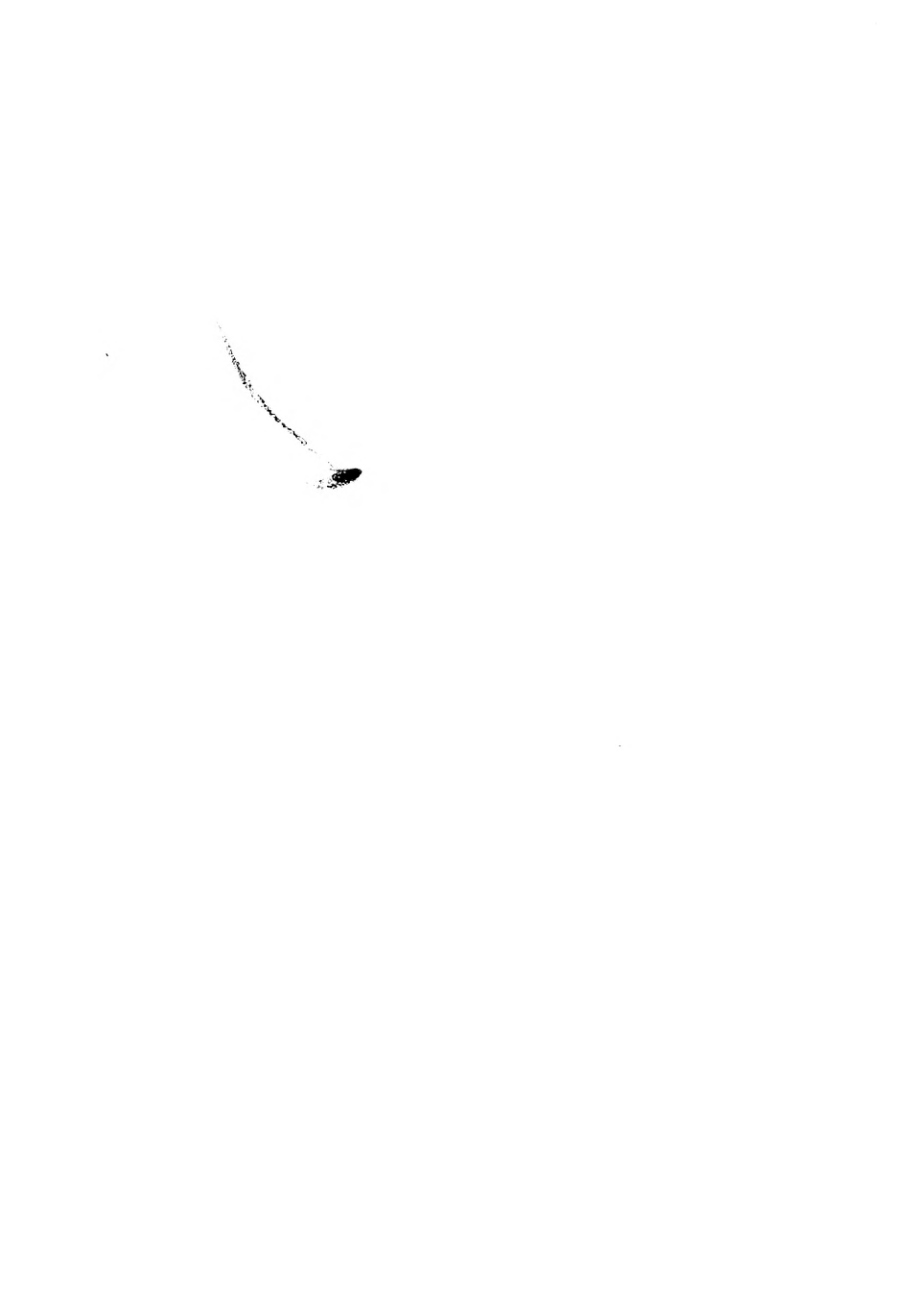
 Commendatorius de Dryburgh 1516

Thome commendator of Dryburgh 1551

David Erskine Commendatorius de Dryburgh 1559

James Erskine 1628

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